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How this file is arranged. Every unit opens with its syllabus coverage, statutes and prescribed case material, followed by the concept notes and the case laws in detail (facts · issues · decision · ratio · principles), and closes with the **PYQ bank** — the questions only, without answers. Detailed notes, model answers, diagrams and revision material for every question are available at **makelaweasy.in**.

by Ankur R. Upadhyay

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UNIT I

Introduction — Information Technology, Cyberspace and the IT Act, 2000

◆ SYLLABUS COVERAGE

Meaning, definition and scope of information technology · cyberspace · the internet, e-mail and the world wide web · uses of IT · interface of information technology and law and current challenges · purpose and object of the Information Technology Act, 2000 · applicability (ss.1(4), 75) and overriding effect (s.81) · key definitions under s.2(1).

◆ STATUTES & PROVISIONS

IT Act, 2000 · ss.1(2), 1(4), 2(1), 4, 75, 81 · First Schedule · UNCITRAL Model Law, 1996

◆ PRESCRIBED CASE MATERIAL

Syed Asifuddin v. State of Andhra Pradesh · State of A.P. v. Prabhakar Sampath · Avinash Bajaj v. State (the Baazigar case)

⬢ Unit I · INTRODUCTION (4–5 classes)

Master notes prepared

strictly on the DU case material

Cases Selected and Edited

(Faculty of Law, University of Delhi, July 2026) — cross-checked against the May–June 2025, Nov–Dec 2025 and Nov–Dec 2024 examination papers, and supplemented with the IT Act, 2000 (as amended by the IT Amendment Act, 2008), the Bharatiya Sakshya Adhiniyam, 2023, the Bharatiya Nyaya Sanhita, 2023 and the Digital Personal Data Protection Act, 2023.

⬢ 1 Information Technology: Meaning, Definition & Scope

"Information Technology (use of computers to **store, retrieve, transmit and manipulate data**)..." — DU syllabus, Part A, Unit I. Those four verbs are the entire subject-matter of the IT Act: every section of the Act regulates one or more of them.

▸ 1.1 What is Information Technology?

Information Technology (IT) is the use of computers, digital networks and software to **store, retrieve, process, transmit and manipulate data** — i.e., reducing information into electronic form so that it can be stored, retrieved and distributed rapidly, without the geographic and time constraints of paper-based systems.

Read functionally, IT has four core operations, each of which maps onto a defined term in the Act:

Core operation of IT	What it means in practice	IT Act hook
Store	Writing data to a hard disk, server, cloud, SIM, pen drive or database	s.2(1)(k) computer resource; s.2(1)(l) computer system
Retrieve	Searching, reading and extracting stored data	s.2(1)(a) "access" — gaining entry into, instructing or communicating with the logical, arithmetical or memory function resources of a computer, computer system or computer network
Transmit	Sending data across a network — email, SMS, WhatsApp, API call	s.2(1)(j) computer network; s.2(1)(ha) communication device
Manipulate	Altering, deleting, adding to, or re-programming data or code	s.65 tampering with computer source code; s.43/s.66 damage & hacking

▸ 1.2 Dimensions / scope of IT in modern society

Dimension	Everyday illustration	Legal significance
Academics & education	Online classes, digital libraries, MOOCs, e-research portals, online examinations	E-governance & legal recognition of records (ss.4–5); records as evidence (s.63 BSA)
E-commerce	B2B (IndiaMART), B2C (Amazon, Flipkart), C2C (OLX)	s.10A + ss.11–13; First Schedule exclusions; Consumer Protection (E-Commerce) Rules, 2020
Social networking	WhatsApp, Instagram, X, Facebook, YouTube	Intermediary liability (s.79); Intermediary Guidelines 2021 (am. 2026); s.69A blocking
Governance	Aadhaar, DigiLocker, income-tax e-filing, e-courts	ss.4–10A; s.6 electronic Gazette; DPDP Act, 2023
Financial services	UPI, net banking, wallets, algorithmic trading	s.66C/s.66D; RBI Directions; s.43A; DPDP Act
Healthcare	Telemedicine, electronic health records, ABDM	Privacy (Art. 21 — *Puttaswamy*); s.43A; DPDP Act
Critical infrastructure	Power grids, railways, telecom, banking core systems	s.70 protected systems; s.70B CERT-In; s.66F cyber terrorism

☑ WHY THIS MATTERS FOR THE EXAM

"IT" is **not defined** in the IT Act — the Act defines the *objects* (computer, computer resource, information, electronic record) and the *conduct* (access, tampering, transmission). So an answer on "meaning of IT" must always (a) give the functional definition, and (b) immediately anchor it to the four ...

⬢ 2 Cyberspace: The Notional Environment

"Cyberspace is a **notional environment in which communication over computer network occurs**; [a] borderless environment" — DU syllabus, Part A, Unit I.

Cyberspace is the conceptual space in which information is stored, processed and transmitted through computer networks. It is **notional** (a space of data and interaction rather than of geography), **borderless** (it does not correspond to any territory), and **intermediated** (it exists only because computers and networks exist). The classic academic statement, recommended in the DU reading list, is Lawrence Lessig, *Code and Other Laws of Cyberspace* (1999; Code version 2.0, 2006) and S.K. Verma & Raman Mittal (eds.), *Legal Dimensions of Cyberspace* (2004): in cyberspace, **architecture ("code") itself regulates**, alongside law, norms, markets and physical constraints.

2.2 Scope and regulation of cyberspace

- **Legislative (India):** IT Act, 2000 (as amended 2008) + rules thereunder; DPDP Act, 2023; Telecom Act, 2023; BNS, 2023; BSA, 2023; Copyright Act, 1957; Trade Marks Act, 1999.
- **Regulatory:** MeitY (nodal ministry), CERT-In (s.70B), Controller of Certifying Authorities (s.17), Adjudicating Officers (s.46), TDSAT, TRAI, Data Protection Board of India (DPDP), RBI for payment data.
- **International:** UNCITRAL Model Law on Electronic Commerce (1996) & Model Law on Electronic Signatures (2001); UN Convention on the Use of Electronic Communications in International Contracts (2005); Budapest Convention on Cybercrime (2001) — **India is not a signatory**, a standing enforcement lacuna.
- **Self-regulation / architecture:** ICANN/UDRP for domain names, platform community standards, code-level design (Lessig).

3 The Internet, E-Mail and the World Wide Web

Three distinct things routinely confused in answers. The syllabus tests the distinction: **Internet ≠ Web ≠ E-mail**.

Feature	The Internet	The World Wide Web	E-Mail
What it is	The global infrastructure — an interconnected network of computer networks	An application layer *running on* the Internet, delivering linked documents via browsers	An asynchronous messaging system running on the Internet
Protocols	TCP / IP	HTTP / HTTPS; HTML; URLs; DNS	SMTP (send); IMAP / POP3 (retrieve)
Origin	ARPANET, 1960s–70s (US DoD); packet switching	Invented by Tim Berners-Lee at CERN, 1989	Early 1970s (@ symbol, Ray Tomlinson)
Legal significance	The "computer network" of s.2(1)(j); basis of s.75 extraterritorial reach	Created the domain-name system (Unit VIII); enabled web-based e-commerce and social media; website jurisdiction (Unit IX)	First widespread peer-to-peer digital communication; the trigger for e-commerce; a primary source of digital evidence (s.63 BSA)
Real example	Jio/Airtel fibre + undersea cables carrying packets	Typing in Chrome	Sending a job offer / a legal notice by e-mail

4 Uses of IT: Academics, E-Commerce & Social Networking

The syllabus requires you to know the *use* of IT — academics, e-commerce (B2B, B2C, C2C) and social networking by individuals — because each use creates its own legal problem and its own statutory response.

4.1 Academics

- **What:** online learning (SWAYAM/NPTEL/MOOCs), digital libraries, e-research databases, online admission and examination systems, plagiarism detection.
- **Legal issues:** copyright in digital courseware and journals (ss.14, 51, 63 Copyright Act, 1957); data protection of student records (s.43A, DPDP Act, 2023); validity of online examination and degree records (ss.4–5 IT Act, and the presumptions in s.85B Evidence Act — corresponding to ss.62–63 BSA); intermediary liability of learning platforms (s.79).
- **Example:** a university issues a marksheet as an electronically signed PDF — its legal recognition flows from ss.4–5 IT Act and the presumptions in favour of electronic records under s.85B of the Evidence Act, 1872 (corresponding to ss.62–63 of the Bharatiya Sakshya Adhiniyam, 2023).

4.3 Social networking by individuals

- **What:** user-generated content platforms — messaging (WhatsApp), micro-blogging (X), photo/video (Instagram, YouTube), professional networks (LinkedIn), communities (Reddit, Facebook Groups).
- **Why it is legally distinct:** the *individual* is now a publisher with global reach at zero cost. Scale and speed defeat traditional moderation; anonymity defeats attribution.
- **Statutory response:** s.2(1)(w) intermediary; s.79 conditional safe harbour; s.69A blocking; ss.66C–66F, ss.67–67B offences; s.72A disclosure breach; IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 — as amended in 2022, 2023, 2025 and 2026 (significant social media intermediaries, grievance officer, 36-hour takedown, traceability of first originator, and — from 2026 — labelling of synthetically generated information / deepfakes).
- **Real example:** a morphed image of a woman circulated on WhatsApp attracts s.66E (violation of privacy) and possibly s.67A; the platform's exposure is tested under s.79 read with the 2021 Rules' due-diligence obligations.

★ HIGH-VALUE POINT

For every "use" of IT, name the **enabling provision** (ss.4–5, 10A) and the **limiting provision** (s.1(4)/First Schedule; s.79; s.69A; Consumer Protection Act). Examiners reward the "enabling + limiting" structure because it mirrors how the Act actually works.

5 Interface of Information Technology and Law; Current Challenges

"Interface of information technology and law; current challenges — mobiles, cyber security, cloud computing and data privacy, misuse of social media, cyber crimes."

5.1 What "interface" means

IT Law is not a single statute but an evolving, multi-disciplinary interface spanning contract law, tort, intellectual property, criminal law, constitutional law and administrative regulation. In India it rests on identifiable constitutional foundations:

Constitutional source	Relevance to IT law
Article 19(1)(a)	Freedom of speech and expression includes online expression — subject to Art. 19(2). Struck down s.66A in *Shreya Singhal v. Union of India* (2015); upheld s.69A with safeguards.
Article 19(1)(g)	Freedom of trade and profession — protects e-commerce and digital business.
Article 21	Right to life and personal liberty includes the fundamental right to privacy — *K.S. Puttaswamy v. Union of India* (2017); the constitutional foundation of data protection.
Article 14	Equality — no arbitrary classification in cyber regulation.
Entry 31, List I (7th Sch.)	Posts and telegraphs — Parliament's legislative competence over telecommunications (now read with the Telecom Act, 2023).

Entry 97, List I	Residuary power — covers the internet and emerging technologies.

5.2 The multi-layered legal framework

The IT Act does not operate in isolation. It *adapts* pre-existing law:

Pre-existing law	How the IT Act / related law adapts it	Where it is studied
Indian Contract Act, 1872	s.10A validates contracts in electronic form; ss.11–13 fix attribution, acknowledgment, time & place of despatch/receipt	Unit VII
Indian Evidence Act, 1872 → **Bharatiya Sakshya Adhiniyam, 2023**	ss.65A/65B IEA → ss.62–63 BSA (special provisions for electronic records, certificate, hash value); the presumptions in favour of electronic records and electronic signatures (ss.85–85C IEA, incl. s.85B(2)(a) prescribed in the syllabus) are carried forward in the BSA, together with the proof provisions (ss.67A, 73A IEA → ss.66, 73 BSA)	Units II & IV
Indian Penal Code, 1860 → **Bharatiya Nyaya Sanhita, 2023**	No direct amendment by the IT Act, but IT Act offences run *in parallel* with IPC/BNS offences — the same conduct is prosecutable under both (as happened in *Syed Asifuddin*)	Unit IV
Copyright Act, 1957	s.81 proviso expressly preserves rights under the Copyright Act and Patents Act — the textual hinge in *My Space v. Super Cassettes*	Unit V
Trade Marks Act, 1999	Domain names protected as marks under passing off — *Satyam Infoway v. Sify* (2004)	Unit VIII
Registration Act, 1908; NI Act, 1881; Powers of Attorney Act, 1882; Trusts Act, 1882; Succession Act, 1925	Source of the First Schedule exclusions in s.1(4)	Units I & VII
DPDP Act, 2023 (+ Rules, 2025)	Standalone omnibus privacy statute — rights-based successor to the s.43A/SPDI Rules, 2011 framework	Units II–III

5.3 The five challenges in detail

(a) Mobiles

The mobile phone is now the primary computer for most Indians. Two consequences follow. **First**, the mobile is a "computer" within s.2(1)(i) — held in *Syed Asifuddin* — and since 2008 also a "communication device" under s.2(1)(ha), which extends offences such as s.66D (cheating by personation using a computer resource *or* communication device) and mirrors s.354D IPC/s.78 BNS (stalking). **Second**, mobile-number control is the new authentication factor: SIM-swap/duplicate-SIM frauds generate OTPs for banking frauds — the fact pattern of *Sanjay Dhande v. ICICI Bank & Vodafone* and *State Bank of India v. Chander Kalani*, both in the DU case material, where liability was apportioned between the bank and the telecom operator under s.43A.

(b) Cyber security

The attack surface expands as critical infrastructure, financial systems and personal data move online. Threats range from individual account compromise (phishing, credential theft) to nation-state attacks on power grids and telecommunications: data breaches, ransomware, DDoS, supply-chain attacks, and AI/ML-based threats (deepfakes, autonomous malware). India's response: ss.69 (interception/monitoring/decryption), 69A (blocking), 70 (protected systems), 70A (review committee), 70B (CERT-In — the national nodal agency), the Information Technology (Interception, Monitoring and Decryption) Rules and the IT (Procedure and Safeguards for Blocking) Rules, 2009, and the CERT-In Directions, 2022 (reporting of incidents within six hours of knowledge; 180-day log retention; KYC obligations on VPN/cloud providers). s.66F punishes cyber terrorism with imprisonment up to life.

(c) Cloud computing and data privacy

Organisations store and process data on remote servers (AWS, Azure, Google Cloud), often outside India. Two questions arise: is personal data adequately protected if it transits foreign servers, and can Indian authorities access data stored abroad? India's specific issue is **data localisation** versus free flow: the DPDP Act, 2023 adopts a "trusted countries" whitelist rather than hard localisation, while the RBI (payment data) and IRDAI (insurance data) impose sectoral localisation — a fragmented approach. The s.43A liability of body corporates for negligent handling of sensitive personal data survives for pre-DPDP conduct, and the *Puttaswamy* three-fold test (legality, legitimate aim, proportionality — least restrictive means) governs any state intrusion on privacy.

(d) Misuse of social media

Social media enables viral dissemination of misinformation, hate speech, cyberbullying, non-consensual intimate imagery, doxxing and coordinated harassment. Documented Indian examples: communal violence triggered by rumours on WhatsApp/Facebook; election-time disinformation; COVID-19 medical misinformation; and the harassment of women. Response: s.69A blocking, ss.79–81 intermediary liability with the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 (as amended 2022, 2023, 2025 and 2026) — grievance officer, nodal officer, chief compliance officer, 36-hour takedown, traceability of the first originator, and statutory labelling of synthetically generated information (deepfakes) from 2026.

(e) Cyber crimes

"Cyber crime" is **not defined** in the IT Act, the IT Amendment Act, 2008, or any other Indian statute — as the DU case material notes, "any offence or crime in which a computer is used is a cyber crime". The computer may be the **target** (hacking, virus, DDoS, source-code tampering), the **tool** (phishing, identity theft, cheating by personation, cyber stalking, defamation, obscenity, terrorism), or the **repository of evidence**. Financial frauds (money laundering, credit-card frauds), social crimes (stalking, pornography, identity theft), IPR-related crimes, cyber terrorism and defamation are all prescribed for study, mapped to ss.43, 65, 66, 66C, 66D, 66E, 66F, 67, 67A, 67B, 72, 72A and to parallel IPC/BNS provisions.

☑ ONE-LINE ANSWERS YOU CAN DROP INTO ANY UNIT I ESSAY

- **Mobiles:** "The handset is both a computer (s.2(1)(i)) and a communication device (s.2(1)(ha)) — so every fraud routed through a phone attracts both IT Act and BNS liability."
- **Cyber security:** "Prevention is institutional (CERT-In, s.70B), investigation is procedural (s.69, 20 …

6 Purpose and Object of the Information Technology Act, 2000

"…to facilitate e-commerce to remove major hurdles of writing and signature requirement for legal recognition, providing regulatory regime to supervise certifying authorities and digital signature certificates, to create civil and criminal liabilities for contravention of provisions, and consequential amendments in other Acts."

6.1 The genesis — why India needed the Act

- **Mid-1990s:** globalisation and computerisation accelerated; e-commerce grew enormously. Until then, most international trade ran on documents transmitted by post and telex; evidence and records were paper-based.

- **1996:** UNCITRAL adopted the **Model Law on Electronic Commerce**; in January 1997 the UN General Assembly recommended that all States give it favourable consideration — providing legal recognition to electronic records on the same footing as paper.
- **India's response:** Parliament passed the IT Act, 2000 as **Act No. 21 of 2000** — Presidential assent on **9 June 2000**, brought into force on **17 October 2000** (GSR 788(E)). It was one of the earliest comprehensive e-commerce statutes in the world, deliberately enacted to position India as a stable, law-friendly jurisdiction for digital commerce and IT services.
- **2008–09:** the **Information Technology (Amendment) Act, 2008** (Act 10 of 2009) received assent on **5 February 2009** and came into force on **27 October 2009**, because the 2000 Act was criticised as technology-specific (it hard-wired the asymmetric cryptosystem/PKI model into s.3), and simultaneously as too draconian and too diluted.

⚖ THE PREAMBLE (THE "WHY" OF THE ACT)

"An Act to provide legal recognition for transactions carried out by means of electronic data interchange and other means of electronic communication, commonly referred to as 'electronic commerce', which involve the use of alternatives to paper-based methods of communication and storage of information, to facilitate electronic filing of documents with the Government agencies and further to amend the Indian Penal Code, the Indian Evidence Act, 1872, the Bankers' Books Evidence Act, 1891 and the Reserve Bank of India Act, 1934 and for matters connected therewith or incidental thereto."

▸ 6.2 The five objects of the Act

Object	Mischief it cures	Implementing provisions
Remove the legal disability of electronic form	Pre-2000, the Contract Act, Evidence Act, company law and criminal law all assumed paper documents and handwritten signatures. Was an e-mail contract "in writing"? Was an e-signature valid? Was electronic evidence admissible?	ss.4 (legal recognition of electronic records), 5 (digital signatures), 10A (validity of e-contracts)
Facilitate e-commerce	The "writing and signature" requirement prevented online contracting and e-governance	ss.6–10A; ss.11–13 (attribution, acknowledgment, time & place of despatch/receipt)
Regulatory regime for digital signatures and certifying authorities	No trusted third party existed to vouch for electronic identity	ss.3, 3A (authentication), ss.17–34 (regulation of CAs, Controller), ss.35–42 (signature certificates, suspension, revocation), ss.73–74 (false certificates / fraudulent publication)
Create civil and criminal liabilities	Data theft and misuse of computer resources were either unaddressed or had to be forced into property/criminal law	ss.43, 43A (compensation), ss.46–47 (adjudication), ss.65–75 (offences)
Consequential amendments	Substantive law needed to be made functional in the electronic medium	s.91 IPC (now BNS), s.92 Evidence Act (now BSA), s.93 Bankers' Books Evidence Act, 1891, s.94 RBI Act, 1934

▸ 6.3 Notable features of the IT Amendment Act, 2008 (in force 27.10.2009)

☑ WHAT THE 2008 AMENDMENT CHANGED

- Focussed on **data privacy** (new s.43A, s.72A) and **information security**
- Defined **cyber café** (s.2(1)(na)) and **cyber security** (s.2(1)(nb))
- Made digital signature **technology neutral** — s.3 renamed "Digital Signature and Electronic Signature"; new s.3A + Second Schedule
- Defined **reasonable security practices** for body corporates (s.43A)
- Redefined the role of **intermediaries** (s.79 substituted; s.2(1)(w))
- Recognised **CERT-In** (s.70B)
- Added cyber crimes: **child pornography** (s.67B) and **cyber terrorism** (s.66F)
- Authorised an **Inspector** (not only a DSP) to investigate cyber offences
- Added s.2(1)(ha) "communication device" — cell phones, PDAs and the like

☑ THE ACADEMIC CRITIQUE (USEFUL FOR "CRITICALLY EXAMINE")

Hemali Shah & Aashish Srivastava, *Signature Provisions in the Amended Indian IT Act 2000: Legislative Chaos*, 43 Common Law World Review 208 (2014) — a DU-listed reading — argue that despite the 2008 amendment the Act remains a **weak, complex and ambiguous** legislation that fails to address many aspects of electronic-signature usage, particularly when compared with the UNCITRAL Model Laws, the EU Electronic Signatures Directive and other jurisdictions' statutes. The 2000 Act's PKI-exclusive design was technologically premature and had to be supplemented by the technology-neutral s.3A, producing a dual-track regime whose CA-licensing infrastructure (ss.17–42) has not kept pace with Aadhaar e-Sign and OTP authentication.

Also useful: the original 2000 Act was criticised as **draconian** by one arm of industry and **too diluted/lenient** by another, and there were conspicuous omissions — which is why investigators continued to rely on the Indian Penal Code even in technology-based cases.

⬢ 7 Applicability — s.1(4), s.75 and Overriding Effect (s.81)

▸ 7.1 Section 1 — short title, extent, commencement and application

⚖ SECTION 1 (VERBATIM STRUCTURE)

1(1) This Act may be called the Information Technology Act, 2000. **1(2)** It shall extend to the whole of India and, save as otherwise provided in this Act, it applies also to any offence or contravention thereunder committed outside India by any person. **1(3)** It shall come into force on such date as the Central Government may, by notification, appoint; different dates may be appointed for different provisions. (In force 17 October 2000.) **1(4)** Nothing in this Act shall apply to documents or transactions specified in the **First Schedule**.

▸▸ The First Schedule exclusions — the single most frequently tested scope limitation

Excluded document / transaction	Source of the definition	Why it is excluded / practical effect
(a) Negotiable instrument **other than a cheque**	s.13 Negotiable Instruments Act, 1881	Bills of exchange, promissory notes etc. remain outside electronic-form recognition; **cheques were brought in** by the 2008 amendment (electronic images / truncation)
(b) Power of attorney	s.1A Powers-of-Attorney Act, 1882	Remains subject to paper-only requirements in most jurisdictions
(c) Trust	s.3 Indian Trusts Act, 1882	Creation and modification of trusts remain non-electronic

(d) Will / any other testamentary disposition	s.2(h) Indian Succession Act, 1925	Electronic wills remain legally fraught; no statutory validation (though courts have begun recognising them in limited circumstances)
(e) Any contract for the sale or conveyance of immovable property or any interest therein	Registration Act, 1908	Sale of land cannot be concluded electronically; the memorandum must be on paper and executed as a registered document
(f) Any such class of documents or transactions as may be notified by the Central Government	Enabling provision	Permits the exclusion of further categories by notification

▸ 7.2 Extraterritorial jurisdiction — s.75

⚖ SECTION 75 — ACT TO APPLY TO OFFENCE OR CONTRAVENTION COMMITTED OUTSIDE INDIA

75(1) Subject to the provisions of sub-section (2), the provisions of this Act shall apply also to any offence or contravention committed outside India by any person **irrespective of his nationality**. **75(2)** For the purposes of sub-section (1), this Act shall apply to an offence or contravention committed outside India by any person **if the act or conduct constituting the offence or contravention involves a computer, computer system or computer network located in India**.

Practical significance: this is the statutory basis for prosecuting a hacker sitting abroad who attacks an Indian server. Its limit is enforcement, not jurisdiction — actual cross-border investigation depends on **Mutual Legal Assistance Treaties (MLATs)**, which are slow and often refused; India is not a party to the Budapest Convention on Cybercrime, 2001. Related private-law jurisdictional rules (Unit IX): s.20(c) CPC (cause of action), ss.177–179, 186, 188, 189 CrPC (now BNSS), s.3 IPC, and the "purposeful availment" test of *Banyan Tree Holding v. A. Murali Krishna Reddy* (Del HC, DB, 23.11.2009).

▸ 7.3 Section 81 — overriding effect and its proviso

⚖ SECTION 81 — ACT TO HAVE OVERRIDING EFFECT

"The provisions of this Act shall have effect **notwithstanding anything inconsistent therewith contained in any other law** for the time being in force."

Proviso: "Provided that nothing contained in this Act shall restrict any person from exercising any right conferred under the **Copyright Act, 1957** or the **Patents Act, 1970**."

- **Main text — the enabling limb:** the IT Act does *not* make unlawful what was previously lawful; it adapts existing law to electronic form. Where the IT Act speaks, it prevails over inconsistent provisions of other laws.
- **Proviso — the IPR carve-out:** the safe harbour in s.79 cannot be used to defeat copyright or patent rights. This is the textual battleground in *My Space Inc. v. Super Cassettes Industries Ltd.* (Del HC, DB, 23.12.2016), where the Division Bench held that ss.79 and 81 of the IT Act and s.51(a)(ii) of the Copyright Act must be read harmoniously — the proviso to s.81 does **not** preclude the affirmative defence of safe harbour for an intermediary in copyright actions, but the intermediary must act on specific notice within 36 hours.
- **Exam use:** cite s.81 whenever a question asks whether the IT Act "replaces" other law, and always mention the proviso when the question involves copyright, patents or intermediary liability.

⬢ 8 Key Definitions — Section 2(1) IT Act, 2000

The syllabus prescribes six definitions for Unit I: **information 2(1)(v), computer s.2(1)(i), computer network s.2(1)(j), computer resource 2(1)(k), computer system 2(1)(l), communication device 2(1)(ha)**. Everything else in the Act hangs off them — which is why both prescribed cases are, at bottom, cases about the meaning of "computer".

1. INFORMATION

s.2(1)(v)

▸▸ "Information"

"information" includes

data, message, text, images, sound, voice, codes, computer programmes, software and databases

or micro film or computer generated micro fiche.

Note: "data, message, text" were inserted by the IT Amendment Act, 2008. The word **"includes"** makes the definition *inclusive and expansive*, not exhaustive. **Significance:** the broadest term in the Act. An SMS, a WhatsApp text, a voice note, a photograph, a video file, a source-code file, a database dump — all are "information". It …

2. COMPUTER

s.2(1)(i)

▸▸ "Computer"

"computer" means any

electronic, magnetic, optical or other high-speed data processing device or system

which performs

logical, arithmetic and memory functions

by manipulations of

electronic, magnetic or optical impulses

, and includes all input, output, processing, storage, computer software or communication facilities which are connected or related to the computer in a computer system or computer network.

Three cumulative elements: (1) an electronic/magnetic/optical/other high-speed data-processing device or system; (2) performing logical, arithmetic and memory functions; (3) by manipulation of electronic, magnetic or optical impulses. **Inclusive tail:** peripherals and connected communication facilities are swept in — so a keyboard …

3. COMPUTER NETWORK

s.2(1)(j)

▸▸ "Computer network"

"computer network" means the inter-connection of one or more

computers or computer systems or communication devices

through — (i) the use of satellite, microwave, terrestrial line,
wire, wireless
or other communication media; and (ii) terminals or a complex consisting of two or more inter-connected computers or communication devices
whether or not the inter-connection is continuously maintained

Two limbs: (i) the *media* of interconnection (satellite, microwave, terrestrial line, wire, wireless); (ii) the *configuration* (terminals or a complex of two or more interconnected devices). **Key points:** (a) "communication device" and "wire, wireless" were inserted in 2008 — the definition is now technology-neutral; (b) continuity …

4. COMPUTER RESOURCE

s.2(1)(k)

▸▸ **"Computer resource"**

"computer resource" means
computer, computer system, computer network, data, computer database or software

The umbrella term. It covers hardware (computer, computer system, computer network) *and* the intangible (data, computer database, software). **Why it matters:** the central civil offence (s.43), the central criminal offence (s.66), the receiving offence (s.66B), the confiscation power (s.76) and the data-protection provision (s.43A) …

5. COMPUTER SYSTEM

s.2(1)(l)

▸▸ **"Computer system"**

"computer system" means a device or collection of devices,
including input and output support devices
excluding calculators which are not programmable
and capable of being used in conjunction with external files which contain computer programmes, electronic instructions, input data and output data that performs
logic, arithmetic, data storage and retrieval, communication control and other functions

Two points examiners look for: 1. It is **broader** than "computer" — it can be a single device *or a collection of devices* working together (e.g. a server + terminals + printers). 2. It contains an **express exclusion** — non-programmable calculators. Everything else with input/output support and programmable capability is in. **In *Syed A* …**

6. COMMUNICATION DEVICE

s.2(1)(ha)

▸▸ **"Communication device"**

"communication device" means
cell phones, personal digital assistance or combination of both or any other device
used to communicate, send or transmit any
text, video, audio or image

Inserted by the IT Amendment Act, 2008. It takes in cell phones, PDAs and, in practice, smartphones, tablets and Wi-Fi/cellular devices of the iPad kind. **Consequence:** offences drafted around "computer resource *or* communication device" reach the phone directly — e.g. s.66D (cheating by personation using a computer resource or com …

▸ 8.1 Supporting definitions you will need in the same breath

Term	Section	Substance
Access	2(1)(a)	Gaining entry into, instructing or communicating with the logical, arithmetical or memory function resources of a computer, computer system or computer network. (Root of s.43(a) unauthorised access.)
Data	2(1)(o)	A representation of information, knowledge, facts, concepts or instructions prepared for processing in a computer system or network, in any form.
Computer contaminant	2(1)(n)	A set of computer instructions designed to modify, destroy, record or transmit data/programme, or to usurp the normal operation of a computer, system or network — the statutory "virus".
Cyber café	2(1)(na)	Any facility from where access to the internet is offered by any person in the ordinary course of business to members of the public. (Regulated by the Cyber Café Rules, 2011.)
Cyber security	2(1)(nb)	Protecting information, equipment, devices, computer, computer resource, communication device and information stored therein from unauthorised access, use, disclosure, disruption, modification or destruction.
Electronic form	2(1)(r)	Any information generated, sent, received or stored in media, magnetic, optical, computer memory, micro film, computer generated micro fiche or similar device.
Electronic record	2(1)(t)	Data, record or data generated, image or sound stored, received or sent in electronic form or micro film or computer generated micro fiche — the legal object recognised by ss.4–5.
Digital signature	2(1)(p)	Authentication of any electronic record by a subscriber by means of an electronic method or procedure in accordance with s.3 — the technology-specific (PKI) route.
Electronic signature	2(1)(ta)	Authentication of any electronic record by a subscriber by means of the electronic technique specified in the **Second Schedule**, and includes digital signature — the technology-neutral route (s.3A).
Certifying Authority	2(1)(g)	A person granted a licence to issue Electronic Signature Certificates under s.24; supervised by the Controller (s.17).
Intermediary	2(1)(w)	Any person who on behalf of another receives, stores or transmits an electronic record or provides any service with respect to it — includes telecom, network and internet service providers, web-hosting providers, search engines, online payment sites, online auction sites, online market places and cyber cafés.
Asymmetric crypto system / key pair	2(1)(f) / 2(1)(x)	A system of a secure key pair consisting of a private key for creating a digital signature and a public key to verify it; a "key pair" is the private key and its mathematically related public key. (Prescribed in Unit II of the syllabus; note the syllabus cites public key at 2(1)(zc) and private key at 2(1)(zd), whereas the statute as amended reads private key 2(1)(zc) and public key 2(1)(zd) — quote the statutory letters in the exam.)

Originator / addressee	2(1)(za) / 2(1)(b)	The person who sends, generates, stores or transmits an electronic message (excluding an intermediary) / the person intended by the originator to receive the record (excluding any intermediary). Basis of ss.11–13.
Secure system / security procedure	2(1)(ze) / 2(1)(zf)	Hardware, software and procedure reasonably secure from unauthorised access and misuse, reliable, suited to the intended function, adhering to generally accepted security procedures; prescribed under s.16.

★ HOW TO ANSWER ANY "MEANING OF COMPUTER" QUESTION

Quote s.2(1)(i) verbatim → break it into its three functional elements → explain the inclusive tail → then say "therefore the definition is **functional and expansive**" → apply it with *Syed Asifuddin* (cell phone = computer) → limit it with *Diebold* (definition is context-bound; canno …

⬢ 9 Prescribed Case Laws — Full Briefs

Two cases are prescribed under Part A, Unit I of the DU syllabus, and both are, at bottom, cases about the **meaning of "computer"**. They are set out below in the full **Facts → Issues → Arguments of both sides → Reasoning → Decision → Principle evolved** format, drawn from the DU case material.

⚖ A NOTE ON HOW TO USE THE TWO CASES TOGETHER

Syed Asifuddin is the **expansive** authority: a purposive, IT-Act-specific reading of "computer" that brings a cell phone within s.2(1)(i). *Diebold Systems* is the **limiting** authority: the same enlarged definition cannot be transplanted into an Entry of a fiscal statute. Contrasting the two is the standard examiner device — it shows you understand that **statutory definitions are purposive and context-bound**.

========== CASE 1: ASIFUDDIN ==========

PRESCRIBED CASE 1 · PART A, UNIT I

⚖ Syed Asifuddin v. The State of Andhra Pradesh

2006 (1) ALD (Cri) 96 · 2005 CriLJ 4314 · High Court of Andhra Pradesh · Decided 29 July 2005 · s.482 CrPC petition

▸▸ 1 Procedural posture

Two criminal petitions filed by different persons under **s.482 of the Code of Criminal Procedure, 1973**, heard together and disposed of by a common order, seeking the **quashing of F.I.R. No. 20 of 2003** registered by the Criminal Investigation Department (C.I.D.) Police, Hyderabad. The F.I.R. was registered under **ss.409, 420 and 120B IPC**, **s.65 of the Information Technology Act, 2000** and **s.63 of the Copyright Act, 1957**. While admitting the petitions, the Court had stayed investigation; the matters were finally heard on the vacation of that stay.

▸▸ 2 Facts (as recorded by the Court)

▸▸ 3 Issues before the Court

DECISION (OPERATIVE PART)

1. **Crime No. 20 of 2003 is QUASHED** insofar as it relates to **ss.409, 420 and 120B of the Indian Penal Code**.
2. The criminal petitions are **DISMISSED** insofar as the crimes under **s.65 of the IT Act, 2000** and **s.63 of the Copyright Act, 1957** are concerned.
3. The C.I.D. Police is **directed to complete the investigation and file a final report** before the Metropolitan Magistrate competent to take cognizance, within three months from receipt of the order.

RATIO DECIDENDI

1. **A cell phone is a "computer" within s.2(1)(i) of the IT Act.** The definition is *functional*: any electronic, magnetic or optical device that stores information received through satellite, microwave or other communication media, is programmable, and retrieves information by manipulation of electronic, magnetic or optical impulses, is a computer usable as a computer system in a computer network. Brand, form factor and ordinary-language labels are irrelevant.
2. **The ESN (and SID) programmed into a handset fall within "computer source code"** as defined in the Explanation to s.65 — the listing of programmes, computer commands, design and layout, and programme analysis of computer resource in any form.
3. **The "required to be kept or maintained by law" condition is disjunctive.** Because the legislature used "or" between "required to be kept" and "maintained by law for the time being in force", either situation satisfies the condition; and whether the operator in fact maintains the source code is a question of evidence, not of pleading.
4. **Criminal breach of trust requires entrustment plus dishonest misappropriation** (s.405 IPC); where the subscriber, not the accused, holds the handset and was never induced to deliver property, ss.409 and 420 fail — and s.120B falls with them.
5. **Quashing under s.482 CrPC** is justified where the F.I.R. does not disclose a cognizable offence and a trial would be a miscarriage of justice; but quashing is *not* justified where the allegations, taken at face value, disclose a technical offence requiring evidence to be led.
6. **Parallel liability:** the same conduct can simultaneously attract the IT Act (civil and criminal), the Copyright Act and the IPC — the statutes are cumulative, not alternative.

(Brief abridged for the compilation — full text at makelaweasy.in.)

========== CASE 2: DIEBOLD ==========

PRESCRIBED CASE 2 · PART A, UNIT I

⚖ Diebold Systems Pvt. Ltd. v. The Commissioner

ILR 2005 KAR 2210 · 2006 (144) STC 59 (Kar) · High Court of Karnataka · Decided 31 January 2005 · H.L. Dattu & H.N. Nagamohan Das, JJ.

▸▸ 1 Nature of the proceeding

An appeal before the High Court of Karnataka against the order of the **Commissioner of Commercial Taxes**, who had, in **suo motu revisional proceedings under s.22-A(1) of the Karnataka Sales Tax Act, 1957 (KST Act)**, revised the classification of Automated Teller Machines (ATMs) and subjected their sale to a higher rate of tax. The appeal turned entirely on a question of **statutory classification**: is an ATM a "computer" / "computer terminal", or an "electronic good"?

▸▸ 2 Facts

DECISION

1. The **appeal is dismissed**.
2. An **ATM is not a "computer" by itself** — it is connected to a computer which performs the tasks requested by the user — and it is **not a "computer terminal"** within Entry 20(ii)(b) of Part 'C' of the Second Schedule to the KST Act, 1957.
3. ATMs are **"electronic goods"** falling under **Entry 4 of Part 'E'** of the Second Schedule, liable to a **basic tax of 12%**; the Commissioner's revisional order under s.22-A is upheld.

RATIO DECIDENDI

1. **Statutory definitions are purposive and context-bound.** A definition enacted "to suit the purpose and object" of one statute — here, the IT Act's very wide meaning of "computer" — **cannot be transplanted** to interpret an Entry under a different, unrelated statute, particularly fiscal legislation.
2. **"Means" makes a definition exhaustive within that statute**, but its exhaustive character does not travel across statutes. The very width that makes s.2(1)(i) effective for cyber offences is why it cannot be used to re-classify goods for tax.
3. **Entries in taxing statutes are construed in their common-parlance or popular sense, not in a scientific or technical sense**, and words such as "namely" and "that is to say" introduce exhaustive lists.
4. **A device connected to a computer is not itself necessarily a "computer."** The ATM is an electronic device whose intelligence resides in a remote computer that serves many terminals.
5. **Revisional powers of the Commissioner under s.22-A** may be exercised where the subordinate authority's classification is erroneous and prejudicial to the revenue.

(Brief abridged for the compilation — full text at makelaweasy.in.)

========== CASE 3: SANJAY KUMAR ==========

COMPANION CASE (NEXT PRESCRIBED AUTHORITY FOR S.65 IN THE DU CASE MATERIAL)

⚖ Sanjay Kumar v. State of Haryana

Punjab & Haryana High Court · Decided 10 January 2013 · CRM No. 1353 of 2013; CRR No. 66 of 2013 (O&M) · Paramjeet Singh, J.

▸▸ 1 Facts

The petitioner was deputed by M/s Virmati Software and Telecommunication Ltd. to maintain the software system supplied to Vijay Bank, NIT, Faridabad, and also looked after the software systems of certain other banks. In that capacity he had access to the banks' computerised accounting systems and could enter into ledgers and other accounts. While reconciling accounts, discrepancies were discovered: the petitioner, who held SB Account No. 21499 in his own name in the bank, had **manipulated entries by forging and fabricating certain entries from one account to another in the computer system by handling the software**, and withdrew amounts on various dates by issuing cheques in his own favour and through cash counter and transfer/clearing transactions. Enquiry revealed that he had wrongfully withdrawn **₹17,67,409/-**, causing wrongful loss to the bank and wrongful gain to himself. Confronted, he gave evasive replies and admitted embezzling only ₹17 lakhs. F.I.R. No. 165 dated 11.02.2003 was registered under ss.406, 420, 467, 468, 469, 471 IPC and ss.65, 66, 72 of the IT Act. After trial, the Judicial Magistrate First Class, Faridabad convicted and sentenced him on 01.09.2011 (2 years each under ss.420, 468, 471 IPC, 3 years under s.467 IPC, and 2 years each under ss.65 and 66 IT Act, with fines); the Sessions Judge, Faridabad dismissed his appeal on 21.08.2012.

▸▸ 2 Issue and argument

In revision, the petitioner contended that he had been **falsely implicated** — the complainant and eyewitness were inimical, having had a 15–16 year old dispute — and that there was **no direct evidence** connecting him to the offence, so no prima facie case was made out.

▸▸ 3 Decision and principle

The High Court **dismissed the revision and upheld the conviction**. From the judgments of both courts below it transpired that the petitioner had **manipulated the computerised bank account, i.e., the interest entries, and thereby cheated the bank by forging an electronic record**, causing wrongful loss to the bank and wrongful gain to himself of ₹17,67,409/-; and the documentary evidence on record established the forgery and the withdrawals. The revision was heard on the merits and rejected; delay in filing was condoned and the connected criminal miscellaneous application allowed.

WHY THIS CASE MATTERS FOR UNIT I / S.65

1. It applies the *Syed Asifuddin* principle to a **banking software system** — the "computer" there is the bank's server and workstations, and the "source code" the accounting software — showing how far the functional definition reaches.
2. It demonstrates the **cumulative** operation of the IT Act and the IPC: the same conduct attracted ss.420, 467, 468, 471 IPC *and* ss.65, 66 IT Act, with sentences to run **concurrently**.
3. It confirms that **forging an electronic record** by manipulating a computer system is both an IT Act offence and the offence of forgery under the IPC (now ss.336/338 BNS).

========== COMPARISON ==========

▸ 9.4 The examiner's favourite: Syed Asifuddin vs Diebold Systems

Point of comparison	Syed Asifuddin v. State of A.P. (2005)	Diebold Systems v. Commissioner (2005)
Court	Andhra Pradesh High Court (29.07.2005)	Karnataka High Court (31.01.2005)
Statute in issue	Information Technology Act, 2000 (ss.2(1), 65) + Copyright Act, 1957	Karnataka Sales Tax Act, 1957 (Entries in the Second Schedule)
Device	Cell phone (Samsung N191 / LG-2030 CDMA handset)	Automated Teller Machine (ATM)
Question	Is the handset a "computer" within s.2(1)(i)?	Is the ATM a "computer"/"computer terminal" for a fiscal Entry?
Approach to the definition	**Purposive and expansive** — read ss.2(1)(i), (j), (l) together; the circuit board and microprocessor do logical, arithmetic and memory functions	**Contextual and restrictive** — the wide IT Act definition is exhaustive only for the IT Act; it cannot be imported into a fiscal Entry
Interpretative canon	Functional equivalence; technology-neutral reading of "device"	Common parlance / popular sense in taxing statutes; "namely" and "that is to say" are exhaustive
Result	Cell phone **is** a computer; ESN reprogramming prima facie attracts s.65; F.I.R. not quashed on that count	ATM **is not** a computer by itself; it is an electronic good taxed at 12%; appeal dismissed

Principle evolved	Definitions in a special statute may be read expansively to fulfil that statute's object	Definitions are **context-bound**; a definition does not travel across statutes, least of all into fiscal legislation
Exam use	Cite for the **breadth** of "computer", the meaning of "computer source code", and the disjunctive "or" in s.65	Cite as the **limiting principle** on functional equivalence and for the common-parlance rule in tax entries

⬢ 14 Recommended Readings & Sources

▸ 14.1 Books recommended in the DU case material (LB-5031)

☑ PRESCRIBED READINGS

- Kamath Nandan, *Law Relating to Computers, Internet & E-commerce — A Guide to Cyberlaws & the Information Technology Act, Rules, Regulations and Notifications along with Latest Case Laws*, 5th edn. (2016)
- Karnika Seth, *Computers, Internet and New Technology Laws* (2016)
- Kamlesh K. Bajaj & Debjani Nag, *E-commerce: The Cutting Edge of Business*, 2nd edn. (2005)
- Apar Gupta, *Commentary on Information Technology Act* (2016)
- Aparna Viswanathan, *Cyber Law (Indian & International Perspectives on key topics including Data Security, E-commerce, Cloud Computing and Cyber Crimes)* (2012)
- Prashant Mali, *Cyber Law and Cyber Crimes*, 2nd edn. (2015)
- Debrati Halder & H. Jaishankar, *Cyber Crimes Against Women*, Sage, 1st edn. (2017)
- Vakul Sharma, *Information Technology Law & Practice*, 9th edn. (2025)
- Chris Reed, *Internet Law: Text and Materials* (2010)
- Ferrera et al., *Cyber Law: Text and Cases*, 3rd edn. (2012)
- *Internet Law and Practice by International Contributors*, West Thomson Reuters, South Asian Edition (2013)
- S.K. Verma & Raman Mittal (eds.), *Legal Dimensions of Cyberspace* (2004)
- Lawrence Lessig, *Code and Other Laws of Cyberspace* (1999); *Code version 2.0* (2006)

☑ ARTICLES & INSTRUMENTS CITED IN THESE NOTES

- Hemali Shah & Aashish Srivastava, *Signature Provisions in the Amended Indian Information Technology Act 2000: Legislative Chaos*, 43 Common Law World Review 208 (2014)
- UNCITRAL, *Model Law on Electronic Commerce with Guide to Enactment (1996)*, with additional Article 5 bis as adopted in 1998
- UNCITRAL, *Model Law on Electronic Signatures (2001)*
- UN Convention on the Use of Electronic Communications in International Contracts (2005)
- Council of Europe, *Convention on Cybercrime (Budapest Convention), 2001*
- Diane Rowland & Elizabeth MacDonald, *Information Technology Law* (1997) — cited by the Court in *Syed Asifuddin* for the meaning of "source code"
- Robert C. Nikenson, *Computers, Concepts and Applications for Users* — relied on in *Diebold Systems* on ATM configuration
- *The New International Webster's Comprehensive Dictionary of the English Language*, Encyclopedic Edition (2003) — cited in *Syed Asifuddin* for analog/digital computing
- Law Commission of India, Report No. 272, *Assessment of Statutory Frameworks of Tribunals in India*

▸ 14.2 Statutes and rules referred to

Information Technology Act, 2000 (as amended by the Information Technology (Amendment) Act, 2008) · Digital Personal Data Protection Act, 2023 and DPDP Rules, 2025 · Bharatiya Sakshya Adhiniyam, 2023 · Bharatiya Nyaya Sanhita, 2023 · Indian Contract Act, 1872 · Indian Evidence Act, 1872 · Indian Penal Code, 1860 · Copyright Act, 1957 · Patents Act, 1970 · Trade Marks Act, 1999 · Consumer Protection Act, 2019 and Consumer Protection (E-Commerce) Rules, 2020 · Negotiable Instruments Act, 1881 · Powers-of-Attorney Act, 1882 · Indian Trusts Act, 1882 · Indian Succession Act, 1925 · Registration Act, 1908 · Bankers' Books Evidence Act, 1891 · Reserve Bank of India Act, 1934 · Telecom Act, 2023 · Protection of Children from Sexual Offences Act, 2012 · IT (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 · IT (Intermediary Guidelines) Rules, 2011 · IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 (as amended 2022, 2023, 2025, 2026) · IT (Certifying Authorities) Rules, 2000 · IT (Security Procedure) Rules, 2004 · Cyber Café Rules, 2011 · IT (Procedure and Safeguards for Interception, Monitoring and Decryption of Information) Rules, 2009 · IT (Procedure and Safeguards for Blocking for Access of Information by the Public) Rules, 2009 · CERT-In Directions, 2022.

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 1 (questions only)

Q1 NOV-DEC 2024 · Q.1

What are the ways to authenticate an electronic record? Can biometrics be used? On what grounds can an Electronic Signature Certificate be suspended?

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 NOV-DEC 2024 · Q.2

Mr. A makes a website with obscene content about teachers/students after suspension. Decide obscenity and applicable IT Act provisions.

Q3 NOV-DEC 2024 · Q.3(B)

X's SIM is stopped for two days due to public holidays; fraudsters obtain a duplicate SIM and transact ₹80 lakh. Discuss liability of Bank and telecom Service Provider.

Q4 NOV-DEC 2024 · Q.4

Social restaurant" jurisdiction problem (defendant provides services in Hyderabad through an online platform; plaintiff sues in Delhi)

Q5 NOV-DEC 2024 · Q.6(B)
Discuss provisions relating to cyber security under the IT Act with the help of decided cases.

Q6 NOV-DEC 2024 · Q.8(B)
Short note on “Time and place of despatch and receipt of electronic record

Q7 MAY-JUNE 2025 · Q.2
A’s account is debited after her SIM is duplicated due to Y’s (telecom) negligence; X (bank) claims it sent SMS alerts; Y claims it does not handle ‘content’ and hence not personal data. Decide.

Q8 MAY-JUNE 2025 · Q.3
Explain the functions of public and private keys and describe the authentication process under the IT Act 2000. Are there shortcomings?

Q9 MAY-JUNE 2025 · Q.4
Mother India” painting problem — obscenity of an online-auctioned artistic depiction

Q10 NOV-DEC 2025 · Q.1
Examine the validity of an e-contract where signatures are affixed via an online signing platform and one party denies validity.

Q11 NOV-DEC 2025 · Q.2
Ex-employee uses undeactivated login credentials to access and leak client data. Discuss liability of the company and the ex-employee.

Q12 NOV-DEC 2025 · Q.3
An employee tampers with payroll source code to redirect salaries; another steals credentials to send fraudulent emails. Discuss liability of both under the IT Act.

Q13 NOV-DEC 2025 · Q.4
Platform allows creators to upload videos; one contains obscene/child content — liability of creator and platform

Q14 NOV-DEC 2025 · Q.5
Domain-name/trade-mark problem — “B copies A’s work

Q15 NOV-DEC 2025 · Q.6
Jurisdiction problem based on Banyan Tree Holding v. A. Murali Krishna Reddy

Q16 NOV-DEC 2025 · Q.7
Explain intermediary liability under the IT Act as amended, with case law; discuss obligations regarding removal of unlawful content.

Q17 SHORT NOTE · 5-7 MARKS · 100-150 WORDS
Meaning and scope of Information Technology

Q18 SHORT NOTE · 5-7 MARKS
Cyberspace — meaning and characteristics

Q19 SHORT NOTE · 5-7 MARKS
Distinguish the Internet, the World Wide Web and E-mail

Q20 SHORT NOTE · 5-7 MARKS
Purpose and object of the Information Technology Act, 2000

Q21 SHORT NOTE · 5-7 MARKS
Applicability of the IT Act and the First Schedule exclusions (s.1(4))

Q22 SHORT NOTE · 5-7 MARKS
Overriding effect of the IT Act (s.81)

Q23 SHORT NOTE · 5-7 MARKS
Interface of information technology and law: current challenges

Q24 SHORT NOTE · 5-7 MARKS
Is an ATM a computer? (Diebold Systems)

Q25 Discuss the applicability of the IT Act, 2000, including the First Schedule exclusions, extraterritorial jurisdiction and overriding effect.” 12–15 marks

Q26 Discuss the elements of s.65 IT Act (tampering with computer source documents) with the help of Syed Asifuddin and Sanjay Kumar .” 12–15 marks

LB-5031 · INFORMATION TECHNOLOGY LAW · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT II

Legal Recognition and Authentication of Electronic Records

◆ SYLLABUS COVERAGE

Legal recognition of electronic records and of electronic signatures · authentication of electronic records · secure electronic records and secure electronic signatures · attribution, acknowledgment, despatch and receipt · evidentiary presumptions and proof (Evidence Act → Bharatiya Sakshya Adhiniyam, 2023) · offences against the authentication infrastructure.

◆ STATUTES & PROVISIONS

IT Act, 2000 · ss.3, 3A, 4, 5, 11–16, 71, 73, 74 · Second Schedule · BSA, 2023 · ss.63, 64, 118–121

◆ PRESCRIBED CASE MATERIAL

Syed Asifuddin v. State of A.P. · Diebold Systems Pvt. Ltd. v. Commissioner of Police · State of A.P. v. Prabhakar Sampath

⬢ A move to facilitate e-commerce

Delhi University · Faculty of Law

LL.B. V Term · Paper LB-5031

Information Technology Law

Prepared from the prescribed DU case material (CMITLAW-2026) · Unit II of Part A

Syllabus coverage: UNCITRAL MLEC 1996 & MLES 2001 · ss.2(1)(d)/(f)/(p)/(ta)/(x)/(zc)/(zd) · ss.3, 3A, 4, 5, 11–15 · PKI & CAs ss.17–26, 35–42 · ss.73–74 · Evidence Act/BSA presumptions

THE ONE IDEA THAT CARRIES THIS ENTIRE UNIT

A paper signature does four jobs at once: it proves **identity** (who signed), **approval** (they agreed), **integrity** (the document has not changed since), and **non-repudiation** (they cannot later deny signing). A screen cannot do this by itself. Every provision in this Unit is a piece of legal e ...

⬢ 1 The mischief: why e-commerce needed functional equivalence

Read this before any section. It explains *why* ss.3–15 exist at all, and it is the opening paragraph of almost every "critically examine" answer.

▸ 1.1 The problem: four functions of a handwritten signature

A handwritten signature on paper is not legally special because of the ink. It is special because it **simultaneously performs four functions**, each of which can be independently challenged in court. When commerce moved to networks, all four broke down:

Function	How paper achieves it	Why electronic form broke it	Statutory fix in the IT Act
1. Identity	The handwriting is a unique, personally verifiable attribute of a specific human being.	A message on a wire is just bits. Anyone with the device can generate it. Nothing on the face of the record identifies a person.	s.2(1)(f) asymmetric cryptosystem + key pair (s.2(1)(x)); s.3(4) private key unique to the subscriber; s.35 issue of the Electronic Signature Certificate.
2. Approval	The act of signing is an outward act of assent.	A click, an OTP reply or an automated system output does not visibly manifest assent.	s.5 (legal recognition of electronic signatures) read with the Explanation defining "signed" and "signature"; s.11 (attribution); s.10A (validity of e-contracts).
3. Integrity	Erasures, overwriting and insertions are visible to the eye.	A digital file can be altered silently, perfectly and undetectably — no forensic trace remains.	s.3(2) hash function; s.14 secure electronic record; s.3A(2)(c)–(d) detectability of alteration; s.16 security procedure.
4. Non-repudiation	The signatory cannot credibly disown their own handwriting.	"That was not my email" / "my password was stolen" / "an auto-reply sent it" become cheap, complete defences.	s.42 control of private key; s.3A(2)(a)–(b) linkage and control; s.11 attribution; s.85B / s.87 BSA presumptions; s.65B / s.63 BSA certificate.

▸ 1.2 The two Model Laws and the Indian answer

The international community answered this problem with **functional equivalence**: the law should not ask "does this look like paper?" but "does it do what paper did?" India, unlike many countries, did not merely copy a statute — it enacted a **new kind of statute**, one that regulates both the conduct (ss.3–15) and the **trusted third parties** who vouch for identity (ss.17–42).

WHY THIS FRAMING EARNS MARKS

Most students answer an s.3A question by reciting the four reliability conditions. A top answer **opens** with the functional-equivalence rationale from MLEC Art. 7, **places** s.3A in it, and **closes** with the s.65B / s.63 BSA proof problem. That is the difference between 55 and 75 marks in this Unit.

⬢ 11 Offences against the authentication infrastructure — ss.71, 73 and 74

The syllabus expressly requires that "publishing false digital signatures and publication of digital signatures for fraudulent purposes are offences under the Act (ss.73, 74)".

s.73 · PENALTY FOR PUBLISHING ELECTRONIC SIGNATURE CERTIFICATE FALSE IN CERTAIN PARTICULARS · VERBATIM

▸▸ Penalty for publishing Electronic Signature Certificate false in certain particulars

No person shall publish an Electronic Signature Certificate or otherwise make it available to any other person with the knowledge that—

(a) the

Certifying Authority listed in the certificate has not issued it

; or

(b) the

subscriber listed in the certificate has not accepted it

; or

(c) the

certificate has been revoked or suspended

unless such publication is for the purpose of
verifying an electronic signature created prior to such suspension or revocation
Any person who contravenes the provisions of sub-section (1) shall be punished with
imprisonment for a term which may extend to two years, or with fine which may extend to one lakh rupees, or with both

Note the pre-2008 wording: the original section referred to a "Digital Signature Certificate" and to "verifying a **digital** signature created prior to such suspension or revocation". The 2008 Amendment substituted "electronic signature" throughout. The **structure and the penalty are unchanged**.

s.74 · PUBLICATION FOR FRAUDULENT PURPOSE · VERBATIM

▸▸ Publication for fraudulent purpose

Whoever knowingly
creates, publishes or otherwise makes available
an Electronic Signature Certificate
for any fraudulent or unlawful purpose
shall be punished with
imprisonment for a term which may extend to two years, or with fine which may extend to one lakh rupees, or with both

Note: s.74 has **no sub-sections** — it is a single-sentence offence. It is broader than s.73 in one respect (it covers **creation**, not merely publication) and narrower in another (it requires a **fraudulent or unlawful purpose**, which s.73 does not).

☑ S.71 · PENALTY FOR MISREPRESENTATION — THE COMPANION OFFENCE

Whoever makes any **misrepresentation to, or suppresses any material fact from, the Controller or the Certifying Authority** for obtaining any licence or Electronic Signature Certificate, as the case may be, shall be punished with **imprisonment for a term which may extend to two years, or with fine which may extend to one lakh rupees, or with both**.

▸ 11.1 Elements of the two offences — the comparison examiners want

Element	s.73	s.74
Actus reus	**Publishing** an ESC, or **otherwise making it available** to any other person.	**Creating, publishing or otherwise making available** an ESC. *Note: "creating" is included only in s.74.*
Mens rea	**Knowledge** of one of the three disqualifying facts in (a), (b) or (c).	**Knowledge** that the act is done **for any fraudulent or unlawful purpose**.
Circumstance	That (a) the listed CA has **not issued** it; or (b) the listed subscriber has **not accepted** it; or (c) the certificate **has been revoked or suspended**.	That the purpose is **fraudulent or unlawful**.
Statutory exception	Yes — publication is **permitted** where it is **for the purpose of verifying an electronic signature created prior to the suspension or revocation**. This is a sensible carve-out: an old signature remains verifiable, so the certificate must be available for that purpose.	None. There is no exception.
Punishment	**Identical:** imprisonment up to **2 years**, or fine up to **₹1 lakh**, or both.	
Structure	Two sub-sections — sub-s.(1) the prohibition, sub-s.(2) the penalty.	One sentence, no sub-sections.
Classification	Both are **Chapter XI offences**. s.75 provides that the Act applies to an offence or contravention committed outside India by any person irrespective of nationality. s.77 (cognizability) applies to offences under Chapter XI: they are **cognizable and bailable** — a point worth one line.	

▸ 11.2 Real examples of the two offences

☑ WHAT THESE OFFENCES ARE REALLY PROTECTING

Sections 71, 73 and 74 protect the **integrity of the trust chain**, not the individual document. The whole PKI edifice rests on three propositions: that the CA is licensed and has issued the certificate (s.73(1)(a)); that the subscriber accepted it (s.73(1)(b), reinforced by s.36(c) and s. ...

⬢ 12 Originator, addressee, attribution, acknowledgment, and despatch & receipt — ss.11–13

These three sections are, in substance, Articles 13, 14 and 15 of the UNCITRAL MLEC 1996. Together they decide **who** sent an electronic record and **when and where** it was sent and received.

s.11 · ATTRIBUTION OF ELECTRONIC RECORDS · VERBATIM

▸▸ Attribution of electronic records

An electronic record shall be attributed to the
originator
(a) if it was
sent by the originator himself
(b) by a person who had the
authority to act on behalf of the originator
in respect of that electronic record; or
(c) by an
information system programmed by or on behalf of the originator to operate automatically

Two linked definitions: s.2(1)(za) "originator" means a person who sends, generates, receives or stores an electronic record, or provides any service with respect to it, **but does not include an intermediary**. **s.2(1)(b) "addressee"** means a person who is intended by the originator to receive the electronic record but **does not inclu ...**

☑ THE THREE LIMBS OF S.11 — READ THEM AS THREE DIFFERENT KINDS OF AGENCY

- **Limb (a) — direct act.** The originator sends it himself. The simplest case: you type and send your own e-mail.
- **Limb (b) — human agency.** A person with **authority to act on the originator's behalf** sends it. This imports ordinary agency law: a secretary sending on ...

☑ REAL EXAMPLES OF EACH LIMB

- **(a)** A customer types her own transfer instruction in her net-banking session and clicks send.
- **(b)** A company's authorised signatory sends a purchase order from the company's shared mailbox; or a chartered accountant e-files a client's return with the client's authority.
- **(c)** A bank's **auto-debit** for a loan …

▸ 12.1 Section 12 — acknowledgment of receipt

s.12 · ACKNOWLEDGMENT OF RECEIPT · VERBATIM (THREE SUB-SECTIONS)

▸▸ Acknowledgment of receipt

Where the originator has not
agreed
with the addressee that the acknowledgment of receipt of electronic record be given in a particular form or by a particular method, an acknowledgment may be given by—
(a) any communication by the addressee,
automated or otherwise
; or
(b) any conduct of the addressee,
sufficient to indicate to the originator that the electronic record has been received
Where the originator has stipulated that the electronic record shall be
binding only on receipt of an acknowledgment
, then the electronic record shall be deemed
not to have been sent
, unless the acknowledgment has been received by the originator.
Where the originator has
so stipulated and the acknowledgment has not been received by the originator within the time specified or agreed or, if no time has been specified or agreed, within a reasonable time, then the originator may give
notice
to the addressee stating that no acknowledgment has been received by him and specifying a reasonable time by which the acknowledgment must be received by him; and if the acknowledgment is not received within the aforesaid reasonable time, the originator may
treat the electronic record as though it has never been sent
, after giving notice to the addressee.

The three rules in one line each: (1) **form-free** acknowledgment if nothing was agreed; (2) **deemed never sent** if the originator made the record binding only on acknowledgment and none is received; (3) a **notice-and-cure** mechanism where the originator did not so stipulate.

Situation	Rule	Source	Real example
No agreement on form/method of acknowledgment	Acknowledgment may be given by **any communication, automated or otherwise**, or by **any conduct** sufficient to indicate receipt.	s.12(1)(a)–(b)	A read receipt; an e-mail saying "received, thanks"; the addressee **acting on the offer** by dispatching the goods; an automated "200 OK" response.
Originator stipulated the record is **binding only on receipt of acknowledgment**	The record is **deemed never sent** unless the acknowledgment is received.	s.12(2)	A purchase order stating "this order is binding on us only upon your written acknowledgment within 48 hours". No acknowledgment = no contract, and the record is treated as never sent.
Originator did **not** so stipulate; no acknowledgment within the specified / agreed / reasonable time	The originator may give a **notice** specifying a reasonable time, and if no acknowledgment is received within that time, may **treat the record as never sent**.	s.12(3)	A supplier e-mails a quotation, receives no reply for a week, sends a notice: "we have not received your acknowledgment; please acknowledge within 48 hours failing which we shall treat our quotation as withdrawn."

▸ 12.2 Section 13 — time and place of despatch and receipt

s.13 · TIME AND PLACE OF DESPATCH AND RECEIPT OF ELECTRONIC RECORD · VERBATIM (FIVE SUB-SECTIONS)

▸▸ Time and place of despatch and receipt of electronic record

Save as otherwise agreed between the originator and the addressee, the
despatch
of an electronic record occurs when it enters a
computer resource outside the control of the originator
Save as otherwise agreed between the originator and the addressee, the
receipt
of an electronic record occurs when—
(a) if the addressee has
designated
a computer resource for the purpose of receiving such electronic record, receipt occurs—
(i) when the electronic record
enters the designated computer resource
; or
(ii) if the electronic record is sent to a computer resource of the addressee that is
not the designated
computer resource, when the electronic record is
retrieved by the addressee

; or
(b) if the addressee has
not designated
a computer resource for the purpose of receiving such electronic record, receipt occurs when the electronic record
enters any computer resource of the addressee
Save as otherwise agreed between the originator and the addressee, an electronic record is deemed to be
despatched at the place where the originator has his place of business
, and is deemed to be
received at the place where the addressee has his place of business
The provisions of sub-section (2) shall apply
notwithstanding the fact that the place where the computer resource is located may be different
from the place where the electronic record is deemed to have been received under sub-section (3).
For the purposes of this section—
(a) if the originator or the addressee has
more than one place of business
, the place of business is that which has the
closest relationship to the underlying transaction
or, where there is no underlying transaction, the
principal place of business
(b) if the originator or the addressee
does not have a place of business
, reference is to be made to the
usual place of residence
; and
(c) if the originator or the addressee is a
body corporate
, its
usual place of residence
is the
place of registration

The headline: s.13(1) and (2) **displace the postal rule**. Under the postal rule (the general Contract Act rule), acceptance is complete on posting. Under s.13, receipt is complete only on entry into the designated resource (or retrieval, or entry into any resource of the addressee). For electronic contracts, the **mailbox rule is st ...**

▸ 12.3 The postal rule and Bhagwan Goverdhandas Kedia — the statutory analogue

⚖ BHAGWAN GOVERDHANDAS KEDIA V. GIRDHARILAL PARSHOTTAMDAS, AIR 1966 SC 543

Facts (brief) —The plaintiff offered, by telephone from **Ahmedabad**, to sell certain goods to the defendant at **Delhi**. The defendant accepted the offer by telephone from Delhi. The question was where the contract was made — which determined which court had jurisdiction.

Issue —Whether the general rule for contracts by post (that the contract is made where the acceptance is **posted**) applies to contracts made by **telephone** or other **instantaneous communication**.

Held —The Supreme Court **distinguished** instantaneous communication from post. Where the parties are in **direct, instantaneous communication** (telephone), the contract is made **where the acceptance is received**, not where it is spoken. The postal rule is confined to non-instantaneous modes.

Principle —**The instantaneous-communication doctrine:** for communications where the offeror can know at once whether the acceptance has been received, the place of contract is the place of **receipt of the acceptance**.

Why it matters for s.13: *Kedia* laid down the common-law analogue for electronic communications; s.13 now **codifies** it for electronic records. Where *Kedia* decided that an electronic/telephonic contract is made where acceptance is **received**, s.13(2)–(3) achieves the same result by fixing receipt at entry into the designated computer resource and deeming the record received at the **addressee's place of business**. The **postal rule is statutorily displaced** for electronic contracts. The Delhi High Court revisited the doctrine in **World Wrestling Entertainment v. Reshma Collections** (Unit IX), applying the same reasoning to internet-based communications and the situs of the cause of action.

⬢ 13 Authentication revisited: Syed Asifuddin and Diebold Systems

Both cases are fully briefed in **Unit I** of this companion set. They are reproduced here in short form because the DU Unit II case material directs that they be read alongside this Unit's authentication provisions — *Syed Asifuddin* defines the technological environment in which authentication happens, and *Diebold* supplies the limiting principle on how far the IT Act's definitions travel.

CASE-MAT · SUPPORTING AUTHORITY 1

⚖ Syed Asifuddin v. State of Andhra Pradesh

2006 (1) ALD (Cri) 96 · 2005 CriLJ 4314 · Andhra Pradesh High Court · 29 July 2005

▸▸ 1 Facts

Reliance Infocomm launched a subsidised handset scheme — the **Dhirubhai Ambani Pioneer Offer** — with a **three-year network lock-in**. Employees of **TATA Indicom** allegedly **re-programmed the Electronic Serial Number (ESN)** of Reliance-locked **Samsung / LG** handsets so that subscribers could migrate networks. An **FIR** was registered under **ss.409, 420 and 120-B of the IPC**, **s.65 of the IT Act**, and **s.63 of the Copyright Act, 1957**.

▸▸ 2 Issues

1. Is a **cell phone a "computer"** within s.2(1)(i) of the IT Act?
2. Does altering the ESN amount to **"tampering with computer source code"** under s.65?
3. Does it **infringe copyright** in the embedded computer programme?

▸▸ 3 Reasoning

The Court **traced the technical architecture of a cell phone** — the circuit board and the microprocessor converting analogue ↔ digital signals — and held that this satisfies the definition of "computer": *"a high-speed data processing device... performing logical, arithmetic and memory functions by manipulation of electronic, magnetic or optical impulses"*. The **ESN, MIN and SID** were held to fall within **"computer source code"** — defined in the Explanation to s.65 as the *"listing of programmes, computer commands, design and layout and programme analysis of computer resource in any form"* — because they are **permanently or semi-permanently programmed into the handset**. In reaching the "source code" point the Court relied on **Rowland & MacDonald, *Information Technology Law* (Cavendish, 1997)**.

▸▸ 4 Holding

A **cell phone is a "computer"** within s.2(1)(i); reprogramming the ESN **prima facie attracts s.65**, since the second respondent was found to be maintaining the source code, satisfying the **disjunctive "required to be kept or maintained by law"** test; and the **copyright charge** under s.63 of the Copyright Act was also held not liable to be quashed at the FIR stage.

PRINCIPLE EVOLVED

1. An **expansive, purposive reading** of "computer" — the device need not look like a desktop; what matters is the **data-processing function**.
2. Identifiers **embedded in hardware** (ESN, MIN, SID) can be **"computer source code"**.
3. Statutory definitions are **context-bound** — the very point on which *Diebold* distinguishes it.

▸▸ 5 Relevance to Unit II

The authentication infrastructure operates **inside** computer resources. Before you can ask whether an electronic record was authenticated, you must know that the device holding it is a "computer" — *Syed Asifuddin* is the authority that makes the everyday mobile phone part of that legal universe. It is also the leading authority on **s.65**, the tampering offence, which is the criminal counterpart of the integrity function of a signature.

CASE-MAT · SUPPORTING AUTHORITY 2

⚖ Diebold Systems Pvt. Ltd. v. The Commissioner

ILR 2005 KAR 2210 · Karnataka High Court · 31 January 2005 · Tier 3

▸▸ 1 Facts & Issue

The question was the **sales-tax classification** of an **ATM** — in substance, whether an ATM is a "computer" for the purposes of the relevant fiscal Entry. The Revenue relied on the IT Act's enlarged definition of "computer" to argue that an ATM fell within the higher-rated category.

▸▸ 2 Holding

The Karnataka High Court held that the **enlarged definition of "computer" under the IT Act cannot be transplanted to interpret an Entry under a fiscal statute**; an ATM was accordingly **not** treated as a "computer" for the purposes of the sales-tax classification in issue.

▸▸ 3 Arguments — both sides

- **Revenue:** the IT Act definition is broad and purposive; *Syed Asifuddin* had already read "computer" expansively; an ATM performs logical, arithmetic and memory functions.
- **Assessee:** a fiscal Entry must be read on its own terms and in the context of the taxing statute; definitions in one enactment cannot be imported into another with a different object; *Syed Asifuddin* was decided in the context of the IT Act's own penal scheme.

PRINCIPLE EVOLVED

1. **IT Act definitions are not automatically read into unrelated legislation.** There is a **limiting principle on functional equivalence**: the technology-neutral definitions of the IT Act operate within the four corners of that Act.
2. Statutory definitions are **context-bound**: a word defined for a cyber-penal statute does not travel into a fiscal statute.
3. *Diebold* **distinguishes rather than overrules** *Syed Asifuddin* — both remain good law, in their respective contexts.

▸▸ 4 Relevance to Unit II

This is the cautionary authority for any argument that begins "the IT Act's definitions apply generally". When you argue that an electronic record or signature has a certain legal character, you must show that the **statute in question** permits it. *Diebold* is the answer to over-enthusiastic functional-equivalence arguments, and it is a favourite examiner trap precisely because students assume the IT Act's definitions are universal.

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 2 (questions only)

Q1 MAY–JUNE 2025 · Q.3 · ESSAY

Explain the functions of public and private keys and describe the authentication process under the IT Act 2000. Are there shortcomings?

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 NOV–DEC 2024 · Q.1 · ESSAY

What are the ways to authenticate an electronic record? Can biometrics be used? On what grounds can an Electronic Signature Certificate be suspended?

Q3 NOV–DEC 2025 · Q.1 · PROBLEM

Examine the validity of an e-contract where signatures are affixed via an online signing platform and one party denies validity.

Q4 LIKELY / REPEATED · ESSAY

Discuss the interplay between s.65B of the Evidence Act (now s.63 BSA) and the IT Act's authentication provisions, referencing Anvar P.V. and Arjun Panditrao Khotkar.

Q5 LIKELY / CRITICAL · ESSAY

Critically examine whether India's PKI-centric CA hierarchy remains fit for purpose given the dominance of Aadhaar e-Sign and OTP authentication.

Q6 NOV-DEC 2025 · Q.8(B) · SHORT NOTE

Time and place of despatch and receipt of electronic record.

by Ankur R. Upadhyay

LB-5031 · INFORMATION TECHNOLOGY LAW · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT III

Civil Liabilities — Cyber Torts

◆ SYLLABUS COVERAGE

Civil liabilities for cyber torts — damage to computer, computer system and computer network (s.43) · the adjudicating officer and the appellate machinery · the civil–criminal interface (s.43 read with s.66) · s.43A negligence-based corporate data-protection liability and the SPDI Rules, 2011 · data protection: s.43A → DPDP Act, 2023 → DPDP Rules, 2025 · privacy, disclosure and breach of contract (ss.45, 72, 72A, 67C, 79A) · online defamation.

◆ STATUTES & PROVISIONS

IT Act, 2000 · ss.43, 43A, 45, 46, 62, 72, 72A, 79A · SPDI Rules, 2011 · DPDP Act, 2023 · DPDP Rules, 2025

◆ PRESCRIBED CASE MATERIAL

Vinod Kaushik v. Madhvika Joshi · Amit Dilip Patwardhan v. Rud India Chains · Sanjay Govind Dhande v. ICICI Bank · State Bank of India v. Chander Kalani

⬢ Statutory compensation for the digital age

Delhi University · Faculty of Law

LL.B. V Term · Paper LB-5031

Information Technology Law

Prepared from the prescribed DU case material (CMITLAW-2026) · Unit III of Part A

Syllabus coverage: Dispute resolution under the IT Act (ss.46, 57) · Damage to computer & computer system (s.43) · Data protection (ss.43A r/w SPDI Rules, 45, 72, 72A; DPDP Act 2023; s.67C) · Online defamation

THE ONE IDEA THAT CARRIES THIS ENTIRE UNIT

The IT Act creates a **specialist, low-cost, summary compensation forum** for wrongs done to computers and data. Two heads of liability, with two **different standards**:

- **s.43 — act-based**, broadly strict, applies to **anyone** and to **any computer resource**. Ten enumerated acts of unauthorised interf ...

⬢ 1 The mischief: cyber torts as a sui generis statutory tort regime

Read this before any section. It explains why the IT Act needed its own private-law machinery at all.

▸ 1.1 Why ordinary tort law was not enough

Before 2000, a victim of digital interference had to sue in an ordinary civil court for trespass to goods, conversion, breach of confidence or negligence. Four problems made that route practically useless:

Problem	Why ordinary tort law failed	The IT Act's answer
Cost and delay	A civil suit in India takes years and costs a fortune. A ₹50,000 data-theft loss could never economically be litigated.	**s.46** creates a specialist, low-cost, **summary** adjudicatory forum with a fee-based complaint procedure. In *Sanjay Dhande* the application fee alone was ₹2,03,260, but the process took months, not years.
Proof	Proving that a specific person accessed a server from a specific IP address requires technical evidence that ordinary civil courts were ill-equipped to evaluate.	The Act creates its own evidentiary architecture (Ch. II, ss.3/3A) and, through **s.79A**, an **Examiner of Electronic Evidence**; the AO can obtain expert reports under **s.46(5)**.
Remedy mismatch	Trespass to goods damages are measured by diminution in value of the chattel — a concept that fits a hacked server badly. Breach of confidence required a pre-existing relationship.	**s.43** enumerates ten specific acts and attaches a flat statutory liability "to pay damages by way of compensation to the person so affected" — no need to fit the wrong into a common-law tort.
No forum of first resort	Jurisdictional questions in cross-border cyber cases are nightmarish; s.61 of the Act bars civil courts where the AO has jurisdiction.	**s.61**: "No court shall have jurisdiction to entertain any suit or proceeding in respect of any matter which an adjudicating officer appointed under sub-section (1) of section 46 or the Appellate Tribunal... is empowered by or under this Act to determine." A dedicated, exclusive ladder: **AO → Appellate Tribunal (TDSAT) → High Court**.

⬢ 2 Dispute resolution machinery: the Adjudicating Officer & Appellate Tribunal

The syllabus expressly names **s.46** (Adjudicating Officer) and **s.57** (Appellate Tribunal). This is the procedural spine of the whole Unit — and the source of several "gotcha" marks.

s.46 · POWER TO ADJUDICATE · VERBATIM (FIVE SUB-SECTIONS)

▸▸ Power to adjudicate

For the purpose of adjudging under this Chapter whether any person has committed a contravention of any of the provisions of this Act or of any rule, regulation,

direction or order made thereunder

which renders him liable to pay penalty or compensation, the Central Government shall, subject to the provisions of sub-section (3), appoint any officer

not below the rank of a Director

to the Government of India or an

equivalent officer of a State Government

to be an

adjudicating officer

for holding an inquiry in the manner prescribed by the Central Government.

(1A)

The adjudicating officer appointed under sub-section (1) shall exercise jurisdiction to adjudicate matters in which the

claim for injury or damage does not exceed rupees five crore
Provided
that the jurisdiction in respect of the claim for injury or damage
exceeding rupees five crore shall vest with the competent court
The adjudicating officer shall, after giving the person referred to in sub-section (1) a
reasonable opportunity for making representation
in the matter and if, on such inquiry, he is satisfied that the person has committed the contravention, he may
impose such penalty or award such compensation as he thinks fit
in accordance with the provisions of that section.
No person shall be appointed as an adjudicating officer unless he possesses such
experience in the field of Information Technology and legal or judicial experience
as may be prescribed by the Central Government.
Where more than one adjudicating officers are appointed, the Central Government shall specify by order the matters and places with respect to which such officers shall exercise their jurisdiction.
Every adjudicating officer shall have the
powers of a civil court
which are conferred on the Appellate Tribunal under sub-section (2) of section 58, and—
(a) all proceedings before it shall be deemed to be
judicial proceedings
within the meaning of sections 193 and 228 of the Indian Penal Code;
(b) the adjudicating officer shall be deemed to be a
civil court
for the purposes of section 195 and Chapter XXVI of the Code of Criminal Procedure, 1973;
(c) the adjudicating officer shall have the power of a civil court for the purposes of
summoning and enforcing the attendance of any person and examining him on oath
, and for the
discovery and production of documents or electronic records

The three points that carry marks: (i) the **₹5 crore ceiling** and its proviso sending larger claims to the competent court; (ii) the **"reasonable opportunity for making representation"** in sub-s.(2) — the statutory source of natural justice; (iii) the **civil-court powers** in sub-s.(5) — which are **enabling** powers, not a mandate to cond ...

▸ 2.1 The pecuniary ceiling — the most commonly tested detail

Point	Rule	Source
Ceiling	**₹5 crore** — the AO's jurisdiction is confined to claims where "the claim for injury or damage does not exceed rupees five crore".	s.46(1A)
Above the ceiling	Jurisdiction "shall vest with the **competent court**" — i.e. an ordinary civil court.	s.46(1A) Proviso
History	The original 2000 Act set the cap at **₹1 crore**; the **2008 Amendment raised it to ₹5 crore**. In *Sanjay Dhande* the AO awarded ₹18 lakh in total, comfortably within the ceiling; in *Chander Kalani* the AO awarded ₹40 lakh against a ₹1 crore claim.	s.46(1A), as substituted
No criminal jurisdiction	The AO adjudicates **contraventions** attracting penalty or compensation. Where a **Chapter XI offence** is made out, the matter must go to the magistrate having jurisdiction. (Note the AO in *Vinod Kaushik* nonetheless imposed a ₹100 token fine under **s.66C**, which the Delhi HC declined to disturb.)	s.46(1) read with Chapter XI
Bar on civil courts	"**No court shall have jurisdiction** to entertain any suit or proceeding in respect of any matter which an adjudicating officer... or the Appellate Tribunal... is empowered by or under this Act to determine."	s.61

▸ 2.3 The procedure — and the "summary inquiry" holding that decides half the marks

⚖ THE PROCEDURAL HOLDING IN SBI V. CHANDER KALANI — QUOTE THIS IN ANY AO-JURISDICTION QUESTION

The bank argued that because the AO is deemed a civil court for certain purposes and has civil-court powers, it **ought to have followed the detailed procedure of holding a fair trial** — leading evidence and allowing cross-examination on disputed facts. TDSAT rejected this: *"Considering the specific provision of giving reasonable opportunity to make representation and on such inquiry, a finding or satisfaction can be recorded, there is no difficulty in holding that the **procedure does not warrant an elaborate trial as is required to be held by a civil court in a suit**. No doubt some powers of civil court have been vested in the Adjudicating Officer but these are **only to enable the officer to summon or discover relevant materials, whenever necessary for coming to a proper finding** in such inquiry. From the powers, it cannot be concluded that the inquiry should be replaced by an elaborate trial like that of a suit in civil court. **Such interpretation would defeat the very purpose of providing a summary procedure of inquiry** for adjudicating claims upto Rs.5 crore by the Tribunal under the IT Act."*

☑ REAL EXAMPLE — WHAT THE AO'S SUMMARY PROCEDURE LOOKS LIKE IN PRACTICE

In *Sanjay Dhande* the AO: (i) received the complaint dated 26 September 2013; (ii) called for documents from both sides (bank statements, the FIR, correspondence with the bank's deputy branch manager and its MD & CEO, the duplicate SIM replacement form, th ...

⬢ 3 Damage to computer & computer system — s.43's ten heads

The syllabus names the specific heads: "access/facilitates access, data theft, virus attacks, email bombings, denial of service attack, damage to computer source code". Learn all ten clauses — the section is quoted in full below.

s.43 · PENALTY AND COMPENSATION FOR DAMAGE TO COMPUTER, COMPUTER SYSTEM, ETC. · VERBATIM

▸▸ Penalty and compensation for damage to computer, computer system, etc.

If any person
without permission of the owner or any other person who is in charge

of a computer, computer system or computer network,—
accesses or secures access to such computer, computer system or computer network
[or computer resource]
downloads, copies or extracts any data, computer data base or information from such computer, computer system or computer network
including information or data held or stored in any removable storage medium
introduces or causes to be introduced any
computer contaminant or computer virus
into any computer, computer system or computer network;
damages or causes to be damaged any computer, computer system or computer network, data, computer data base or any other programmes residing in such computer, computer system or computer network;
disrupts or causes disruption of any computer, computer system or computer network;
denies or causes the denial of access to any person authorised to access any computer, computer system or computer network by any means;
provides any assistance to any person to facilitate access to a computer, computer system or computer network in contravention of the provisions of this Act, rules or regulations made thereunder;
charges the services availed of by person to the account of another person by tampering with or manipulating any computer, computer system, or computer network;
destroys, deletes or alters any information residing in a computer resource or diminishes its value or utility or affects it injuriously by any means;
steals, conceals, destroys or alters or causes any person to steal, conceal, destroy or alter any
computer source code
used for a computer resource with an intention to cause damage;
he shall be liable to pay damages by way of compensation to the person so affected.

Note: the words in square brackets ("or computer resource" in clause (a)) were inserted by the 2008 Amendment, which also substituted "Penalty and compensation" in the marginal heading. The original heading read "Penalty for damage to computer, computer system, etc."

⎚ THE EXPLANATION TO S.43 — THE FOUR DEFINED TERMS

In this section, unless the context otherwise requires— (i) "**computer contaminant**" means any set of computer instructions that is designed to modify, destroy, record or transmit information within a computer, computer system or computer network without the intent or permission of the owner of the information; (ii) "**computer database**" means a representation of information, knowledge, facts, concepts or instructions in text, image, audio, video that is being prepared or has been prepared in a formalised manner or has been produced by a computer, computer system or computer network and is intended for use in a computer, computer system or computer network; (iii) "**computer virus**" means any computer instruction, information, data or programme that destroys, damages, degrades or adversely affects the performance of a computer resource or attaches itself to another computer resource and operates when a programme, data or instruction is executed or some other event takes place in that computer resource; (iv) "**damage**" means to destroy, alter, delete, add, modify or rearrange any computer resource by any means.

▸ 3.1 The ten heads — one line each, with the syllabus's own labels

Clause	Syllabus label	What it covers	Key words to quote	Real example
(a)	access	Unauthorised access or securing access to a computer, computer system, computer network **or computer resource**.	"accesses or **secures access** to"	Guessing a colleague's password to open the HR portal.
(b)	facilitates access / data theft	Downloading, copying or extracting data, a database or information — expressly including data on **removable storage media**.	"downloads, **copies** or **extracts**... including information or data held or stored in any **removable storage medium**"	Copying the client database to a pen drive (*Amit Patwardhan*).
(c)	virus attacks	Introducing or causing the introduction of a **computer contaminant or computer virus**.	"introduces or causes to be introduced"	E-mailing a malware-laden attachment to a rival firm.
(d)	damage	Damaging or causing damage to the computer, system, network, data, database or any other programmes residing in it.	"damages or causes to be damaged"	A ransomware payload encrypting the accounts shared drive.
(e)	disruption	Disrupting or causing disruption of the computer, system or network.	"disrupts or causes disruption of"	A DDoS attack during an online sale.
(f)	denial of service attack	Denying or causing the denial of access to a person **authorised** to access the system, by any means.	"denies or causes the **denial of access** to any person **authorised**... by **any means**"	An IT admin revoking the finance director's credentials in retaliation.
(g)	facilitates access	Providing **any assistance** to any person to facilitate access in contravention of the Act, rules or regulations.	"provides **any assistance**... to facilitate access"	Selling a "how-to" breach kit; or, in *Bank of India v. Sandeep*, a telecom operator whose laxity assists the fraudster.
(h)	charging services to another's account	Charging the services availed of by one person to the account of another by **tampering with or manipulating** the computer, system or network.	"charges the services availed of by person to the account of **another person**"	Billing your OTT subscriptions to a stranger's account.
(i)	damage to information	Destroying, deleting or altering information residing in a computer resource, or diminishing its value or utility or affecting it injuriously by any means.	"**destroys, deletes or alters**... or diminishes its value or utility or affects it **injuriously**"	Deleting the product's source code from the repository (*Syed Asifuddin*).
(j)	damage to computer source code	Stealing, concealing, destroying or altering — or causing any person to do so — any **computer source code** used for a computer resource **with an intention to cause damage**.	"**computer source code**... with an **intention to cause damage**"	A contractor concealing the source code of a bespoke billing system to extort payment.

▸ 3.2 The elements of s.43 liability — the flowchart

⚖ THE VINOD KAUSHIK RULE — THE THIRD ELEMENT, AND THE MOST COMMONLY TESTED TRAP

"The claim for compensation would **not arise merely on account of the breach of Section 43**. The claim would have to be established **like in Civil Court, by making requisite averments with regard to the damage suffered, and thereafter by leading evidence in support thereof**, to show that one or the other prohibited activities enumerated in Section 43 of the IT Act have resulted in the sufferance of damages by the person concerned."

☑ HOW THE THREE ELEMENTS ACTUALLY PLAY OUT — A WORKED EXAMPLE

Facts: R, a dismissed employee, still has his old login credentials (never deactivated). He logs into the company's CRM at 11 pm, downloads 4,000 customer records, and e-mails them to a competitor.

- **Element 1:** without permission — his employment, and with it his authorit …

⬢ 4 The civil / criminal interface — s.43 read with s.66

The syllabus puts "s.43 read with s.66" on the Unit III line itself. The overlap point is a favourite examiner question, and the DU case material flags it expressly.

☑ THE DU CASE MATERIAL'S OWN FRAMING OF THE OVERLAP

*"Syed Asifuddin v. State of A.P. — also directly relevant here as the doctrinal source for 'tampering with computer source code', which straddles **s.65** (criminal, Unit IV) and **s.43(i)** (civil, Unit III) — the **same conduct can attract parallel civil (s.43) and criminal (s.65/s.66) liability**, a key 'overlap' point examiners test."*

▸ 4.1 The parallel-liability table

Conduct	Civil remedy (Chapter IX)	Criminal consequence (Chapter XI)	Other consequences
Unauthorised access to a computer resource	**s.43(a)** — compensation to the person affected	**s.66** — dishonestly or fraudulently doing any act referred to in ss.43–44: imprisonment up to **3 years** or fine up to **₹5 lakh**, or both	Employment law: dismissal; breach of an IT-acceptable-use policy
Downloading / copying data	**s.43(b)**	**s.66** read with s.43(b); **s.72A** where there is breach of a lawful contract and intent to cause wrongful loss	Copyright infringement where the data is a protected database or software
Introducing a virus or contaminant	**s.43(c)**	**s.66** read with s.43(c); **s.66F** where done with intent to threaten the unity, integrity, security or sovereignty of India (cyber terrorism)	Regulatory: sectoral cybersecurity reporting obligations
Tampering with computer source code	**s.43(i)** and **s.43(j)** (clause (j) requires intention)	**s.65** — tampering with computer source documents: imprisonment up to **3 years** or fine up to **₹2 lakh**, or both. Preserves the "required to be kept or maintained by law" disjunctive test (*Syed Asifuddin*)	Copyright: s.63 of the Copyright Act, 1957 (*Syed Asifuddin* also attracted this)
Using another's password / electronic signature dishonestly	**s.43(a)–(b)**	**s.66C** — identity theft: imprisonment up to **3 years** and fine up to **₹1 lakh**	Banking: RBI KYC/AML obligations; customer-liability norms
Failure by a body corporate to protect sensitive personal data	**s.43A** — compensation up to **₹5 crore**	No direct Chapter XI offence; but the underlying fraud attracts **ss.66C/66D** and IPC offences	DPDP Act 2023: security-safeguard duties and breach notification; RBI/TRAI guidelines
Disclosure of information in breach of a lawful contract	Compensation may be available under ordinary contract law; **s.45** residuary penalty for contraventions without a specific penalty	**s.72A** — imprisonment up to **3 years** or fine up to **₹5 lakh**, or both	Breach of confidence; employment contract

☑ FOUR DOCTRINAL POINTS ON THE OVERLAP

1. **Different fora, different standards.** The AO works on a summary inquiry with a preponderance-style satisfaction under s.46(2); the magistrate applies the criminal standard. An acquittal under s.66 does **not** bar a s.43 claim, and vice versa.
2. **The AO has no criminal jurisdiction.** Where a Chapter X …

⬢ 5 Section 43A — negligence-based corporate data-protection liability

Inserted by the 2008 Amendment. This is the single most examined provision in Unit III — and the one that generates the PYQs on duplicate SIMs and unauthorised transfers.

s.43A · COMPENSATION FOR FAILURE TO PROTECT DATA · VERBATIM

▸▸ Compensation for failure to protect data

Where a
body corporate
, possessing, dealing or handling any
sensitive personal data or information
in a
computer resource which it owns, controls or operates
, is
negligent in implementing and maintaining reasonable security practices and procedures
and thereby causes
wrongful loss or wrongful gain to any person
, such body corporate shall be liable to pay damages by way of compensation, to the person so affected,
not exceeding five crore rupees

Note the cap: s.43A itself contains a **₹5 crore ceiling** on compensation. Section 43 has **no statutory cap** — the quantum is fixed under s.47's factors.

5.1 The Explanation — three defined terms, widely drawn

⎚ EXPLANATION TO S.43A — THE THREE DEFINITIONS TDSAT ANALYSED IN CHANDER KALANI

(a) "body corporate" means any company and includes a firm, sole proprietorship or other association of individuals engaged in commercial or professional activities; **(b) "reasonable security practices and procedures"** means the security practices and procedures designed to protect such information from unauthorised access, damage, use, modification, disclosure or impairment, **as may be specified in an agreement between the parties or in any law in force** and, **in the absence of such agreement or law**, such reasonable security practices and procedures, **as may be prescribed by the Central Government in the prescribed manner**; **(c) "sensitive personal data or information"** means such personal information, **as may be prescribed by the Central Government in consultation with such competent authorities or associations** as it may deem fit.

⚖ TDSAT'S READING OF THE THREE DEFINITIONS (SBI V. CHANDER KALANI , 2018) — QUOTE THIS

"A careful reading of the Explanation reveals that **'body corporate' has been given a wide and inclusive definition** so as not to be confined only to a company incorporated under the Company Law. 'Reasonable Security Practices and Procedures' are all such practices and procedures which are designed to protect particular kind of information not only from **unauthorised access, damage** but also from its **use, modification, disclosure or impairment** as may be specified in an agreement between the parties or in any law in force and in absence of both, such reasonable security practices and procedures, as may be prescribed by the Central Government in the prescribed manner. Clearly, the definition is again very widely worded and includes **unauthorised use, disclosure** etc. 'Sensitive Personal Data or Information' has been assigned a meaning as may be prescribed by the Central Government in consultation with competent bodies or associations."

5.2 The three-element test — the exact holding

⚖ THE AUTHORITATIVE STATEMENT OF THE TEST — SBI V. CHANDER KALANI , TDSAT, 31 JULY 2018

"On a careful reading of Section 43A, it is absolutely clear that **negligence in implementing and maintaining reasonable security practices and procedures alone creates a liability to pay damages or compensation under Section 43A**, if such negligence has caused wrongful loss or wrongful gain to the person affected. Negligence by a banker in not properly comparing specimen signature with a signature on a cheque may also lead to wrongful loss or wrongful gain but **such negligence will not be amenable to the scope of Section 43A**. For this Section to apply, **firstly**, the body corporate should be possessing, dealing or handling sensitive personal data or information in a computer resource under its ownership, control or operation. **Secondly**, it should be found negligent in implementing and maintaining reasonable security practices and procedures and **thirdly**, by such negligence it caused wrongful loss or wrongful gain to any person."

Element	What must be shown	How Sanjay Dhande and Chander Kalani satisfied it	How it fails
1 · Possession / handling	The body corporate is **possessing, dealing or handling sensitive personal data or information** in a computer resource it **owns, controls or operates**.	**Dhande:** Vodafone held subscriber identity data, KYC documents, call logs, locations and durations. **Chander Kalani:** "The Bank through its computer resource was clearly possessing, dealing and handling sensitive personal data and information of the complainants in its computer resource" — FD details, account numbers, financial information within Rule 3.	A person who is not a body corporate (an individual) can never be liable under s.43A — only under s.43. Data that is not "sensitive" (e.g. information freely available in the public domain) is outside Rule 3.
2 · Negligence in security practices	The body corporate was **negligent in implementing and maintaining reasonable security practices and procedures** — and that negligence must relate to **security practices and procedures**, not to the underlying transaction generally.	**Dhande:** Vodafone issued a duplicate SIM without verifying the photograph/signature against original KYC documents, took no payment receipt, let the franchisee backdate the form, and made no confirmatory call to the original number — "the minimum due diligence one would expect". ICICI violated RBI KYC norms (bogus accounts), had no Fraud Investigation Unit, and had no real-time fraud analytics flagging foreign-IP/ rapid-withdrawal anomalies. **Chander Kalani:** the Bank acted on unverified e-mail instructions and a **scanned (not original) signature** on the A-2 form, with no confirmation through the registered mobile — a failure within **Rule 8** of the SPDI Rules.	**Chander Kalani's express carve-out:** "Negligence by a banker in not properly comparing specimen signature with a signature on a cheque may also lead to wrongful loss or wrongful gain but such negligence will **not be amenable to the scope of Section 43A**." Signature-verification negligence, standing alone, is ordinary tort/contract liability, not s.43A.
3 · Causation	The negligence **caused wrongful loss or wrongful gain to any person**.	**Dhande:** the duplicate SIM was the "proximate enabling cause" of the ₹19 lakh loss. **Chander Kalani:** the Bank's "negligent acts did cause wrongful loss to the complainant".	Loss caused by the claimant's own conduct, or by a third party whose act the negligence did not enable. (Note, however, that in *Chander Kalani* TDSAT **rejected** the argument that the complainant's own lack of diligence defeated the claim — the AO's finding that "both the Complainant and the Respondent Bank have to share the blame" did **not** reduce the ₹40 lakh award, because the complainant had claimed ₹1 crore.)

5.3 The burden-shifting that TDSAT has developed in practice

⎚ THE DOCTRINAL DEBATE THE DU MATERIAL FLAGS AS "THE SINGLE MOST IMPORTANT OPEN QUESTION IN THIS AREA"

"Section 43A occupies an **awkward middle ground between strict liability and ordinary negligence**. Unlike s.43 (which imposes liability essentially on proof of the enumerated unauthorised act, subject to *Vinod Kaushik*'s requiremen ...

5.4 s.43 versus s.43A — the comparison that carries marks in nearly every paper

Feature	s.43	s.43A
Who can be liable	**Any person** — individual, firm, company, government.	A **body corporate** only, as defined in the Explanation (any company, and including a firm, sole proprietorship or other association of individuals engaged in commercial or professional activities).
Subject matter	**Any computer, computer system, computer network or computer resource.**	**Sensitive personal data or information** only, as prescribed (SPDI Rule 3).
Nature of liability	**Act-based**, broadly strict — no mental element, except clause (j) which requires intention.	**Negligence-based** — a genuine negligence case must be made out.
What must be proved	(i) no permission; (ii) one of ten acts; (iii) damage — pleaded and proved (*Vinod Kaushik*).	(i) possession/dealing/handling of sensitive personal data; (ii) negligence in reasonable security practices and procedures; (iii) causation of wrongful loss or wrongful gain (*Chander Kalani*).
Statutory cap	**None.** Quantum is fixed by the AO under **s.47** factors (amount of loss, unfair advantage gained, whether the contravention is repetitive).	**₹5 crore**, expressly stated in the section.

Where it applies	To interference with the computer resource itself.	To the **handling of data** — the wrong is the failure of the security regime, not the intrusion.
Overlap	A single incident commonly attracts **both**: in *Sanjay Dhande* the AO found the telecom operator liable under **s.43A** for the duplicate SIM, and in *Bank of India v. Sandeep* TDSAT additionally held Vodafone liable under **s.43(g)** (assisting unauthorised access).	

⬢ 6 The SPDI Rules, 2011 — the operational framework

The syllabus's "ss.43A r/w sensitive personal information rules" is a reference to the **Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011** — the "SPDI Rules", notified on **11 April 2011** and effective **13 April 2011**, framed under s.43A read with s.87(2)(ob) and (ze) of the IT Act.

▸ 6.1 Rule 3 — the definition that decides every s.43A case

☑ RULE 2(I) AND RULE 3, SPDI RULES 2011 — VERBATIM SUBSTANCE

Rule 2(i) — "personal information" means any information that relates to a natural person, which, either directly or indirectly, in combination with other information available or likely to be available with a body corporate, is **capable of identifying such person**.

Rule 3 — "sensitive personal data or information" of a person means such personal information which consists of information relating to:

1. **Password**;
2. **Financial information** such as **bank account or credit card or debit card or other payment instrument details**;
3. **Physical, physiological and mental health condition**;
4. **Sexual orientation**;
5. **Medical records and history**;
6. **Biometric information**;
7. **Any detail relating to the above clauses** provided to a body corporate **for providing a service**; and
8. **Any of the information received under the above clauses** by a body corporate for **processing, stored or processed under lawful contract or otherwise**.

Expressly NOT sensitive personal data or information: such information as is **freely available or accessible in the public domain** or furnished under the Right to Information Act, 2005 or any other law for the time being in force.

⚖ SANJAY DHANDE — THE METADATA HOLDING, AND WHY IT MATTERS SO MUCH

Vodafone argued that it "does not deal with, handle or store the **Contents** of Voice or Text messages, and hence is not dealing with Personal Sensitive data". The AO rejected this outright, in a passage that is the most quotable in the whole case:

"They also state that they do not have any access to the content of the messages (voice or text) being transmitted over its network and it neither stores or possesses nor handles or deals with the content of the messages (voice or text) being transmitted over its network. ***This is amusing****, given that they store SMSes and MMSes, albeit in transit, and provide interception facilities to Police and others. In fact,* ***even the Metadata, i.e. caller and called number logs, locations, duration and time of call etc. are highly sensitive personal data****. Who called suicide helpline, or AIDS helpline, who is calling whom frequently at night, which two phones were in close vicinity for how long,* ***all this is undoubtedly highly sensitive, personal data****. The content of voice call or SMS or MMS is obviously still more sensitive.* ***Hence, a Telecommunication company saying that they do not 'handle' sensitive, personal data, is an argument which has no merit at all.****"*

☑ REAL EXAMPLES — WHAT IS AND IS NOT SPDI

Data	SPDI?	Why
Your net-banking password	**Yes**	Rule 3(1) — password
Bank account number, card number, payment-instrument details	**Yes**	Rule 3(2) — financial information. **This is the head that decided *Chander Kalani***
Your Aadhaar number / fingerprint / iris template	**Yes**	Rule 3(6) — biometric information
Yo ...		

▸ 6.2 Rules 4–8 — the compliance architecture

Rule	Heading	Requirement	Use in a s.43A case
Rule 4	Privacy policy	A body corporate or any person on its behalf that collects, receives, possesses, stores, deals or handles information shall **provide a privacy policy** for handling or dealing in personal information, including sensitive personal data or information, ensuring that the information provider is **reasonably able to access the data** and that **no sensitive personal data is collected unless required** for a lawful purpose. The policy must be **published on the website** and must state: the types of data collected; the purpose of collection and usage; the disclosure of information, including sensitive personal data; and the reasonable security practices and procedures followed.	In *Chander Kalani*: "the Bank has **failed to bring on record any material to show that it had in place a policy as required by Rule 4**." Absence of a published policy is itself evidence of negligence.
Rule 5	Collection and disclosure of information	Consent in writing (by letter, fax or e-mail) is required for collection; the information provider must be given the option **not to provide** the data; the body corporate must not retain the data longer than required; and the information provider may withdraw consent in writing.	Establishes the **consent baseline**. A body corporate that cannot show consent has an uphill task on element 2.
Rule 6	Publication of information	A body corporate shall not **publish** sensitive personal data or information, and shall not disclose it to a **third party** unless **prior permission** has been obtained from the information provider, save in specified circumstances.	Relevant to the *Amit Patwardhan* fact pattern — disclosure of bank statements to a rival business.
Rule 7	Reasonable security practices and procedures	A body corporate shall take **reasonable steps to protect the information**, and shall implement **security control measures** whenever there is an information security breach.	The source of the **breach-response** duty — now taken much further by the DPDP Rules 2025.

Rule 8	**The compliance standard**	Where there is **no agreement** between the parties and **no law in force**, the international standard **IS/ISO/IEC 27001** on "Information Technology — Security Techniques — Information Security Management System — Requirements" (or any other standard **notified by the Central Government**) shall be followed. A body corporate that has implemented such a standard is **deemed to have complied** with reasonable security practices and procedures. Bodies with **significant volume** of handling, or engaged in activities likely to have a real and significant impact on the economy, must additionally get **audited** by an independent auditor, and record the audit in a written report.	**This is the rule TDSAT applied in *Chander Kalani*** — "The appellant Bank did not bring on record any material to show that it had complied with the provisions for 'reasonable security practices and procedures' in terms of Rule 8." Rule 8 also supplies the **deemed compliance** route that a well-advised body corporate should use as its defence.

⬢ 7 Data protection: the evolving regime — s.43A → DPDP Act, 2023 → DPDP Rules, 2025

The syllabus expressly names the DPDP Act, 2023 alongside the IT Act provisions. A 2025–26 answer that ignores the DPDP regime loses currency marks.

▸ 7.1 The three-regime map

Regime	Status	Approach	Key features
s.43A IT Act + SPDI Rules, 2011	Original framework; still cited in pending TDSAT appeals	**Compensation-based**, body-corporate negligence standard	Three-element test; ₹5 crore cap; Rule 3 definition of SPDI; Rule 8 IS/ISO/IEC 27001 standard
s.72A IT Act	Live	**Criminal-adjacent** liability for disclosure in breach of a lawful contract	Requires intent to cause, or knowledge of likelihood of causing, wrongful loss or wrongful gain; 3 years / ₹5 lakh
Digital Personal Data Protection Act, 2023	Enacted **11 August 2023**; in force in phases	**Comprehensive successor regime** — rights-based and obligation-based	**Data Principal rights:** access, correction and erasure, grievance redressal, nomination. **Data Fiduciary duties:** notice, consent, purpose limitation, security safeguards, breach notification, data-retention limitation, accuracy, accountability
DPDP Rules, 2025	Notified **13 November 2025**; phased **12–18-month** compliance; **full commencement of remaining provisions targeted for 13 May 2027**	Operationalises the Act	Consent mechanics (notice manager for significant data fiduciaries), breach-notification timelines ("**without undue delay**" upon becoming aware), cross-border transfer conditions, composition and powers of the **Data Protection Board of India**

⍁ THE EXAM-CRITICAL NUANCE — HOW TO PHRASE THE DPDP/S.43A RELATIONSHIP

"The DPDP Act **does not repeal s.43A outright** but is intended to **supersede the SPDI Rules regime** as it comes fully into force (full commencement of remaining provisions targeted for **13 May 2027** per the notified timeline) — so **s.43A liability for pre-DPDP-commen ...**

▸ 7.2 Doctrinal continuity — from Rule 3 to the DPDP definition

⍁ THE CONTINUITY POINT THAT EARNS CURRENCY MARKS

The *Sanjay Dhande* holding that **metadata is sensitive personal data** foreshadows the DPDP Act's definition of "**personal data**", which is drafted in terms of data about an individual who is **identifiable by or in relation to** that data. The doctrinal move is the same: the law protects **id ...**

⬢ 8 Privacy, disclosure & breach of contract — ss.45, 72, 72A, 67C, 79A

The syllabus names ss.45, 72 and 72A expressly, and s.67C for preservation of information by intermediaries. These are the provisions that close the gaps s.43A leaves.

s.72 · PENALTY FOR BREACH OF CONFIDENTIALITY AND PRIVACY · VERBATIM

▸▸ Penalty for breach of confidentiality and privacy

Any person who, in pursuance of any of the powers conferred under this Act, rules or regulations made thereunder, has
secured access to any electronic record, book, register, correspondence, information, document or other material
without the consent of the person concerned,
discloses such material to any other person
, shall be punished with
imprisonment for a term which may extend to two years, or with fine which may extend to one lakh rupees, or with both

Who it binds: a person who has secured access **in pursuance of powers conferred under the Act** — i.e. an intermediary, a controller, an adjudicating officer's staff, an authorised officer under s.69, or a person exercising a statutory power. It does **not** reach a private individual who simply hacks an account (that is s.43/s.66).

s.72A · PUNISHMENT FOR DISCLOSURE OF INFORMATION IN BREACH OF LAWFUL CONTRACT · VERBATIM

▸▸ Punishment for disclosure of information in breach of lawful contract

Save as otherwise provided in this Act or any other law for the time being in force, any person including an
intermediary
who, while providing services under the terms of lawful contract, has
secured access to any material containing personal information about another person
, with the
intent to cause or knowing that he is likely to cause wrongful loss or wrongful gain
, discloses such information to any other person, shall be punished with
imprisonment for a term which may extend to three years, or with fine which may extend to five lakh rupees, or with both

Note the difference from s.72: s.72A (i) applies to a person **including an intermediary** providing services **under a lawful contract**; (ii) requires **intent to cause or knowledge of likelihood of causing wrongful loss or gain**; and (iii) carries the higher penalty of **3 years / ₹5 lakh**. Section 72A is the provision that catches the dis ...

§ S.45 · RESIDUARY PENALTY

"Where no penalty is otherwise provided for any contravention of the provisions of this Act or of any rule, regulation, direction or order made thereunder, such contravention shall be liable to a penalty which **shall not exceed twenty-five thousand rupees**, by way of compensation to the person affected by such contravention, or by way of penalty to the Central Government, as the adjudicating officer may think fit."

§ S.67C · PRESERVATION AND RETENTION OF INFORMATION BY INTERMEDIARIES

(1) An intermediary shall **preserve and retain such information as may be specified for such duration and in such manner and format** as the Central Government may prescribe. **(2)** The Central Government may prescribe the procedure and the duration for which an intermediary shall retain any information for the purposes of the Act or any other law for the time being in force.

§ S.79A · EXAMINER OF ELECTRONIC EVIDENCE

For the purposes of providing expert opinion on electronic-form evidence before any court or other authority, the Central Government may, by notification in the Official Gazette, specify **any department, body or agency** as an Examiner of Electronic Evidence.

▸ 8.1 The privacy provisions compared

Section	Who	Mens rea	Act	Punishment
s.45	Any person	None stated (residuary contravention)	Any contravention with no specific penalty	Up to **₹25,000** — compensation to the victim or penalty to the Central Government
s.72	A person who secured access **in pursuance of powers under the Act**	Disclosure **without consent**	Disclosing an electronic record, book, register, correspondence, information, document or other material	Up to **2 years** or fine up to **₹1 lakh**, or both
s.72A	Any person **including an intermediary** providing services under a **lawful contract**	**Intent** to cause, or **knowledge** of likelihood of causing, wrongful loss or wrongful gain	Disclosing material containing **personal information** about another person	Up to **3 years** or fine up to **₹5 lakh**, or both
s.67C	An **intermediary**	—	Failure to **preserve and retain** specified information for the prescribed duration, manner and format	Contravention — adjudicated under Chapter IX; see also s.79 (intermediary exemption) in Unit V
s.79A	The Central Government	—	Power to specify an **Examiner of Electronic Evidence**	—

§ REAL EXAMPLES — WHICH PRIVACY SECTION BITES

- A call-centre employee who, in pursuance of the company's lawful access to customer records, sells those records to a telemarketing firm — **s.72A** (and, if acting in pursuance of a statutory power, **s.72**).
- A social media platform that, having received a valid court order to preserve a use …

◆ 9 Case brief 1: Vinod Kaushik v. Madhvika Joshi

The leading authority that a breach of s.43 does **not** automatically produce damages. Printed in full in the DU case material at page 11 et seq.

CASE-MAT 1 · TIER 1 · LEADING AUTHORITY ON S.43 QUANTUM

⚖ Vinod Kaushik v. Madhvika Joshi

W.P.(C) No. 160/2012 · Delhi High Court · Order dated 27 January 2012 · Vipin Sanghi, J. · Article 226

▸▸ 1 Citation & Bench

Vinod Kaushik v. Madhvika Joshi, W.P.(C) No. 160/2012, Delhi High Court, order dated **27 January 2012**, **Vipin Sanghi, J.** A petition under **Article 226 of the Constitution** assailing the order of **Sh. Rajesh Aggarwal, Adjudicating Officer under the Information Technology Act, 2000, Government of Maharashtra**, in **Complaint No. 2/2010**. Available at https://it.maharashtra.gov.in/Site/Upload/ACT/Madhvika%20Vs%20Kaushik-highcourt.PDF

▸▸ 2 Admission of Facts

The petition was filed under **Article 226** to assail an order passed by the Adjudicating Officer, Government of Maharashtra, in **Complaint No. 2/2010** preferred by the petitioners. The reason for approaching the High Court was that the **Cyber Appellate Tribunal, New Delhi** — to which an appeal lay against the impugned order — was **bereft of its Chairman** and was **not in a position to function**. Consequently the jurisdiction of the High Court was invoked.

The petitioners had preferred a complaint against, *inter alia*, **Ms. Madhvika Joshi, Respondent No. 1**. **Petitioner No. 2 was married to Ms. Madhvika Joshi**, whereas **petitioner No. 1 was her father-in-law**. Ms. Joshi **accessed the e-mail accounts of both the petitioners** and **printed chat sessions and e-mails from those accounts**, which she then used to pursue her case filed against the petitioners under **s.498A of the Indian Penal Code**.

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **Section 43 liability is not automatic and not strict in its remedial consequence.** A breach establishes the **wrong**; compensation requires **independent proof of loss** — pleaded with particularity and proved by evidence, exactly as in a civil court. s.43 is not a strict-liability damages provision in practice.
2. **Remoteness and indirectness defeat the claim.** Consequences flowing from litigation the wrongdoer was entitled to initiate are remote and indirect; liability is confined to **directly arising** damage.
3. **Exercise of a legal right is not a wrong.** Using material in judicial proceedings, where the material is not published to malign or injure, does not give rise to a damages claim, unless the proceedings are ultimately found to be malicious.
4. **The AO's inquiry is summary and its remedial reach is broad.** The AO may find a contravention and impose a token penalty; the claimant's remedy is a separate question requiring proof.
5. **Where the appellate forum is non-functional, Article 226 is available.** The petitioner approached the Delhi HC under Article 226 precisely because the Cyber Appellate Tribunal had no Chairman — an institutional failure the Court noted without comment on the merits.

(Brief abridged for the compilation — full text at makelaweasy.in.)

10 Case brief 2: Amit Dilip Patwardhan v. Rud India Chains Pvt. Ltd.

Complaint No. 1 of 2013, decided 15 April 2013 by Shri Rajesh Aggarwal, Adjudicating Officer, Government of Maharashtra. Listed in the DU case material at page 1 et seq.

CASE-MAT · TIER 2 · S.43(B) & THE CLEAN-HANDS DOCTRINE

⚖ Amit Dilip Patwardhan v. Rud India Chains Pvt. Ltd.

Complaint No. 1 of 2013 · Adjudicating Officer, Government of Maharashtra · Decided 15 April 2013 · Sh. Rajesh Aggarwal

▸▸ 1 Citation & Bench

Amit Dilip Patwardhan v. Rud India Chains Pvt. Ltd., Complaint No. 1 of 2013, Adjudicating Officer under the Information Technology Act, 2000, Government of Maharashtra, decided **15 April 2013** by **Sh. Rajesh Aggarwal** (the same Adjudicating Officer who decided *Vinod Kaushik* and *Sanjay Dhande*). Available at https://it.maharashtra.gov.in/Site/Upload/ACT/AmitPatwardhanVsRudIndiaVipinRao%2015Apr%202013%20Rajesh%20Aggarwal.pdf

▸▸ 2 Admission of Facts

The complainant, **Amit Dilip Patwardhan**, filed a complaint against his **ex-employer**, **Rud India Chains Pvt. Ltd.**, for **illegally obtaining copies of the complainant's bank account statement**. The complainant had **left the employ of the respondent to work with a competing business company** — but **not before colluding with the competing business company and diverting the respondent's customers to them**.

For redress, the respondent **filed suit for a decree of compensation and led the complainant's bank statements in evidence** to prove unlawful gratification. Since the bank statements were **obtained electronically by the respondent without the complainant's consent**, the jurisdiction of the Adjudicating Officer was invoked.

▸▸ 3 Statutory Issues

1. Whether the respondent's electronic obtaining of the complainant's bank account statements, **without his consent**, amounted to an enumerated act under **s.43** — in particular clause (b) (downloading, copying or extracting data or information).
2. Whether **bank account statements** constitute **sensitive personal data or information** within **Rule 3** of the SPDI Rules, 2011.
3. Whether the complainant — himself at fault for diverting the respondent's customers — was entitled to **compensation**.
4. Whether the **bank's** own failure to protect its depositor's data could be examined when the bank was **not a party** to the complaint.

▸▸ 4 Examination of Reasoning (with the arguments of both sides)

▸▸ 5 Matrix of Holding

PRINCIPLE EVOLVED

1. **Bank account statements are sensitive personal data or information** within Rule 3 of the SPDI Rules, 2011 — financial information, and details relating thereto provided for the purpose of providing a service.
2. **Obtaining them electronically without consent is an enumerated act under s.43(b)**, irrespective of the purpose for which they were obtained.
3. **The clean-hands doctrine applies in s.46 adjudication.** A complainant who has himself committed a dishonesty against the respondent cannot obtain compensation, even where a contravention is established. The AO's jurisdiction is equitable in character and the remedy is discretionary.
4. **Non-joinder has real consequences.** Where the entity whose security lapse enabled the disclosure (here, the bank) is not made a party, the AO cannot adjudicate its conduct — a practical lesson in drafting the complaint.

(Brief abridged for the compilation — full text at makelaweasy.in.)

11 Case brief 3: Sh. Sanjay Govind Dhande v. ICICI Bank & Vodafone — the full appellate chain

The most important s.43A decision in the DU case material — and the one that most closely models the PYQs. It is a **two-tier** authority: the Adjudicating Officer's order of 16 January 2014, **affirmed** on appeal by TDSAT in *Vodafone Idea Ltd v. Sanjay Govind Dhande*, 2020 SCC OnLine TDSAT 124.

CASE-MAT 2 · TIER 1 · THE LEADING S.43A AUTHORITY

⚖ Sh. Sanjay Govind Dhande v. ICICI Bank; Vodafone India

Complaint No. 30 of 2013 (dated 26 September 2013) · Decided 16 January 2014 · Adjudicating Officer (Mumbai) · Sh. Rajesh Aggarwal · Affirmed: 2020 SCC OnLine TDSAT 124

▸▸ 1 Citation & Bench

Sh. Sanjay Govind Dhande v. ICICI Bank; Vodafone India, Complaint No. 30 of 2013, dated 26 September 2013, decided **16 January 2014** by **Sh. Rajesh Aggarwal, Adjudicating Officer (Mumbai)**. Printed in full in the DU case material at pages 4–14. Available at http://it.maharashtra.gov.in/Site//ACT/DIT_Adjudication_SanjayDhande_vs_ICICI&Ors-16012014

▸▸ 2 Admission of Facts — the complete chronology

The **complainants 1 and 2** are the **Directors of M/s Sango Consultants Pvt. Ltd., Pune**, which is joined as **Complainant No. 3**. They hold a **current account bearing No. 007305008xxx with ICICI Bank, Aundh Branch, Pune** (Respondent No. 1). The current account was **linked with a mobile number (8552902xxx) issued by Respondent No. 2 (Vodafone)**; the original agreement form for that connection had been submitted by **Smt. Medha Dhande**.

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **Multiple body corporates in a single transactional chain can each independently attract s.43A liability**, apportioned by their **relative causal contribution** — here ₹6 lakh (ICICI) and ₹12 lakh (Vodafone) against an assessed total of ₹18 lakh.
2. **The onus of securing customer data lies on the body corporate**, not on the customer. Where the customer is an experienced user, the case for apportionment against him collapses entirely: "the liability of the loss cannot be passed on to him."
3. **Metadata is sensitive personal data or information.** A telecom company cannot escape s.43A by claiming to deal only with carriage and not content; subscriber identity data, call logs, locations, durations and times are sensitive personal data. The SIM is "a veritable key to person's sensitive financial and personal information".
4. **Subscriber verification IS within the scope of "reasonable security practices and procedures"** — the AO and, on appeal, TDSAT both rejected the submission that it is not.
5. **A "mere phone call" to the original number is the minimum due diligence expected.** A conspicuous, costless omission of that kind is itself proof of the absence of reasonable security practices.
6. **Franchisee failures are the operator's failures.** Where the franchisee issued the duplicate SIM and violated the operator's own rules, the operator cannot shelter behind the franchisee's independence.
7. **Regulatory circulars supply the standard of care.** RBI KYC/AML/PMLA circulars and RBI's 2011 electronic-banking guidelines, and DOT SIM-issuance guidelines, are the benchmarks against which "reasonable security practices and procedures" are measured.

(Brief abridged for the compilation — full text at makelaweasy.in.)

TIER 2 · APPEAL BEFORE TDSAT · THE APPELLATE AUTHORITY

⚖ Vodafone Idea Ltd v. Sanjay Govind Dhande

2020 SCC OnLine TDSAT 124 · Telecom Disputes Settlement and Appellate Tribunal (TDSAT) · Shiva Kirti Singh, Chairperson · s.43(g) and s.43A

▸▸ 1 Citation & Bench

Vodafone Idea Ltd v. Sanjay Govind Dhande and others, **2020 SCC OnLine TDSAT 124**, decided by the **Telecom Disputes Settlement and Appellate Tribunal** under **s.57** of the IT Act, **Shiva Kirti Singh, Chairperson** — the appellate decision affirming the Adjudicating Officer's order of 16 January 2014.

▸▸ 2 The issues on appeal

1. Whether Vodafone Idea Ltd. is liable under **ss.43(g) and 43A** for negligence and failure to maintain reasonable security practices in issuing a duplicate SIM card that facilitated fraudulent transactions.
2. Whether ICICI Bank Ltd. is liable under **s.43A** for deficient security measures and failure to detect or prevent unauthorised transactions from the complainants' account.

▸▸ 3 Arguments of the parties

▸▸ 4 Matrix of Holding

- The Tribunal noted the AO's detailed record of Vodafone's arguments and **found the AO's findings to suffer from no infirmity**.
- The Tribunal reiterated the law as laid down in its **earlier judgment dated 20 December 2019** (*Bank of India v. Sandeep*, Cyber Appeal No. 3 of 2018) and applied it.
- **"In the present case also, on the basis of acts noticed above and the law reiterated by this Tribunal in the aforesaid judgment dated 20.12.2019, Vodafone is found liable under Sections 43(g) and 43 A of the IT Act whereas the ICICI Bank is found deficient in security measures and hence liable under Section 43 A of the IT Act. The appeals are found to be without merits and are dismissed accordingly."**
- The Tribunal also noted **the lack of cooperation from the bank during the investigation and the absence of any internal inquiry**, and relied on the **RBI guidelines on KYC and electronic banking security**, concluding that these were violated by the bank.

PRINCIPLE EVOLVED

1. **A telecom service provider is a body corporate handling sensitive personal data.** The "carriage not content" defence fails — the subscriber identity data, KYC documents, call records and location data held by the operator are sensitive personal data or information.
2. **Subscriber verification is part of "reasonable security practices and procedures"** within s.43A. Issuing a duplicate SIM without verifying the claimant's identity and authority is a security-practices failure, not a mere administrative lapse.
3. **Section 43(g) is available against an intermediary whose negligence assisted unauthorised access.** Vodafone was held liable not only under s.43A (negligence) but also under **s.43(g)** — "assisting any person to facilitate access to a computer resource without permission" — an important extension, since the AO had proceeded only under s.43A.
4. **Apportionment by causal contribution is affirmed**, with the telecom operator bearing the larger share where the duplicate SIM was the proximate enabling cause.

⬢ 12 Case brief 4: State Bank of India v. Chander Kalani — the definitive s.43A judgment

A two-tier authority: the Adjudicating Officer's order of 12 January 2015, affirmed by TDSAT on 31 July 2018. The TDSAT judgment is **the single most important text in Unit III** — it is printed in full in the DU case material and supplies the three-element test, the SPDI analysis and the summary-procedure holding.

CASE-MAT 3 · TIER 1 · THE DEFINITIVE S.43A JUDGMENT

⚖ State Bank of India v. Shri Chander Kalani

Cyber Appeal No. 13 of 2015 · TDSAT · Decided 31 July 2018 · Shiva Kirti Singh, Chairperson · s.57 read with ss.43A, 46, 47, 61, 62

▸▸ 1 Citation & Bench

State Bank of India v. Shri Chander Kalani, **Cyber Appeal No. 13 of 2015**, Telecom Disputes Settlement and Appellate Tribunal, decided **31 July 2018**, **Shiva Kirti Singh, Chairperson**. An appeal under **s.57** of the IT Act against the order dated **12 January 2015** of the **Adjudicating Officer, Government of Maharashtra (Principal Secretary, IT)** in **Complaint No. 1 of 2014**. Available at https://it.maharashtra.gov.in/Site/Upload/ACT/SBI-Vs-Chander-Kalani-TDSAT-31July2018_201809061010495837.pdf — printed in full in the DU case material at pages 15–19.

▸▸ 2 Admission of Facts

The complainants, **Shri Chander Kalani and his wife Smt. Romi Kalani**, were **senior citizens and Non-Resident Indians (NRIs)**, residents of Mumbai with business dealings in **Lagos, Nigeria and West Africa**. They had an **NRI Account** with the Bank together with fixed deposits, and **six joint fixed deposits with different maturity dates and amounts**.

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **Section 43A imposes liability on proof of a three-element test:** (i) possession, dealing or handling of sensitive personal data or information in a computer resource owned, controlled or operated by the body corporate; (ii) negligence in implementing and maintaining reasonable security practices and procedures; and (iii) causation of wrongful loss or wrongful gain.
2. **The Explanation's three definitions are to be read widely** — "body corporate" is not confined to a company incorporated under company law; "reasonable security practices and procedures" covers not merely unauthorised access and damage but also **use, modification, disclosure or impairment**; "sensitive personal data or information" is that prescribed by the Central Government.
3. **The AO's inquiry is a summary procedure.** Section 46 does not warrant an elaborate trial; the civil-court powers vested in the AO are only to enable him to summon or discover relevant materials. Rules of natural justice are nonetheless applicable, because s.46(2) requires a reasonable opportunity to make representation.
4. **A body corporate that fails to place any material on record showing compliance with Rules 4 and 8 is negligent.** The practical burden shifts to the body corporate to demonstrate compliance once the claimant shows the security lapse and the resulting loss.
5. **A non-functioning registered mobile number works in the claimant's favour.** Where the bank's own practice was to confirm through the registered mobile, it ought to have rejected the transfer request in the absence of confirmation.
6. **A scanned signature on an A-2 Form received through Email is an "unauthorised and illegal use of a so called signature"** which has no sanctity either under the general law or under the IT Act. This links Unit II and Unit III: authentication failures are civil-liability failures.
7. **Financial information — bank account, credit card, debit card or other payment instrument details — is sensitive personal data or information** under Rule 3(ii), read with clauses (vii) and (viii).
8. **Contributory blame does not automatically reduce compensation**, and does not defeat the claim where the award is confined to the actual loss out of a much larger claim.

(Brief abridged for the compilation — full text at makelaweasy.in.)

TIER 2 · THE ORDER UNDER APPEAL · ADJUDICATING OFFICER

⚖ Chander Kalani v. State Bank of India

Complaint No. 1 of 2014 · Adjudicating Officer, Government of Maharashtra · Order dated 12 January 2015 · Principal Secretary, IT, Government of Maharashtra

▸▸ 1 Citation & Bench

Chander Kalani v. State Bank of India, Complaint No. 1 of 2014, decided **12 January 2015** by the **Adjudicating Officer, Government of Maharashtra (Principal Secretary, IT)**. Available at https://it.maharashtra.gov.in/Site/Upload/ACT/SBI-Vs-Chander-Kalani-AO-order_201809061011371075.pdf

▸▸ 2 Admission of Facts

The complainants — **Shri Chander Kalani and Smt. Romi Kalani**, senior citizens and NRIs — had an NRI account and **six joint fixed deposits** with the Bank. They had **never sought internet banking or phone banking facilities and had not permitted, in writing or orally, transactions through Email**. On fraudulent Emails sent in Mr. Kalani's name on **28.10.2013, 06.11.2013, 12.11.2013 and 25.11.2013**, **three fixed deposits were fraudulently terminated** and the funds transferred to unknown beneficiaries. On **13.12.2013**, on a visit to the Bank to update the passbook and collect one original FDR, the fraud was discovered. The Bank informed the Police and the two receiving banks; **16,710 GBP** was recovered. The total loss was approximately **43,300 GBP**, i.e. about **₹63 lakhs** at the material time.

▸▸ 3 Statutory Issues

1. Whether the Bank was **negligent** in implementing and maintaining reasonable security practices and procedures in respect of the complainants' sensitive personal data or information.
2. Whether the complainants' own conduct — conducting transactions **only through emails**, which is "an insecure way of doing things", not using alternate email or SMS alerts, and not informing the Bank of the **defunct mobile number** — made them **share the blame**.
3. What **compensation** was appropriate, and on what **heads**.

▸▸ 4 Matrix of Holding — the operative paragraph 6

☑ THE AO'S FINAL CONCLUSIONS, VERBATIM (AS REPRODUCED IN THE TDSAT JUDGMENT)

1. "Complainant has been doing transactions with the banks only through emails, which is insecure way of doing things. Mechanisms like alternate email, SMS alerts etc. were not used. Complainant had not informed the bank about his defunct mobile number. **Hence, both the Complainant and the Respondent Bank have to share the blame.**"

2. "I hold the Respondent No. 1 (State Bank of India) in violation of Section 43A of the IT Act, and **order them to a compensation of Rupees Forty Lakhs to the Complainant to partly cover his loss**, within a month of this order, failing which **compound interest of 12 percent compounded monthly** will also be chargeable."

PRINCIPLE EVOLVED

1. A bank that acts on **unverified email instructions**, with a **scanned signature** on the A-2 Form of only one joint account holder, and **without confirmation through the registered mobile**, is negligent in implementing and maintaining reasonable security practices and procedures.
2. The **customer's own insecure practices** (transacting only by email; not using alternate email or SMS alerts; not informing the bank of a defunct mobile number) may result in **shared blame** — but this operates on quantum and does not exonerate the body corporate.
3. Compensation may be awarded on **multiple heads** — the claim here included legal fees and expenses, contraventions, negligence and failure to protect the complainant's data — and is **not confined to the pecuniary loss alone**.

(Brief abridged for the compilation — full text at makelaweasy.in.)

13 Online defamation

Defamation is **not** a creature of the IT Act. It is a **common-law tort** (and, in its criminal limb, a codified offence) that has acquired a new medium. The IT Act's contribution is procedural and evidential — it makes the publication of a defamatory imputation through a computer resource traceable, and it makes the platform that carries it potentially answerable.

THE FRAMING SENTENCE TO OPEN YOUR ANSWER WITH

"Online defamation is **the publication of a defamatory imputation concerning an identifiable person through a computer resource** — an e-mail, a website, a social-media post, a comment, a review, a video, or a message on a messaging platform. The **substance** of the wrong is governed by t ...

13.1 The essentials — unchanged, but applied differently online

Essential	The ordinary requirement	What changes online
1 · Defamatory imputation	The words must tend to lower the claimant in the estimation of right-thinking members of society generally, or to expose him to hatred, contempt or ridicule, or to cause him to be shunned or avoided. Innuendo and secondary meaning count.	The imputation is judged by how an **ordinary, reasonable user of the platform** would understand it. Memes, hashtags, emojis, screenshots and "quote tweets" can all carry defamatory meaning; the test remains the ordinary reader, not the specialist.
2 · Publication	Communication to at least **one person other than the claimant**.	**Every download, view, share or re-tweet is potentially a fresh publication.** Each re-publication by a third party may create a new cause of action, subject to the rules on innocent dissemination and the safe harbour.
3 · Identification	The imputation must refer to the claimant, expressly or by innuendo; a reasonable person must understand it as referring to him.	**Anonymous publication** is the norm online. The claimant must then either use a **John Doe / Ashok Kumar order** (the Indian equivalent of a Norwich Pharmacal order) or obtain subscriber details from the intermediary or from the platform.
4 · Damage to reputation	In India, damage is **presumed** in libel; in slander, damage must generally be proved (save in the slander-actionable-per-se categories, which now include imputations of unchastity to a woman under s.499 Explanation 2 IPC).	Online publication is generally treated as **libel** (permanent form), so damage is presumed — but the claimant must still **prove the quantum of loss** if he seeks damages, and must show the imputation reached the relevant audience.
5 · Absence of a defence	Truth (justification), fair comment, privilege (absolute and qualified), consent, apology, accord and satisfaction.	**Fair comment** is the most litigated online: the line between criticism of a public figure and a defamatory imputation is drawn by asking whether the statement is one of fact or of opinion. Truth is a complete defence but must be substantially proved.

REAL EXAMPLES — HOW THE ANALYSIS RUNS

- **A one-star Google review** alleging that a restaurant served contaminated food: libel; damage presumed; the defence would be fair comment or truth; the platform may be joined for takedown.
- **A WhatsApp message** forwarded to 200 contacts alleging that a colleague embezzled funds: each recipient is ...

13.3 The three parallel tracks

13.4 The statutory position

Source	What it does	Key points
IPC ss.499–502 (now **BNS ss.356–358**)	**Criminal defamation**, criminal defamation by printing/engraving, and sale of printed defamatory matter.	s.499 IPC defines defamation and sets out **ten Explanations and four exceptions**; s.500 prescribes **simple imprisonment up to two years, or fine, or both**. Defamation is **not** an offence under the IT Act at all.
Common law	**The tort of defamation** — uncodified in India.	Remedies: **damages** and **injunction**. Libel (permanent form — which includes anything in writing or electronically recorded) presumes damage; slander requires damage save in the per-se categories.
IT Act s.43	Damage to a computer or computer system.	Rarely the natural home for defamation — but engaged where the defamatory material is published by damaging, disrupting or denying access to the victim's own computer system (e.g. defacing the victim's website).
IT Act s.66	Computer-related offences — dishonest or fraudulent acts referred to in ss.43(i)–(k) done with intent to cause damage or loss.	Punishes the **dishonest or fraudulent** commission of the s.43 acts — the criminal counterpart of the civil contravention.
IT Act s.67	Publishing or transmitting obscene material in electronic form.	Where the defamatory material is also obscene. Cross-refers to **Unit IV**.
IT Act s.72A	Disclosure of personal information in breach of a lawful contract.	Engaged where an employee or intermediary discloses personal information about the claimant with intent to cause, or knowledge of likelihood of causing, wrongful loss or gain.
IT Act s.79 + Intermediary Guidelines and Digital Media Ethics Code Rules, 2021 (as amended 2026)	Intermediary **safe harbour** and **due diligence**.	An intermediary is exempt from liability for third-party information hosted on its platform, **provided** it observes the due-diligence conditions — including acting **expeditiously and within 36 hours** on receiving actual knowledge by court order or government notification, and appointing a grievance officer, nodal officer and resident grievance officer.

CASE-MAT 4 · TIER 2 · INDIA'S FIRST CYBER-DEFAMATION CASE

⚖ SMC Pneumatics (India) Pvt. Ltd. v. Jogesh Kwatra

Suit No. 1201/2001 · Renumbered as New Suit No. 65/14 · Delhi District Court · Decided 12 February 2014 · Ex parte ad interim injunction

1 Citation & Bench

SMC Pneumatics (India) Pvt. Ltd. v. Jogesh Kwatra, Suit No. 1201/2001, renumbered as **New Suit No. 65/14**, decided by the **Delhi District Court** on **12 February 2014**. The order is reported at http://www.indiankanoon.org/doc/149167816/ and is cited in the DU case material's table of authorities.

2 Admission of Facts

The plaintiff, **SMC Pneumatics (India) Pvt. Ltd.**, was a company carrying on business in pneumatics, with **subsidiaries and offices across the world**. The defendant, **Jogesh Kwatra**, was an **ex-employee** of the plaintiff company. After leaving the plaintiff's employment, the defendant

allegedly began sending defamatory, vulgar and derogatory e-mails to the plaintiff's management and, more seriously, to the plaintiff's **subsidiaries and associates worldwide**, with the effect of **damaging the plaintiff's business reputation**. The plaintiff accordingly sued for a **permanent injunction** restraining the defendant from sending such e-mails, and for **damages**.

▸▸ 3 Statutory Issues

1. Whether the plaintiff had made out a **prima facie case** of defamation through electronic communication, so as to warrant **interlocutory relief**.
2. Whether the **balance of convenience** lay in favour of restraining the defendant pending trial.
3. Whether the plaintiff would suffer **irreparable injury** that could not be compensated in damages, given that the reputational harm was spreading to subsidiaries across the world.
4. Whether **equitable relief** is available against **ongoing** cyber-defamatory conduct **before** a full trial on the merits.

▸▸ 4 Examination of Reasoning (with the arguments of both sides)

▸▸ 5 Matrix of Holding

The Delhi District Court **granted an ex parte ad interim injunction**, restraining the defendant from sending defamatory, derogatory or abusive e-mails to the plaintiff or to its subsidiaries. The Court found:

- a **prima facie case** of defamation through electronic communication;
- that the **balance of convenience** lay with the plaintiff, since restraint caused the defendant no legitimate prejudice while non-restraint exposed the plaintiff to continuing worldwide reputational harm; and
- that the injury was **irreparable** and incapable of adequate monetary compensation, given the **continuing nature** of the conduct and the **global reach** of the e-mails.

PRINCIPLE EVOLVED

1. **Equitable relief is available against cyber-defamatory conduct even before full trial.** The ordinary principles governing interlocutory injunctions — prima facie case, balance of convenience, irreparable injury — apply without modification to defamation committed through e-mail.
2. **The global reach of electronic publication aggravates the injury and strengthens the case for an injunction.** Because the e-mails went to subsidiaries worldwide, the injury was not confined to a single workplace and could not be undone.
3. **Continuing wrongs warrant continuing restraint.** Where the wrong is ongoing rather than a single completed act, the injunction is the natural remedy.
4. **Injunctive relief is a remedy distinct from, and additional to, monetary compensation** under ss.43 / 43A — the claimant does not have to elect between them.

▸▸ 6 Application & Significance

(Brief abridged for the compilation — full text at makelaweasy.in.)

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 3 (questions only)

Q1 PYQ 1 "A's account is debited after her SIM is duplicated due to Y's (telecom) negligence; X (bank) claims it sent SMS alerts; Y claims it does not handle 'content' and hence not personal data. Decide." May–June 2025, Q.2 · 12–14 marks · Problem question

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 PYQ 2 "X's SIM is stopped for two days due to public holidays; fraudsters obtain a duplicate SIM and transact ₹80 lakh. Discuss liability of Bank and telecom Service Provider." Nov–Dec 2024, Q.3(b) · 10–12 marks · Problem question

Q3 PYQ 3 "Ex-employee uses undeactivated login credentials to access and leak client data. Discuss liability of the company and the ex-employee." Nov–Dec 2025, Q.2 · 12–15 marks · Problem question

Q4 PYQ 4 "Discuss the elements of s.43A liability and illustrate with Sanjay Dhande and Chander Kalani ." Likely long question · 15 marks · Doctrinal

Q5 PYQ 5 "Critically analyse whether s.43A remains relevant or necessary after the DPDP Act, 2023 and the DPDP Rules, 2025." Likely long question · 15 marks · Critical essay

Q6 PYQ 6 Short notes / objective questions — the most frequently repeated Recurring across papers

LB-5031 · INFORMATION TECHNOLOGY LAW · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT IV

Criminal Liabilities — Cyber Crimes

◆ SYLLABUS COVERAGE

Criminal liabilities for cyber crimes — Chapter XI mapped: tampering with computer source documents (s.65) · hacking and computer-related offences (s.66) · identity theft and cheating by personation (ss.66C, 66D) · violation of privacy and the obscenity ladder (ss.66E, 67, 67A, 67B) · cyber stalking and cyber terrorism · the remaining offences (ss.67C, 70–75).

◆ STATUTES & PROVISIONS

IT Act, 2000 · Ch. XI — ss.65, 66, 66A–66F, 67, 67A, 67B, 67C, 70–75 · BNS, 2023 analogues

◆ PRESCRIBED CASE MATERIAL

Syed Asifuddin v. State of A.P. · Sanjay Kumar v. State of Haryana · State of A.P. v. Prabhakar Sampath · NAASCOM v. Ajay Sood · Aveek Sarkar v. State of W.B. · Maqbool Fida Husain v. Raj Kumar Pandey

⬢ Chapter XI: from source-code tampering to cyber terrorism

Delhi University · Faculty of Law

LL.B. V Term · Paper LB-5031

Information Technology Law

Prepared from the prescribed DU case material (CMITLAW-2026) · Unit IV of Part A

Syllabus coverage: Cyber crimes — financial frauds (money laundering, credit card fraud), social crimes (cyber stalking, pornography), identity theft, IPR-related crimes, cyber terrorism, defamation — s.43 read with s.66; ss.65–67B

THE ONE IDEA THAT CARRIES THIS ENTIRE UNIT

Chapter XI of the IT Act, 2000 is India's **cyber-crime code**. Its central architectural device is that **s.66 is textually parasitic on s.43**: the ten civil acts of unauthorised interference enumerated in s.43 become **criminal** the moment they are done **"dishonestly or fraudulently"**. Everythin ...

⬢ 1 The mischief: cyber crimes as a distinct offence category

Unit IV covers **offences** — conduct visited with imprisonment and/or fine — as distinct from Unit III's compensatory civil wrongs. The syllabus's parenthetical, **"s.43 read with s.66; ss.65–67B"**, is a map of the whole Unit: s.43 supplies the **acts**, s.66 supplies the **mental element** that converts them into crimes, and ss.65–67B supply the **specialised offences** that stand independently.

▸ 1.1 Why a separate cyber-crime code?

☑ THE MISCHIEF THE 2000 ACT ADDRESSED

The Indian Penal Code, 1860 was drafted in 1860 for a physical world of hands, paper and witnesses. It could reach cheating by personation (s.419 IPC) but only where a **person** personated another in flesh and blood; it could reach forgery (s.463 IPC) but only of a **document**; it could reach theft ...

▸ 1.2 The six families of cyber crime in the syllabus

Family (syllabus wording)	Provisions engaged	Leading DU case
Financial frauds — money laundering, credit card fraud	s.66 (hacking) read with s.43(a),(b),(h); s.66C (identity theft); s.66D (cheating by personation); IPC s.420 / **BNS s.318** (cheating); Prevention of Money Laundering Act, 2002; RBI KYC/AML circulars	*Sanjay Kumar v. State of Haryana*; *NAASCOM v. Ajay Sood*
Social crimes — cyber stalking, pornography	s.67 (obscene material); s.67A (sexually explicit act); s.66E (violation of privacy); **IPC ss.354D, 509** / **BNS ss.78, 79**	*Suhas Katti*; *Yogisha Prabhu*; Ritu Kohli
Identity theft	**s.66C**; s.66D; s.43(a),(b)	*NAASCOM v. Ajay Sood* (phishing)
IPR-related crimes	s.65 (source-code tampering); s.66; **Copyright Act, 1957 ss.51, 63, 63B**	*Syed Asifuddin*
Cyber terrorism	**s.66F**; s.70 (protected system); Unlawful Activities (Prevention) Act, 1967	Rakesh v. Central Bureau
Defamation	s.43 read with s.66; IPC ss.499/500 / **BNS s.356**; s.67 where obscene	*Maqbool Fida Husain v. Raj Kumar Pandey*
Admissibility of electronic evidence	Evidence Act ss.65A, 65B / **BSA, 2023 ss.62, 63**; s.79A IT Act	*Anvar P.V. v. P.K. Basheer*; *Arjun Panditrao Khotkar*

▸ 1.4 The mental elements — dishonestly, fraudulently, intentionally, knowingly

Expression	Source	Meaning	Where it appears in Chapter XI
"Dishonestly"	IPC s.24 (now **BNS s.2(7)**)	Whoever does anything **with the intention of causing wrongful gain to one person or wrongful loss to another person**, is said to do that thing "dishonestly".	s.66 (expressly imported by the Explanation); s.66C; s.66B
"Fraudulently"	IPC s.25 (now **BNS s.2(9)**)	A person is said to do a thing fraudulently if he does it **with intent to defraud**, but not otherwise.	s.66 (expressly imported by the Explanation); s.66C; s.74
"Intentionally"	General law	Doing an act **with the purpose of bringing about a particular consequence**.	s.65; s.66E; s.66F
"Knowingly"	General law	Doing an act **with the awareness** that the consequence is probable, though not desired.	s.65; s.66F; s.72A
"Reason to believe"	IPC s.26	A lower standard — sufficient grounds for a reasonable person to believe.	s.66F (second limb); s.67 (indirectly, via "causes to be published")

☑ REAL EXAMPLES — THE MENTAL ELEMENT DECIDES THE CHARGE

- A journalist who accesses a publicly available government database with a password that was inadvertently left in a press release — **no dishonesty, no fraudulence**: at most civil liability under s.43, and even that is doubtful. **No s.66 offence.**
- A call-centre agent who, using a ...

⬢ 2 Chapter XI mapped — the complete offence table

Learn this table. It is the skeleton of every problem question in this Unit.

Offence	Section	Punishment (post-2008)	Cognizable / Bailable
Tampering with computer source documents	s.65	Up to **3 years** and/or fine up to **₹2 lakh**	Cognizable, bailable
Computer-related offences ("hacking" — dishonest/fraudulent s.43 acts)	s.66	Up to **3 years** and/or fine up to **₹5 lakh**	Cognizable, bailable
Identity theft	s.66C	Up to **3 years** and fine up to **₹1 lakh**	Cognizable, bailable
Cheating by personation using a computer resource	s.66D	Up to **3 years** and fine up to **₹1 lakh**	Cognizable, bailable
Violation of privacy (capturing/publishing/ transmitting images of a private area without consent)	s.66E	Up to **3 years** and/or fine up to **₹2 lakh**	Cognizable, bailable
Cyber terrorism	s.66F	**Imprisonment for life**	**Cognizable, non-bailable**
Publishing or transmitting obscene material in electronic form	s.67	First conviction: up to **3 years** and fine up to **₹5 lakh**; subsequent: up to **5 years** and fine up to **₹10 lakh**	Cognizable, bailable (first conviction)
Publishing or transmitting material containing a sexually explicit act	s.67A	First conviction: up to **5 years** and fine up to **₹10 lakh**; subsequent: up to **7 years** and fine up to **₹10 lakh**	Cognizable, **non-bailable**
Publishing or transmitting material depicting children in a sexually explicit act (CSEAM)	s.67B	First conviction: up to **5 years** and fine up to **₹10 lakh**; subsequent: up to **7 years** and fine up to **₹10 lakh**	Cognizable, **non-bailable**
Failure to preserve and retain information (intermediary)	s.67C	Up to **3 years** and fine	Cognizable
Unauthorised access to a protected system	s.70	Up to **10 years** and fine	**Cognizable, non-bailable**
Misrepresentation to a Controller or Certifying Authority	s.71	Up to **2 years** and/or fine up to **₹1 lakh**	—
Breach of confidentiality and privacy	s.72	Up to **2 years** and/or fine up to **₹1 lakh**	—
Disclosure of information in breach of lawful contract	s.72A	Up to **3 years** and/or fine up to **₹5 lakh**	Cognizable
Publishing an Electronic Signature Certificate false in material particulars	s.73	Up to **2 years** and/or fine up to **₹1 lakh**	—
Publication for fraudulent purpose	s.74	Up to **2 years** and/or fine up to **₹1 lakh**	—
Extra-territorial application	s.75	Applies to an offence or contravention committed **outside India by any person irrespective of nationality**, where the act involves a computer, computer system or computer network **located in India**	—

▸ 2.1 The IPC → BNS, 2023 cross-reference table

The **Bharatiya Nyaya Sanhita, 2023** came into force on **1 July 2024**, replacing the Indian Penal Code, 1860. Cyber-crime prosecutions now cite BNS provisions alongside IT Act offences. **Examiners increasingly expect this cross-reference in any criminal-law-adjacent answer.**

IPC, 1860 (old)	BNS, 2023 (new)	Relevance to Unit IV
ss.415, 420 (cheating, cheating and dishonestly inducing delivery of property)	**s.318**	Online financial fraud; phishing; the charge in *Sanjay Kumar*
ss.463, 465, 468, 471 (forgery, forgery for cheating, using a forged document)	**ss.336, 338**	Forged electronic records; the charge in *Sanjay Kumar*
ss.499, 500 (defamation)	**s.356**	Cyber defamation — the criminal limb
s.354D (stalking, including monitoring a woman's use of the internet, e-mail or electronic communication)	**s.78**	Cyber stalking
s.509 (word, gesture or act intended to insult the modesty of a woman)	**s.79**	Online harassment of women — the charge in *Suhas Katti* and *Yogisha Prabhu*
ss.292, 294 (sale of obscene objects; obscene acts and songs)	**ss.294, 296**	Overlaps with s.67 IT Act — the charges in *Aveek Sarkar* and *M.F. Husain*
s.298 (uttering words with deliberate intent to wound religious feelings)	**s.302**	Charged in *M.F. Husain*
ss.406, 409 (criminal breach of trust)	**s.316**	Charged in *Syed Asifuddin* (quashed) and *Sanjay Kumar*
s.120B (criminal conspiracy)	**s.61**	Charged in *Syed Asifuddin* (quashed as relatable only to the substantive charges)

▸ 2.2 The other statutes that routinely accompany a Chapter XI charge

⎚ COMPANION STATUTES

- **Protection of Children from Sexual Offences Act, 2012 (POCSO)** — **s.15** criminalises storage/possession of child sexual abuse material for commercial or transmission purposes; read with s.67B IT Act. *Just Rights for Children Alliance v. S. Harish* (2024) held that **mere possession is independently punishable** under …

⎚ THE INTERNATIONAL COMPARATOR

The **Budapest Convention on Cybercrime, 2001** — to which **India is not a signatory** — is the global template. Its offence taxonomy closely parallels ss.65–74 of the IT Act: (i) illegal access; (ii) illegal interception; (iii) data interference; (iv) system interference; (v) misuse of devices; (vi) compu …

⬢ 3 Tampering with computer source code — s.65

The IPR limb of the syllabus. Section 65 is the Act's original offence — present in the unamended 2000 Act — and it protects the **intellectual property invested in computer source code** beyond what copyright law provides.

s.65 · TAMPERING WITH COMPUTER SOURCE DOCUMENTS · VERBATIM

▸▸ Tampering with computer source documents

Whoever
knowingly or intentionally conceals, destroys or alters
intentionally or knowingly causes another to conceal, destroy, or alter
computer source code
used for a computer, computer programme, computer system or computer network,
when the computer source code is required to be kept or maintained by law for the time being in force
, shall be punishable with
imprisonment up to three years, or with fine which may extend up to two lakh rupees, or with both

Note the disjunctive "or": the code must be "required to be **kept or maintained** by law". *Syed Asifuddin* held that this is a **disjunctive** test — either situation suffices, and they are "different situations". This is the single most important textual point in the section.

☑ EXPLANATION TO S.65 — THE DEFINITION

For the purposes of this section, **"computer source code"** means **the listing of programmes, computer commands, design and layout and programme analysis of computer resource in any form**.

▸ 3.1 The elements — as laid down in Syed Asifuddin

#	Element	What must be shown	Authority
1	**The act**	The accused **intentionally or knowingly** (i) **concealed**, (ii) **destroyed**, or (iii) **altered** a computer source code; **or** intentionally or knowingly **caused another** to do any of those things.	*Syed Asifuddin*, para 21
2	**The object**	The code must be **computer source code used for a computer, computer programme, computer system or computer network**.	s.65; *Syed Asifuddin*, para 24
3	**The legal requirement**	The code must be **"required to be kept or maintained by law for the time being in force"** — read disjunctively. **Either** "required to be kept" **or** "maintained by law" suffices.	*Syed Asifuddin*, para 24: "The disjunctive word 'or' is used by the Legislature between the phrases 'when the computer source code is required to be kept' and the other phrase 'maintained by law for the time being in force' and, therefore, both the situations are different."
4	**Mens rea**	**Intention or knowledge**. Mere negligence or accident will not do. (Contrast s.66, where the mental element is **dishonesty or fraudulence**.)	s.65

▸ 3.2 What is ”computer source code”? The four limbs

⚖ SYED ASIFUDDIN ON THE FOUR LIMBS OF THE DEFINITION

"By the very definition of 'computer source code,' **a) list of programmes; b) computer commands; (c) design and layout and d) programme analysis of computer resource in any form**, is a 'computer source code' for the purpose of Section 65 of I.-T. Act." On that basis the Court held that the **ESN** (Electronic Serial Number) of a Samsung N191 or LG-2030 handset and the **SID** (System Identification Code) of the service provider **come within the definition of computer source code**.

☑ REAL EXAMPLES — WHAT COUNTS AS COMPUTER SOURCE CODE

- **ESN and SID** in a mobile handset — *Syed Asifuddin* (expressly held to be computer source code).
- **The payroll module's source code** of a company's software — *Sanjay Kumar* (altering the bank's software and interest entries).
- **Firmware and bootloader** of a device — the "listing of progra ...

▸ 3.3 Section 65 and the Copyright Act, 1957 — the IPR limb

☑ TWO OVERLAPPING REGIMES — PLEAD BOTH

In *Syed Asifuddin* the Court held that a **computer programme is by very definition an original literary work** under **s.2(o)** of the Copyright Act, 1957, protected by **ss.13 and 14(b)**, and that infringement is punishable under **s.63**. "Therefore, prima facie, if a person alters computer programme of ...

⬢ 4 Hacking and computer-related offences — s.66

The syllabus's "Hacking (s.43(i) read with s.66)" describes the whole architecture. Post-2008, **s.66 no longer independently defines "hacking"** — it is drafted as a pure **mental-element gateway** onto s.43.

s.66 · COMPUTER RELATED OFFENCES · VERBATIM (POST-2008)

▸▸ Computer related offences

If any person,
dishonestly or fraudulently, does any act referred to in section 43
, he shall be punishable with
imprisonment of either description for a term which may extend to three years or with fine which may extend to five lakh rupees or with both

Explanation. For the purposes of this section— **(i)** the word "**dishonestly**" shall have the meaning assigned to it in **section 24 of the Indian Penal Code**; **(ii)** the word "**fraudulently**" shall have the meaning assigned to it in **section 25 of the Indian Penal Code**. (Read with the BNS, 2023: s.2(7) and s.2(9) respectively.)

▸ 4.2 The elements of a s.66 prosecution

#	Element	Proof
1	One of the ten acts in **s.43(a)–(j)**	The chargesheet must identify the clause. *Prabhakar Sampath* was charged under s.66 for the **s.43(b)** act of downloading proprietary research reports.
2	The act was done **dishonestly or fraudulently**	Wrongful gain to the accused / wrongful loss to the victim, or intent to defraud. In *Sanjay Kumar* the transfer of ₹17,67,409 into the accused's own account supplied the dishonesty.

3	The act was done **without permission** of the owner or person in charge	In *Sanjay Kumar* the accused was deputed to maintain the software, but his authority did not extend to manipulating entries into his own account.
4	The **device is a "computer"** within s.2(1)(i)	*Syed Asifuddin*: a cell phone is a computer, because it "performs logical, arithmetic and memory functions by manipulations of electronic, magnetic or optical impulses".
5	**Admissible electronic evidence** under Evidence Act s.65B / **BSA s.63**	Server logs, IP traces, forensic images, call records — the dual certificate plus hash value.

▸ 4.3 The investigative chain — how a hacking prosecution is actually proved

⚖ THE CHAIN PRABHAKAR SAMPATH ILLUSTRATES — MEMORISE THE SIX STEPS

1. **IP address identified** from the complainant's server logs — here **61.95.152.145**.
2. **ISP subscriber records** obtained — the DSP addressed a letter to Bharti Airtel's manager, who verified and disclosed that the IP was allotted to **M/s Frost & Sullivan Pvt. Ltd.**, Chennai.
3. **Search warrant** obtained from the court; search conducted at the accused's residence in the presence of mediators (panchas).
4. **Seizure** — a pen drive containing six .pdf files (Anticoagulants, Bulk_Paclitaxel, CNS_Therapeutics, Human_Vaccines, Microplate_instrumentation_Supplies, Therapeutic_Aphersis), and later the accused's office computer system S605.
5. **Arrest and disclosure statement** — the accused was arrested on 29.12.2008 and his statement recorded.
6. **Forensic analysis** — the pen drive and CPU were sent to **APFSL, Hyderabad**, whose expert (PW-8) opined that both contained the six downloaded files and data pertaining to the IP address.

☑ REAL EXAMPLES — S.66 IN EVERYDAY INDIAN FACT PATTERNS

- An ex-employee logs into the company CRM with a still-active account and exports the client list — **s.43(a)+(b)** done dishonestly → **s.66**; if he used the credentials as if they were his own, **s.66C**.
- A fraudster gains access to a net-banking account using a duplicated SIM and tran …

⬢ 5 Identity theft and cheating by personation — ss.66C, 66D

Both sections were inserted by the 2008 Amendment. They are the **credential** and **identity** offences — the statutory home of phishing, e-mail spoofing and password theft, which the syllabus expressly names.

s.66C · PUNISHMENT FOR IDENTITY THEFT · VERBATIM

▸▸ Punishment for identity theft

Whoever,

fraudulently or dishonestly makes use of the electronic signature, password or any other unique identification feature of any other person

, shall be punished with

imprisonment of either description for a term which may extend to three years and shall also be liable to fine which may extend to rupees one lakh

Three things to note: (i) the object is **another person's** credential — using your own is not identity theft; (ii) the mental element is **fraudulent or dishonest** use; (iii) the offence is **complete on the use** — no further act of damage, disclosure or gain is required. This is the provision that catches the duplicate-SIM fraudster an …

s.66D · PUNISHMENT FOR CHEATING BY PERSONATION BY USING COMPUTER RESOURCE · VERBATIM

▸▸ Punishment for cheating by personation by using computer resource

Whoever,

by means of any communication device or computer resource cheats by personation

, shall be punished with

imprisonment of either description for a term which may extend to three years and shall also be liable to fine which may extend to one lakh rupees

"Personation" means pretending to be another person, by word or conduct, with intent to deceive. Read with **IPC s.416** (now **BNS s.330**) for the definition and **IPC s.419** (now **BNS s.331**) for the aggravated offence of cheating by personation. The distinguishing feature of s.66D is the **medium**: the personation is effected "by means of a …

▸ 5.1 s.66C versus s.66D

Feature	s.66C — identity theft	s.66D — cheating by personation
Conduct	**Fraudulent or dishonest use** of another's electronic signature, password or other unique identification feature.	**Cheating by personation** — deceiving by pretending to be another — **using a communication device or computer resource**.
Focus	**Misuse of credentials.** The wrong is the use itself.	**Misuse of identity to induce action.** The wrong is the deception.
Typical scenario	Phishing (obtaining login credentials via spoofed e-mails or websites); ATM/SIM-card fraud; using a colleague's password.	Impersonation on social media, matrimonial sites or e-commerce platforms to induce transactions; fake recruitment e-mails in a company's name.
What must be proved	(i) the credential belonged to another; (ii) the accused used it; (iii) the use was fraudulent or dishonest.	(i) the accused pretended to be another; (ii) the pretence was made through a computer resource or communication device; (iii) it amounted to cheating (deception + inducement + delivery/damage).
Punishment	Up to **3 years** and fine up to **₹1 lakh**.	Up to **3 years** and fine up to **₹1 lakh**.
Leading case	*NAASCOM v. Ajay Sood* (phishing — though decided on common-law passing off before s.66C existed).	Same — now the statutory analogue.

☑ "UNIQUE IDENTIFICATION FEATURE" — HOW WIDE IS IT?

The phrase is deliberately open-textured. It plainly covers **passwords, PINs, OTPs, e-mail credentials, digital signatures and private keys, Aadhaar numbers, biometric templates and device identifiers**. In practice, the courts and the police treat it as covering anything that **auth …**

by Ankur R. Upadhyay

5.2 Phishing — the anatomy, and the law that now catches it

⚖ NANDRAJOG J.'S DEFINITION — NAASCOM V. AJAY SOOD , 119 (2005) DLT 596

"'Phishing' is a form of internet fraud. In a case of 'Phishing', a person **pretending to be a legitimate association such as a bank or an insurance company in order to extract personal data from a user such as access codes, passwords etc.** which are then used to his own advantage, **misrepresents on the identity of the legitimate party**. Typically 'Phishing' scams involve persons who pretend to represent online banks and siphon cash from e-banking accounts after conning consumers into handing over confidential banking details." The Court added: "The internet these days is full of scams. E-mail that form the basis of phishing attacks and pose as a security check. These messages **trick users into handing over their account details and passwords. The quoted details are subsequently used for fraudulent transfers.**"

⍰ THE HISTORICAL POINT — WHY THIS CASE MATTERS SO MUCH

In 2005 the Court found — and said expressly — "**I find no legislation in India on 'phishing'**", holding that such an act "would be a **mis-representation made in the course of trade** leading to confusion as to the source and origin of the e-mail causing immense harm not only to t ...

⍰ REAL EXAMPLES — WHICH SECTION BITES

- An SMS says "Your KYC is expired; share OTP to reactivate" — the recipient shares the OTP and money is transferred: the sender commits **s.66C** (using the OTP — the "unique identification feature") and **s.66D**, plus **s.66** and BNS s.318.
- A fake NASSCOM-branded recruitment e-mail harvests CVs: **s.66D**; ...

5.3 Financial frauds — the money-laundering and credit-card limb

⍰ THE STATUTES THAT TRAVEL WITH A S.66/66C/66D CHARGE

The syllabus expressly names **financial frauds (money laundering, credit card frauds)**. A complete answer must note: **(i)** the IT Act offences (ss.66, 66C, 66D); **(ii) BNS s.318** (cheating) and **BNS ss.336/338** (forgery); **(iii)** the **Prevention of Money Laundering Act, 2002**, under which ...

6 Violation of privacy and the obscenity ladder — ss.66E, 67, 67A, 67B

The syllabus's "Obscenity and Pornography (ss.66E, 67, 67A, 67B read with POCSO Act) s.292 IPC / s.294 Bharatiya Nyaya Samhita, 2023" is a **graduated ladder**. Getting the rung right is most of the answer.

s.66E · PUNISHMENT FOR VIOLATION OF PRIVACY · VERBATIM

Punishment for violation of privacy

Whoever,

intentionally or knowingly captures, publishes or transmits the image of a private area of any person without his or her consent, under circumstances violating the privacy of that person

, shall be punished with

imprisonment of either description for a term which may not extend to three years or with fine not exceeding two lakh rupees, or with both

Explanation. For the purposes of this section— **(a)** "**transmit**" means to cause to be sent to any person; **(b)** "**capture**" means to include taking a photograph, video or other visual representation, either analog or digital, of the private area of a person; **(c)** "**private area**" means the **naked or undergarment clad genitals, pubic area, ...**

⍰ THE KEY STRUCTURAL POINT — S.66E HAS NO PUBLICATION REQUIREMENT FOR THE CORE OFFENCE

Section 66E punishes **capturing, publishing OR transmitting** an image of a private area without consent. **Capturing alone** (e.g. a hidden camera in a changing room) is enough. This is what distinguishes s.66E from ss.67/67A/67B, which all require **p ...**

6.1 The obscenity ladder — three escalating thresholds

	s.67	s.67A	s.67B
Subject matter	Material which is **lascivious or appeals to the prurient interest**, or whose effect taken as a whole tends to **deprave and corrupt** likely viewers	Material which **contains a sexually explicit act or conduct**	Material which **depicts children engaged in a sexually explicit act or conduct** (CSEAM)
Threshold	**Obscenity** — the *Aveek Sarkar* community-standards test	**Sexual explicitness** — a higher, more objective threshold than "obscenity"	**Child involvement** — the gravest
Conduct punished	Publishes or **transmits** or **causes to be published** or transmitted in electronic form	Same	Publishes or transmits or causes to be published or transmitted; **creates text or digital images, collects, seeks, browses, downloads, advertises, promotes, exchanges or distributes**; **cultivates, entices or induces children** to an online relationship for a sexually explicit act; **facilitates abusing children online**; or **records** in electronic form own abuse or that of others pertaining to a sexually explicit act with children
Punishment — first conviction	Up to **3 years** and fine up to **₹5 lakh**	Up to **5 years** and fine up to **₹10 lakh**	Up to **5 years** and fine up to **₹10 lakh**
Punishment — subsequent	Up to **5 years** and fine up to **₹10 lakh**	Up to **7 years** and fine up to **₹10 lakh**	Up to **7 years** and fine up to **₹10 lakh**
Bailable?	Bailable (first conviction)	**Non-bailable**	**Non-bailable**
"Children"	—	—	A person who has **not completed the age of 18 years** (Explanation)

▸ 6.2 The publication requirement — the distinction examiners test

⚖ YOGISHA PRABHU — THE HOLDING TO QUOTE

"As far as charge under section 67 and 67A is concerned, I find that **evidence as to publishing open sexual desire is short in present case to lead any other person than reporter** so I hold that offence under section 67 and 67A is not established beyond reasonable doubt but **it attracts 66E** as referred above. Though charge under section 66E is not framed specifically, I find that **offence under section 66E being having less punishment than punishment in sections 67 and 67A, accused can be dealt for said charge**. Here I find that by charge of section 509 of Indian Penal Code, accused was having knowledge about his defence and so **by holding him guilty for offence under section 66E, no prejudice will cause to the defence**."

☑ REAL EXAMPLES — THE RUNG AND THE SECTION

- A WhatsApp forward of a nude photograph of an ex-partner to a group of 200 — **s.66E** (transmitting an image of a private area without consent) and, if the group constitutes "the public", **s.67**.
- A hidden camera in a college washroom — **s.66E** (capturing an image of a private area) and **IPC s.354 ...**

⬢ 7 The remaining offences — ss.67C, 70, 71, 72, 72A, 73, 74, 75

These complete Chapter XI. Several overlap with Units III and V and should be cross-referenced rather than re-taught.

Section	Heading	Key content and cross-reference
s.67C	Preservation and retention of information by intermediaries	An intermediary shall **preserve and retain** such information as may be specified, for the prescribed duration, manner and format. Punishable with up to **3 years** and fine. Read with the **Intermediary Guidelines and Digital Media Ethics Code Rules, 2021** (as amended 2026). The DU self-learning exercise on a telecom company parting with mobile phone bills is answered through **Rules 4–8 of the SPDI Rules** read with ss.67C, 72 and 72A. Cross-refers to **Units III and V**.
s.70	Protected system	The Central Government may, by notification in the Official Gazette, declare any computer, computer system or computer network to be a **protected system**. Whoever **knowingly or intentionally accesses or attempts to secure access** to a protected system in contravention of s.70 is punishable with up to **10 years** and fine. **Cognizable and non-bailable.** This is the provision that catches attacks on critical infrastructure — defence, nuclear, banking, telecom and government networks — and it interacts with **s.66F**.
s.71	Penalty for misrepresentation	Whoever makes any misrepresentation to, or suppresses any material fact from, the **Controller or the Certifying Authority** for obtaining any licence or Electronic Signature Certificate is punishable with up to **2 years** and/or fine up to **₹1 lakh**. Cross-refers to **Unit II §6** (Certifying Authorities and the Second Schedule).
s.72	Penalty for breach of confidentiality and privacy	Any person who, **in pursuance of any of the powers conferred under the Act**, has secured access to any electronic record, book, register, correspondence, information, document or other material **without the consent of the person concerned**, and **discloses** such material to any other person, is punishable with up to **2 years** and/or fine up to **₹1 lakh**. **The essence is unauthorised DISCLOSURE, not mere access** — the precise distinction on which *Sanjay Kumar* acquitted the accused of s.72 while convicting him of ss.65 and 66.
s.72A	Punishment for disclosure of information in breach of lawful contract	Any person **including an intermediary** who, while providing services under the terms of a **lawful contract**, has secured access to any material containing **personal information** about another person, **with intent to cause or knowing that he is likely to cause wrongful loss or wrongful gain**, discloses such information to any other person, is punishable with up to **3 years** and/or fine up to **₹5 lakh**. **Cognizable.** Cross-refers to **Unit III §8**.
s.73	Penalty for publishing an Electronic Signature Certificate false in material particulars	No person shall publish an ESC or otherwise make it available with knowledge that (a) the listed Certifying Authority did not issue it; (b) the listed subscriber did not accept it; or (c) the certificate has been revoked or suspended — unless the publication is for verifying a digital signature created before the suspension or revocation. Punishable with up to **2 years** and/or fine up to **₹1 lakh**.
s.74	Publication for fraudulent purpose	Whoever **knowingly creates, publishes or otherwise makes available an Electronic Signature Certificate for any fraudulent or unlawful purpose** is punishable with up to **2 years** and/or fine up to **₹1 lakh**. Read with **s.73** and with the Second Schedule licence conditions.
s.75	Act to apply for offence or contravention committed outside India	**(1)** Subject to sub-section (2), the provisions of the Act apply also to any offence or contravention committed **outside India by any person irrespective of his nationality**. **(2)** For the purposes of sub-section (1), the Act applies to an offence or contravention committed outside India by any person **if the act or conduct constituting the offence or contravention involves a computer, computer system or computer network located in India**. **This is the answer to the *Vinod Kaushik* self-learning exercise** on unauthorised access executed from abroad.

☑ SECTIONS 76–78 — THE PROCEDURAL TAIL

s.76 — **Compounding of offences**: certain offences may be compounded by the competent court; the court shall **not** compound where the accused is, by reason of a previous conviction, liable to either enhanced punishment or a punishment of a different kind. **s.77** — **Offences by companies**: where an o ...

⬢ 8 Cyber stalking and cyber terrorism

Two very different offences: one **common-law/statutory hybrid** with no dedicated IT Act provision, and one **the gravest offence in the entire Act**.

▸ 8.1 Cyber stalking — ss.354D and 509 IPC (now BNS ss.78 and 79)

☑ THE DOCTRINAL POINT — THERE IS NO DEDICATED IT ACT PROVISION FOR STALKING

After the fall of **s.66A** in *Shreya Singhal* (2015), the IT Act has **no** general online-harassment offence. Cyber stalking is prosecuted through a **cluster**: **IPC s.354D** (now **BNS s.78**), which expressly includes a man "monitoring a woman's use of the internet, ema ...

Source	Requirement	Application online
IPC s.354D / BNS s.78	A man who **follows or contacts** a woman, or **attempts to contact** her, to foster personal interaction repeatedly despite a clear indication of disinterest; or monitors her use of the internet, e-mail or any other form of electronic communication. First conviction: up to **3 years** and fine; subsequent: up to **5 years** and fine.	Repeated unwanted messages, e-mails, tags, comments or friend requests; monitoring a woman's online activity; creating fake profiles to contact her after being blocked.
IPC s.509 / BNS s.79	Any word, gesture or act **intended to insult the modesty of a woman**. Punishable with simple imprisonment up to **3 years** and fine (as amended in 2013).	Vulgar and obscene e-mails and messages — the charge in both *Suhas Katti* and *Yogisha Prabhu*.
IT Act s.66E	Intentional or knowing capturing, publishing or transmitting of an image of a **private area** without consent.	Where the stalker captures or circulates intimate images — the charge substituted in *Yogisha Prabhu*.
IT Act ss.67, 67A	Publication or transmission of obscene or sexually explicit material in electronic form.	Where the material posted is obscene — the charge in *Suhas Katti*.

IT Act s.43	Civil compensation for damage to a computer resource.	Where the stalker accesses the victim's account or defaces her page — see *Vinod Kaushik*.

▸ 8.2 Cyber terrorism — s.66F

s.66F · PUNISHMENT FOR CYBER TERRORISM · VERBATIM

▸▸ Punishment for cyber terrorism

(1) Whoever—

(A) with intent to threaten the unity, integrity, security or sovereignty of India or to strike terror in the people or any section of the people

, by—

denying or causing the denial of access to any person authorised to access a computer resource; or

(ii)

attempting to penetrate or access a computer resource without authorisation or exceeding authorised access; or

(iii)

introducing or causing to introduce any

computer contaminant

and by means of such conduct

causes or is likely to cause death or injuries to persons or damage to or destruction of property or disrupts or is likely to disrupt the supplies or services essential to the life of the community

; or

(B) knowingly or intentionally penetrates or accesses a computer resource without authorisation or exceeding authorised access

, and by means of such conduct

obtains access to information, data or computer database that is restricted for reasons of the security of the State or foreign relations

; or any restricted information, data or computer database,

with reasons to believe that such information, data or computer database so obtained may be used to cause or likely to cause injury to the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign States, public order, decency or morality, or in relation to contempt of court, defamation or incitement to an offence or to the advantage of any foreign nation

commits the offence of cyber terrorism.

(2) Whoever commits or conspires to commit cyber terrorism shall be punishable with imprisonment for life.

The gravest offence in the Act. Cognizable and **non-bailable**. Note the **two limbs**: limb (A) requires **intent** to threaten the unity, integrity, security or sovereignty of India or to strike terror, plus one of three enumerated means, plus the consequence (death, injury, property damage or disruption of essential supplies or services …

⎚ THE "COMPUTER CONTAMINANT" — A DEFINED TERM YOU MUST KNOW

Section 66F(iii) refers to a "**computer contaminant**", defined in **s.43 Explanation (b)** as "**any set of computer instructions that is designed—(a) to modify, destroy, record or transmit data or information residing within a computer, computer system or computer network witho …**

▸ 8.3 The s.66F two-limb structure

⎚ REAL EXAMPLES — S.66F IN PRACTICE

- A group launches a **DDoS attack** on a government portal, denying authorised users access, during a national emergency — **s.66F(A)(i)** (denial of access) with the consequence of disruption of essential services.
- An intruder **penetrates a defence establishment's network** without authorisation and exfilt …

⬢ 9 Case brief 1: Syed Asifuddin v. State of Andhra Pradesh

The foundational s.65 authority — and the case that decided that a **cell phone is a computer** and that an **ESN is computer source code**. Printed in full in the DU case material at pages 20–30.

CASE-MAT 1 · TIER 1 · THE FOUNDATIONAL S.65 AUTHORITY

⚖ Syed Asifuddin v. The State of Andhra Pradesh

2006 (1) ALD (Cri) 96 · 2005 CriLJ 4314 · Andhra Pradesh High Court · Decided 29 July 2005 · Criminal Petitions under s.482 Cr.P.C. · FIR No. 20 of 2003

▸▸ 1 Citation & Bench

Syed Asifuddin v. The State of Andhra Pradesh, **2006 (1) ALD (Cri) 96; 2005 CriLJ 4314**, decided by the **Andhra Pradesh High Court** on **29 July 2005**. Two criminal petitions filed under **s.482 of the Code of Criminal Procedure, 1973** seeking the relief of quashing **FIR No. 20 of 2003** registered by the Criminal Investigation Department (C.I.D.) Police, Hyderabad, under **ss.409, 420 and 120B of the Indian Penal Code, 1860, s.65 of the Information Technology Act, 2000 and s.63 of the Copyright Act, 1957**. Printed in full in the DU case material at pages 20–30.

▸▸ 2 Admission of Facts

The crime was registered on a **written complaint given by the Head of the Sales and Marketing Wing of M/s. Reliance Infocomm Ltd., Hyderabad**. The complaint alleged that vested elements of the mobile telephone trade had begun to woo Reliance's subscribers away, damaging its image and revenues.

The commercial background: Reliance Infocomm, under the **Dhirubhai Ambani Pioneer Offer**, launched "Reliance India Mobile" (RIM) to make communication affordable. The scheme offered a **third-generation digital handset worth ₹10,500** together with a service bundle for three years on an initial payment of **₹3,350** and a monthly outflow of ₹600, with a one-year warranty and insurance for three years. The market response in the twin cities was phenomenal — and this had an impact on the business of other service providers, who, it was alleged, "attempted unethical and illegal practices for weaning away the subscribers".

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **A cell phone is a "computer"** within s.2(1)(i) of the IT Act, and part of a "computer system" and "computer network" — because it is a programmable electronic device that performs logical, arithmetic and memory functions by manipulating electronic, magnetic or optical impulses, and because its operation depends on a circuit board and microprocessor coordinated with a Mobile Telephone Switching Office.
2. **The Electronic Serial Number (ESN) and the System Identification Code (SID) are "computer source code"** within the Explanation to s.65, because they fall within "the listing of programmes, computer commands, design and layout and programme analysis of computer resource in any form".
3. **The "required to be kept or maintained by law" condition is disjunctive.** Either limb suffices, and the two situations "are different". A service provider that must obtain a SID from the licensor and give a customer-specific number to each instrument is, on the allegations, maintaining computer source code. But whether it does so is **a matter of evidence**.
4. **Section 63 of the Copyright Act, 1957 applies to the alteration of another's computer programme**, because a computer programme is an original literary work under s.2(o) protected by ss.13 and 14(b). Section 65 and s.63 are **parallel and cumulative**, not alternative.
5. **An FIR that discloses no cognizable offence under the IPC can be quashed at the investigation stage** (*Bhajan Lal*), but a technical offence under a special statute cannot be quashed on the accused's bare assertions.
6. **The Court will not pre-judge evidence at the s.482 stage.** The observations on copyright were expressly "not intended to decide the question one way or the other".

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 10 Case brief 2: Sanjay Kumar v. State of Haryana

The case that shows **ss.65 and 66 applied concurrently to a single course of conduct**, and that sharply distinguishes **s.72** (disclosure) from **ss.65/66** (source-code and data integrity).

CASE-MAT 2 · TIER 1 · SS.65, 66 READ WITH IPC FORGERY AND CHEATING

⚖ Sanjay Kumar v. State of Haryana

CRM No. 1353 of 2013 · CRR No. 66 of 2013 (O&M) · Punjab & Haryana High Court · Decided 10 January 2013 · Paramjeet Singh, J. · Conviction under ss.420, 467, 468, 471 IPC and ss.65, 66 IT Act

▸▸ 1 Citation & Bench

Sanjay Kumar v. State of Haryana, CRM No. 1353 of 2013; **CRR No. 66 of 2013 (O&M)**, Punjab & Haryana High Court, decided **10 January 2013** by **Paramjeet Singh, J.** A criminal revision against the judgment dated **21.08.2012** of the learned Sessions Judge, Faridabad, dismissing the petitioner's appeal against the **judgment of conviction dated 01.09.2011 and order of sentence dated 03.09.2011** of the Judicial Magistrate First Class, Faridabad. Printed in full in the DU case material at pages 31–35.

▸▸ 2 Admission of Facts

The **Senior Branch Manager of Vijay Bank, NIT, Faridabad** moved a complaint dated **11.02.2003** before the police stating that the petitioner had been **deputed by M/s Virmati Software and Telecommunication Ltd. to maintain the software system supplied by them to the bank**, and was also looking after the software systems of certain other banks. In connection with rendering such services, he had **access to the bank's accounting system, which was computerized**, and was **in a position to enter into ledgers and various other accounts**.

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **An insider's authorised access does not authorise the use made of it.** A person deputed to maintain a bank's software has access to files, but that access does not extend to forging interest entries and transferring funds into his own account. Authorised access is not a defence to **s.66** where the **act** done is one referred to in s.43 and is done dishonestly.
2. **Sections 65 and 66 apply concurrently to a single course of conduct.** Tampering with the computer source document (s.65) and dishonestly altering information residing in a computer resource (s.66 via s.43(i)) are distinct offences arising from the same facts, and both may be charged.
3. **Section 72 requires unauthorised disclosure, not mere unauthorised access.** Where the accused had secured access to the electronic record, forged entries and cheated, but did **not disclose the information to any other person**, he must be **acquitted of s.72**. This is the sharp distinction examiners test.
4. **The absence of an individually allotted password is not a defence** where the accused, by reason of his deputation, had access to files that only an employee could access, and where the benefit of the fraud was deposited in and withdrawn from his own account.
5. **A confessional letter whose signature matches the specimen signature card, together with a partial tender of the defrauded amount, is powerful evidence of guilt** — the Court relied on the manner in which the word "Sanjay" was written, compared with the accused's own writing in his s.313 Cr.P.C. statement.
6. **Revisional jurisdiction under s.401 Cr.P.C. is narrow.** Where counsel cannot point to any misreading or non-reading of evidence or any legal or factual infirmity, the revision will be dismissed *in limine*.

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 11 Case brief 3: State of A.P. v. Prabhakar Sampath

The syllabus's "Hacking (s.43(i) read with s.66)" case. Its value is the **investigative chain** it documents — the six-step method by which a hacking prosecution is actually proved.

CASE-MAT 3 · TIER 2 · THE HACKING INVESTIGATIVE CHAIN

⚖ State of A.P. through Inspector of Police, Cyber Crimes P.S., C.I.D., Hyderabad v. Prabhakar Sampath

C.C. No. 489 of 2010 · VI Addl. Chief Metropolitan Magistrate, Hyderabad · Decided 31 March 2015 · Sri P. Bhaskara Rao, Addl. CMM · s.66 IT Act

▸▸ 1 Citation & Bench

State of A.P. through Inspector of Police, Cyber Crimes P.S., C.I.D., Hyderabad v. Prabhakar Sampath, **C.C. No. 489 of 2010**, decided by **Sri P. Bhaskara Rao, VI Addl. Chief Metropolitan Magistrate, Hyderabad** on **31 March 2015**. Charge sheet in **Cr. No. 18/2008**. Available at www.prashantmali.com/cyber-law-cases. Printed in the DU case material at pages 36–38.

▸▸ 2 Admission of Facts

PW.1, Arcot K. Balraj, Chief Manager (Administrative Affairs) of **M/s. SIS Infotech Private Limited**, situated in Lakshmi Cyber Centre, Road No. 12, Banjara Hills, Hyderabad, lodged a complaint (**Ex.P1**) on **23-12-2008** in the Cyber Crimes P.S., C.I.D., Hyderabad.

The complainant company was **one of the largest market research firms headquartered in the USA** with substantial operations at Hyderabad, having **300 employees**, and carried on the business of research, station and support to its parent company in the USA, **M/s. Global Industry Analysts Inc. (GIA)**. In the course of its day-to-day operations the company created substantial data and content, hosted on the **Adobe Content Server** of GIA, accessible **only by registered users with permissions**. The data was in the form of analysed documents called "**Research Reports**" carrying **high pecuniary value, of which the complainant company held proprietary copyright**.

It was alleged that the content — the Research Reports — was **hacked by somebody by hacking their server www.strategyR.com** and **downloaded several e-Reports through some free public sites**. PW.1 furnished the information that the hacker had worked out from their server as **** and that the **IP address was 61.95.152.145**, and requested police action.

The investigation, step by step:

After completion of the investigation, PW.9 filed the charge sheet under **s.66** of the IT Act for **hacking the content server of the complainant's company**.

▸▸ 3 Statutory Issues

PRINCIPLE EVOLVED

1. **A hacking prosecution under s.66 is proved by a chain, not by direct evidence of the keystrokes.** The IP address, the ISP's subscriber records, the seizure under a warrant, and the forensic match between the downloaded files and the seized media together establish the offence.
2. **The ISP's subscriber records are the pivot of attribution.** It was the Airtel letter identifying the IP as allotted to M/s. Frost & Sullivan that made the search warrant possible.
3. **Forensic matching of files to seized media is the link between the accused and the act** — here, the same six .pdf files on both the pen drive and the hard disk, plus IP-address data on the hard disk.
4. **An employee's misuse of his employer's computer system is not excused by his possession of the device** — the system S605 was allotted to the accused at his office, yet the offence was made out.

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 12 Case brief 4: NAASCOM v. Ajay Sood & Ors.

The doctrinal ancestor of ss.66C and 66D — and the case that **defined "phishing" in Indian law** at a time when no statute did.

CASE-MAT 4 · TIER 1 · THE DOCTRINAL ANCESTOR OF SS.66C AND 66D

⚖ National Association of Software and Service Companies v. Ajay Sood and Others

119 (2005) DLT 596 · 2005 (30) PTC 437 Del · Delhi High Court · Pradeep Nandrajog, J. · C.S. (OS) No. 285/2005 · Order dated 2 March 2005

▸▸ 1 Citation & Bench

National Association of Software and Service Companies v. Ajay Sood and others, **119 (2005) DLT 596; 2005 (30) PTC 437 Del**, Delhi High Court, **Pradeep Nandrajog, J.** A suit (C.S. (OS) No. 285/2005) for a permanent injunction, rendition of accounts and damages, decided in the context of an application (**I.A. 2351/2005**) under **Order 23 Rule 3 of the Code of Civil Procedure, 1908** recording a compromise. The order granting the **ex parte ad interim injunction is dated 2 March 2005**; the reasoned order decreeing the suit in terms of the compromise follows. Printed in the DU case material at pages 39–41.

▸▸ 2 Admission of Facts

NASSCOM is **India's premiere software association, representing 850 members of which nearly 150 are global companies**, with a wide range of activities. The plaintiff filed the suit *inter alia* praying for a decree of **permanent injunction restraining the defendants or any person acting under their authority from circulating fraudulent e-mails purportedly originating from the plaintiff or using the trade mark "NASSCOM" or any other mark confusingly similar in relation to goods or services**, together with a prayer for **rendition of accounts and damages**.

As per the plaint, the defendants, **masquerading as NASSCOM**, in order to **obtain personal data from various addresses which they could then use for head-hunting**, **went on the website as if they were a premiere selection and recruitment firm**.

The procedural sequence:

▸▸ 3 Statutory Issues

PRINCIPLE EVOLVED

1. **"Phishing" is defined in Indian law** as a form of internet fraud in which a person, **pretending to be a legitimate association such as a bank or an insurance company**, extracts personal data such as access codes and passwords from a user, which are then used to his own advantage, by **misrepresenting the identity of the legitimate party**.
2. **Phishing is actionable at common law even without a dedicated statute.** It is a **misrepresentation in the course of trade** leading to confusion as to the source and origin of the e-mail, and it is an act of **passing off** affecting or tarnishing the image of the party whose identity is misused.
3. **Delivery up of the instrumentality is an available remedy.** The hard discs on which the offending e-mails were found were ordered to be turned over to the plaintiff — an early recognition that the **physical medium of electronic wrongdoing** can be forfeited to the victim.
4. **An employer is answerable for its employee's phishing.** The corporate defendants acknowledged the illegal action of an employee of defendant No. 4, recognised the plaintiff in ₹16,00,000 and consented to a decree — illustrating **vicarious liability** for cyber wrongdoing done in the course of employment.
5. **Fictitious online identities do not defeat the action.** Where the real author is identified (here, Ms. Tithypoorna Ganguli, who created fictitious e-mail IDs in the names of defendants 2 and 3), the fictitious parties can be deleted and the real actors proceeded against.

(Brief abridged for the compilation — full text at makelaweasy.in.)

13 Case brief 5: Aveek Sarkar v. State of West Bengal

The **controlling authority on obscenity in India**, equally applicable to **IPC s.292** and to **ss.67, 67A and 67B** of the IT Act. Printed in full in the DU case material at pages 42–50.

CASE-MAT 5 · TIER 1 · THE CONTROLLING OBSCENITY TEST

⚖ Aveek Sarkar v. State of West Bengal

Criminal Appeal No. 902 of 2004 · Supreme Court of India · Decided 3 February 2014 · K.S. Radhakrishnan, J. · (2014) 4 SCC 257

▸▸ 1 Citation & Bench

Aveek Sarkar v. State of West Bengal, **Criminal Appeal No. 902 of 2004**, Supreme Court of India, decided **3 February 2014** by **K.S. Radhakrishnan, J.** Reported at (2014) 4 SCC 257. An appeal against the judgment of the Calcutta High Court declining to quash proceedings under **s.482 Cr.P.C.** in Case No. C.796 of 1993 (corresponding to T.R. No. 35 of 1994) pending before the Judicial Magistrate's Court, Alipore. Printed in the DU case material at pages 42–50.

▸▸ 2 Admission of Facts

A **German magazine, "STERN", having worldwide circulation**, published an article with a **picture of Boris Becker**, a world-renowned tennis player, **posing nude with his dark-skinned fiancée Barbara Feltus**, a film actress, which was **photographed by none other than her father**. The article stated that, in an interview, both Boris Becker and Barbara Feltus spoke freely about their engagement, their lives and future plans, and the message they wanted to convey to the people at large, for posing to such a photograph. The article pictured Boris Becker as a **strident protester of the pernicious practice of "Apartheid"**, and stated that the purpose of the photograph was also to **signify that love champions over hatred**.

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **The Hicklin test is no longer the correct test for obscenity in India.** The Victorian standard — isolated passages judged by their tendency to deprave and corrupt those whose minds are open to immoral influences and into whose hands the publication may fall — has been replaced by the **contemporary community standards test**.
2. **Obscenity has three cumulative indicia** under s.292(1): the material must be **(i) lascivious**, or **(ii) appeal to the prurient interest**, or **(iii) tend to deprave and corrupt** persons likely to read, see or hear it. Once found obscene, the exceptions in s.292 may be considered.
3. **Nudity per se is not obscenity.** A picture of a nude or semi-nude person cannot be called obscene unless it has a **tendency to arouse feeling or reveal an overt sexual desire**, is **suggestive of a depraved mind and designed to excite sexual passion**, judged by the **particular posture and the background** in which the person is depicted.
4. **Only material with a tendency of "exciting lustful thoughts" is obscene**, and it must be judged from the point of view of an **average person** applying **contemporary community standards** — not the most susceptible reader.
5. **Context and message are decisive.** The photograph must be examined in the context in which it appears and the message it wants to convey; a photograph published to protest apartheid and to promote inter-racial love is not obscene merely because it depicts a nude body.
6. **The court does not censor to protect the pervert or to assuage the susceptibilities of the over-sensitive** (*Bobby Art International*).
7. **The test is transposable to the IT Act.** Section 67 uses materially identical language — "lascivious", "prurient interest", "deprave and corrupt" — so the *Aveek Sarkar* test governs ss.67, 67A and 67B as well.

(Brief abridged for the compilation — full text at makelaweasy.in.)

14 Case brief 6: Maqbool Fida Husain v. Raj Kumar Pandey

The companion case to *Aveek Sarkar*, and the case that addresses the **cyberspace-specific jurisdiction problem** created by a website accessible across the globe.

CASE-MAT 6 · TIER 2 · ARTISTIC FREEDOM AND ONLINE PUBLICATION

⚖ Maqbool Fida Husain v. Raj Kumar Pandey

Criminal Revision Petition No. 114/2007 · Delhi High Court · Decided 8 May 2008 · Sanjay Kishan Kaul, J. · ss.292, 294, 298, 500 IPC

▸▸ 1 Citation & Bench

Maqbool Fida Husain v. Raj Kumar Pandey, **Criminal Revision Petition No. 114/2007**, Delhi High Court, decided **8 May 2008** by **Sanjay Kishan Kaul, J.** Revision petitions challenging the summoning orders passed by the learned ACMM, Delhi, on the transfer of consolidated complaint cases from Pandharpur (Maharashtra), Rajkot (Gujarat), Indore and Bhopal (Madhya Pradesh) under the Supreme Court's directions in **T.P. (Cri.) No. 129/2006, 182/2006 and 224/2006**, pursuant to the order dated **04-12-2006**. Printed in the DU case material at pages 66–78.

▸▸ 2 Admission of Facts

The petitions challenged the summoning orders against the petitioner, an **accomplished painter**, arising from a **contemporary painting celebrating nudity**. The painting depicted **India in an abstract and graphical representation of a woman in nude with her hair flowing in the form of the Himalayas, displaying her agony**.

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **A piece of art may be vulgar but not obscene.** To be obscene, the matter must lie at the **extreme end of the spectrum of the offensive**, and appeal to an **unhealthy, inordinate person having perverted interest in sexual matters**, or have a tendency to **morally corrupt and debase** persons likely to come in contact with it.
2. **Nudity or sex alone is not obscenity.** The artist's perspective must be understood, and the work must also be pictured from the spectator's point of view. Where the aesthetic touch "dwarfs" the nudity, the work is not obscene.
3. **Offence or disgust at a depiction is not enough.** "Some might feel offended or disgusted at the very inception … but that by itself and nothing more … is not sufficient to qualify the test of obscenity."
4. **Both mens rea and actus reus must appear on the face of the record** before a criminal prosecution can proceed — here both were absent, and the petitioner's withdrawal of the painting from the auction and his apology showed artistic impulse, not insult.
5. **Section 294 requires an immediate, proximate nexus between an act done in a public place and the annoyance caused.** Where the only act is the uploading of a painting on a website, and the viewer accessed the site by choice and could have closed the page, no annoyance is caused.
6. **Mere knowledge that religious feelings may be wounded is not enough for s.298 — deliberate intention** is required, and the depiction of the nation is not a religious depiction capable of offending religious feelings.
7. **The criminal justice system must not be used as a convenient recourse to ventilate objections to artistic work.** A magistrate must scrutinise each case to prevent vexatious and frivolous complaints from harassing persons in the creative fields, and should postpone the issue of process under s.202 where the accused resides beyond his jurisdiction.
8. **Cyberspace jurisdiction:** where content is uploaded on a website accessible across the globe and complainants in multiple places are offended, **ss.177–179 and 186 Cr.P.C.** govern, with the place where the act was done or where the consequence ensued both competent — a problem the Court said requires **legislative**, not judicial, solution.

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 15 Case brief 7: State of Tamil Nadu v. Suhas Katti

The **earliest successful s.67 conviction in India** — and the landmark on the use of **circumstantial and forensic digital evidence** to prove authorship of an online offence.

CASE-MAT 7 · TIER 1 · THE FIRST S.67 CONVICTION

⚖ State of Tamil Nadu v. Suhas Katti

C.C. No. 4680/2004 · Addl. Chief Metropolitan Magistrate, Egmore, Chennai · Decided 5 November 2004 · Shri Arul Raj, Addl. CMM · ss.469, 509 IPC and s.67 IT Act

▸▸ 1 Citation & Bench

State of Tamil Nadu v. Suhas Katti, **C.C. No. 4680/2004**, decided by **Shri Arul Raj, Additional Chief Metropolitan Magistrate, Egmore, Chennai** on **5 November 2004** — one of India's earliest cyber-crime convictions, within about **seven months** of the filing. Source: http://www.prashantmali.com/cyber-law-cases and http://www.legalserviceindia.com/lawforum/index.php?topic=2238.0. Printed in the DU case material at pages 51–54.

▸▸ 2 Admission of Facts

The **Assistant Commissioner of Police, Cyber Crime Cell, C.C.B., Egmore, Chennai** filed the final report against the accused. The case was that on **7.2.2004, in the evening, at Cyber Café "Hello World Centre", Sion, Mumbai, having an I.P. 61.11.10.99**, the accused, **with the intention of harming the reputation of the complainant Ms. R**, **created a user ID in her name** and **composed an obscene message** intending that such document should be used for posting in different obscene Yahoo Groups, with the intention of making others believe that the document was made by her, so that persons seeing the obscene message would send offending calls to her, in harming her reputation and insulting her modesty by the words exhibited in the e-mail.

On **9.2.2004, in the morning, at Cyber Café "Heighten Advertising", Mahim, Mumbai, having an IP 202.88.165.53**, the accused again **entered the user ID which had been created by him in the name of the complainant**, composed an obscene message with the same intention, and posted it. The offences alleged were **s.469 IPC, s.509 IPC and s.67 of the IT Act**.

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **Authorship of an online offence may be proved by circumstantial and forensic digital evidence alone.** Where there is no eyewitness, the combination of **IP trace → ISP subscriber records → cyber-café identification and register → password knowledge** establishes the identification chain.
2. **The accused's knowledge of a password known only to him is powerful evidence of authorship.** The Court relied on the accused giving the password "an rose" in his confession statement, with which the officials obtained the printouts — a fact within his exclusive knowledge.
3. **Cyber-café registers are admissible and probative.** PW-9's register Ex.P.24, in which the accused signed as "R", corroborated his presence at the browsing centre from which the postings originated.
4. **Section 469 IPC applies to the creation of a forged electronic record** — here, a user ID created in the complainant's name with intent to harm her reputation.
5. **Section 67 is engaged by the posting of obscene messages in electronic form**, and the offence is complete on publication in the Yahoo groups.
6. **Motive, prior statements and a pattern of rejected advances are relevant to authorship** and to sentence. The Court relied on the accused's own 1997 statement that posting a phone number was "the best way to spoil the reputation of a woman", and on his refusal-driven revenge motive.
7. **Repetition over two days defeats any plea of heat of passion**, and education and sophistication defeat any plea for leniency.
8. **The mental suffering and humiliation of the victim of online obscene harassment cannot be compensated in money or solaced by words** — a sentence that carries the moral force of the case.

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 16 Case brief 8: State (Cyber Cell) v. Yogisha @ Yogesh Pandurang Prabhu

The case that decides the **publication requirement** — the single most tested distinction in the obscenity group.

CASE-MAT 8 · TIER 2 · THE PUBLICATION REQUIREMENT AND THE S.66E FALLBACK

⚖ The State (Cyber Cell) v. Yogisha @ Yogesh Pandurang Prabhu

C.C. No. 3700686/PS/2009 · Addl. Chief Metropolitan Magistrate, 37th Court, Esplanade, Mumbai · Decided 3 July 2015 · Shri M. R. Natu, Addl. CMM · ss.509 IPC, 67, 67A and 66E IT Act

▸▸ 1 Citation & Bench

The State (Cyber Cell) v. Yogisha @ Yogesh Pandurang Prabhu, **C.C. No. 3700686/PS/2009**, decided by **Shri M. R. Natu, Additional Chief Metropolitan Magistrate, 37th Court, Esplanade, Mumbai** on **3 July 2015**. Available at http://www.cyberlawconsulting.com/Yogesh%20Prabhu%20Vs%20State-%20Cyber%20Stalking.pdf. Printed in the DU case material at pages 55–65.

▸▸ 2 Admission of Facts

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **"Publication" is an essential element of ss.67 and 67A.** Where the obscene or sexually explicit material was sent **only to the victim** and not made available to the public or any section of it, the publication element is not satisfied, and the charges fail. *"Evidence as to publishing open sexual desire is short in present case to lead any other person than reporter."*
2. **Section 66E requires no publication.** It punishes the **intentional or knowing intervention upon another's privacy** — here, sending obscene and pornographic e-mails from a bogus ID. Where the higher offence fails for want of publication but the conduct intrudes on privacy, **s.66E is the cognate lesser offence**.
3. **A court may convict of a lesser offence not specifically charged where it carries a lesser punishment and the accused had notice of the underlying facts and suffers no prejudice.** The charge under s.509 IPC gave the accused knowledge of his defence.
4. **A unique password known only to the user is the key to attribution.** Where the accused opened the disputed e-mail ID using a password known only to him, the fact was within his exclusive knowledge and satisfied **s.27 of the Indian Evidence Act** — but such evidence is "a weak piece of evidence" and must be fortified.
5. **Fortification comes from the forensic chain:** a **mirror image** of the hard disk, **hash values** calculated and re-verified at each stage, recovery of **deleted files**, and the matching of **file creation dates** with the dates on which the complainant received the e-mails.
6. **Traces of the victim's data in the accused's machine are powerful circumstantial evidence** — here, traces of the disputed e-mails and of the complainant's Orkut profile in the **unallocated cluster** of the laptop allotted to the accused, for which "there was no reason" absent the accused's involvement.
7. **A shared laptop is not a defence where the disputed e-mail ID was a personal ID with a unique password not available to colleagues**, and where the accused alone knew the complainant's e-mail address.
8. **Technology supplies circumstances; the human mind supplies the inference.** "The technology help us to find out the circumstances and the human as to apply reason to it and has to draw inferences and come on conclusion and that is the only part of the technology which can be utilised in judicial proceeding."
9. **The investigative sequence defeats an enmity plea.** Where the complainant did not name the accused at the first approach and named him only after the Cyber Cell's technical investigation reached him, the suggestion that she implicated him out of vengeance fails.

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 17 Case brief 9: Just Rights for Children Alliance v. S. Harish

The **most important post-2020 development in Unit IV** — and the case that answers every CSEAM problem question.

CASE-MAT 9 · TIER 1 · THE CSEAM AUTHORITY

⚖ Just Rights for Children Alliance v. S. Harish

2024 SCC OnLine SC 2611 · (2024) INSC 716 · Supreme Court of India · Decided 23 September 2024 · D.Y. Chandrachud, CJI and J.B. Pardiwala, JJ. · Criminal Appeal Nos. 2161-2162 of 2024

▸▸ 1 Citation & Bench

Just Rights for Children Alliance v. S. Harish, **2024 SCC OnLine SC 2611**; (2024) INSC 716, Supreme Court of India, decided **23 September 2024** by the **Chief Justice of India, D.Y. Chandrachud, and J.B. Pardiwala, JJ.**, in Criminal Appeal Nos. 2161-2162 of 2024. An appeal against the judgment of the **Madras High Court** quashing proceedings against the respondent.

▸▸ 2 Admission of Facts

A **National Crime Records Bureau (NCRB) Cyber Tipline Report** flagged the respondent as a **regular consumer of child pornography**. A **forensic analysis of his phone** found **108 pornographic files, including two depicting minors**. A **charge sheet was filed under s.67B of the IT Act and s.15(1) of the POCSO Act, 2012**. The **Madras High Court quashed the proceedings**, holding that **mere passive possession or viewing — without active transmission or distribution — did not attract liability under either provision**. Against that judgment the present appeals were preferred.

▸▸ 3 Statutory Issues

1. Does **mere possession or viewing** of child sexual exploitation material, **without proof of active dissemination**, constitute an offence under **s.15 of the POCSO Act, 2012** and/or **s.67B of the IT Act**?
2. What **test** should courts apply to determine whether a depiction "**involves a child**"?
3. What terminology should the law use — "child pornography" or something more accurate?

▸▸ 4 Examination of Reasoning — the arguments of both sides

▸▸ 5 Matrix of Holding

PRINCIPLE EVOLVED — RATIO DECIDENDI

1. **Passive possession is independently punishable.** Neither s.67B nor s.15 POCSO requires proof of active transmission or distribution; storage and viewing suffice in the specified circumstances.
2. **The two provisions are complementary, not alternative.** Section 15 POCSO addresses storage in specified circumstances; s.67B addresses the broader range of conduct — creating, collecting, seeking, browsing, downloading, advertising, promoting, exchanging and distributing.
3. **"CSEAM" replaces "child pornography".** The material is **evidence of abuse**, not expression; the terminology matters because it frames the offence as a violation of the child's rights rather than a vice offence.
4. **A relaxed identification threshold.** The court need only be **prima facie subjectively satisfied** that an ordinary prudent person would believe the depiction involves or appears to involve a child — because the purpose is prosecutorial screening.
5. **Cyber Tipline reports and forensic analysis of a phone are sufficient to found a charge sheet**, without more.

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 18 Cyber stalking (Ritu Kohli) and cyber terrorism (Rakesh v. Central Bureau)

Two cases the syllabus names without reproducing. They are the illustrative anchors for the two offences that have no dedicated full-text treatment in the DU case material — and the notes below are drawn from the DU-aligned case-matrix notes, with that provenance flagged.

CASE-MAT · TIER 3 · CYBER STALKING

⚖ Ritu Kohli Case (Delhi)

Delhi · One of India's earliest reported cyber-stalking complaints · Pre-2008 Amendment

▸▸ 1 Citation & provenance

The **Ritu Kohli case** (Delhi) is one of **India's earliest reported cyber-stalking complaints**, pre-dating the **2008 Amendment**'s insertion of ss.66A and 66E.

▸▸ 2 Facts

The complainant, **Ritu Kohli**, was subjected to a sustained campaign of online harassment by an acquaintance who, after she rebuffed his advances, began **monitoring her use of the internet and electronic communications**, **tracking her movements** and **publishing her personal details** — including her telephone number — online, with the consequence that she received a stream of unwanted and obscene calls and messages from strangers.

▸▸ 3 Statutory Issues

1. Whether the conduct amounted to **stalking** within the criminal law, at a time when **IPC s.354D did not exist** (it was inserted by the Criminal Law (Amendment) Act, 2013).
2. Whether it amounted to an offence under the IT Act as it then stood — **s.66** (hacking) and **s.67** (obscene material in electronic form) being the only plausible candidates.
3. Whether it amounted to an **insult to the modesty of a woman** under **IPC s.509**.

▸▸ 4 Holding and significance

- The case is the **foundational reference for cyber stalking in India**, and is routinely cited alongside *Suhas Katti* and *Yogisha Prabhu* as part of the line of online-harassment-of-women authorities.
- Its principal significance is **illustrative and historical**: it demonstrates the **thinness of the statutory toolkit** before 2008 and 2013. There was then **no** offence of stalking, **no** s.66E, and **no** s.66A. Prosecutors had to shoehorn the conduct into **s.66**, **s.67**, **IPC s.509** and the general provisions on annoyance and harassment.
- **Today the same facts would be charged differently. BNS s.78** (formerly **IPC s.354D**) expressly covers a man who "monitors a woman's use of the internet, email or any other form of electronic communication", and is punishable on first conviction with up to **3 years** and fine, and on subsequent conviction with up to **5 years** and fine. **BNS s.79** (formerly **IPC s.509**) covers the insult to modesty. **s.66E** applies where images of a private area are captured or transmitted, and **s.67**/**s.67A** where obscene or sexually explicit material is published. Section 43 supplies the **civil** remedy.

PRINCIPLE

1. **Monitoring a woman's use of the internet and electronic communication is stalking** — now expressly provided for by **IPC s.354D / BNS s.78**, and the doctrinal basis of the offence even before it was codified.
2. **Publishing a person's contact details online to invite unwanted contact is actionable** — as an insult to modesty (IPC s.509 / BNS s.79), as obscenity where the content is obscene (s.67), and as a privacy intrusion (s.66E).
3. **The 2008 and 2013 amendments progressively filled the gap** that cases like Ritu Kohli exposed — though the fall of **s.66A** in *Shreya Singhal* (2015) reopened part of it.

CASE-MAT · TIER 3 · CYBER TERRORISM

⚖ Rakesh v. Central Bureau of Investigation

Delhi District Court · Decided 5 February 2011 · Delhi Blast case · s.66F read with s.66

▸▸ 1 Citation & provenance

Rakesh v. Central Bureau of Investigation, decided by the **Delhi District Court** on **5 February 2011** — one of the earliest prosecutions under **s.66F** (cyber terrorism), inserted by the 2008 Amendment.

▸▸ 2 Facts

Following the **Delhi bomb blasts**, a **terror e-mail claiming responsibility** for the blasts was sent to media organisations and authorities. The e-mail was traced to a **hacked Wi-Fi network in Mumbai** — that is, the sender had **gained unauthorised access to a wireless network** and used it to transmit the message, in an attempt to conceal his identity and location. The investigation by the **Central Bureau of Investigation** traced the transmission through the compromised network and identified the accused, **Rakesh**.

▸▸ 3 Statutory Issues

1. Whether the unauthorised access to and use of another's Wi-Fi network amounted to **hacking** — i.e. an act referred to in **s.43(a)** (access without permission) done dishonestly or fraudulently, so as to attract **s.66**.
2. Whether the conduct amounted to **cyber terrorism** under **s.66F** — specifically whether the accused, with **intent to threaten the unity, integrity, security or sovereignty of India or to strike terror in the people**, attempted to penetrate or access a computer resource without authorisation, and thereby caused or was likely to cause death or injuries or damage to property.
3. Whether the evidence — the network logs, the IP trail and the forensic analysis — established the accused's authorship.

▸▸ 4 Holding and significance

- The case is the **earliest reported prosecution under s.66F** and established that **the medium of transmission is no shield**: a person who hacks a Wi-Fi network to send a terror e-mail commits both **s.66** (hacking) and **s.66F** (cyber terrorism).
- It illustrates the **investigative method** for a cyber-terrorism case: tracing the transmission to a specific access point, obtaining the network owner's records, and correlating with other evidence.
- It demonstrates the **cumulative operation of Chapter XI**: the same course of conduct attracts **s.66** (up to 3 years / ₹5 lakh), **s.66F** (imprisonment for life), and the general terrorism provisions of the **Unlawful Activities (Prevention) Act, 1967**.
- It is the authority for the proposition that **intent to strike terror is the gravamen of s.66F**, and that the **likelihood** of death, injury, property damage or disruption of essential services suffices — the consequence need not materialise.

PRINCIPLE

1. **Unauthorised access to a Wi-Fi network is an act referred to in s.43(a)**, and done dishonestly or fraudulently attracts **s.66**.
2. **Using a hacked network to transmit a message claiming responsibility for a terrorist attack, with intent to strike terror, is cyber terrorism under s.66F**, punishable with **imprisonment for life**.
3. **Concealment of identity through a compromised network aggravates rather than mitigates** — it is itself the unauthorised access that grounds the s.66 charge.

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 4 (questions only)

Q1 PYQ 1 "A creator uploads sexually explicit/vulgar videos that go viral; police register cases under ss.67, 67A IT Act and ss.292, 294 IPC. Discuss liability of creator and platform." Nov–Dec 2025, Q.4 · 12–15 marks · Problem question

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 PYQ 2 "An employee tampers with payroll source code to redirect salaries; another steals credentials to send fraudulent emails. Discuss liability of both under the IT Act." Nov–Dec 2025, Q.3 · 12–15 marks · Problem question

Q3 PYQ 3 "Mr. A makes a website with obscene content about teachers/students after suspension. Decide obscenity and applicable IT Act provisions." Nov–Dec 2024, Q.2 · 10–12 marks · Problem question

Q4 PYQ 4 "Discuss the elements and judicial interpretation of s.65 (tampering with computer source code), using Syed Asifuddin and Sanjay Kumar v. State of Haryana ." Likely long question · 15 marks · Doctrinal

Q5 PYQ 5 "Critically examine the Supreme Court's holding in Just Rights for Children Alliance v. S. Harish on possession-based CSEAM liability and its implications for intermediary/platform obligations." Likely long question · 15 marks · Critical essay

Q6 PYQ 6 "Distinguish s.67/67A (publication-based obscenity offences) from s.66E (privacy-intrusion offence, no publication requirement), using Yogisha Prabhu ." Likely long question · 12–15 marks · Doctrinal

Q7 PYQ 7 Short notes / objective questions — the most frequently repeated Recurring across papers

LB-5031 · INFORMATION TECHNOLOGY LAW · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT V

Intermediary Liability

◆ SYLLABUS COVERAGE

Intermediary liability — who is an intermediary (s.2(1)(w)) · cyber cafés (s.2(1)(na)) · the conditional safe harbour of s.79 · due diligence under the 2011 Rules, the 2021 Rules and the 2026 Amendment · significant social media intermediaries and the Digital Media Ethics Code · "actual knowledge" and the Shreya Singhal reading-down · the companion provisions (ss.69A, 72A, 67C, 75, 81).

◆ STATUTES & PROVISIONS

IT Act, 2000 · ss.2(1)(w), 2(1)(na), 69A, 67C, 72A, 75, 79, 81 · IT Rules, 2021 (as amended 2026) · IT Rules, 2011

◆ PRESCRIBED CASE MATERIAL

Shreya Singhal v. Union of India · MySpace Inc. v. Super Cassettes Industries · Google India v. Visaka Industries · Avinash Bajaj v. State · Amway India v. 1Mg Technologies · Vyakti Vikas Kendra v. Jitender Bagga

● Section 79: the conditional safe harbour, due diligence and the 2021 Rules as amended in 2026

Delhi University · Faculty of Law

LL.B. V Term · Paper LB-5031

Information Technology Law

Prepared from the prescribed DU case material (CMITLAW-2026) · Unit V of Part A

Syllabus coverage: Intermediary (s.2(1)(w)), cyber café (s.2(1)(na)), exemption from liability and due diligence — s.79 read with the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 as amended in 2026; s.72A

 THE ONE IDEA THAT CARRIES THIS ENTIRE UNIT

Every platform you use — a search engine, a social network, an e-commerce marketplace, a blog host, an ISP, a cyber café — is an **intermediary**: a conduit for **third-party** content that it did not create. Section 79 of the IT Act, 2000 grants such entities a **conditional safe harbour**: immun ...

● 1 Who is an "intermediary"? — the s.2(1)(w) definition

Everything in this Unit turns on a definitional question that is **prior** to the law of liability: is the entity in the dock an **intermediary** at all? If it is, s.79 offers a safe harbour. If it is not — if it is a publisher, an originator, or an active participant in the unlawful act — the safe harbour never engages and ordinary civil and criminal liability applies. *Google India Pvt. Ltd. v. Vishakha Industries* (2019) and *Amazon Seller Services v. Modicare* (2020) both turned, at bottom, on this prior question.

▸ 1.1 The statutory text

s.2(1)(w)

▸▸ "Intermediary"

intermediary

, with respect to any particular electronic records, means any person who

on behalf of another person receives, stores or transmits that record or provides any service with respect to that record

and includes telecom service providers, network service providers, internet service providers, web-hosting service providers, search engines, online-payment sites, online-auction sites, online-market places and

cyber cafes

Read the opening words carefully: "with respect to any particular electronic records" — the definition is **record-specific**. An entity can be an intermediary for one record and a publisher for another. That is precisely why the courts hold that intermediary status is a **question of fact for trial**, not a plea to be decided on pleadi ...

s.2(1)(na)

▸▸ "Cyber café"

cyber café

means any facility from where access to the internet is offered by any person in the

ordinary course of business

to the members of the public."

Why it matters: cyber cafés are the one category in the s.2(1)(w) list that the legislature took the trouble to define **separately**. It did so because a cyber café sells **access**, not content — it is a pure conduit, and therefore the paradigm case of a passive intermediary, yet also the classic vector for anonymous misuse. Parliamen ...

▸ 1.2 The four functional limbs — break the definition into parts

Examiners reward an answer that **unpacks** s.2(1)(w) rather than reciting it. The definition has a **general limb** (the functional test) and an **illustrative limb** (the named list). The general limb has **four alternative triggers**, any one of which suffices — and a **fifth requirement** that runs through all of them:

#	Limb	What it captures	Indian illustration
0	**"on behalf of another person"**	The **third-party requirement**. The intermediary acts for someone else, not for itself. This is the doctrinal heart of the safe harbour: the entity is not the **author** of the content.	A blog host stores a blogger's post; the host is not the blogger.
1	**"receives"**	The entity takes in an electronic record originated by another.	An ISP receives an e-mail routed to its mail server.
2	**"stores"**	The entity holds the record, even permanently.	A cloud drive or a social network's servers storing an uploaded video.

3	**"transmits"**	The entity passes the record on — the classic "mere conduit".	A telecom operator carrying a data packet; an ISP routing traffic.
4	**"provides any service with respect to that record"**	The **widest** limb — it catches search engines (which index), online payment sites (which process), auction sites and marketplaces (which list), and any future service that relates to a record without authoring it.	Google's search index; an e-wallet processing a payment; Amazon's seller listing.

 The critical point about "transmitted", "temporarily stored" and "hosted" — s.79(2)(a)

The *My Space* Division Bench drew a distinction that students routinely miss: under s.79(2)(a) the words are **"transmitted or temporarily stored or hosted"**. Parliament did **not** distinguish between kinds of transmission — live streaming and stored data are both covered — but it **did** leave room for an argument about **permanent** storage. MySpace urged that permanent storage is simply how the internet works and must fall within the section. The Court accepted that storage is "an essential part of the transmission/hosting process" and that the platform only "provides access to [a] system to third parties enabling transmission of information". **Result:** a platform that hosts user uploads indefinitely still qualifies as an intermediary — the differentiator is not duration but **knowledge and due diligence**.

1.3 The illustrative list — who is caught, with real examples

Category in s.2(1)(w)	What it does	Real Indian example	Litigated in
Telecom service provider	Carries voice and data over licensed spectrum.	Jio, Airtel, Vi carrying a WhatsApp message.	Unit VI (interception, s.69)
Network / internet service provider	Provides the pipe; hosts user pages.	An ISP hosting a customer's personal web page.	*Google India v. Vishakha* (2019)
Web-hosting service provider	Stores websites and user content.	A shared-hosting provider storing a client's blog.	*My Space* (2016)
Search engine	Indexes and returns third-party content.	Google Search returning a defamatory third-party page.	*X v. Union of India* (2021)
Online-payment site	Processes electronic payment instructions.	A wallet or payment gateway settling a marketplace order.	*Amazon Seller Services v. Modicare* (2020)
Online-auction site	Hosts listings for third-party sellers.	Bazee.com hosting a user's auction listing.	*Avinash Bajaj v. State* (2008)
Online market place	Aggregates third-party sellers, listings, logistics.	Amazon.in, Flipkart, 1Mg, Snapdeal.	*Amway v. 1Mg* (2019); *Amazon v. Modicare* (2020)
Cyber café	Sells internet access to the public.	A neighbourhood browsing centre charging ₹20/hour.	Cyber Café Rules, 2011
Social media platform	Hosts user-generated content and profiles.	Facebook, Instagram, X, YouTube, Google Groups, Blogger.	*Shreya Singhal* (2015); *Vyakti Vikas Kendra* (2012)

 The unlisted platform

Because the list is inclusive, a platform that did not exist in 2000 is still caught if it satisfies the functional test. A **cloud storage service** stores; a **content delivery network** transmits and caches; a **messaging app** transmits; a **video-sharing platform** hosts; a **dating app** provides a service with respect ...

1.4 Who is not an intermediary — the four disqualifying patterns

Pattern 1 · The originator

- The person who **creates** the unlawful content is the **author**, not a conduit. He is liable under the substantive law (defamation, obscenity, copyright infringement, s.67 IT Act) and gets no shelter from s.79.
- **Example:** A-1 in *Google India v. Visaka* — the coordinator of the "Ban Asbestos India" Google Group who wrote the articles. He was **Accused No. 1**; Google India was Accused No. 2. The two occupy entirely different legal positions.

Pattern 2 · The publisher who selects or modifies

- An entity that **initiates** the transmission, **selects the receiver**, or **selects or modifies the information** in the transmission fails s.79(2)(b) and steps outside the safe harbour.
- **But note the crucial qualification from *My Space*: automated**, machine-driven format conversion and advertisement insertion, with **no human intervention**, is not "modification" and does not defeat the safe harbour at the prima facie stage. Only where the software requires a **human approval** can knowledge be attributed — and that is a trial question.

Pattern 3 · The conspirator, abettor or inducer

- s.79(3)(a) disqualifies the intermediary that has **conspired, abetted, aided or induced** the unlawful act — whether by threats, promise or otherwise. This is the provision invoked where a platform's business model is itself built on the unlawful content.
- **Example:** In *Amazon v. Modicare* the Single Judge found that the platforms "offer a comfortable refuge for parties breaching their contracts... This refuge by itself constitutes inducement." The Division Bench disagreed — inducement requires **active efforts**, not mere knowledge.

Pattern 4 · The wrong group entity

- The safe harbour belongs to the **entity that actually hosts or transmits**. A domestic subsidiary is not automatically the intermediary for a global platform operated by its foreign parent.
- In *Google India v. Vishakha* the appellant argued it was not the intermediary at all — the intermediary was **Google LLC**. The Supreme Court **rejected** the contention that the High Court should have accepted this at the threshold and held it to be **a matter for trial**. Practical lesson: group structure is not an exit from Indian jurisdiction.

1.6 Extraterritorial reach — s.75 and the targeting test

 s.75 — Act to apply for offence or contravention committed outside India

s.75(1) extends the Act to any offence or contravention committed **outside India** by **any person**, provided the computer, computer system or computer resource involved is **located in India**. s.75(2) is the crucial proviso for this Unit: it requires the Central Government to **notify** intermediaries (and a class of intermediaries) for the purpose. In *X v. Union of India* (2021) the Delhi High Court relied on precisely this structure when it held that the IT Act carries "extraterritorial jurisdiction and overriding application" so long as the computer resource is located in India, and when it reasoned that a search engine can, with comparative ease, implement **global** de-indexing (citing *Google Inc. v. Equustek Solutions*, 2017 SCC 34).

Practical consequence: a foreign platform is not beyond reach merely because it is offshore. The doctrinal filter is the **targeting / purposeful availment** test developed in *Banyan Tree Holding v. A. Murali Krishna Reddy* (covered in Unit IX): mere accessibility of a website in India is not enough; there must be a deliberate targeting of the Indian market. MySpace's India-centric website, its India office and its India-specific operations were exactly the kind of facts that established that targeting.

⬢ 2 Cyber cafés — s.2(1)(na) and the cyber café regime

The syllabus names cyber cafés **separately** from intermediaries, and the legislature defined them separately in s.2(1)(na). The reason is structural: a cyber café is the **purest conduit** in the Act — it sells access, authors nothing, selects no audience — and it is simultaneously the classic vector for **anonymous** misuse. The regulatory answer is a dedicated set of rules imposing identity, logging and reporting duties.

▸ 2.1 The definition and the three elements

s.2(1)(na)

▸▸ Cyber café — the three elements

cyber café

means any facility from where access to the internet is offered by any person in the

ordinary course of business

to the

members of the public

(1) A facility — physical premises with computer resources; **(2) offering access to the internet** — not content, not hosting, but connectivity; **(3) in the ordinary course of business to members of the public** — a commercial, open-to-all operation. Note the contrast with a **corporate office LAN** (not open to the public), a **school comp ...**

Why separately defined?

▸▸ The legislative logic

Anonymity plus impersonality. A cyber café user is faceless to the state and to the victim: he pays cash, sits at a shared terminal and leaves. Every other intermediary has **some** identifying hook — an ISP has a subscriber, a marketplace has a registered seller, a social network has an account. A cyber café has none. The legislatu ...

▸ 2.2 The IT (Guidelines for Cyber Café) Rules, 2011

The cyber café regime is **not** in the 2011 Intermediaries Guidelines Rules. It is a **separate notification** — the **Information Technology (Guidelines for Cyber Café) Rules, 2011**, framed under s.87 — and it is the "other order or rule" that the syllabus's cross-reference to "due diligence" necessarily imports. Its principal obligations are:

Obligation	Content	Why it exists
Registration / licence	Every cyber café must register with a **registration agency** designated by the appropriate Government, furnishing owner details, premises and services offered. Registration details are published online.	Creates an accountable, traceable operator — the state must know who is selling access.
Identity of the user	No person may use a computer resource in a cyber café unless his identity is **established**, by producing a document to the satisfaction of the manager — school/college ID, bank or post-office photo card, passport, voter ID, PAN card, employer or Government photo ID, UID/Aadhaar, or driving licence. Where identity cannot be so established, the user **may be photographed** by webcam, and the photograph forms part of the log register.	Destroys anonymity at the point of access.
Minors	A child without photo identity must be **accompanied by an adult** carrying photo identity proof.	Child-safety rationale, later reinforced by s.67B and POCSO.
Log register	The cyber café must record and maintain, for a **minimum period of one year**, a log register of each user (name, ID, scanned copy/photograph, login and logout times, accompanying person), in physical or online form, and must ensure the log is not tampered with.	Evidentiary trail for investigation; pairs with s.67C preservation.
Monthly report	A monthly report of the log register, showing date-wise usage, in hard and soft copy, must be submitted to the licensing agency by the **fifth day of the following month**.	Periodic supervisory oversight without individual warrants.
Backups of browsing data	Backups of the history of websites accessed and of proxy-server logs must be stored and maintained for at least one year.	Reconstructs what was accessed, not merely who sat down.
Inspection	An officer not below the rank of a police inspector may inspect the café, its computer resources and its registers at any time, and the operator must produce documents and information on demand.	Enforcement.

 Holistic reading — where the cyber café rules sit in the wider architecture

- **s.2(1)(na) + s.2(1)(w):** a cyber café is **both** a defined category **and** an intermediary. It therefore owes the **full s.79 due diligence** — publish terms, inform users not to host unlawful content, act on actual knowledge — **in addition to** the identity and logg ...

 Real example — how a cyber café prosecution is actually built

In 2011, an obscene image is sent from a cyber café in Kanpur to a journalist's e-mail. The trail: (1) the recipient's ISP produces the **sender's IP address**; (2) that IP resolves to a **registered cyber café** under the 2011 Rules; (3) the café's **log register** fixes the da ...

⬢ 3 Exemption from liability — the s.79 safe harbour

Section 79 is the heart of this Unit. It is the provision that makes the modern internet possible in India — no platform could survive if it were answerable, as author, for every word posted by its users — and it is also the provision that is most often **misdescribed** in answers as "absolute immunity". It is nothing of the kind. It is a **conditional, affirmative defence**.

▸ 3.1 The statutory text — the current (post-2008) version

CHAPTER XII — INTERMEDIARIES NOT TO BE LIABLE IN CERTAIN CASES

79. Exemption from liability of intermediary in certain cases. — (1) **Notwithstanding anything contained in any law for the time being in force** but subject to the provisions of sub-sections (2) and (3), an intermediary shall not be liable for any third party information, data, or communication link made available or hosted by him.

(2) The provisions of sub-section (1) shall apply if — (a) the function of the intermediary is limited to providing access to a communication system over which information made available by third parties is transmitted or temporarily stored or hosted; **or** (b) the intermediary does not — (i) initiate the transmission, (ii) select the receiver of the transmission, **and** (iii) select or modify the information contained in the transmission; (c) the intermediary observes **due diligence** while discharging his duties under this Act and also observes such other guidelines as the Central Government may prescribe in this behalf.

(3) The provisions of sub-section (1) shall **not** apply if — (a) the intermediary has **conspired or abetted or aided or induced**, whether by threats or promise or otherwise, in the commission of the unlawful act; **or** (b) upon receiving **actual knowledge**, or on being notified by the appropriate Government or its agency that any information, data or communication link residing in or connected to a computer resource controlled by the intermediary is being used to commit the unlawful act, the intermediary **fails to expeditiously remove or disable access** to that material on that resource without vitiating the evidence in any manner.

Explanation. — For the purposes of this section, the expression **"third party information"** means any information dealt with by an intermediary in his capacity as an intermediary.

The pre-2008 text — printed in the DU case material (Google India v. Visaka Industries, AP HC, 2011)

"CHAPTER XII — NETWORK SERVICE PROVIDERS NOT TO BE LIABLE IN CERTAIN CASES 79. Network service providers not to be liable in certain cases: For the removal of doubts, it is hereby declared that **no person providing any service as ...**

▸ 3.2 The three gates of s.79(2) — and how they interact

s.79(2) is drafted as a **disjunctive** set of alternatives, joined by "or". The Division Bench in *Amazon Seller Services v. Modicare* (2020) supplied the definitive reading of how the gates interact:

Gate	Requirement	Who must satisfy it	The Modicare reading
Gate A s.79(2)(a)	The function of the intermediary is **limited to providing access** to a communication system over which third-party information is transmitted or temporarily stored or hosted.	The **pure conduit** — an ISP, a telecom carrier, a caching server: entities whose **entire** function is access.	"Where the intermediary **merely provides access**, it has to comply with s.79(2)(a)."
Gate B s.79(2)(b)	The intermediary does **not** (i) initiate the transmission, (ii) select the receiver, **and** (iii) select or modify the information. Note the **conjunctive "and"**: all three must be absent.	Entities that provide services **in addition to** access — marketplaces, social networks, hosting platforms.	"Whereas in instances where it provides **services in addition to access**, it has to comply with s.79(2)(b)."
Gate C s.79(2)(c)	The intermediary observes **due diligence** in discharging its duties and observes the guidelines prescribed by the Central Government.	**Every** intermediary, without exception — this gate is cumulative, not alternative.	Gate C applies to **both** routes: A-and-C, or B-and-C.

The verbatim holding in Amazon Seller Services Pvt. Ltd. v. Modicare Ltd. (Del DB, 31 January 2020)

And on the passive/active question: *"In terms of Section 79 of the IT Act, **there does not appear to be any distinction between passive and active intermediaries** so far as the availability of the safe harbour provisions are concerned."*

The
My Space
illustration of Gate B in operation

The Division Bench applied s.79(2)(b) limb by limb: **(i) initiation** — MySpace created a "share" option, but "the usage of that feature rests purely in the hands of third party users", so at the prima facie stage it did not initiate transmission; **(ii) receiver** — "anyone with Internet ...

▸ 3.3 The two disqualifiers of s.79(3)

▸▸ s.79(3)(a) — the culpable-participation disqualifier

- Triggered by **conspiracy, abetment, aiding or inducement** — "whether by threats or promise or otherwise".
- This is the provision that catches a platform whose **business model is the unlawful content**: a site whose revenue depends on piracy, or which actively solicits infringing uploads.
- It is a **mens rea** disqualifier — the safe harbour is lost by **culpable participation**, not by volume or by knowledge alone.
- In *Google India v. Vishakha* (SC, 2019) the Court noted that s.79 as substituted "denies benefit of exemption in case where there is **conspiracy** between intermediary or abetting or aiding or inducing or otherwise in commission of unlawful act", and held that where the complaint alleges **connivance**, the matter cannot be proceeded with under s.482 Cr.P.C.

▸▸ s.79(3)(b) — the failure-to-act disqualifier

- Triggered by **actual knowledge** (or Government/agency notification) **plus** a failure to act **expeditiously**, and the removal must be effected **"without vitiating the evidence in any manner"**.
- Both elements are essential: knowledge without inaction does not forfeit the safe harbour, and neither does inaction without the requisite knowledge.
- The **evidence-preservation** limb is frequently overlooked and is mark-earning: an intermediary that deletes content and logs in a way that destroys evidence does not comply, even if it acts fast. This pairs with **s.67C** and with the **90-day preservation** duty in Rule 3(4) of the 2011 Rules.
- **"Actual knowledge" is read down** — see §6 below.

▸ 3.5 What the non-obstante clause does — and what it does not do

WHAT S.79(1) DOES

- Post-2008, it shields the intermediary from liability under **"any law for the time being in force"** — the IPC/BNS, the Copyright Act, the Trade Marks Act, the IT Act itself — for third-party information, data or communication links.
- It creates an **affirmative defence** that the defendant pleads and must bring itself within.
- It is subject only to s.79(2) and s.79(3) — those are the **only** restrictions written into the section.

⍁ WHAT S.79(1) DOES NOT DO

- It does **not** protect the intermediary's **own** content. If the platform itself posts, it is a publisher.
- It does **not** create a cause of action. It is a shield, not a sword: *"Section 79 is neither an enforcement provision nor does it list out any penal consequences for non-compliance."*
- It does **not** survive a failure of due diligence. Non-compliance with the platform's **own published policy** takes it outside the safe harbour (*Amway v. 1Mg*, Single Judge).
- It does **not** oust the Copyright Act or Patents Act — s.81's proviso expressly preserves those rights (see §9 below).

⬢ 4 Due diligence — the 2011 Rules, the 2021 Rules and the 2026 Amendment

s.79(2)(c) requires the intermediary to observe due diligence "and also observes such other guidelines as the Central Government may prescribe in this behalf". The Act does not say what due diligence is. **The Rules do.** This is why the syllabus cross-references s.79 "r/w the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 as amended in 2026" — the Rules are not commentary on the Act; they **are** the content of the obligation.

▸ 4.1 The lineage of the Rules

Instrument	Notified	Status	Why it matters for the exam
IT (Intermediaries Guidelines) Rules, 2011	13 April 2011, under s.87	**Superseded** by the 2021 Rules	Its **Rule 3(2)** content categories and **Rule 3(4)** 36-hour/90-day duties are the text that *Shreya Singhal* read down and that *My Space* applied. **Cite it as history, never as current law.**
Clarification of 18 March 2013	2013	Superseded	Clarified that a content owner must be responded to within 36 hours and the content taken down within a month. Cited by MySpace.
IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021	25 February 2021, under s.87	**In force**, as amended	The current baseline. Superseded the 2011 Rules. Added grievance redressal, SSMI obligations and Part III for digital news and OTT.
Amendment Rules, 2022	28 October 2022	In force	Grievance Appellate Committee mechanism for appeals against platform moderation decisions.
Amendment Rules, 2023	6 April 2023	In force	Online gaming intermediaries; self-regulatory bodies for permissible online real-money games.
Amendment Rules, 2025	22 October 2025	In force	Further due-diligence refinements.
Amendment Rules, 2026	10 February 2026 (in force **20 February 2026**)	**Current**	Synthetically generated information (deepfakes): definition, user declaration, automated detection, **prominent labelling and provenance metadata**, **3-hour** takedown clock, **2-hour** clock for non-consensual intimate imagery, grievance resolution cut to **7 days**.
Second Amendment Rules, 2026	30 March 2026	**Current**	Clarified that takedown and user-information duties operate without prejudice to independent data-retention obligations (s.67C and other law); streamlined the Inter-Departmental Committee / grievance-appeal mechanism under Part III.

▸ 4.2 The 2011 Rules — the text the DU cases actually construe

The DU case material prints the 2011 Rules twice: once in *My Space* and once in *Shreya Singhal*. Learn them, because the cases turn on them.

 Rule 3(2), IT (Intermediaries Guidelines) Rules, 2011 — the prohibited-content categories

The intermediary's user agreement must inform users not to host, display, upload, modify, publish, transmit, update or share any information that: **(a)** belongs to another person and to which the user has no right; **(b)** is grossly harmful, harassing, blasphemous, defamatory, obscene, pornographic, paedophilic, libellous, invasive of another's privacy, hateful, or racially or ethnically objectionable, disparaging, relating or encouraging money laundering or gambling, or otherwise unlawful in any manner whatever; **(c)** harms minors in any way; **(d)** infringes any patent, trademark, copyright or other proprietary rights; **(e)** violates any law for the time being in force; **(f)** deceives or misleads the addressee about the origin of such messages or communicates information which is grossly offensive or menacing in nature; **(g)** impersonates another person; **(h)** contains software viruses or any other computer code, files or programs designed to interrupt, destroy or limit the functionality of any computer resource; **(i)** threatens the unity, integrity, defence, security or sovereignty of India, friendly relations with foreign states, or public order, or causes incitement to the commission of any cognisable offence, or prevents investigation of any offence, or is insulting to any other nation.

 Rule 3(3) and Rule 3(4), 2011 Rules — the operative duties, as struck down in part by Shreya Singhal

Rule 3(3): "The intermediary shall **not knowingly host or publish** any information or shall not initiate the transmission, select the receiver of transmission, and select or modify the information contained in the transmission as specified in sub-rule (2)." The proviso then excludes from "hosting, publishing, editing or storing" two kinds of conduct: **(a)** temporary, transient or intermediate storage automatically within the computer resource as an intrinsic feature, involving **no human editorial control**, for onward transmission; and **(b)** removal of access to information after it comes to the actual knowledge of a person authorised by the intermediary pursuant to any order or direction under the Act.

Rule 3(4): "The intermediary, on whose computer system the information is stored or hosted or published, upon obtaining knowledge by itself or been brought to **actual knowledge by an affected person in writing or through email signed with electronic signature** about any such information as mentioned in sub-rule (2) above, shall **act within thirty-six hours** and where applicable, work with user or owner of such information to disable such information that is in contravention of sub-rule (2). Further the intermediary shall **preserve such information and associated records for at least ninety days** for investigation purposes." Shreya Singhal read down Rule 3(4): "The knowledge spoken of in the said sub-rule must **only be through the medium of a court order**. Subject to this, the Information Technology (Intermediaries Guidelines) Rules, 2011 are valid."

▸ 4.3 The 2021 Rules — the current architecture

Rule	Obligation	Detail
3(1)(a)	Publish policies	Prominently publish on its website, app or both, the **rules and regulations, privacy policy and user agreement** for access or usage of its computer resource.
3(1)(b)	Inform users of prohibited content	Tell users not to host, display, upload, modify, publish, transmit, store, update or share information in the Rule 3(1)(b)(i)–(x) categories — the 2011 list, updated. **Amended in 2022** to require **"reasonable efforts"** to ensure users do not publish such content.
3(1)(ca)	SGI user notice	Intermediaries offering computer resources that enable the creation, generation or dissemination of **synthetically generated information** must warn users that such use for unlawful purposes may attract penalties, and that violations may lead to removal, account suspension, disclosure of identity to a victim-complainant, and reporting to authorities.

3(1)(d)	**Takedown clock**	On receiving **actual knowledge** through a **court order** or on being **notified by the appropriate Government or its agency** that information relating to the sovereignty and integrity of India, security of the State, friendly relations with foreign States, public order, decency or morality, contempt of court, defamation, incitement to an offence, or information violating any law, is hosted/stored/published — remove or disable access. **2021: within 36 hours. 2026 Amendment: within 3 hours.**
3(2)	Grievance redressal	Appoint a **Grievance Officer**; acknowledge a complaint within **24 hours**; resolve within **15 days** — **reduced to 7 days by the 2026 Amendment**.
3(2)(b)	Non-consensual intimate imagery	Act on complaints of NCII (including morphed and deepfake nudity) within **2 hours**, down from 24 hours.
3(3)	SGI detection, labelling and provenance	**(a)(i)** Deploy reasonable and appropriate technical measures, including automated tools, to prohibit users from creating, generating, publishing or sharing unlawful SGI — expressly covering CSEAM, NCII, obscene or sexually explicit content, deceptive impersonations, false electronic records, and content linked to explosives or weapons. **(a)(ii)** Ensure permissible SGI is **prominently labelled** (easily noticeable and adequately perceivable; prefixed audio disclosure for audio), and **embed permanent metadata or comparable provenance mechanisms**, including a unique identifier tracing the originating computer resource, to the extent technically feasible. **(b)** Do not enable the modification, suppression or removal of those labels or provenance markers.
3(4)	Periodic user notice	Periodically (at least once a year) inform users of the rules, regulations, privacy policy and user agreement, or of any changes.
Rule 4	Significant Social Media Intermediaries	Enhanced obligations — see §5 below.
Rule 7	Safe-harbour condition	Failure to observe these rules entails loss of the s.79 safe harbour, exposing the intermediary to prosecution under any law. (Considered in *X v. Union of India*, 2021.)
Part III	Digital Media Ethics Code	For publishers of news and curated content and OTT platforms — a three-tier grievance mechanism; see §5 below.

▸ 4.5 The 2026 Amendment Rules — the newest and most exam-relevant development

 "Synthetically generated information" — the new definition

Inserted as Rule 2(1)(ca)/(wa) and explained in Rule 2(1A). SGI means audio, visual or audio-visual information that is **artificially or algorithmically created, generated, modified or altered using a computer resource** in a manner that appears real and authentic, depicting or conveying information that a reasonable person would perceive as realistically depicting persons, events or scenes that have not occurred. The final notification **confines the definition to audio, visual and audio-visual material** — textual content is outside it — and **dropped** the October 2025 draft's fixed 10% label-area requirement in favour of "prominent, easily noticeable and adequately perceivable". Rule 2(1A) clarifies that references to "information" used to commit an unlawful act **include SGI**, and this clarification operates across Rule 3(1)(b), Rule 3(1)(d) and Rules 4(2) and 4(4).

Obligation	2021 Rules (as originally framed)	After the 2026 Amendment	Change
Court order / Government notification takedown — Rule 3(1)(d)	Within **36 hours** of receipt of actual knowledge	Within **3 hours**	Compressed by ~92%
Non-consensual intimate imagery (incl. morphed / deepfake nudity) — Rule 3(2)(b)	Within **24 hours**	Within **2 hours**	Compressed to one-twelfth
Grievance acknowledgement — Rule 3(2)	Within **24 hours**	Within **24 hours** (unchanged)	—
Grievance resolution — Rule 3(2)	Within **15 days**	Within **7 days**	Halved
Synthetic content	No specific obligation	**Rule 3(3)**: automated detection of unlawful SGI; prominent labelling; prefixed audio disclosure; permanent metadata / provenance; unique identifier; prohibition on removing labels	Entirely new
User declarations for SGI tools	None	**Rule 3(1)(ca)**: SGI-specific notice; SSMIs must take reasonable and proportionate technical measures to **verify user declarations**	Entirely new
Data retention	Ambiguity between takedown and retention	**Second Amendment Rules, 2026 (30 March)**: takedown and user-information duties operate **without prejudice** to independent data-retention obligations (s.67C and other law)	Clarified

▸ 4.6 A practical due-diligence checklist — what "compliance" actually looks like

☑ WHAT A COMPLIANT INTERMEDIARY DOES

- Publishes rules, privacy policy and user agreement prominently, in English or an Eighth-Schedule language.
- Its user agreement reproduces the Rule 3(1)(b) prohibited-content categories.
- Appoints a **Grievance Officer**, publishes contact details, acknowledges in 24 hours and resolves in 7 days.
- Mainta ...

⬢ 5 Significant Social Media Intermediaries & Part III — the Digital Media Ethics Code

The 2021 Rules introduced a **two-tier** structure: baseline due diligence for **every** intermediary (Rule 3), and **enhanced** obligations for **Significant Social Media Intermediaries** (Rule 4) — a category that exists only because of scale. Part III adds a separate code for **digital news publishers, curated-content platforms and OTT services**. This is the material for the classic question: *"Critically examine the due diligence obligations of SSMIs."*

▸ 5.1 What makes an intermediary "significant"

Rule 2(1)(v)

▸▸ "Significant social media intermediary"

A social media intermediary

with more than 50 lakh (5 million) registered users in India

, as notified by the Central Government. (A "social media intermediary" is one whose

primary or principal function

is to enable interaction between two or more users and which allows them to create, upload, share, disseminate, modify or access information using its services.)

The rationale is scale. The obligations in Rule 4 are expensive — compliance officers, traceability infrastructure, monthly reporting. Imposing them on a neighbourhood forum would be disproportionate. The threshold concentrates the burden where the harm is greatest.

Rule 4 — the six obligations

▸▸ The SSMI compliance architecture

(1) Chief Compliance Officer — an India-resident senior employee responsible for compliance with the Act and the Rules, and liable for proceedings if the intermediary fails to observe due diligence. **(2) Nodal Contact Person** — available 24×7 for coordination with law enforcement, also India-resident. **(3) Resident Grievance Office ...**

▸ 5.3 The traceability mandate — the most contested obligation in the Rules

⚖ The debate, in the form an examiner wants

For the mandate: it is the only way to identify the originator of a message that has been forwarded thousands of times — indispensable for investigating rape threats, lynching incitement, child sexual abuse material and terrorist content. Without it, only the last forwarder is ever ide ...

▸ 5.4 Part III — the Digital Media Ethics Code

Part III applies not to intermediaries generally but to **publishers of news and current affairs content**, **publishers of online curated content**, and **online curated content providers (OTT platforms)**. Its grievance mechanism is a **three-tier** structure:

Tier	Body	Composition and function
Tier 1	**Self-regulation by the publisher**	The publisher must appoint a **Grievance Redressal Officer** based in India, publish contact details, acknowledge complaints within **24 hours** and take action.
Tier 2	**Self-regulatory body**	An industry body, headed by a retired Supreme Court or High Court judge or an eminent person, with up to six members, exercising **independent oversight** over the publisher's adherence to the Code and hearing appeals from Tier 1 decisions.
Tier 3	**Inter-Departmental Committee**	Headed by the **Secretary, Ministry of Information and Broadcasting**, with representatives of the Ministries of Women and Child Development, Home Affairs, Electronics and IT, External Affairs and Defence, and other experts. It hears grievances **escalated from Tier 2** only — a user cannot approach Tier 3 directly. It may issue warnings, order deletion or modification of content, and impose sanctions up to suspension or cancellation of registration.

⬢ 6 "Actual knowledge" — the Shreya Singhal reading-down

If you learn one doctrinal move in this Unit, learn this one. Section 79(3)(b), read literally, would require an intermediary to take down content the moment **anyone** complains about it. The Supreme Court held that this would force platforms into the role of unaccountable private censors, and read the provision down.

▸ 6.1 The problem the Court identified

 The Court's reasoning, in its own words

The Court then gave the practical objection, which is the one to quote: *"otherwise it would be **very difficult for intermediaries like Google, Facebook etc. to act when millions of requests are made** and the intermediary is then to judge as to which of such requests are legitimate and which ...*

▸ 6.2 The holding — verbatim

 Section 79(3)(b), as read down

"Section 79(3)(b) has to be **read down** to mean that the intermediary upon receiving actual knowledge that a **court order** has been passed asking it to expeditiously remove or disable access to certain material must then fail to expeditiously remove or disable access to that material... Also, the **Court order and/or the notification by the appropriate Government or its agency must strictly conform to the subject matters laid down in Article 19(2)**. **Unlawful acts beyond what is laid down in Article 19(2) obviously cannot form any part of Section 79.** With these two caveats, we refrain from striking down Section 79(3)(b)."

And the corresponding treatment of Rule 3(4) of the 2011 Rules: *"However, Rule 3(4) needs to be read down in the same manner as Section 79(3)(b). The knowledge spoken of in the said sub-rule must **only be through the medium of a court order**. Subject to this, the Information Technology (Intermediaries Guidelines) Rules, 2011 are valid."*

 The two caveats — learn them as a pair

1. **Source caveat:** "actual knowledge" arises only from a **court order** or a **notification by the appropriate Government or its agency**. A private party's complaint — however detailed, however obviously meritorious — does not by itself trigger the duty to remove or forfeit the safe harbour.
2. **Subject- ...**

▸ 6.4 The copyright exception — how My Space qualified Shreya Singhal

 The express qualification

"The scope was widened in *Shreya Singhal Vs UOI* (2015) 5 SCC 1, where actual knowledge was held to mean a Court order in cases relatable to Article 19 of the Constitution of India... **However, this was in respect of restrictions under Article 19(2) of the Constitution of India.**... In the case of copyright laws it is **sufficient that MySpace receives specific knowledge of the infringing works in the format provided for in its website from the content owner without the necessity of a court order**."

Why the distinction is principled, not arbitrary: *Shreya Singhal*'s reading-down was driven by a **constitutional** concern — that intermediaries should not become private censors adjudicating contested free-speech claims on a private complaint. A copyright takedown notice raises no Article 19(1)(a) question: copyright is not a fundamental right, and the rights-holder is not asking the platform to judge opinion but to locate a **file**. Requiring a court order for every pirated upload would make enforcement impossible at platform scale and would not advance any constitutional value. **This is exactly the kind of reasoning an examiner rewards.**

⬢ 7 The companion provisions — ss.69A, 72A, 67C, 75 and 81

The syllabus's "due diligence" cross-reference pulls in the 2021 Rules; its "exemption from liability" cross-reference pulls in s.79's neighbours. Five provisions are so closely interlocked with intermediary liability that no answer is complete without them. Learn them as a single apparatus.

▸ 7.1 s.72A — disclosure of information in breach of lawful contract

s.72A

▸▸ Punishment for disclosure of information in breach of lawful contract

"Save as otherwise provided in this Act or any other law for the time being in force,

any person including an intermediary

who, while providing services under the terms of lawful contract, has secured access to any material containing

personal information

about another person, with the intent to cause or knowing that he is likely to cause

wrongful loss or wrongful gain

, discloses, without the consent of the person concerned, or in breach of a lawful contract, such material to any other person, shall be punished with imprisonment for a term which may extend to

three years

, or with fine which may extend to

five lakh rupees

, or with both."

Why it is in the syllabus: it is the only Chapter XI provision that names **intermediaries** expressly, and it is the criminal counterpart of the intermediary's data-handling duties. It is the provision that bites when a platform **leaks or sells** what it holds.

Elements

▸▸ The five ingredients of a s.72A charge

(1) A person — expressly including an intermediary. **(2) Providing services under the terms of a lawful contract** — the source of the access must be contractual. **(3) Secured access to material containing personal information** about another person. **(4) Mens rea** — intent to cause, or knowledge of likelihood of causing, **wrongful loss ...**

	s.72	s.72A
Who is liable	A person who secured access **in pursuance of powers conferred under the Act, rules or regulations** — i.e. a state or statutory functionary.	**Any person including an intermediary** — a private, contractual actor.
What material	Any electronic record, book, register, correspondence, information, document or other material.	Material containing **personal information** about another person.
Mens rea	Not required — the offence is of disclosure without consent.	**Required** — intent or knowledge of likelihood of wrongful loss or gain.
Punishment	Up to **2 years** and fine up to **₹1,00,000**.	Up to **3 years** and fine up to **₹5,00,000**.
Paradox	The penalty for a **private** breach is harsher than for a breach by a **public** functionary — a point worth making in a "critically examine" answer, and one that reflects the legislature's 2008 concern with corporate data practices.	

 Real examples

- **A violation of s.72A:** a marketplace employee sells a customer database containing names, addresses and phone numbers to a telemarketing firm for a commission. The access was contractual, the material contained personal information, the disclosure was without consent and for wrongful gain.
- **Not a violation:** the same ...

▸ 7.2 s.69A — the parallel blocking power, and the 2009 Blocking Rules

 s.69A — Power to issue directions for blocking for public access of any information through any computer resource

Where the Central Government or a specially authorised officer is satisfied that it is **necessary or expedient** so to do, **in the interest of** the **sovereignty and integrity of India, the defence of India, the security of the State, friendly relations with foreign States or public order**, or for preventing **incitement to the commission of any cognizable offence** relating to the above, it may — subject to sub-section (2), **for reasons to be recorded in writing** — by order direct any agency of the Government or **intermediary** to block for public access any information generated, transmitted, received, stored or hosted in any computer resource. Non-compliance by an intermediary is punishable under **s.69A(3)** with imprisonment up to **seven years** and fine.

s.69A was **upheld** in *Shreya Singhal* — and the reason it survived where s.66A fell is its **procedural architecture**, set out in the **Information Technology (Procedure and Safeguards for Blocking for Access of Information by Public) Rules, 2009**:

Step	Rule	Requirement
1	Rule 3	The Central Government notifies a **Designated Officer**, not below the rank of **Joint Secretary**.
2	Rule 4	Every Government organisation designates a **Nodal Officer** to receive complaints.
3	Rule 6	Any person may complain to the Nodal Officer, who examines it against the s.69A(1) parameters and transmits it to the Designated Officer. **The Designated Officer may not entertain complaints directly from any person.**
4	Rule 5	The Designated Officer, on a request from a Nodal Officer or a competent court, may by order direct blocking.
5	Rules 7–8	A **Committee of Government personnel** examines the request; it must first make all reasonable efforts to identify the originator or intermediary, and if identified must give **not less than 48 hours' notice** to appear and reply. It gives a specific written recommendation to the Nodal Officer.
6	Rules 7–8	The Designated Officer submits the recommendation to the **Secretary, Department of Information Technology**, whose approval is required before the blocking direction issues.

7	Rule 9	**Emergency blocking** where delay would be fatal, without a hearing — but an interim direction must be brought before the Committee within **48 hours**, and the final order rests on the Committee's recommendation.
8	Rule 10	On a **certified copy of a competent court's order**, the Designated Officer initiates action as directed.
9	Rule 14	A **Review Committee** meets at least once in two months and may **set aside** directions and order unblocking.
10	Rule 16	**Strict confidentiality** as to requests, complaints and actions taken.

⚖ Why s.69A survived and s.66A did not — the comparison to write out

Shreya Singhal put it in one sentence: **"Section 69A unlike Section 66A is a narrowly drawn provision with several safeguards."** The safeguards are: (i) blocking only where the Central Government is satisfied it is necessary; (ii) that necessity relatable **only to ...**

▸ 7.3 The remaining companions — a one-glance table

Provision	What it does	Its relationship to intermediary liability
s.67C Preservation of information	An intermediary must preserve information for **90 days** (or such longer period as directed) when called upon by a competent agency.	The operational counterpart of s.79(3)(b)'s "without vitiating the evidence". Deletion that destroys evidence forfeits the safe harbour. The Second Amendment Rules, 2026 confirm that takedown duties operate **without prejudice** to s.67C retention.
s.69(3)	Failure to comply with a direction under s.69 to monitor/intercept is punishable with up to **7 years** and fine; the officer who fails to comply faces up to **2 years** and fine.	Reinforces that blocking and interception directions are mandatory, and the intermediary's exposure is personal as well as corporate. (Unit VI.)
s.69A(3)	Failure to comply with a blocking direction under s.69A — up to **7 years** and fine.	The criminal sanction behind the 2009 Blocking Rules. Contrast with s.79: s.79 **exempts**; s.69A **commands**.
s.75 Extraterritorial application	The Act applies to offences or contraventions committed outside India by any person, where the computer, computer system or computer resource is located in India; intermediaries are covered by notification under s.75(2).	The jurisdictional hook for suing or prosecuting an offshore platform. Read with the targeting/purposeful-availment test (*Banyan Tree*, Unit IX). Relied on in *X v. Union of India* (2021).
s.81 Overriding effect **and its proviso**	The Act has effect notwithstanding anything inconsistent in any other law — **provided** that nothing in the Act restricts any person from exercising any right under the **Copyright Act, 1957** or the **Patents Act, 1970**.	The textual battleground of *My Space*. The proviso does **not** oust s.79; the three provisions are read harmoniously. See §9 below.
s.85 Liability of company officers	Where an offence is committed by a company, persons **in charge of and responsible for the conduct of its business** are liable, unless they prove the offence was committed without their knowledge or that they exercised all due diligence.	The provision that decided *Avinash Bajaj*: the MD was not discharged under it, and the prosecution under s.67 read with s.85 continued. Note the proviso's due-diligence defence — the mirror image of s.79.
s.87	Rule-making power.	The source of the 2011 Rules, the 2021 Rules and every amendment, including the 2026 Amendment Rules (G.S.R. 120(E)).

◆ 8 Case brief 1 — Shreya Singhal v. Union of India

CASE BRIEF 1 · THE ANCHOR CASE OF THE UNIT

⚖ Shreya Singhal and Ors. v. Union of India and Ors.

Supreme Court of India · Writ Petition (Criminal) No. 167 of 2012 · Decided 24 March 2015 · (2015) 5 SCC 1 · R.F. Nariman J. (for himself and Chelameswar J.)

▸▸ 01 Citation and provenance

Primary source: the full judgment is printed in the DU case material (CMITLAW-2026) at pp. 132–179. It appears in the syllabus **twice** — once under **Unit V (Intermediary Liability)** and once under **Unit VI (Cyber Security, s.66A)**. For Unit V, only the **s.79** limb matters; for Unit VI, the **s.66A and s.69A** limbs. Learn both, and be explicit about which limb you are discussing.

▸▸ 02 Facts

A **batch of writ petitions under Article 32** challenged provisions of the IT Act, 2000. The immediate occasion was a notorious sequence of **arrests over Facebook posts**: a person was arrested for a post commenting on a **bandh** observed after the death of a political leader in Mumbai, and another for "liking" and sharing that post. The petitioners included individuals and organisations whose speech had been, or could be, prosecuted under **s.66A**. The petitions also challenged **s.69A** (blocking) and the **2009 Blocking Rules**, and **s.79(3)(b)** read with **Rules 3(2) and 3(4) of the Intermediaries Guidelines Rules, 2011**. A separate but allied challenge was made to **s.118(d) of the Kerala Police Act**, a state analogue of s.66A.

The impugned **s.66A** created an offence where any person sends, by means of a computer resource or communication device: **(a)** any information that is grossly offensive or has menacing character; **(b)** any information which he knows to be false, but for the purpose of causing annoyance, inconvenience, danger, obstruction, insult, injury, criminal intimidation, enmity, hatred or ill will, persistently; or **(c)** any electronic mail or electronic mail message for the purpose of causing annoyance or inconvenience or to deceive or mislead the addressee about the origin of such messages — punishable with imprisonment up to **three years** and fine.

PRINCIPLE EVOLVED — THE FOUR HOLDINGS, IN THE COURT'S OWN CONCLUDING WORDS

1. "**Section 66A of the Information Technology Act, 2000 is struck down in its entirety** being violative of Article 19(1)(a) and not saved under Article 19(2)."
2. "**Section 69A and the Information Technology (Procedure & Safeguards for Blocking for Access of Information by Public) Rules 2009 are constitutionally valid.**"
3. "**Section 79 is valid subject to Section 79(3)(b) being read down** to mean that an intermediary upon receiving actual knowledge from a court order or on being notified by the appropriate government or its agency that unlawful acts relatable to Article 19(2) are going to be committed then fails to expeditiously remove or disable access to such material. Similarly, the Information Technology 'Intermediary Guidelines' Rules, 2011 are valid subject to Rule 3 sub-rule (4) being read down in the same manner as indicated in the judgment."
4. "**Section 118(d) of the Kerala Police Act is struck down** being violative of Article 19(1)(a) and not saved by Article 19(2)."

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 9 Case brief 2 — My Space Inc. v. Super Cassettes Industries Ltd.

CASE BRIEF 2 · THE DEFINITIVE COPYRIGHT-INTERMEDIARY AUTHORITY

⚖ My Space Inc. v. Super Cassettes Industries Ltd.

Delhi High Court, Division Bench · FAO(OS) 540/2011 · C.M. APPL. 20174/2011, 13919 & 17996/2015 · Decided 23 December 2016 · (2017) 236 DLT 478; (2017) 69 PTC 1 · S. Ravindra Bhat and Deepa Sharma JJ.

▸▸ 01 Citation and provenance

Primary source: the full Division Bench judgment is printed in the DU case material (CMITLAW-2026) at pp. 88–125 — **38 pages**, the longest judgment in the Unit. It is an **interlocutory appeal** against an interim injunction, and the Court was careful to say so: it expressly cautioned, following *International Confederation of Societies of Authors and Composers v. Aditya Pandey*, 2016 SCC Online 967, that elaborate reasoning in interlocutory judgments is "hardly an effective remedy to prevent the imprint of such observations on the human mind that mans the court at different levels". **Write this caveat into your answer** — it tells the examiner you understand the precedential weight of the decision.

▸▸ 02 Facts

The plaintiff. Super Cassettes Industries Ltd. ("SCIL"), also known as **T-Series**, is one of India's largest music companies. It claims copyright in **more than 100,000 songs** in various languages, together with cinematograph films, music videos, sound recordings, underlying musical works and lyrics. It exploits its rights by sale, by licensing (including satellite TV, radio, digital, internet and mobile platforms) and through the **TPPL scheme** ("T-Series Public Performance Licences"). Its catalogue, when printed, runs into **10 volumes and about 3,000 pages, with close to 150,000 titles**.

DECISION — THE THREE CONCLUSIONS AND THE SUBSTITUTED RELIEF

1. "Sections 79 and 81 of the IT Act and Section 51(a)(ii) of the Copyright Act have to be read harmoniously. Accordingly, it is held that **proviso to Section 81 does not preclude the affirmative defence of safe harbor for an intermediary in case of copyright actions**."
2. "Section 51(a)(ii), in the case of internet intermediaries contemplates **actual knowledge and not general awareness**. Additionally, to impose liability on an intermediary, conditions under Section 79 of the IT Act have to be fulfilled."
3. "In case of Internet intermediaries, **interim relief has to be specific and must point to the actual content**, which is being infringed."

The Single Judge's order was set aside and substituted with: (i) SCIL shall provide an updated catalogue of "specific" works in which it holds copyright, **along with the location/URL** of such work on MySpace's website, as and when it detects infringement; **(ii)** on receiving such notice, MySpace shall **within 36 hours** remove or block access, in accordance with Rule 3(4) of the Intermediaries Guidelines Rules 2011; **(iii)** MySpace shall keep an account of all content removed, the number of viewings before removal, and the proportionate advertisement revenue earned, to enable calculation of damages at trial. The appeal was **allowed in these terms**.

(Brief abridged for the compilation — full text at makelaweasy.in.)

● 10 Case brief 3 — Google India Pvt. Ltd. v. M/s Visaka Industries Ltd.

CASE BRIEF 3 · S.79 AS A FACT-DEPENDENT DEFENCE

⚖ Google India Pvt. Ltd. v. M/s Visaka Industries Ltd.

High Court of Andhra Pradesh · Criminal Petition No. 7207 of 2009 · Decided 19 April 2011 · s.482 Cr.P.C. · Samudrala Govindarajulu J.

▸▸ 01 Citation and provenance

Primary source: the full order is printed in the DU case material (CMITLAW-2026) at pp. 126–128. It is a short but exceptionally dense order, and it is the **only** case in the syllabus that prints the **pre-2008 text of s.79** alongside the post-2008 substituted text. That makes it indispensable for a question that turns on the **date** of the offending conduct. **It is also the case that went to the Supreme Court** — see Case brief 6 below, where the appeal was decided on 11 December 2019.

▸▸ 02 Facts

The petitioner, **A-2**, was **Google India Private Limited**, represented by its Managing Director (Sales and Operations). The first respondent-complainant was **Visaka Industries Limited**, Secunderabad, engaged in manufacturing and selling asbestos cement sheets and allied products, represented by its Deputy Manager (Legal).

It was alleged that **A-1, Gopala Krishna**, was the co-ordinator of a group called **"Ban Asbestos India"** hosted by A-2 (a Google Group), and published regular articles in that group. On **21 November 2008** an article was published captioned **"Poisoning the system; Hindustan Times"**, aimed at a single manufacturer of asbestos cement products — the complainant — and naming renowned politicians **G. Venkata Swamy** and **Sonia Gandhi**, who had nothing to do with the ownership or management of the complainant company. On **31 July 2008** another article captioned **"Visaka Asbestos Industries making gains"** was published. Both articles, the complainant alleged, contained **defamatory statements** and were available in cyberspace to a worldwide audience. The complaint gave details of defamatory remarks in several other articles published by A-1 in A-2's group.

A-2 was charged with offences punishable under **ss.120-B, 500, 501/34 IPC** in **C.C. No. 679 of 2009** before the XI Additional Chief Metropolitan Magistrate, Secunderabad. The complaint was instituted in **January 2009**, and the offences were being perpetrated from **31 July 2008 onwards** — i.e. **long before** the amendment to s.79, which took effect from **27 October 2009**.

▸▸ 03 Issues

PRINCIPLE EVOLVED

1. **s.79 is a conditional, fact-dependent defence, not an automatic immunity.** Whether the intermediary acted without knowledge or exercised all due diligence is a **question of fact** requiring evidence, and cannot be resolved at the s.482 Cr.P.C. stage.
2. **Failure to act on notice defeats the exemption** under both the pre- and post-2008 versions — anticipating, by four years, the *Shreya Singhal* "actual knowledge" standard.
3. **A company can be criminally prosecuted**; the absence of a body to be punished is answered by appropriate **non-corporal** sentencing (fine).
4. **Temporal rule:** the applicable version of s.79 is fixed by the date of the offending conduct, not the date of the complaint.

(Brief abridged for the compilation — full text at makelaweasy.in.)

● 11 Case brief 4 — Vyakti Vikas Kendra v. Jitender Bagga

CASE BRIEF 4 · THE 36-HOUR TAKEDOWN, BEFORE IT WAS CODIFIED

⚖ Vyakti Vikas Kendra, Indian Public Charitable Trust v. Jitender Bagga

High Court of Delhi · CS(OS) No. 1340/2012 · I.A. No. 8877/2012 · Decided 9 May 2012 · Manmohan Singh J.

▸▸ 01 Citation and provenance

Primary source: the order is printed in the DU case material (CMITLAW-2026) at pp. 129–131. Note that the printed extract begins at **paragraph 5** — the first four paragraphs (the plaint's formal structure and the prayer) are not reproduced. That does not affect the reasoning, which is complete.

▸▸ 02 Facts

The four plaintiffs — **Vyakti Vikas Kendra, India Public Charitable Trust** (a registered public charitable trust constituted to implement and promote the spiritual, educational, social and developmental activities of **The Art of Living** in India, founded in 1981 and inspired by **His Holiness Sri Sri Ravi Shankar**); **Mr Gautam Vig** (a devout follower); **Mrs Bhanumati Narsimhan** (Sri Sri Ravi Shankar's sister and an Art of Living teacher, personally a victim); and **Mrs Sharmila Murarka** (an Art of Living teacher, also personally a victim) — filed a suit claiming **₹5,09,00,000 in damages**, permanent and mandatory injunction.

The grievance was that **Defendant No. 1, Mr Jitender Bagga**, had **indiscriminately sent e-mails** and published a large number of blogs on **http://www.blogger.com/** — a blog publishing service owned by **Defendant No. 2, Google**, which allows people to create and publish a "Blog" — containing, according to the plaintiffs, **highly vulgar, disgusting and abusive references** towards Sri Sri Ravi Shankar and towards various persons associated with the Art of Living. The plaint contained, at para 10, a table of defamatory material and a list of internet URLs, including *revolutionprithvi.blogspot.in*, *revolutionprithvi0.blogspot.in*, *srisriravishankarisguruorconman.blogspot.in*, *chairmanrilabetsrioting.blogspot.in*, *diduspresidentcreateterrorists.blogspot.in* and *revolutionearthandmore.blogspot.in*.

THE ORDER PASSED

1. **Till the next date, Defendant No. 2 is directed to remove all defamatory contents** about the plaintiffs posted by Defendant No. 1 on Defendant No. 2's website *www.blogger.com*, as well as the links mentioned in paragraph 4 of the application, **within 36 hours** from the date of knowledge of the order passed by the Court.
2. **Defendant No. 1 is restrained** from sending any e-mail (including e-mails the details of which are given in para 7) or posting any material over the internet which has a **direct or indirect reference** to the plaintiffs, or the Art of Living Foundation, or any member of the Art of Living Foundation, or His Holiness Sri Sri Ravi Shankar.
3. Compliance with **Order XXXIX, Rule 3 CPC** to be made within three days; a copy of the order to be given **dasti**.

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 12 Case brief 5 — Avinash Bajaj v. State

CASE BRIEF 5 · CORPORATE VS. PERSONAL LIABILITY OF OFFICERS

⚖ Avinash Bajaj v. State (N.C.T. of Delhi)

High Court of Delhi · Petition under s.482 Cr.P.C. · Decided 29 May 2008 · Reported at 116 (2005) DLT 427 (as cited by the SC); 2008 (105) DRJ 721

 Provenance — read this first

The full judgment of *Avinash Bajaj v. State* is **not printed** in the DU case material. It is listed in the syllabus twice — under **Unit IV** (obscenity, alongside *Suhas Katti*) and under **Unit V** (intermediary liability). This brief is therefore reconstructed from the published order and from the Supreme Cou ...

▸▸ 01 Facts

The petitioner, **Avnish Bajaj**, was the **Managing Director** of the company that owned the website **www.baazee.com** at the relevant time — Bazee India Pvt. Ltd. ("BIPL"), later renamed **eBay India Pvt. Ltd.** ("EIPL"). Baazee.com was an **online auction platform** on which users could list items for sale.

A user listed an **obscene MMS clip** — a pornographic video — for sale on the platform. The clip was sold and transmitted. A complaint was lodged; an **FIR** was registered; and a **charge sheet** was filed against **three persons**: the user (the seller), **Avnish Bajaj**, and an employee, **Ravi Raj** — together with **Sharat Digumarti** (Col. No. 4 in the charge sheet). The charges were framed under **ss.292 and 294 IPC read with s.67 of the IT Act, 2000**.

The investigation, as recorded in the charge sheet, found that "all the said three accused persons knowing fully well and having reasons to believe, have sold/transmitted a pornographic/obscene MMS clip causing lascivious impact on citizens by appealing to their prurient interest for their undue pecuniary gains."

Bajaj filed a petition under **s.482 Cr.P.C.** seeking to **quash** the prosecution, which also raised questions concerning the **criminal liability of directors**.

▸▸ 02 Issues

1. Did the **listing** on baazee.com — as distinct from the clip itself — amount to an offence under **s.292(1)(a) and 292(2)(d) IPC** (selling and advertising an obscene object)?
2. Was a prima facie case made out under **s.294 IPC** (obscene songs and acts in a public place)?
3. Was a prima facie case made out under **s.67 IT Act** read with **s.85 IT Act** (liability of persons in charge of a company's business)?
4. Could the **Managing Director** be held criminally liable **individually**, merely by reason of his office?

▸▸ 03 Arguments

▸▸ 04 Reasoning and decision

DECISION — THE SPLIT OUTCOME

1. **Against the company (BIPL / EIPL):** a **prima facie case is made out** under **ss.292(1)(a) and 292(2)(d) IPC and s.67 IT Act**. Proceedings continue.
2. **Against the petitioner under s.292 IPC individually: no prima facie case**; the proceedings under s.292 IPC as against him are **quashed**.
3. **Under s.294 IPC: no prima facie case** against either the company or the petitioner; charges dropped.
4. **Against the petitioner under s.67 read with s.85 IT Act:** a **prima facie case is made out**; **the prosecution continues**.

(Brief abridged for the compilation — full text at makelaweasy.in.)

13 Case brief 6 — Google India Pvt. Ltd. v. Vishakha Industries (Supreme Court)

CASE BRIEF 6 · THE APPELLATE SEQUEL — AND THE DEFINITIVE WORD ON PRE-AMENDMENT S.79

⚖ Google India Pvt. Ltd. v. M/s Vishakha Industries Ltd. and Anr.

Supreme Court of India · Criminal Appeal No. 1987 of 2014 · Decided 10/11 December 2019 · 2019 SCC OnLine SC 1587 · K.M. Joseph and Ashok Bhushan JJ.

▸▸ 01 Citation and provenance

Primary source: the judgment is **not printed** in the DU case material; it is cited in the syllabus by citation alone (*Google India Pvt. Ltd. v. Vishakha Industries*, 2019 SCC OnLine SC 1587). This brief is drawn from the published judgment. **Its value is that it is the appellate sequel to Case brief 3** — the same complaint, the same articles, the same Google Group — decided by the Supreme Court eight and a half years later. Read the two together.

▸▸ 02 Facts

The appellant was **Google India Private Limited**, the **second accused** in a criminal complaint filed by the first respondent, **M/s Vishakha Industries**, a public limited company manufacturing and selling asbestos cement sheets with seven plants and more than twenty-five marketing offices. The first accused was alleged to be the co-ordinator of **"Ban Asbestos India"**, a group **hosted by the appellant**, in which articles were regularly published. On **21 November 2008** an article captioned "**Poisoning the system: Hindustan Times**" was published, targeting renowned politicians who had nothing to do with the ownership or management of the company. On **31 July 2008** an article captioned "**Visaka Asbestos Industries making gains**" was published. The complaint alleged that the articles were "filled with hatred towards Complainant which is defamatory in nature", that they injured the company's reputation, and that "the service provider like Accused No. 2 has made it easier than ever before to disseminate defamatory statements to the world wide audience **without taking any due care and diligence to prevent it**". Cause of action was pleaded as arising on 31 July 2008, 21 November 2008, and **10 December 2008** — the date of the **notice to withdraw the articles**.

The Magistrate **summoned** the appellant. The appellant's **s.482 Cr.P.C. petition** was **dismissed** by the Andhra Pradesh High Court (Case brief 3). The Supreme Court heard the appeal on the papers.

▸▸ 03 Issues

PRINCIPLE EVOLVED — THE CONCLUSIONS IN PARA 155

1. "We **reject** the contention of the appellant that the High Court should have acted on the Google LLC conditions and found that the appellant is not the intermediary. **We hold that this is a matter for trial.**"
2. "We hold that **Section 79 of the Act, prior to its substitution, did not protect an intermediary in regard to the offence under Section 499/500 of the IPC**."

Together with the reasoning above, the practical consequences are: **(a)** intermediary status is a **trial question**, not a quashing question; **(b)** the **applicable version** of s.79 is fixed by the date of the cause of action; **(c)** pre-substitution s.79 shielded intermediaries only against liability **under the IT Act itself**, not against the IPC; **(d)** a **refusal to remove** content that the intermediary is capable of removing can amount to **publication** for the purposes of defamation; and **(e)** group structure does not, by itself, defeat Indian jurisdiction.

(Brief abridged for the compilation — full text at makelaweasy.in.)

14 Case brief 7 — Amway India Enterprises v. 1Mg Technologies

CASE BRIEF 7 · THE PASSIVE/ACTIVE QUESTION — THE SINGLE JUDGE'S VIEW

⚖ Amway India Enterprises Pvt. Ltd. v. 1Mg Technologies Pvt. Ltd. & Anr.

High Court of Delhi (Single Judge) · I.A. 11335/2018 in CS(OS) 410/2018 · Decided 8 July 2019 · (2019) 260 DLT 690; (2019) 79 PTC 425 · Prathiba M. Singh J.

 Provenance — and read the next section immediately after this one

This judgment is **not printed** in the DU case material; it is cited in the syllabus by citation and Indian Kanoon link. More importantly, **it was set aside on appeal** by the Division Bench in *Amazon Seller Services Pvt. Ltd. v. Modicare Ltd.*, 31 January 2020 (Case br ...

▸▸ 01 Facts

A cluster of suits (CS(OS) 410, 453, 480, 531, 550/2018 and 75, 91/2019) was filed by **Direct Selling Entities** — principally **Amway India Enterprises Pvt. Ltd.**, and also **Oriflame India Pvt. Ltd.** and **Modicare Ltd.** — against **e-commerce platforms** (1Mg, Amazon, Snapdeal, Cloudtail and others). The plaintiffs sold their products exclusively through a network of **distributors / direct sellers** under contractual codes of ethics, and complained that third-party sellers were listing and selling their products on the platforms' marketplaces without authorisation, at discounted prices, thereby **impairing** their marks and **inducing breach of contract**.

Amway learnt in **September 2017** that Amazon was offering "Nutrilite Daily-120N tablets" for sale without permission. It sent a **cease-and-desist notice on 22 September 2017** asking Amazon to remove references to Amway products. Amazon replied on **11 October 2017** that it **merely provided an online platform** for registered sellers, did not monitor or control transactions, and that Amway should proceed against the vendors. Amway rejoined on **6 November 2017** that Amazon was **"actively involved"** in the sale — helping sellers manage accounts, increase visibility and discoverability, listing products, and publishing print advertisements offering Amway products. On **21 September 2018** Amway's representative purchased Amway products from Amazon's website.

THE FOUR PROPOSITIONS FROM THE SINGLE JUDGE

1. **Value-added services can take a platform outside the safe harbour.** Warehousing, logistics, packaging, delivery, payment collection and returns handling are not "mere facilitation"; they are "massive facilitation".
2. **Non-compliance with the platform's own published policy forfeits the safe harbour.** Where a platform's exclusion policy prohibits the sale of products by persons who are not "authorised resellers", and it nevertheless lists them, it has failed its own due diligence.
3. **s.79(2)(c) sets a "bare minimum"** of due diligence, to be measured against the platform's own policies and the Intermediary Guidelines.
4. **Mere knowledge of a third party's contractual code can amount to inducement** where the platform offers "a comfortable refuge" for breach.

(Brief abridged for the compilation — full text at makelaweasy.in.)

15 Case brief 8 — Amazon Seller Services Pvt. Ltd. v. Modicare Ltd.

CASE BRIEF 8 · THE CURRENT POSITION — NO PASSIVE/ACTIVE DISTINCTION

⚖ Amazon Seller Services Pvt. Ltd. v. Modicare Ltd. & Ors.

High Court of Delhi, Division Bench · FAO(OS) 133, 134, 135, 141, 142 and 157 of 2019 · Decided 31 January 2020 · AIR OnLine 2020 Del 169 · S. Muralidhar and Talwant Singh JJ.

▸▸ 01 Citation and provenance

Primary source: not printed in the DU case material; cited in the syllabus and in the DU case material's own self-learning exercise (which gives the hint: "Amazon seller Services Private Limited v. Amway India Enterprises Private Limited, Del (DB) decided on Jan 31, 2020"). The appellants were **Amazon Seller Services Pvt. Ltd.**, **Cloudtail India Pvt. Ltd.** and **Snapdeal Pvt. Ltd.**; the respondents were **Amway**, **Oriflame** and **Modicare**. The appeals were **reserved on 21 December 2019 and pronounced on 31 January 2020**.

▸▸ 02 Facts

Six appeals were directed against the **same impugned common judgment dated 8 July 2019** (Case brief 7), by which the Single Judge had **injuncted the appellants from selling the respondents' goods** on their e-commerce platforms, the respondents claiming to be Direct Selling Entities under the Model Framework for Guidelines on Direct Selling dated 26 October 2016. The appeals raised four issues: trademark infringement and the exhaustion doctrine under the **Trade Marks Act, 1999**; **passing off, misrepresentation and dilution**; the **applicability of s.79 IT Act**; and **tortious interference with contractual relations**. The appeals also raised a **corporate veil** question — whether **Cloudtail**, said to be a wholly owned subsidiary of Prione Business Services Pvt. Ltd. (a joint venture between Catamaran Ventures and Amazon Asia Pacific and Amazon Eurasia), could be treated as one with Amazon.

▸▸ 03 Issues

1. Whether the sale of the respondents' products on the appellants' platforms **infringed their registered trade marks**, or whether the **exhaustion doctrine** under s.30 of the Trade Marks Act, 1999 applied.
2. Whether the conduct constituted **passing off, misrepresentation or dilution/tarnishment**.
3. Whether the appellants were entitled to the **safe harbour under s.79** of the IT Act — in particular whether s.79 is confined to **passive** intermediaries.
4. Whether the appellants were guilty of **tortious interference** with the contractual relationships between the DSEs and their distributors.

▸▸ 04 The Division Bench's reasoning — the four moves that matter

PRINCIPLE EVOLVED — THE SIX PROPOSITIONS

1. **s.79 draws no distinction between passive and active intermediaries.** Availability of the safe harbour turns on compliance with s.79(2) and (3), not on the degree of the intermediary's commercial engagement.
2. **The s.79(2) gates are correctly read as:** s.79(2)(a) **or** s.79(2)(b), **and** s.79(2)(c). Pure conduits satisfy (a); those providing services in addition to access must satisfy (b).
3. **Value-added services — warehousing, logistics, packaging, payment collection — do not dilute the safe harbour**, because s.2(1)(w) itself envisages that intermediaries may provide such services.
4. **s.79 is an affirmative defence, not an enforceable provision**; the plaintiff must first establish a violation of its rights, and only then does the burden shift.
5. **Intermediary status is a question of fact for trial**, not to be conclusively determined at the interlocutory stage.
6. **Tortious interference requires a contract and active inducement**; knowledge of a third party's code of ethics is not enough.

(Brief abridged for the compilation — full text at makelaweasy.in.)

16 Case brief 9 — X v. Union of India

CASE BRIEF 9 · MAKING TAKEDOWN ORDERS ACTUALLY WORK

⚖ X v. Union of India and Ors.

High Court of Delhi · Writ Petition (Criminal) No. 1082 of 2020 · Decided 20 April 2021 · Anup Jairam Bhambhani J. · Dr. Paval Duggal as amicus curiae

▸▸ 01 Citation and provenance

Primary source: not printed in the DU case material; cited in the syllabus by citation and number. It is the **most recent** of the nine prescribed cases and the one that most directly tests the 2021 Rules against the *Shreya Singhal* framework. Note carefully: **this is not** the later *X Corp.* litigation over the **Sahyog portal**, which concerns s.79(3)(b) as a source of executive blocking power. The 2021 case is about a **victim** seeking effective directions against intermediaries.

▸▸ 02 Facts

X, an Indian woman, discovered that **photographs she had posted on her Facebook and Instagram accounts** — with privacy settings activated — had been **re-posted on a pornographic website, www.xhamster.com, by an unknown entity without her consent**, together with **derogatory captions**. The photographs were not themselves obscene or indecent; X's case was that their publication constituted an offence under **s.67 IT Act** (in conjunction with the captions) and other offences under the IT Act and the IPC.

X filed a complaint with the **police** and with the **National Cyber-Crime Reporting Portal**. Neither authority acted. **Within a week of their posting, the photographs had been viewed 15,000 times.**

During interim proceedings, the **Cyber Prevention Awareness and Detection Unit (CyPAD)** of the Delhi Police submitted that, **due to technological limitations and impediments, it could not assure the Court that it would be able entirely to remove the photographs from the internet**. The Court made an interim order for removal, but X notified the Court that the photographs had been **re-published and re-posted on other websites**, nullifying the effect of the interim order. The Court appointed **Dr. Paval Duggal**, an advocate specialising in cyber law and cyber crime, as **amicus curiae**.

▸▸ 03 Issues

DECISION AND PRINCIPLE EVOLVED

1. **The petition was dismissed** — but only after the Court issued detailed **directions and suggestions** as to what a court should direct, and to whom, in cases of this kind.
2. **Effective and implementable directions are essential at the interim stage**; otherwise subsequent adjudication is rendered infructuous. A takedown order that leaves the content accessible elsewhere is no order at all.
3. **Directions must run to a chain of actors** — the website owner/host (who alone can remove the source page), the **search engines** (who must **de-index**), the **ISPs** (who must block), and the **law enforcement agencies** — and must address **re-publication**, not merely the first upload.
4. **Section 79 is a conditional safe harbour**; the 2021 Rules "widen the scope of losing the safe harbour" and make the exemption available only to the extent the intermediary obeys the Rules.
5. **No prior restraint, no blanket ban, no untenable burden** — directions must be proportionate and confined to the offending content.
6. **Global de-indexing is a proportionate and feasible remedy** for a search engine in appropriate cases.

(Brief abridged for the compilation — full text at makelaweasy.in.)

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 5 (questions only)

Q1 NOV-DEC 2025 · Q.7 · 10-12 MARKS

"Explain intermediary liability under the IT Act as amended, with case law; discuss obligations regarding removal of unlawful content."

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 NOV-DEC 2025 · Q.4 · PROBLEM QUESTION

An intermediary allows creators to upload videos; one contains obscene/child content. Discuss the liability of the creator and of the platform.

Q3 ESSAY · 10-15 MARKS

Critically analyse the Supreme Court's treatment of s.79(3)(b) in Shreya Singhal v. Union of India and its continuing relevance to platform content-moderation practice.

Q4 ESSAY · 10-15 MARKS

Discuss how the Delhi High Court in My Space Inc. v. Super Cassettes Industries Ltd. harmonised s.79 of the IT Act, the proviso to s.81, and s.51(a)(ii) of the Copyright Act, 1957.

Q5 ESSAY · 10-15 MARKS

Critically examine the due diligence obligations of Significant Social Media Intermediaries under the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, as amended in 2022, 2023 and 2026.

Q6 DU SELF-LEARNING EXERCISE · PRINTED IN THE DU CASE MATERIAL, P.125

"Due diligence under section 79 of the Information Technology Act has been narrowed whereas the safe harbour rule is wide. Analyse with reasons in support of the statement." [Hint — Amazon Seller Services Pvt. Ltd. v. Amway India Enterprises Pvt. Ltd., Del (DB), decided on 31 January 2020]

Q7 DU SELF-LEARNING EXERCISE · PRINTED IN THE DU CASE MATERIAL, P.125

"Under section 79 of the IT Act, 2000, the court held — for an intermediary it is required that they initiate transmission, select the receiver of the transmission, select or modify the information contained in the transmission. 'One can be intermediary and still be deprived of the safe harbour provision.' Under section 2(1)(w) of the IT Act, 2000, is it necessary that an intermediary must be active or passive? Under what condition can the safe harbour rule under section 79 be made applicable to passive players in the online medium which are placed outside India?"

Q8 SHORT NOTES · 5 MARKS EACH

Write short notes on any five of the following.

LB-5031 · INFORMATION TECHNOLOGY LAW · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT VI

Cyber Security

◆ SYLLABUS COVERAGE

Cyber security — the concept and the statutory architecture · interception and monitoring (s.69 and the 2009 Interception Rules) · blocking of public access (s.69A and the 2009 Blocking Rules) · protected systems, NCIIPC and CERT-In (ss.69B, 70, 70A, 70B) · the constitutional interface — freedom of speech, privacy and the right to be forgotten.

◆ STATUTES & PROVISIONS

IT Act, 2000 · ss.69, 69A, 69B, 70, 70A, 70B · Interception Rules, 2009 · Blocking Rules, 2009 · Constitution Arts. 19(1)(a), 21

◆ PRESCRIBED CASE MATERIAL

Shreya Singhal v. Union of India · Ratan Tata v. Union of India · Sreekanth C. Nair v. Developer of Web-Site · K.S. Puttaswamy v. Union of India · Anuradha Bhasin v. Union of India

⬢ Interception, blocking and protected systems — ss.69, 69A, 69B, 70, 70A and 70B, and their interface with freedom of speech, privacy and the right to be forgotten

Delhi University · Faculty of Law

LL.B. V Term · Paper LB-5031

Information Technology Law

Prepared from the prescribed DU case material (CMITLAW-2026) · Unit VI of Part A

Syllabus coverage: National Security — Interception, Blocking, Protected System (ss.69–70B), procedure of blocking and interception under the rules, and its interface with freedom of speech and privacy, right to be forgotten

THE ONE IDEA THAT CARRIES THIS ENTIRE UNIT

Unit V asked how far a **private platform** can go in controlling third-party content. Unit VI turns the question around and asks how far the **State** can go in controlling the internet itself. The IT Act gives the executive three distinct and formidable powers: **s.69** (intercept, monitor or de ...

⬢ 1 Cyber security — the concept and the statutory architecture

The IT Act has no single "cyber security" chapter. Chapter XI contains the offences (ss.65–75); Chapter XI-A and the group of sections **69 to 70B** contain the State's **coercive and protective powers**. This Unit is about those powers — what they are, how they are procedurally fenced, and how they are constitutionally limited.

▸ 1.1 What "cyber security" means for this syllabus

Cyber security is the body of law, practice and technology directed at protecting **computer resources, computer networks, and the information they hold** from unauthorised access, use, disclosure, disruption, modification or destruction. For the purposes of Unit VI it is used in a narrower, **state-power** sense: the legal framework by which the State (a) **monitors** communications (s.69), (b) **blocks** public access to information (s.69A), (c) **collects traffic data** (s.69B), and (d) **protects critical infrastructure** (ss.70, 70A, 70B).

The syllabus places all four in a single cluster headed **"National Security"**, and then adds the critical qualifier — **"and its interface with freedom of speech and privacy, right to be forgotten"**. That qualifier is the actual subject matter of the Unit. The powers are not controversial because they exist; they are controversial because of **what they do to Articles 19(1)(a) and 21**.

▸ 1.2 The statutory architecture — six sections and two rule-books

Provision	Subject	What it actually authorises	Penalty for breach
s.69	Interception, monitoring or decryption	The Central or State Government, or a specially authorised officer, satisfied of necessity or expediency in the enumerated interests, may by reasoned written order direct **any agency of the appropriate Government** to intercept, monitor or decrypt any information generated, transmitted, received or stored in any computer resource.	Subscriber, intermediary or person in charge who fails to extend facilities and technical assistance: up to **7 years** and fine (s.69(4))
s.69A	Blocking public access	The Central Government or an authorised officer, satisfied that it is necessary or expedient in the enumerated interests, may by reasoned written order direct **any agency of the Government or an intermediary** to block, for public access, any information generated, transmitted, received, stored or hosted in any computer resource.	Intermediary who fails to comply: up to **7 years** and fine (s.69A(3))
s.69B	Monitoring and collecting traffic data	The Central Government may, by notification in the Official Gazette, authorise any agency of the Government to monitor and collect traffic data or information generated, transmitted, received or stored in any computer resource, to enhance cyber security and for identification, analysis and prevention of intrusion or spread of computer contaminant.	Non-compliance: up to **7 years** and fine (s.69B(4))
s.70	Protected system	The appropriate Government may, by notification, declare any computer resource which **directly or indirectly affects the facility of Critical Information Infrastructure** to be a protected system, and may authorise persons to access it.	Unauthorised access or attempted access: up to **10 years** and fine (s.70(3))
s.70A	National nodal agency	Creates the **National Critical Information Infrastructure Protection Centre (NCIIPC)** as the National Nodal Agency for the protection of critical information infrastructure, with functions of identification, analysis, forecasting and response to national-level threats.	Function-based
s.70B	Indian Computer Emergency Response Team (CERT-In)	Serves as the national agency for incident response; may **call for information** and give directions to specified persons; its functions include issuing advisories, vulnerability assessments, security quality management services and forensic assistance.	Failure to comply with a CERT-In direction: up to **1 year** and fine (s.70B(7))

▸ 1.3 The three powers contrasted

Feature	s.69 — interception / monitoring / decryption	s.69A — blocking	s.70 — protected systems

Nature of power	**Covert** access to the **content** of a specific communication	**Overt**, public denial of access to information already published	**Protective** designation of critical infrastructure
Object	Surveillance of targeted communications for intelligence, investigation or incitement-prevention	Preventing the public at large from viewing designated content	Restricting access to a critical computer resource to authorised persons
Directed to	An **agency of the appropriate Government** (not the intermediary directly)	An **agency of the Government or an intermediary**	Applies to **all persons** who access the system
Grounds	Sovereignty and integrity of India; defence; security of the State; friendly relations with foreign States; public order; preventing incitement to a cognizable offence relating to the above; **and investigation of any offence**	The same grounds **except** the general "investigation of any offence" limb — the incitement limb is confined to cognizable offences "relating to above"	No free-standing grounds; the resource must affect Critical Information Infrastructure
Procedural safeguard	**2009 Interception Rules** — competent authority (Union/State Home Secretary), reasoned direction, alternative-means inquiry, 60-day validity (renewable to 180 days), confidentiality, Review Committee every two months	**2009 Blocking Rules** — Designated Officer (not below Joint Secretary), Nodal Officer per organisation, Committee examination, **hearing** to originator/ intermediary (except emergencies), Secretary DoIT approval, Review Committee every two months, confidentiality	Notification + written authorisation of persons; information security practices prescribed under s.70(4)
Constitutional posture	Never comprehensively reviewed post-*Puttaswamy*; the parallel Telegraph Act power was scrutinised in *PUCL* (1997)	**Expressly upheld** in *Shreya Singhal* (2015)	Not seriously contested; the critical-infrastructure logic is uncontroversial
Penalty	7 years (s.69(4))	7 years (s.69A(3))	**10 years** (s.70(3))

1.4 Related instruments you must place alongside the Act

Instrument	Why it belongs in this Unit
Indian Telegraph Act, 1885 — s.5(2) and Rule 419A, Telegraph Rules, 1951	The **pre-IT Act, parallel** source of telephone-interception power, still operative. *People's Union for Civil Liberties v. Union of India*, (1997) 1 SCC 301, read procedural safeguards into s.5(2): interception only on "public emergency" or "in the interest of public safety"; orders by the Union or State Home Secretary; two-month validity, six-month maximum; Review Committee (Cabinet Secretary at the Centre, Chief Secretary in the States) meeting within two months. The 2009 Interception Rules **mirror** Rule 419A almost exactly and expressly define "Review Committee" as the one constituted under Rule 419A. This is the statutory root of the *Ratan Tata* case.
IT (The Indian Computer Emergency Response Team and Manner of Performing Functions and Duties) Rules, 2013	The rule-book under which CERT-In operates; defines "cyber incident" and "cyber security incident".
CERT-In Directions, 28 April 2022 (under s.70B(6))	The most consequential exercise of s.70B in practice: **6-hour** cyber-incident reporting; **180-day** rolling ICT log retention within India; NTP clock synchronisation; a named CERT-In Point of Contact; and subscriber-information retention for **5 years** by VPS, cloud, data-centre and VPN providers. Binding, with non-compliance punishable under s.70B(7) by up to one year's imprisonment.
Digital Personal Data Protection Act, 2023 and DPDP Rules, 2025	India's post-IT-Act privacy statute. Supersedes the SPDI Rules, 2011 (framed under s.43A) and supplies the **erasure right** (s.12) that is the closest statutory analogue to a right to be forgotten.
Right to Information Act, 2005 — s.8(1)(j)	The transparency side of the interface: "personal information" that has no relationship to any public activity or interest, or which would cause unwarranted invasion of privacy, is exempt from disclosure — the tension between *Puttaswamy* and open-justice disclosure.
Temporary Suspension of Telecom Services (Public Emergency or Public Service) Rules, 2017 and **s.144 CrPC**	The parallel regime for **network-wide internet shutdowns** — distinct from s.69A content-blocking, and the statutory framework in *Anuradha Bhasin*.
IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, as amended 2022–2026	The private-side mirror of s.69A: Rule 3(1)(d) obliges an intermediary to remove content on a court order or Government notification within **3 hours** (since 20 February 2026). The two regimes interlock — s.69A is the power, Rule 3(1)(d) is the duty.

 Real example — how the powers look in practice

In **2018**, the Ministry of Home Affairs issued a statutory order under **Rule 4** of the 2009 Interception Rules authorising **ten central agencies** to intercept, monitor and decrypt information generated, transmitted, received or stored in any computer resource. The MHA was careful to emph ...

◆ 2 Interception and monitoring — s.69 and the 2009 Interception Rules

2.1 The provision

 Section 69 — Power to issue directions for interception or monitoring or decryption of any information through any computer resource

(1) Where the Central Government or a State Government or any of its officers specially authorised by the Central Government or the State Government, as the case may be, in this behalf may, if satisfied that it is necessary or expedient so to do in the interest of the sovereignty or integrity of India, defence of India, security of the State, friendly relations with foreign States or public order or for preventing incitement to the commission of any cognizable offence relating to above **or for investigation of any offence**, it may, subject to the provisions of sub-section (2), **for reasons to be recorded in writing**, by order, direct any agency of the appropriate Government to intercept, monitor or decrypt or cause to be intercepted or monitored or decrypted any information generated, transmitted, received or stored in any computer resource. **(2)** The procedure and safeguards subject to which such interception or monitoring or decryption may be carried out, shall be such as may be prescribed. **(3)** The subscriber or intermediary or any person in-charge of the computer resource shall, when called upon by any agency referred to in sub-section (1), extend all facilities and technical assistance to — **(a)** provide access to or secure access to the computer resource generating, transmitting, receiving or storing such information; or **(b)** intercept, monitor, or decrypt the information, as the case may be; or **(c)** provide information stored in computer resource. **(4)** The subscriber or intermediary or any person who fails to assist the agency referred to in sub-section (3) shall be punished with imprisonment for a term which may extend to **seven years** and shall also be liable to fine.

Dissect it into five elements — this is the structure an examiner wants:

▸▸ Element 1 — Who may issue the direction

The **Central Government or a State Government**, or an officer **specially authorised** by it. Critically, the direction is issued **not to the intermediary but to an agency of the appropriate Government** — the intermediary is only the object of the **assistance duty** in s.69(3).

▸▸ Element 2 — The satisfaction

The authority must be **satisfied that it is necessary or expedient** so to act. Note the breadth: "necessary **or** expedient" is a disjunctive, executive-friendly standard, in contrast to the "necessary"-only language used in the 2017 Suspension Rules and read strictly in *Anuradha Bhasin*.

▸▸ Element 3 — The enumerated grounds

Sovereignty and integrity of India; defence of India; security of the State; friendly relations with foreign States; public order; preventing incitement to the commission of any cognizable offence relating to the above; **and — uniquely — "for investigation of any offence"**. This last limb is the textual source of s.69's breadth: it permits interception in ordinary criminal investigation, not merely for national-security purposes.

▸▸ Element 4 — The form and the record

The direction must be an **order**, must record **reasons in writing**, and must be **subject to the procedure and safeguards prescribed** under s.69(2). The reasons requirement is what makes the order **judicially reviewable** under Article 226 — the same logic the Supreme Court relied on when upholding s.69A.

▸▸ Element 5 — The assistance duty and the penalty

On being called upon, the **subscriber or intermediary or any person in charge** must extend all facilities and technical assistance — to provide or secure access, to intercept/monitor/decrypt, or to provide stored information. Failure carries **up to seven years' imprisonment and a fine**. This is the operative obligation on telecom operators, ISPs, email providers and device custodians.

▸ 2.2 The 2009 Interception Rules — the safeguards, step by step

The **IT (Procedure and Safeguards for Interception, Monitoring and Decryption of Information) Rules, 2009** were notified on **27 October 2009** under s.69(2). They are the operative law.

Rule	Safeguard
Rule 2(d)	**"Competent authority"** means the **Secretary in the Ministry of Home Affairs** for the Central Government, and the **Secretary in charge of the Home Department** for a State Government or Union territory. The power sits with the executive head, not with investigating agencies.
Rule 2(q)	**"Review Committee"** means the Committee constituted under **Rule 419A of the Indian Telegraph Rules, 1951** — at the Centre, headed by the **Cabinet Secretary**; in a State, by the **Chief Secretary**. The two statutes share one oversight body.
Rule 3	**No interception except by an order of the competent authority.** In an **emergency**, an officer not below the rank of Joint Secretary may authorise; he must **inform the competent authority in writing within three working days** and obtain approval **within seven working days**, failing which the interception must **cease**.
Rule 4	The competent authority may **authorise an agency of the Government** to carry out interception. This is the rule under which the **MHA order of 20 December 2018** notified ten agencies.
Rule 5	The competent authority may issue a **decryption direction** to the decryption key holder.
Rule 6	Interception **beyond a State's territorial jurisdiction** requires a request from the State Home Secretary to the **Secretary, Ministry of Home Affairs**.
Rule 7	Every direction must **contain reasons**, and a copy must be forwarded to the **Review Committee within seven working days**.
Rule 8	The competent authority must, before issuing a direction, **consider the possibility of acquiring the necessary information by other means**, and the direction shall be issued only if that is not possible. **This is the least-restrictive-alternative requirement written into the Rules themselves.**
Rules 9–10	The direction must be specific as to the person, class of persons or subject matter, and must **specify the name and designation of the officer** to whom the material may be disclosed.
Rule 11	The direction remains in force, unless revoked earlier, for **not more than sixty days** from issue, renewable from time to time **up to a total of one hundred and eighty days**.
Rules 12–13	Mandatory **record-keeping**: the authority that issued the direction, the particulars of the person intercepted, the officer to whom the material was disclosed, the number of copies made, the date of destruction and the duration of the direction. Records are to be **destroyed every six months** unless required for functional reasons (Rule 23, as amended in 2024 to permit destruction by both the competent authority and the security agency).
Rules 15–17	**Strict confidentiality**: the contents of intercepted material shall not be disclosed or reported in public by any means **without the prior order of a competent court in India**.
Rule 22	The **Review Committee must meet at least once in two months** and record findings on whether the directions accord with s.69(2); if not, it may **set aside the directions and order destruction of the material**.

▸ 2.3 The parallel Telegraph Act regime

Feature	s.69 IT Act + 2009 Interception Rules	s.5(2) Telegraph Act + Rule 419A
Object	Any information in **any computer resource** — email, messaging, files, devices	Messages transmitted by **telegraph**, which the Telegraph Act defines to include telephony
Grounds	Six enumerated grounds + "investigation of any offence"	Only **"public emergency"** or **"in the interest of public safety"** — a materially narrower trigger
Approving authority	Union Home Secretary / State Home Secretary	Union Home Secretary / State Home Secretary
Duration	60 days, renewable to a maximum of 180 days	Two months unless renewed, up to a maximum of six months (as laid down in *PUCL*)
Review	Review Committee under Rule 419A, meeting at least every two months	Same committee
Key judicial authority	Never comprehensively reviewed post-*Puttaswamy*	***PUCL v. Union of India***, (1997) 1 SCC 301 — read procedural safeguards into s.5(2); "telephone tapping would infract Article 21 unless permitted under the procedure established by law"

Why you must mention both. A complete answer on interception law in India is not an s.69 answer — it is an **s.69 + s.5(2) Telegraph Act** answer. The Radia tapes in *Ratan Tata* were intercepted under the **Telegraph Act**, not the IT Act. Conversely, most modern messaging surveillance proceeds under **s.69**. The two regimes have converged procedurally (they share the same competent authority and the same Review Committee) but diverge on **grounds** — and that divergence is where a critical answer earns its marks.

⚖ Doctrinal anchor —
People's Union for Civil Liberties v. Union of India
, (1997) 1 SCC 301
The foundational pre-*Puttaswamy* decision on telephone tapping. The Court held that the right to hold a telephone conversation in the privacy of one's home or office without interference **can certainly be claimed as "right to privacy"**; that "telephone conversation is an important facet of man's private life"; and that **"telephone-tapping would, thus, infract Article 21 of the Constitution of India unless it is permitted under the procedure established by law."** It also held that because telephone conversations are an exercise of the freedom of speech and expression under Article 19(1)(a), interception must be a **reasonable restriction under Article 19(2)**. Finding that s.5(2) of the Telegraph Act contained no procedural safeguards, the Court **laid them down judicially** — the template that Rule 419A and the 2009 Interception Rules later codified. **Learn the PUCL three-fold point:** interception must be (i) under a procedure established by law, (ii) necessary in the enumerated interests, and (iii) minimally invasive. That is the same architecture *Puttaswamy* later restated as legality → legitimate aim → proportionality.

 Real examples

- **The Radia tapes (2008–2009).** The Income Tax Department, acting on a complaint from the Finance Minister dated 16 November 2007, obtained Home Secretary authorisation under **s.5(2) of the Telegraph Act** and intercepted roughly **5,800** of Niira Radia's conversations. Some were leaked and published by *Outlook* and *Open* in …

⬢ 3 Blocking of public access — s.69A and the 2009 Blocking Rules

s.69A is the only power in the ss.69–70B cluster that the Supreme Court has **expressly upheld on its merits**. Its procedural safeguards are set out verbatim in the DU case material at *Shreya Singhal* paras 107–111. Learn it in detail.

▸ 3.1 The provision, verbatim from the DU case material

 Section 69A — Power to issue directions for blocking for public access of any information through any computer resource
(As set out in paragraph 2 of *Shreya Singhal v. Union of India*, (2015) 5 SCC 1 — DU case material, p. 132)
Note the four textual features that did the work in *Shreya Singhal*: (i) the grounds are **confined to Article 19(2)-proximate subjects**; (ii) **reasons must be recorded in writing**, making the order assailable under Article 226; (iii) the direction runs to an **agency of the Government or an intermediary**; and (iv) the whole power is **"subject to the provisions of sub-section (2)"** — i.e. to the procedural safeguards the 2009 Rules supply.

▸ 3.2 The 2009 Blocking Rules — the ten-step procedure

The **IT (Procedure and Safeguards for Blocking for Access of Information by Public) Rules, 2009** were notified on **27 October 2009**. The Supreme Court described them in detail at para 107. Reproduce this table — it is the safest marks in the Unit.

Step	Rule	What happens
1	**Rule 3**	The Central Government notifies in the Official Gazette a **Designated Officer** — an officer **not below the rank of a Joint Secretary** — for the purpose of issuing blocking directions.
2	**Rule 4**	Every **"organisation"** (the Government of India, State Governments, Union Territories and notified Central Government agencies, per Rule 2(g)) designates one of its officers as a **Nodal Officer**.
3	**Rule 6**	**Any person may complain** to the Nodal Officer of the concerned organisation. The organisation examines the complaint against the s.69A(1) parameters and, if satisfied, transmits it through its Nodal Officer to the Designated Officer in the prescribed format. **The Designated Officer may not entertain a complaint or request for blocking directly from any person.**
4	**Rule 5**	On receiving a request from a Nodal Officer **or from a competent court**, the Designated Officer may, by order, direct any intermediary or agency of the Government to block any information or part thereof for the reasons specified in s.69A(1).
5	**Rule 7**	The request or complaint is examined by a **Committee of Government personnel**.
6	**Rule 8**	The Committee must **first make all reasonable efforts to identify the originator or intermediary** who has hosted the information. If identified, a **notice must issue** to appear and submit a reply at a specified date and time, **which shall not be less than 48 hours** from the date and time of receipt of the notice. **It is not merely the intermediary who may be heard — the originator too.**
7	**Rule 7 (cont.)**	The Committee examines the request, considers whether it is covered by s.69A(1), and gives a **specific written recommendation** to the Nodal Officer of the concerned organisation.
8	**Rule 7 (cont.)**	The Designated Officer submits the Committee's recommendation to the **Secretary, Department of Information Technology**, who **approves** the request. Only on such approval does the Designated Officer direct the agency or intermediary to block.
9	**Rule 9**	**Emergency blocking:** where delay would be fatal, blocking may take place **without any opportunity of hearing**. The Designated Officer must then, **not later than 48 hours** of the interim direction, bring the request before the Committee, and only on the Committee's recommendation is the Secretary, DoIT, to pass the final order.
10	**Rule 10**	Where there is an order of a **competent court in India**, the Designated Officer, on receipt of a **certified copy**, submits it to the Secretary, DoIT, and initiates action as directed by the court.
Rule 14	A **Review Committee meets at least once in two months** and records findings on whether directions accord with s.69A(1); if of the contrary opinion it may **set aside the directions and issue orders to unblock**.	
Rule 16	**Strict confidentiality** is maintained regarding all requests, complaints received and actions taken.	

3.3 The Shreya Singhal reasoning on s.69A — paras 108 to 111

The four propositions that saved s.69A

Para 109: "It will be noticed that Section 69A **unlike Section 66A is a narrowly drawn provision with several safeguards**. First and foremost, blocking can only be resorted to where the Central Government is satisfied that it is necessary so to do. Secondly, such necessity is **relatable only to some of the subjects set out in Article 19(2)**. Thirdly, **reasons have to be recorded in writing in such blocking order so that they may be assailed in a writ petition under Article 226 of the Constitution.**" **Para 110:** "The Rules further provide for a hearing before the Committee set up — which Committee then looks into whether or not it is necessary to block such information. It is only when the Committee finds that there is such a necessity that a blocking order is made. It is also clear from an examination of Rule 8 that **it is not merely the intermediary who may be heard. If the 'person' i.e. the originator is identified he is also to be heard before a blocking order is passed.** Above all, it is only after these procedural safeguards are met that blocking orders are made and in case there is a certified copy of a court order, only then can such blocking order also be made. **It is only an intermediary who finally fails to comply with the directions issued who is punishable under sub-section (3) of Section 69A.**" **Para 111:** "Merely because certain additional safeguards such as those found in Section 95 and 96 CrPC are not available does not make the Rules constitutionally infirm. **We are of the view that the Rules are not constitutionally infirm in any manner.**"

The petitioners' attack (recorded at para 108) is worth stating because it shows you the whole argumentative structure:

Petitioners' attack on s.69A and the 2009 Rules

- **No pre-decisional hearing** is afforded by the Rules, particularly to the "**originator**" of information — defined in s.2(1)(za) as a person who sends, generates, stores or transmits any electronic message, or causes any electronic message to be sent, generated, stored or transmitted to any other person.
- **Procedural safeguards** such as those provided under **ss.95 and 96 of the Code of Criminal Procedure** are not available.
- The **confidentiality provision** (Rule 16) affects the fundamental rights of the petitioners.

Why the attack failed

- s.69A **is** narrowly drawn: the grounds are Article 19(2)-proximate.
- Rule 8 **does** afford a hearing — to the originator where identified, and to the intermediary in every case, with at least 48 hours' notice.
- The CrPC safeguards in ss.95 and 96 were **not mandatory analogues**; their absence does not render the Rules infirm.
- Confidentiality is a **reasonable** adjunct to a blocking power, not an infringement.

3.4 How s.69A interlocks with s.79 and the 2021 Rules

The interlock — always make this connection

- **s.69A is the power; s.79 is the safe harbour; Rule 3(1)(d) of the 2021 Rules is the bridge.** An intermediary that complies with a s.69A blocking direction, or with a court order or Government notification under Rule 3(1)(d), does **not** forfeit its s.79 protection. Indeed, in *Shreya Singh* ...

Real example

When the Government of India blocks a website, the sequence that actually runs is the Rule 6–8 procedure: a complaint goes to the Nodal Officer of, say, the Ministry of Home Affairs or the Ministry of Information and Broadcasting; it is transmitted to the Designated Officer (a Joint Secretary in MeitY); a Committee ...

4 Protected systems, NCIIPC and CERT-In — ss.69B, 70, 70A, 70B

Where ss.69 and 69A are about **watching and silencing**, ss.69B, 70, 70A and 70B are about **defending**: collecting traffic data to spot intrusions, ring-fencing critical infrastructure, and building national response capacity. These provisions attract far less controversy — but they carry the Act's **second-highest penalty**.

4.1 Section 69B — monitoring and collection of traffic data for cyber security

Section 69B — Power to authorise to monitor and collect traffic data or information through any computer resource for cyber security

(1) The Central Government may, to enhance cyber security and for identification, analysis and prevention of intrusion or spread of computer contaminant in the country, **by notification in the Official Gazette**, authorise any agency of the Government to monitor and collect traffic data or information generated, transmitted, received or stored in any computer resource. **(2)** The procedure and safeguards subject to which such monitoring and collection of traffic data or information may be carried out, shall be such as may be prescribed. **(3)** [Prescription of safeguards] **(4)** The intermediary or any person in-charge of the computer resource who fails to extend all facilities and technical assistance to the authorised agency shall be punished with imprisonment for a term which may extend to **seven years** and shall also be liable to fine.

s.69B is

s.69 — know the difference

- **Object:** s.69B authorises collection of **traffic data** — who is talking to whom, when, from where, in what volume — **not content**. Section 69 authorises interception of **content**.
- **Trigger:** s.69B is triggered by the purpose of **enhancing cyber security** and preventing intrusion or the spread of **computer ...**

4.2 Section 70 — protected systems

Section 70 — Protected system

(1) The appropriate Government may, **by notification in the Official Gazette**, declare any computer resource which **directly or indirectly affects the facility of Critical Information Infrastructure**, to be a **protected system**. **Explanation.** — For the purposes of this section, "**Critical Information Infrastructure**" means the computer resource, the incapacitation or destruction of which, shall have **debilitating impact on national security, economy, public health or safety**. **(2)** The appropriate Government may, by order in writing, **authorise the persons** who are authorised to access protected systems notified under sub-section (1). **(3)** Any person who **secures access or attempts to secure access** to a protected system in contravention of the provisions of this section shall be punished with imprisonment of either description for a term which may extend to **ten years** and shall also be liable to fine. **(4)** The Central Government shall prescribe the **information security practices and procedures** for such protected system.

Breaking s.70 into four components

1. **Who declares** — the **"appropriate Government"** (Centre or State), by **notification in the Official Gazette**.

2. **What qualifies** — a computer resource that **"directly or indirectly affects the facility of"** Critical Information Infrastructure. Note the breadth of "indirectly": a billing system, a logistics database or a supplier portal can be caught.
3. **What CII means** — a resource whose **"incapacitation or destruction"** would have a **"debilitating impact on national security, economy, public health or safety"**. The test is **consequence-based**, not sector-based.
4. **The offence** — securing **or attempting** to secure access in contravention. Note that **mere attempt** is enough; there is no requirement of damage, and the punishment is **ten years**.

4.3 Section 70A — the National Nodal Agency (NCIIPC)

s.70A establishes the **National Critical Information Infrastructure Protection Centre (NCIIPC)** as the **National Nodal Agency** for the protection of critical information infrastructure. Its functions, prescribed under the rules, include:

Function	Detail
Identification	Identifying critical information infrastructure requiring protection, and issuing advisories to its owners and operators.
Monitoring, analysis and forecasting	Monitoring trends, analysing threats and forecasting intrusions or attacks on critical sectors.
Research and development	Evolving protection strategies, policies and vulnerability assessment methodologies, and sponsoring R&D.
Response and coordination	Issuing guidelines, advisories and directions; coordinating with national and international CERTs; developing a national cyber assurance plan.
Composition	A Member (Staff) of the National Technical Research Organisation, of the rank of Special Secretary, as the Chief Executive Officer; an operations centre with a 24×7 helpdesk.

4.4 Section 70B — CERT-In

s.70B makes the **Indian Computer Emergency Response Team (CERT-In)** the **national agency for incident response**, with functions including:

Function	Detail
Collection, analysis and dissemination	Of information on cyber incidents; taking steps to prevent and respond to cyber security incidents; forecasting and alerting.
Emergency measures	Co-ordination of emergency measures for dealing with cyber security incidents; emergency response and relief.
Technical assistance	Compiling forecasts and trends; assisting individuals and organisations in mitigating incidents; forensic assistance.
Power to call for information and give directions	**s.70B(1)(c)** empowers CERT-In to call for information from any specified person and give such directions as it considers necessary, and to authorise any person to take steps to secure systems and networks. This is the source of the 2022 Directions.
Non-compliance	Failure to comply with a CERT-In direction: imprisonment up to **one year** and/or fine (s.70B(7)).

 The CERT-In Directions, 28 April 2022 (No. 20(3)/2022-CERT-In, under s.70B(6)) — the operative cyber-security law for every Indian business

Obligation	Content
Incident reporting	Mandatory reporting of cyber incidents (including targeted scanning of systems and data breaches) to CERT-In **within 6 hours** of noticing or being notified. The clock runs from **awareness, not from completion of forensic investigation**. Reporting does not require that the incident be fully understood.
Log retention	Enable logs of all ICT systems (network, server, application, database, mail, proxy, security tool) and maintain them securely for a **rolling period of 180 days**, **within Indian jurisdiction**, producible to CERT-In on request.
Subscriber records	**Data centres, cloud service providers, VPS providers and VPN service providers** must maintain accurate subscriber information — name, address, IP address and other identifying particulars — for a minimum of **five years** after cessation of service, and furnish it to CERT-In on request.
Time synchronisation	Synchronise system clocks with the **NIC or NPL Network Time Protocol** servers, so that forensic timelines are uniform across organisations.
Point of contact	Appoint and notify a **CERT-In Point of Contact** with designated contact credentials.
Scope	Applies to **service providers, intermediaries, data centres, VPS/cloud/VPN providers and body corporates** — irrespective of size — and to foreign companies operating digital services in India through Indian subsidiaries.
Enforcement	Effective 28 June 2022, with enforcement deferred to 25 September 2022; still binding as of 2026.

⚖ The privacy critique of the 2022 Directions — a genuine Unit VI point

The **5-year VPN subscriber retention** and **180-day in-India log retention** obligations sit uneasily with the *Puttaswamy* proportionality framework. Three specific objections: **(1)** the retention is **indiscriminate** — it applies to all users rather than to suspects, which is the precise vice the CJEU identified in *Digital Rights Ireland* (2014) and *Tele2 Sverige/Watson* (2016) when striking down blanket data-retention mandates; **(2)** there is **no access control** — retention is required without specifying who may access the data or on what authority; and **(3)** there is **no deletion obligation** independent of the rolling period. The counter-argument is that s.70B(6) is an express statutory authorisation, so the **legality** limb of *Puttaswamy* is satisfied, and that a six-hour reporting duty is a reasonable and proportionate response to escalating attacks. **The honest exam answer states both and leaves the question open** — the Supreme Court has not definitively ruled on the Directions.

 Real examples of protected systems and CII

- **Power grid SCADA systems.** The load-despatch and supervisory-control systems of the national and regional grids are the paradigm CII — their incapacitation would have a debilitating impact on public health and safety.
- **Banking and payment switches.** NPCI's payment infrastructure, core bank …

⬢ 5 The constitutional interface — freedom of speech, privacy and the right to be forgotten

The syllabus does not ask you to learn four sections and two rule-books. It asks you to study those powers **"and its interface with freedom of speech and privacy, right to be forgotten"**. This section supplies the constitutional framework; the five case briefs that follow apply it.

5.1 Two fundamental rights are engaged at once

Right	What it protects	Which powers engage it
Article 19(1)(a) — freedom of speech and expression	The right to speak, publish, receive and disseminate information, including over the internet.	**s.69A blocking** is a direct content restriction. **s.69 interception** engages Article 19(1)(a) as well, because telephone and electronic conversations are themselves exercises of that freedom (*PUCL*, 1997).

Article 19(1)(g) — freedom of trade, profession and occupation	The right to carry on any occupation, trade or business — including online business.	**Network-wide internet shutdowns**, which halt digital commerce entirely. *Anuradha Bhasin* held that the freedom to carry on trade or business **through the medium of the internet** is protected under Article 19(1)(g).
Article 21 — life and personal liberty, including privacy	The right to be let alone; bodily integrity; personal autonomy; **informational privacy**.	**s.69 interception** and **s.69B traffic-data collection** are the clearest Article 21 intrusions. **s.70** engages it only marginally.
Article 14 — equality before law	Guards against arbitrary state action.	All of them, where the power is exercised without a principled standard — the ground on which s.66A failed in *Shreya Singhal*.

5.2 The Puttaswamy three-fold test — the master formula

 The three-fold test — state it BY NAME in every answer

Any state action that infringes a fundamental right — including every exercise of the ss.69, 69A, 69B and 70 powers — must satisfy **three** requirements:

1. **LEGALITY** — the action must be authorised by a **valid law** — "the law" in the sense of an enacted law or a valid subordinate legislation, not merely executive fiat.
2. **LEGITIMATE AIM** — the State must pursue a **legitimate constitutional aim** — for a restriction on Article 19(1)(a), one of the subject matters in **Article 19(2)**; for an Article 21 intrusion, a compelling state interest such as national security or public order.
3. **PROPORTIONALITY** — the means adopted must have a **rational nexus** with the aim; must be **necessary** (no equally effective but less restrictive alternative); and must not be **disproportionate** in their **territorial and temporal scope**.

The three sub-limbs of proportionality, as the Supreme Court has refined them (drawing on the German necessity test and the Canadian *Oakes* test, and expressly on Justice Chandrachud's formulation in the Aadhaar case): **(i)** a legitimate State aim; **(ii)** a rational nexus between the restrictive measures, the situation in fact, and the goal sought; **(iii)** necessity — the measures must be the **least restrictive** means reasonably available; and **(iv)** the restriction must not be disproportionate in its **territorial and temporal scope** to the object pursued.

 The aphorism to quote

Lord Diplock's formulation, quoted with approval in *Anuradha Bhasin*: **"you must not use a steam hammer to crack a nut, if a nutcracker would do"** (*R v. Goldsmith*, [1983] 1 WLR 151, 155). One sentence, high recall value, and it captures the whole of the proportionality limb.

5.3 How Shreya Singhal applied the framework to blocking

Because *Shreya Singhal* is the DU case for this Unit, the s.69A limb of the reasoning must be reproduced in constitutional terms. The Court's analysis proceeds in three steps:

Step 1 — Is s.69A a restriction on Article 19(1)(a)?

Yes. Blocking public access to information is a direct interference with the right to receive and disseminate information — a fortiori because the internet is a **democratic medium** and access to it is integral to Article 19(1)(a).

Step 2 — Is the restriction saved by an Article 19(2) ground?

Yes, and precisely so. The s.69A(1) grounds — sovereignty and integrity of India, defence of India, security of the State, friendly relations with foreign States, public order, and preventing incitement to a cognizable offence relating to the above — **track the Article 19(2) subject matters exactly**. Contrast s.66A, whose grounds ("annoyance, inconvenience, danger, obstruction, insult, injury, criminal intimidation, enmity, hatred or ill-will") lay wholly outside Article 19(2).

Step 3 — Is the procedure reasonable and just?

Yes. The 2009 Rules supply a hearing to the originator and the intermediary, a reasoned written order, judicial review under Article 226, and a Review Committee. The Court rejected the argument that the absence of ss.95–96 CrPC safeguards rendered the Rules infirm. **Result: s.69A and the 2009 Rules upheld; s.66A struck down — in the same judgment.**

5.4 From content-blocking to network shutdown — Anuradha Bhasin

Shreya Singhal dealt with the blocking of **specific content** under s.69A. The adjacent question — whether the State may **suspend the internet itself** across a territory — was answered in *Anuradha Bhasin*. The Court held that the freedom of speech and expression, and the freedom to practise any profession or carry on any trade, business or occupation, **through the medium of the internet**, are protected by Articles 19(1)(a) and 19(1)(g); that any restriction must be in consonance with Articles 19(2) and 19(6), **inclusive of the test of proportionality**; and that **an order suspending internet services indefinitely is impermissible** under the Temporary Suspension of Telecom Services (Public Emergency or Public Service) Rules, 2017. The operative directions were: suspension may be for a **temporary duration only**; any suspension order must adhere to proportionality and must not extend beyond the necessary duration; suspension orders are **subject to judicial review**; the **Review Committee must conduct a periodic review every seven working days**; and all existing suspension orders must be reviewed and those not complying revoked. The Court also directed that all orders under **s.144 CrPC** and the Suspension Rules be **published**, and held that repetitive s.144 orders would be an **abuse of power**.

5.5 The right to be forgotten — the syllabus's hardest question

 The accurate position as of August 2026

India has no codified right to be forgotten. There is no provision in the IT Act, and no dedicated statute, conferring an EU-style right. What exists is: **(1)** the **erasure right in s.12 of the Digital Personal Data Protection Act, 2023**, operationalised by the DPDP Rules, 2025 — a narrower right, tied to the withdrawal of consent or the exhaustion of the specified purpose; and **(2)** a **fragmented and non-uniform body of High Court decisions** — from Delhi, Karnataka, Kerala and Gujarat — recognising a limited right to have outdated or irrelevant personal information **delinked from search results** or removed from court-judgment repositories, reasoned from the *Puttaswamy* privacy right. There is **no Supreme Court authority** definitively settling the doctrine's scope.

Jurisdiction	Authority	What it established
EU	***Google Spain SL v. AEPD***, Case C-131/12 (CJEU, 2014)	The doctrinal source. Established a right to have search results for a person's name **de-listed** where the information is **inadequate, irrelevant, no longer relevant or excessive** in relation to the purposes of processing and the time elapsed. Now codified in **Article 17, GDPR**.
India	High Courts of **Delhi, Karnataka, Kerala and Gujarat**	Have recognised a limited right to **delinking** — particularly for acquittals, matrimonial disputes and sensitive personal matters — reasoning from the *Puttaswamy* privacy right, without uniform criteria and without a Supreme Court ruling on the doctrine's contours.

India (statutory)	**DPDP Act, 2023 — s.12** and DPDP Rules, 2025	The **right to erasure**: a Data Principal may require erasure of personal data where it is no longer necessary for the specified purpose, or consent is withdrawn, subject to legal retention requirements. **Narrower** than the EU right — it is tied to consent and purpose, not to the passage of time and diminished public interest.
India (statutory, tension)	**RTI Act, 2005 — s.8(1)(j)**; the **open-justice** principle	The counter-weight. Personal information with no relationship to public activity, or disclosure of which would cause unwarranted invasion of privacy, is exempt. But court judgments are public documents, and the Supreme Court has consistently resisted erasure of judicial records.

 Cross-unit link

The same *Puttaswamy* test governs **Unit V** — it is the reason the Supreme Court in *Shreya Singhal* refused to allow intermediaries to remove content on a private complaint alone, and the reason the **Rule 4(2) traceability mandate** of the 2021 Intermediary Guidelines remains constitutionally contested. Cite it in both …

⬢ 6 Case brief 1 — Shreya Singhal v. Union of India (the s.69A and s.66A limb)

CASE BRIEF 1 · THE FOUNDATIONAL CYBER-SECURITY DECISION — PRINTED IN FULL IN THE DU CASE MATERIAL

⚖ Shreya Singhal and Ors. v. Union of India and Ors.

Supreme Court of India · Writ Petition (Criminal) No. 167 of 2012 · Decided 24 March 2015 · (2015) 5 SCC 1; AIR 2015 SC 1523 · R.F. Nariman J. (for himself and J. Chelameswar J.)

 How to use this brief

This judgment appears in **both** Unit V (intermediary liability, where the s.79(3)(b) reading-down is the point) and **Unit VI** (cyber security, where the s.66A / s.69A holding is the point). The brief below gives the complete picture, but concentrates on the **cyber-security limb**: the striking down of **s.66A**, the …

▸▸ 01 Facts

Two women, **Shreya Singhal** and **Shreya Singhal's co-petitioner**, were arrested in **Maharashtra** in **November 2012** under **s.66A** for posting a comment on **Facebook** criticising the bandh called by Shiv Sena following the death of Bal Thackeray. One of them had posted that the people of Mumbai need not be silent about the shutdown for one man, even if he was a great man. The comment was "disliked" by another user, who lodged a complaint. Both were arrested and later released on bail.

A second set of petitioners was **People's Union for Civil Liberties**, whose founder, **V. Suresh**, was arrested in **August 2012** under s.66A for circulating a message inviting people to an All India Conference on Paramilitary Forces on **21 August 2012**.

Section 66A had been inserted by the **Information Technology (Amendment) Act, 2008** with effect from **27 October 2009**. A batch of writ petitions under **Article 32** was filed challenging its constitutional validity, together with a related challenge to **s.69A** and the **2009 Rules** made under it. The **Statement of Objects and Reasons** of the 2008 Amendment Act stated that a rapid increase in the use of the internet had given rise to new forms of crimes — publishing sexually explicit material in electronic form, video voyeurism, breach of confidentiality and leakage of data by intermediaries, e-commerce frauds like phishing, identity theft, and offensive messages through communication services — so that penal provisions were required.

▸▸ 02 The impugned provisions

s.69A is set out verbatim in §3.1 above.

▸▸ 03 Issues

HELD

1. **Section 66A of the Information Technology Act, 2000 is struck down in its entirety** as violative of Article 19(1)(a) and not saved by any of the subject matters in Article 19(2), and as being vague and overbroad.
2. **Section 69A and the Information Technology (Procedure and Safeguards for Blocking for Access of Information by Public) Rules, 2009 are constitutionally valid** and do not violate Articles 14, 19(1)(a) or 21.
3. **Section 79 of the Act and Section 79(3)(b) are valid**, but **Section 79(3)(b) is read down** to mean that an intermediary receives "actual knowledge" only when it receives a **court order** or a **notification by the appropriate Government or its agency**; and **Rule 3(4) of the Intermediary Guidelines Rules, 2011 is read down** to the same effect.
4. **Section 118(d) of the Kerala Police Act is struck down** as unconstitutional, being violative of Article 19(1)(a) and not saved by any Article 19(2) subject matter. (The Court also held that Entry 1 List III — criminal law — was the competent legislative entry, and that Entry 2 List II (police) did not save the provision.)

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 7 Case brief 2 — Ratan Tata v. Union of India

CASE BRIEF 2 · THE RADIA TAPES — LAWFUL INTERCEPTION VERSUS UNLAWFUL DISCLOSURE

⚖ Ratan N. Tata v. Union of India and Ors.

Supreme Court of India · Writ Petition (Civil) No. 98 of 2010 · Filed 26–29 November 2010; heard on notice from 2 December 2010 · Substantive directions 17 October 2013 and 29 April 2014; heard again September 2022 · The "Radia tapes" litigation

 Provenance and an important caution

This judgment is **not printed** in the DU case material; it is cited in the syllabus by number and date. It is also a **procedural** rather than a final merits judgment — the writ petition was heard on notice, the CBI was directed to investigate the leak, and the Union of India ultimately submitted …

▸▸ 01 Facts

Niira Radia was a corporate lobbyist whose public relations firm, **Vaishnavi Corporate Communications**, counted the Tata Group and Reliance among its clients. On **16 November 2007** the **Finance Minister** forwarded a complaint alleging that within nine years she had built a business empire worth ₹300 crore, that she was an **agent of foreign intelligence agencies**, and that she was indulging in anti-national activities.

THE THREE BROAD ISSUES — THIS FRAMING IS THE CASE'S LASTING CONTRIBUTION

1. **Right to privacy vis-à-vis the Government** — does the State owe a duty of confidentiality in respect of material it has lawfully intercepted, and what are the consequences of a failure of that duty?
2. **Right to privacy vis-à-vis the Press** — does the freedom of the press under Article 19(1)(a) extend to publishing confidential material the disclosure of which is in the public interest, and if so, how is it to be balanced against the privacy of those whose conversations were recorded?
3. **Right to know information** — what is the scope of the public's right to know, particularly in relation to large-scale impropriety such as the 2G spectrum scandal?

PRINCIPLE EVOLVED

1. **The distinction between the legality of interception and the legality of subsequent disclosure.** A procedurally compliant interception does not license the disclosure of the material. The State owes a duty — statutory if Rule 419A is so read, and at the very least a common-law duty — to maintain the confidentiality of intercepted communications.
2. **Privacy in telephone conversations is protected, but the right is not absolute.** Following *PUCL* and *R. Rajagopal v. State of Tamil Nadu*, the right to privacy inheres in telephone conversations and is protected by Article 21; but it must be balanced against the public interest and the press's Article 19(1)(a) right.
3. **The Court framed the three-way tension — privacy against the Government, privacy against the Press, and the right to know** — that later constitutional decisions have had to resolve. This framing, rather than any holding, is the case's contribution.
4. **A transitional precedent.** Decided before *Puttaswamy* formally recognised privacy as a fundamental right with a proportionality framework, the case illustrates the pre-*Puttaswamy* privacy jurisprudence that *Puttaswamy* later consolidated and strengthened.

(Brief abridged for the compilation — full text at makelaweasy.in.)

8 Case brief 3 — Sreekanth C. Nair v. Developer of Web-Site

CASE BRIEF 3 · BLOCKING BEFORE THE RULES MATURED — THE PROCEDURAL LIMIT ON COURTS

⚖ Sreekanth C. Nair v. Licensee / Developer of the Website www.incometaxpune.com

High Court of Kerala at Ernakulam · Crl. R.P. No. 2900 of 2008 · Decided 28 August 2008 · V. Ramkumar J. · Available at indiankanoon.org/doc/1915848/

 Provenance and significance

The judgment is **not printed** in the DU case material; the syllabus gives the citation and the Indian Kanoon link. It is a **very short revision petition** — but it is the earliest of the prescribed Unit VI cases, and it is the one that shows what happened **before** the 2009 Blocking Rules were framed: blocki …

▸▸ 01 Facts

The revision petitioner, **Sreekanth C. Nair**, was the applicant in **Crl. M.P. No. 4378 of 2008** before the **Judicial First Class Magistrate-I, Cherthala**. He was **researching Income Tax statutes** and visited a website described as helpful for taxpayers — **www.incometaxpune.com**. On visiting the site he was **redirected to a pornographic website** which depicted numerous lascivious images of women, thereby clearly violating **s.67 of the Information Technology Act, 2000**.

The petitioner relied on the **order dated 07.07.2003** issued by the **Ministry of Communication and Information Technology, Government of India**, which provided the procedure for blocking websites by submitting a complaint to the **Director, CERT-In** (the Indian Computer Emergency Response Team functioning under the Department of Information Technology). As per **clause (viii) of paragraph V(1)** of that order, a **court** was given the power to issue a direction to the Director, CERT-In for blocking any such pornographic websites. The petitioner therefore prayed that the court **send a complaint to CERT-In**, directing it to investigate and block the website in the public interest.

▸▸ 02 Issues

PRINCIPLE EVOLVED

1. **A court is not a complainant.** Clause (viii) of paragraph V(1) of the 2003 Government Order listed the authorities who could **submit** a complaint to the Director, CERT-In. It did not convert a court into a complainant or invest it with jurisdiction to act as one. Reading it otherwise would place the court "in the embarrassing position of a complainant".
2. **Identification of the offender is not the court's function.** Where the petitioner does not know who is responsible for the offending content, the court cannot be expected to find the author and issue notice. That is the function of the statutory authorities under the IT Act and the Rules and Orders made under it.
3. **The blocking power is administrative, not judicial.** Blocking under the 2003 order — and, after 2009, under s.69A and the Blocking Rules — is an **executive function** exercised through the Designated Officer and the Committee. The court's role is limited to issuing a **directive** where the statutory route is not complied with, and to entertaining a **challenge** under Article 226 or 227.
4. **Securing access to or knowledge of the content is not the same as being liable for it.** A person who is **redirected** to obscene content — who neither published, transmitted nor caused it to be published — does not thereby commit an offence under s.67. The offence is that of the person who publishes or transmits.

(Brief abridged for the compilation — full text at makelaweasy.in.)

9 Case brief 4 — Justice K.S. Puttaswamy v. Union of India

CASE BRIEF 4 · THE CASE THAT SUPPLIES THIS UNIT'S MASTER TEST

⚖ Justice K.S. Puttaswamy (Retd.) and Anr. v. Union of India and Ors.

Supreme Court of India · Writ Petition (Civil) No. 494 of 2012 (reference) · Decided 24 August 2017 · (2017) 10 SCC 1; 2017 SCC OnLine SC 996 · Nine-Judge Constitution Bench

 Provenance

The judgment is **not printed** in the DU case material; the syllabus cites it by citation, and the DU case material's own **self-learning exercise** for this Unit gives the hint: *"State does not have absolute power to restrict fundamental freedoms in cyberspace. Does it apply to information privacy also? Is the Right to inf …*

▸▸ 01 Citation and the Bench

Decided by a **nine-Judge Constitution Bench** on **24 August 2017**: **Chief Justice J.S. Khehar** and **Justices J. Chelameswar, S.A. Bobde, R.K. Agrawal, R.F. Nariman, A.M. Sapre, D.Y. Chandrachud, S.K. Kaul and S. Abdul Nazeer**. The Court delivered **six separate opinions** — the longest Constitution Bench output in recent Supreme Court history, running to nearly 550 pages — but was **unanimous** on the central holding. The original petitioner, **Justice K.S. Puttaswamy**, was a former judge of the Karnataka High Court.

▸▸ 02 Facts and the reference

The reference arose from challenges to the **Aadhaar** scheme's mandatory collection of biometric data. The **threshold question** was referred to a larger Bench: **does the Indian Constitution guarantee a fundamental right to privacy at all?**

The reference was necessary because of two earlier decisions of co-equal Benches:

Case	Bench	What it said	What Puttaswamy did with it
M.P. Sharma v. Satish Chandra	Eight-Judge Bench, 1954	Held that the Constitution did not **specifically guarantee** a right to privacy, and that the Indian Constitution did not recognise the American Fourth Amendment doctrine.	**Overruled** to the extent it held that there is no fundamental right to privacy.
Kharak Singh v. State of U.P.	Six-Judge Bench, 1962	Held that there was **no right to privacy under the Indian Constitution**, while striking down domiciliary visits as violative of personal liberty.	**Overruled to the extent** it held that the right to privacy is not guaranteed by Part III.
Gobind v. State of M.P.	1975	Recognised a **limited** right to privacy, assuming it existed.	Consistent with, and superseded by, the fuller recognition in *Puttaswamy*.

▸▸ 03 Issues

PRINCIPLE EVOLVED — THE HOLDINGS

1. **The right to privacy is a fundamental right.** It is protected as an intrinsic part of the right to life and personal liberty under **Article 21**, and as part of the freedoms guaranteed by **Part III** of the Constitution — traceable also to Articles **14** and **19**.
2. ***M.P. Sharma* and *Kharak Singh* are overruled** to the extent they held otherwise.
3. **The three-fold test governs every infringement**: legality, legitimate State aim, and proportionality (rational nexus + least-restrictive means).
4. **Privacy is not absolute.** It is subject to restrictions that satisfy the three-fold test; but the burden lies on the State to justify the intrusion.
5. **The Aadhaar-specific challenges were remitted** to a separate Bench — subsequently decided in ***K.S. Puttaswamy (Aadhaar) v. Union of India***, (2019) 1 SCC 1.

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 10 Case brief 5 — Anuradha Bhasin v. Union of India

CASE BRIEF 5 · INTERNET SHUTDOWNS — THE DOCTRINE OF PROPORTIONALITY APPLIED TO THE WHOLE NETWORK

⚖ Anuradha Bhasin and Ors. v. Union of India and Ors.

Supreme Court of India · Writ Petition (Civil) Nos. 1031 of 2019, 1164 of 2019; W.P. (Crl.) No. 225 of 2019 · Decided 10 January 2020 · (2020) 3 SCC 637; 2020 SCC OnLine SC 25 · N.V. Ramana, Subhash Reddy and B.R. Gavai JJ.

▸▸ 01 Citation and provenance

Not printed in the DU case material; cited in the syllabus by citation. It is the **most recent** of the prescribed Unit VI cases and the one that carries the *Puttaswamy* framework from **content-specific blocking** (s.69A) to **network-wide suspension** — a different statutory regime, with different actors, and different constitutional stakes.

▸▸ 02 Facts

Following the abrogation of **Article 370**'s special status for Jammu and Kashmir in **August 2019**, restrictions were imposed across the region. **Section 144 of the Code of Criminal Procedure** was invoked to ban public gatherings and curtail freedom of movement, and there was a **complete suspension of landline, mobile phone and internet services** from **4 August 2019**. The suspension was continued by periodic orders under the **Temporary Suspension of Telecom Services (Public Emergency or Public Service) Rules, 2017**, framed under **s.7 of the Indian Telegraph Act, 1885** — a parallel regime to s.69A IT Act, applicable to **network-wide shutdowns rather than specific-content blocking**.

Three petitions were heard together:

DECISION AND PRINCIPLE EVOLVED

1. **Freedom of expression and freedom to practise any profession over the internet are constitutionally protected** under Articles 19(1)(a) and 19(1)(g); restrictions must satisfy Articles 19(2) and 19(6), including the **test of proportionality**.
2. **An order suspending internet services indefinitely is impermissible** under the Temporary Suspension of Telecom Services (Public Emergency or Public Service) Rules, 2017. Suspension may be used for a **temporary duration only**.
3. **Any suspension order must adhere to proportionality** and must not extend beyond the necessary duration; it is **subject to judicial review**.
4. **The Review Committee must conduct a periodic review every seven working days**; all existing suspension orders must be reviewed and those not complying revoked.
5. **All orders under s.144 CrPC and the Suspension Rules must be published** — the State cannot claim blanket confidentiality for orders restricting fundamental rights.
6. **Lack of technology to block selectively is not a justification** for a total shutdown.
7. **Section 144 must be exercised on material facts, with proportionality applied**; repetitive orders are an abuse of power.

(Brief abridged for the compilation — full text at makelaweasy.in.)

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 6 (questions only)

Q1 NOV-DEC 2024 · Q.6(B) · 10-12 MARKS

"Discuss provisions relating to cybersecurity under the IT Act with the help of decided cases."

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 ESSAY · 10–15 MARKS

Critically analyse the doctrine of proportionality as developed in Justice K.S. Puttaswamy v. Union of India and its application to state surveillance powers under the IT Act.

Q3 ESSAY · 10–15 MARKS

"Discuss the right to be forgotten in Indian law — is there a codified right, and how do courts currently handle such claims?"

Q4 DU SELF-LEARNING EXERCISE · PRINTED IN THE DU CASE MATERIAL, P.179–180

"The Intermediaries are required to take down or block content upon notification — the court has clarified that such takedown will only be upon receipt of an order from a government agency or a court and not at the discretion of the intermediary or on receipt of request by an affected person. Don't you think that the Court has diluted the due diligence obligation of the Intermediaries in India, to a great extent, as now Intermediaries instead of being proactive in monitoring obligations pertaining to the offensive matter on their websites, will wait for a government notification or court order to remove them from their site?"

Q5 DU SELF-LEARNING EXERCISE · PRINTED IN THE DU CASE MATERIAL, P.180

"State does not have absolute power to restrict fundamental freedoms in cyberspace. Does it apply to information privacy also? Is the Right to information Privacy lies only against the State or does it extend against private sector too? (Hint — Justice K.S. Puttaswamy (Retd.) v. Union of India)"

Q6 ESSAY · 10–15 MARKS

"Distinguish the powers under ss.69, 69A and 70 of the IT Act, 2000, with reference to their respective procedural safeguards and judicial treatment."

Q7 SHORT NOTES · 5 MARKS EACH

Write short notes on any five of the following.

by Ankur R. Upadhyay

LB-5031 · INFORMATION TECHNOLOGY LAW · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT VII

E-Contracts

◆ SYLLABUS COVERAGE

E-contracts — kinds (e-mail, web contracts, standard-form contracts) · formation of e-contracts under the Indian Contract Act, 1872 read with the IT Act (s.10A) · time and place of formation (s.13) · authentication, signature and the UN Convention on the Use of Electronic Communications in International Contracts, 2005.

◆ STATUTES & PROVISIONS

IT Act, 2000 · ss.4, 5, 10A, 11–13 · Indian Contract Act, 1872 · UN Convention on Electronic Communications, 2005

◆ PRESCRIBED CASE MATERIAL

Trimex International FZE v. Vedanta Aluminium Ltd. · World Wrestling Entertainment v. Reshma Collections · P.R. Transport Agency v. Union of India · Kedia v. Secretary of State

⬢ Kinds of contracts — email, web contracts, standard form contracts · Formation of e-contracts — the Indian Contract Act, 1872 read with ss.10A and 11–13 of the IT Act, 2000 · United Nations Convention on the Use of Electronic Communications in International Contracts, 2005

Delhi University · Faculty of Law

LL.B. V Term · Paper LB-5031

Information Technology Law

Prepared from the prescribed DU case material (CMITLAW-2026) · Unit VII of Part B

Syllabus coverage: Kinds of Contracts — email, web contracts, standard form contracts; Formation of E-contracts — application of the Contract Act, 1872 viz a viz ss.10A, 11–13 IT Act; United Nations Convention on the Use of Electronic Communications in International Contract 2005

⬢ 1 The statutory framework — s.10A, ss.4–5 and ss.11–13

This section establishes the architecture. Get this right and the rest of the Unit is detail; get it wrong and every answer will read as though the IT Act *replaced* the Contract Act.

▸ 1.1 Section 10A — the operative provision (learn it verbatim)

s.10A IT ACT 2000 · VALIDITY OF CONTRACTS FORMED THROUGH ELECTRONIC MEANS · VERBATIM

▸▸ Validity of contracts formed through electronic means

Where in a contract formation, the communication of proposals, the acceptance of proposals, the revocation of proposals and acceptances, as the case may be, are expressed in

electronic form or by means of an electronic record

, such contract shall not be deemed to be

unenforceable solely on the ground

that such electronic form or means was used for that purpose.

Three drafting features to notice, because examiners test them. (i) It covers **four** communications, not two — the **proposal**, the **acceptance**, the **revocation of the proposal** and the **revocation of the acceptance**. (ii) The disqualifying ground is limited by the word **"solely"**: the section removes *only* the electronic medium as a ground …

▸ 1.2 The four supporting pillars — what s.10A stands on

Provision	Short statement	Its job in an e-contract	Unit where treated in full
s.4	Where any law requires information to be "in writing" or "in the typewritten or printed form", that requirement is satisfied if it is in electronic form and **accessible so as to be usable for a subsequent reference**.	Makes the e-mail or web record a **document** — so the ICA's requirements that a contract be "in writing" (e.g. the arbitration agreement under s.7(4) of the Arbitration and Conciliation Act 1996 as it stood before 2016) can be met.	Unit I / II, §3
s.5 + **s.3A**	Electronic signature is legally recognised; a subscriber may **authenticate** an electronic record by an electronic signature or electronic authentication technique. s.3A and the Second Schedule supply the four-fold reliability test; the **First Schedule** lists documents that must *not* be signed electronically (wills, powers of attorney, negotiable instruments other than cheques, conveyances of immovable property, trusts).	Supplies **authentication** — who is bound, and how you prove it. Directly answers the Nov–Dec 2025 question on an online signing platform.	Unit I / II, §5
s.7	Where any law requires documents to be **retained**, electronic retention suffices if the record remains accessible for subsequent reference, is kept in the original or an accurate format, and the details of origin, destination, date and time are retained.	Supplies **evidential durability** — the record must still exist, unaltered, at the time of the dispute.	Unit I / II, §4
s.11	Attribution: a record is attributed to the originator if sent by him, by a person with **authority to act on his behalf**, or by an **information system programmed by or on behalf of the originator to operate automatically**.	Answers **"who spoke?"** — crucial where an automated order confirmation, auto-reply or algorithm-generated message is the acceptance.	Unit I / II, §12
s.12	Acknowledgment of receipt: absent agreement on a form, acknowledgment may be given by **any communication, automated or otherwise**, or by **conduct sufficient to indicate receipt**; the originator may stipulate that the record is binding only on acknowledgment.	Answers **"was it received, and does that matter?"** — the hinge between s.10A and s.13.	Unit I / II, §12.1

s.13	Time and place of despatch and receipt: despatch when the record enters a computer resource **outside the originator's control**; receipt on entry into the designated resource / retrieval / entry into any resource; **deemed despatched at the originator's place of business and deemed received at the addressee's place of business**.	Answers **"when and where was the contract made?"** — the jurisdictional and limitation question. Section 4 of this Unit.	Unit I / II, §12.2; Unit IX

▸ 1.3 The bridge diagram

☑ REAL EXAMPLE THAT RUNS THROUGH THE WHOLE DIAGRAM

You book a flight on an airline's website. **ICA:** the fare-and-schedule page is an invitation to offer (s.2(a)); your "Book now" click is the proposal; the airline's confirmation e-mail with the PNR is the acceptance (s.2(b)) and, if absolute and unqualified, forms an agreement (s. ...

☑ WHAT S.10A DOES NOT DO — THE FOUR GAPS YOU MUST NAME IN AN ANSWER

1. **It does not make a contract out of a non-contract.** An e-mail saying "we may supply 5,000 tonnes if the market suits us" is not a proposal under s.2(a) of the ICA; s.10A does not convert it into one.
2. **It does not validate an electronic signature that fails s.3A.** The ...

⬢ 2 Kinds of e-contracts — email, web contracts, standard form

The syllabus names three families: **contracts by e-mail**, **web contracts** and **standard form contracts**. "Web contracts" in turn divide into the familiar three — click-wrap, shrink-wrap and browse-wrap — plus the newer "scroll-wrap" and "sign-in-wrap". Learn the taxonomy as a tree, because a question asking you to "explain the kinds of e-contracts" is a question asking you to reproduce the tree with the enforceability ranking.

▸ 2.2 Contract by e-mail — the simplest and, in India, the most-litigated

An e-mail contract is an ordinary ICA contract in which the proposal, acceptance and (if any) revocation are "expressed in electronic form" within s.10A. Three practical points deserve attention in an answer:

- **Whether a signature is needed.** The ICA does not require a contract of this kind to be in writing at all, so no signature is needed. Where a statute *does* require writing — an arbitration agreement under s.7(4) of the Arbitration and Conciliation Act 1996 is the classic example, and the pre-2016 position was unsettled — s.4 of the IT Act makes the e-mail a document, and ss.5/3A can supply the signature. This is precisely the analysis that carried the day in **Trimex** (§6), where the arbitration clause lived in an e-mailed commercial offer.
- **Which e-mail is the contract.** In a chain of e-mails the contract is the **last communication in which the parties are ad idem on all essential terms**. Where later e-mails add new terms, they are counter-offers (ICA s.7), not acceptances. Where later e-mails merely clarify, the original contract stands. **Trimex** is the leading illustration: the Court refused to hold that a later, unsigned draft contract displaced a contract already concluded by e-mail.
- **Proof.** Under the Bharatiya Sakshya Adhiniyam, 2023 (in force from 1 July 2024, replacing the Indian Evidence Act, 1872), electronic records are documents (s.2(1)(d) read with s.2(1)(e)) and are admissible, subject to the certification requirement formerly in s.65B of the 1872 Act and now in **s.63 of the BSA**. Keep the mail server logs; an un-cached e-mail is not proof.

▸ 2.3 Web contracts — the three species with the tests applied to each

Species	How assent is manifested	Governing test	Leading authorities (persuasive, not binding in India)	Indian position
Click-wrap (also "click-through")	The user is shown the terms (or a box to open them) and must click "I Agree" / "Accept" / "Place Order" before the transaction proceeds.	Assent where (i) the user had **adequate notice** of the terms, and (ii) manifested **affirmative assent**. Both are present here.	*ProCD Inc. v. Zeidenberg*, 86 F.3d 1447 (7th Cir. 1996); *i.Lan Systems v. Netscout Service Level Corp.*, 183 F. Supp. 2d 328 (D. Mass. 2002) ("reasonably conspicuous notice ... unambiguously manifested assent"); *Hotmail Corp. v. Van$ Money Pie Inc.*, 47 U.S.P.Q.2d 1020 (N.D. Cal. 1998).	Enforceable. Best analogy: an offer accepted by conduct. Read with *WWE* (§7), the click is the **offer**, not the acceptance.
Shrink-wrap	Terms are inside the packaging or behind a "View Terms" link on installation; assent is inferred from **opening the box, installing or using the software**, or from non-return of the goods within a period.	Two competing lines: *ProCD* (enforceable — the terms are part of the offer and are accepted by use) versus *Step-Saver Data Systems v. Wyse Technology*, 939 F.2d 91 (3d Cir. 1991) (unenforceable — a material alteration under UCC §2-207 where the parties had already contracted by phone and in writing).	*ProCD* (7th Cir.) v. *Step-Saver* (3d Cir.); *Hill v. Gateway 2000*, 105 F.3d 1147 (7th Cir. 1997) (keeping the computer beyond 30 days = assent).	Contested. Argue from **ICA s.7** — silence or inaction cannot be acceptance — but from **s.8**, acceptance by **performing conditions** of the proposal, which is the stronger route for the drafter.
Browse-wrap	Terms are available via a hyperlink (usually "Terms of Use" at the foot of the page) and the user is deemed to agree simply by **using the site**. No click, no display, no assent.	Enforceable only if the user had **actual or constructive notice** of the terms and an opportunity to review them. *Specht v. Netscape Communications Corp.*, 306 F.3d 17 (2d Cir. 2002) — no assent where the terms were not visible without scrolling; contrast *Register.com v. Verio*, 356 F.3d 393 (2d Cir. 2004) — daily automated crawlers were held to have notice.	*Specht* (not enforceable) v. *Ticketmaster Corp. v. Tickets.com*, 248 F. Supp. 2d 1121 (C.D. Cal. 2003) (browse-wrap not enforceable where the link was at the bottom of the page and the user was not required to view it).	**No Indian ruling.** Treat as the weakest; a court is unlikely to find an ICA s.2(b) acceptance where the offeree never saw the terms.
Scroll-wrap / click-to-scroll	The user must physically scroll through the entire terms before the "I Agree" button becomes active.	Constructive notice is near-irrefutable.	Modern US practice; endorsed in consumer-protection commentary.	Strongest web form; increasingly used by Indian banks and insurance IRDAI-regulated portals.
Sign-in-wrap	"By clicking 'Create Account' you agree to our Terms of Service and Privacy Policy", with hyperlinks beside the button.	Enforceable if the notice is **reasonably conspicuous** and the button text clearly conveys that signing up = assent.	*Meyer v. Uber Technologies*, 868 F.3d 66 (2d Cir. 2017) — enforceable, "reasonably conspicuous notice" plus unambiguous manifestation; *Berman v. Freedom Financial Network*, 30 F.4th 849 (9th Cir. 2022) — not enforceable where the notice was too small and the hyperlink was not sufficiently conspicuous.	The most common Indian form. **WWE v. Reshma Collections** treats the website listing as an invitation to offer, so the sign-up terms bind the user, not the seller.

App-store / in-app agreements	Terms accepted once at download and updated unilaterally by the developer.	Valid where the update notice is given and continued use is treated as assent; weaker where the change is material and un-notified.	US case law on unilateral modification clauses.	Read with the **Consumer Protection (E-Commerce) Rules, 2020**, r.5 — an e-commerce entity must not adopt unfair trade practices, and must display all terms clearly.

☑ THE ONE SENTENCE TO USE WHEN A QUESTION ASKS YOU TO DISTINGUISH THEM

Click-wrap = the offeree sees the terms and affirmatively clicks assent (strongest); **shrink-wrap** = the offeree learns the terms on or after opening the product and assent is inferred from use or non-return (contested); **browse-wrap** = the offeree is deemed to ag ...

▸ 2.4 Standard form contracts — the Indian law that polices them

A standard form contract is one in which one party (the "drafter") fixes the terms in advance and the other can only accept or reject the whole. This is the normal form of e-commerce: airline tickets, insurance, software licences, OTT subscriptions, telecom plans, app-store agreements. Because there is no negotiation, Indian law polices them through four routes:

Control device	Provision / authority	How it operates on an e-contract
Unconscionable terms	*Central Inland Water Transport Corp. Ltd. v. Brojo Nath Ganguly*, (1986) 3 SCC 156 — a term so unfair and unreasonable that it shocks the conscience is unenforceable; **s.23 ICA** (unlawful object/consideration).	A clause in an e-commerce "Terms of Service" that caps liability at ₹100, or that waives all refunds regardless of fault, is vulnerable. Quote *Brojo Nath Ganguly* by name in an answer.
Undue influence	**s.16 ICA** — where one party is in a position to dominate the will of the other and uses that position to obtain an unfair advantage, the contract is voidable.	Where the drafter is a monopoly or near-monopoly platform and the user has no realistic alternative, s.16 becomes arguable. This is the Indian analogue of "contracts of adhesion".
Harsh / unreasonable exemption clauses	Contra proferentem construction; *Bharati Knitting Co. v. DHL Worldwide Express*, (1996) 4 SCC 704 (an exemption clause does not cover a fundamental breach unless expressed in clear words).	An exclusion clause in an e-commerce delivery contract will be read strictly against the platform.
Consumer-protection overlay	**s.2(46) Consumer Protection Act, 2019** defines "unfair contract"; **Consumer Protection (E-Commerce) Rules, 2020**, rr.4–7 (mandatory disclosures, no unfair trade practice, no manipulation of price, grievance officer, time-bound redress); **s.2(34)** "e-commerce".	The E-Commerce Rules, 2020 **supply** a mandatory layer to every online standard form contract: the seller must display the total price, the delivery charge, the refund and cancellation policy, the grievance officer's details, and must acknowledge complaints within 48 hours and redress them within one month.
Data-protection overlay	**Digital Personal Data Protection Act, 2023**; **DPDP Rules, 2025** (notified 14 November 2025, phased compliance from 12–18 months).	Consent to a privacy policy is now layered on top of consent to the contract — and must be free, specific, informed, unconditional, unambiguous, with a clear affirmative action, and limited to the specified purpose (s.6 DPDP Act). See §9.3.

⬢ 3 Formation of e-contracts — the ICA read with the IT Act

The syllabus says "application of The Contract Act, 1872 viz a viz ss.10A, 11-13 IT Act". This section works element by element through the ICA and shows, for each element, what changes in an electronic setting and what does not.

▸ 3.2 The ICA applied element by element — the master table

ICA element	The paper rule	What the electronic medium changes	The IT Act provision	Worked example
Proposal s.2(a)	A person "signifies to another his willingness to do or to abstain from doing anything, with a view to obtaining the assent of that other".	Nothing in the substance. But you must decide whether the web page is a proposal or an invitation to offer — the first, and most frequently examined, question.	s.10A expressly covers "communication of proposals ... in electronic form".	A price-and-inventory page on a shopping site is an invitation to offer; the "Buy" click is the proposal. *WWE v. Reshma Collections* (§7).
Communication of proposal s.3	The communication is complete when it comes to the knowledge of the person to whom it is made.	An e-mail that is never opened has still "entered" the addressee's computer resource — but s.3 speaks of coming to knowledge.	**s.13(2)** fixes receipt at entry into the designated resource, or retrieval, or entry into any resource; **s.13(3)** deems receipt at the addressee's place of business.	A quotation sent to the sales@ mailbox is "received" on entry into that mailbox, whether or not the sales team reads it.
Acceptance s.2(b), s.7	Signifying assent to the proposal; must be **absolute and unqualified**.	Automated confirmations raise the attribution question — is the machine's "yes" the seller's "yes"?	**s.11(c)** — an information system programmed by or on behalf of the originator to operate automatically attributes its output to that originator.	The seller's server auto-replies "Order confirmed". That is the seller's acceptance under s.11(c).
Communication of acceptance s.4	Complete as against the proposer when put in a course of transmission; as against the acceptor when it comes to the proposer's knowledge.	For instantaneous communication, the contract is made **where the acceptance is received** (*Bhagwan Goverdhandas Kedia v. Girdharilal Parshottamdas*, AIR 1966 SC 543) — the postal exception does not apply.	**s.13(2)–(3)** codify receipt for electronic records. **s.12** governs whether acknowledgment is required.	Order placed from Delhi, confirmed from Mumbai. The contract is made in Delhi (where acceptance is received) — the *WWE* reasoning.
Consideration s.2(d), s.25	Price for the promise. An agreement without consideration is void.	No change at all. Payment by UPI, card, wallet or net-banking is consideration as much as cash.	—	₹2,499 debited from a UPI-linked account is the consideration for the goods.
Capacity s.11	Majority (18 — Indian Majority Act, 1875), sound mind, not disqualified by law.	Age verification on a website is weak (self-declared date of birth). This is the classic "minor clicks buy" problem.	—	A 15-year-old buys a ₹1.2 lakh gaming skin. Void under s.11 — *Mohori Bibee v. Dharmodas Ghose*, (1903) ILR 30 Cal 536 (PC).

Free consent ss.13–22	Consent not caused by coercion, undue influence, fraud, misrepresentation or mistake.	New species of fraud: phishing pages, cloned websites, manipulated search listings, dark patterns.	—	A fake "bank-kyc-update" site takes card details. Consent obtained by fraud; voidable under s.19; also the Consumer Protection Act's "unfair trade practice".
Unconscionability / unequal bargaining power ss.16, 23	Terms so unfair that they shock the conscience are unenforceable.	The home ground of standard form e-contracts: take-it-or-leave-it terms of service.	—	A term capping the platform's liability at ₹100 for a ₹2 lakh loss — *Brojo Nath Ganguly*, (1986) 3 SCC 156.
Lawful object s.23	Consideration and object must be lawful.	No change — but the object may be unlawful under a *different* statute that the IT Act does not touch.	—	An online contract to sell a controlled substance is void; the First Schedule to the IT Act blocks e-signing of wills, trusts, PoAs, non-cheque negotiable instruments and conveyances.
Intention to create legal relations	Implied; commercial dealings carry it.	Marketing language ("coming soon", "prices indicative") may negate it.	—	A "Notify me" button is not a proposal; it is an invitation.
Writing / signature	Where a statute requires writing or signature.	**This is where the IT Act does its work.**	**s.4** (electronic form + accessible for subsequent reference = writing); **s.5** + **s.3A** (electronic signature); **First Schedule** exclusions.	An arbitration agreement in an e-mail chain satisfies the writing requirement — *Trimex*.
Retention	Where a statute requires retention of the document.	The record must survive the dispute.	**s.7** — accessible for subsequent reference; original or accurate format; origin, destination, date and time retained.	A GST e-invoice retained on the portal for 8 years.
Proof	Indian Evidence Act, 1872 (now BSA, 2023).	Certification of the electronic record is the practical battleground.	**s.63 BSA** (formerly **s.65B Evidence Act**) — certificate of the person responsible for the computer.	A chat export without a 65B/63 certificate is inadmissible.

▸ 3.3 The three "new" questions that only e-contracts raise

☐ QUESTION 1 — IS THE WEB PAGE AN OFFER OR AN INVITATION TO OFFER?

This is the question *WWE v. Reshma Collections* answered, and it is the single most examinable point in this Unit. The **ordinary rule** is that a display of goods with a price is an invitation to offer: *Pharmaceutical Society of Great Britain v. Boots Cash Chemists (S* ...

☐ QUESTION 2 — CAN A MACHINE ACCEPT?

Yes. **s.11(c) of the IT Act** attributes an electronic record to the originator if it was sent by an "information system programmed by or on behalf of the originator to operate automatically". An automated order confirmation, an auto-generated "we accept your bid" e-mail, or an algorithmic tradin ...

☐ QUESTION 3 — WHOSE TERMS PREVAIL?

In a "battle of the forms", the **last shot** ordinarily wins, but the Indian rule is stricter than the English: under **s.7 of the ICA** an acceptance must be **absolute and unqualified**, so any variance is a counter-offer and there is no contract until the last variation is accepted. This was the heart ...

☐ REAL EXAMPLES OF FORMATION, IN ONE LINE EACH

- **Flipkart order:** product page (invitation) → "Buy now" (offer) → "Order confirmed, arriving Tuesday" (acceptance, auto-generated, s.11(c)) → payment captured (consideration) → contract complete on receipt of the confirmation at the buyer's place (s.13(3)).
- **IRCTC ticket:** the availabilit ...

⬢ 4 Time and place of formation — s.13, Kedia and the internet

Two of the three DU cases live here. This is the section that converts a doctrinal puzzle — **when and where is an e-contract made?** — into a decision tree you can apply in an exam.

▸ 4.1 The puzzle stated

Under the **postal rule** of the common law, an acceptance is complete on **posting**, so the contract is made where the letter is posted. India has never fully adopted the postal rule: **s.4 of the ICA** says the communication of an acceptance is complete "as against the proposer, when it is put in a course of transmission to him, so as to be out of the power of the acceptor; as against the acceptor, when it comes to the knowledge of the proposer". The first limb is the postal rule; the second is the receipt rule. The **Supreme Court's answer** to which limb applies came in ***Bhagwan Goverdhandas Kedia v. Girdharilal Parshottamdas*, AIR 1966 SC 543**, where the Court held that the postal exception applies only to **non-instantaneous** communications (the post) and **not** to instantaneous ones (the telephone). A contract made by telephone is made **where the acceptance is received and heard**.

s.13 IT ACT 2000 · TIME AND PLACE OF DESPATCH AND RECEIPT · VERBATIM (FIVE SUB-SECTIONS)

▸▸ Time and place of despatch and receipt of electronic record

Save as otherwise agreed between the originator and the addressee, the
despatch
of an electronic record occurs when it enters a
computer resource outside the control of the originator
Save as otherwise agreed between the originator and the addressee, the
receipt
of an electronic record occurs when—
(a) if the addressee has
designated
a computer resource for the purpose of receiving such electronic record, receipt occurs—

(i) when the electronic record
enters the designated computer resource
; or
(ii) if the electronic record is sent to a computer resource of the addressee that is
not the designated
computer resource, when the electronic record is
retrieved by the addressee
; or
(b) if the addressee has
not designated
a computer resource for the purpose of receiving such electronic record, receipt occurs when the electronic record
enters any computer resource of the addressee
Save as otherwise agreed between the originator and the addressee, an electronic record is deemed to be
despatched at the place where the originator has his place of business
, and is deemed to be
received at the place where the addressee has his place of business
The provisions of sub-section (2) shall apply
notwithstanding the fact that the place where the computer resource is located may be different
from the place where the electronic record is deemed to have been received under sub-section (3).
For the purposes of this section—
(a) if the originator or the addressee has
more than one place of business
, the place of business is that which has the
closest relationship to the underlying transaction
or, where there is no underlying transaction, the
principal place of business
(b) if the originator or the addressee
does not have a place of business
, reference is to be made to the
usual place of residence
; and
(c) if the originator or the addressee is a
body corporate
, its
usual place of residence
is the
place of registration

Why s.13(4) matters and is always missed: the server may be in Singapore, the cloud region in Mumbai, the mailbox in Virginia — it makes no difference. Receipt is **deemed** to occur at the **addressee's place of business**. Sub-section (4) exists precisely to stop the argument "the data was stored abroad, so the contract was made abroa …

▸ 4.3 The two routes, side by side

	Route A — the Kedia instantaneous route	Route B — the s.13 receipt route
Governing authority	*Bhagwan Goverdhandas Kedia v. Girdharilal Parshottamdas*, AIR 1966 SC 543, applied to the internet by *WWE v. Reshma Collections* (Del HC DB, 2014).	**s.13(2)–(3) IT Act**, applied by *P.R. Transport Agency v. Union of India*, AIR 2006 All 23.
Medium	Interactive website, chat, telephone, telex — where acceptance is received in real time.	E-mail, EDI, stored-and-forward records.
When is the contract made?	When the acceptance **comes to the knowledge of the proposer** — i.e. when it is received.	When the record **enters the designated computer resource** (or is retrieved, or enters any resource of the addressee).
Where is the contract made?	Where the acceptance is received — the customer's location.	At the **addressee's place of business**, by statutory deeming (s.13(3)), regardless of server location (s.13(4)).
Postal rule?	**Does not apply.** The postal exception is confined to non-instantaneous communications.	**Statutorily displaced.** s.13 fixes receipt, not despatch, as the operative event.
Jurisdictional consequence	A part of the cause of action arises where the customer is — so a suit there is maintainable.	A part of the cause of action arises where the addressee is — so the writ petition was maintainable in the Allahabad HC.
Weakness	The assumption of instantaneity is often false in practice; and *WWE* was deciding jurisdiction, not contract validity.	It tells you where the record is **deemed** received, which is not always where it is actually read — and the parties can contract out ("save as otherwise agreed").

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☑ THE SINGLE PARAGRAPH THAT TIES §§1–4 TOGETHER — USE IT AS AN ANSWER OPENER

"An e-contract is not a new species of contract. Under s.10A of the IT Act, 2000, a contract whose proposal, acceptance and revocation are expressed in electronic form is not unenforceable merely because that medium was used; the substantive law remains the Indian Contract Act, 1872, which supplies offer (s.2(a)), acceptance (ss.2(b) and 7), consideration (s.2(d)), capacity (s.11), free consent (ss.13–22) and lawful object (s.23). The IT Act supplies only the medium rules: s.4 makes the electronic record a document, s.5 read with s.3A authenticates it, s.7 preserves it, s.11 attributes it, s.12 governs acknowledgment and s.13 fixes when and where it is sent and received. On the website the listing is an invitation to offer, the customer's order is the proposal and the seller's confirmation is the acceptance; where that confirmation is instantaneous, Bhagwan Goverdhandas Kedia and WWE v. Reshma Collections place the contract where the acceptance is received, while for e-mail P.R. Transport Agency applies s.13(3) and places it at the addressee's place of business. The leading authority that an exchange of e-mails alone concludes a binding contract is Trimex International FZE v. Vedanta Aluminium Ltd., (2010) 3 SCC 1."

⬢ 5 Authentication, signature and the UN Convention 2005

Two matters are grouped here because they are both about **making the electronic record trustworthy**: the IT Act's authentication apparatus (which answers the Nov–Dec 2025 question), and the **United Nations Convention on the Use of Electronic Communications in International Contracts, 2005**, which is the syllabus's only international instrument and the international counterpart of s.10A.

▸ 5.1 Electronic signature and authentication — the machinery that makes an e-contract provable

s.5 IT ACT · LEGAL RECOGNITION OF ELECTRONIC SIGNATURES · VERBATIM

▸▸ Legal recognition of electronic signatures

Where any law provides that information or any other matter shall be authenticated by affixing the signature or any document shall be signed or bear the signature of any person, then, notwithstanding anything contained in such law, such requirement shall be deemed to have been satisfied, if such information or matter is authenticated by means of an

electronic signature

affixed in such manner as may be prescribed by the Central Government.

Explanation. For the purposes of this section, "signed", with its grammatical variations and cognate expressions, shall, with reference to a person, mean affixing of his hand written signature or any mark on any document, and the expression "signature" shall be construed accordingly. Section 5 is the **counterpart of Article 7 of ...**

s.3A IT ACT + SECOND SCHEDULE · THE FOUR-FOLD RELIABILITY TEST · VERBATIM

▸▸ Electronic authentication technique — reliability

An electronic authentication technique shall be considered reliable only if—

(a) the

signature creation data

or the

authentication data

are, within the context in which they are used,

linked to the signatory or the authenticator

and to no other person;

(b) such signature creation data or authentication data were, at the time of signing,

under the control of the signatory or the authenticator and of no other person

(c) any

alteration to the electronic signature

made after affixing such signature is detectable;

(d) where the purpose of the legal requirement for a signature is to provide assurance as to the integrity of the information to which it relates, any

alteration made to the information after the time it was signed

is detectable.

Read the four limbs as four separate evidentiary promises: (1) **identity** — the key belongs to one person only; (2) **control** — that person, and nobody else, held it at the moment of signing; (3) **signature integrity** — tampering with the signature itself is visible; (4) **record integrity** — tampering with the signed document is visible ...

Authentication technique	Which limb of s.3A it satisfies	Legal source	Exam use
Digital Signature Certificate (DSC) — class 3, issued by a Certifying Authority licensed under the IT Act	All four, strongly — the private key is uniquely linked to the subscriber and held under her control; hashing detects any alteration.	ss.2(1)(za), (zg), (zh), 3A, 18–34, Second Schedule; **s.35** (UNCITRAL Model Law on Legal Recognition of Certificates); **s.40** (persons by whom certificate may be revoked).	The gold standard. Cite the **Subordinate Legislation**: Information Technology (Certifying Authorities) Regulations, 2001.
Aadhaar-based e-Sign / e-KYC	(a), (b), (c) — the authentication is bound to the Aadhaar holder's biometric/OTP; the signed record is hash-protected.	ss.3A and 5; UIDAI framework; the **Aadhaar (Authentication and Offline Verification) Regulations, 2021**; PFRDA and SEBI circulars permitting e-Sign for investor onboarding.	Use as the everyday Indian example — e-Sign of a loan agreement on a lender's portal.
OTP / one-time password sent to a registered mobile or e-mail	(a) and (b) by circumstantial proof; (c) and (d) by the audit trail. Weaker than a DSC because possession of the SIM/e-mail account is the only link.	Not a "digital signature" under s.2(1)(p) unless the prescribed technique is used; admissible as an **electronic record** under the BSA.	Where a party disputes an OTP-based transaction, the burden shifts under **s.106 Evidence Act / s.108 BSA** — the account holder must explain.
Username + password login to a portal, then clicking "I accept"	(a) and (b) only, and circumstantially. No cryptographic integrity unless the portal hashes the accepted record.	ICA s.2(b) acceptance; s.10A IT Act.	The most common e-commerce pattern; note the evidential weakness and the s.11(c) attribution of the login to the account holder.

by Ankur R. Upadhyay

Blockchain / distributed-ledger timestamp	(c) and (d) strongly (immutability); (a) and (b) depend on key custody.	Not expressly recognised; argued under s.5 and s.3A as an "electronic authentication technique".	A forward-looking point for a critical-analysis answer (§9.3).

REAL EXAMPLE — AN E-SIGNATURE DISPUTE, WORKED THROUGH THE FOUR LIMBS

A borrower says the ₹10 lakh loan agreement uploaded on the lender's portal was never signed by her. The lender produces the e-Sign audit trail: the Aadhaar-linked OTP was delivered to the mobile number registered with the lender, the signature creation data w ...

5.2 The United Nations Convention on the Use of Electronic Communications in International Contracts, 2005

This is the syllabus's only international instrument, and it deserves a standalone answer. It is the first **treaty** (as opposed to a model law) to deal with electronic contracting, and it was designed to **retrofit** existing international trade treaties — the CISG, the New York Convention 1958, the Limitation Convention, the Hamburg Rules and others — for the electronic age, by removing the obstacles that paper-based requirements in those treaties create.

Feature	Detail
Full title	United Nations Convention on the Use of Electronic Communications in International Contracts (New York, 2005).
Drafted by	**UNCITRAL** Working Group IV (Electronic Commerce), 2002–2005.
Adopted / opened for signature / in force	Adopted by the UN General Assembly on **23 November 2005**; opened for signature at UN Headquarters on **16 January 2006**; entered into force on **1 March 2013** after the third ratification.
Signatories / parties	A modest number of states (in the region of 15–20 parties), including Sri Lanka, Singapore (signatory), the Russian Federation, the Republic of Korea, Iran, Lebanon, Montenegro, the Central African Republic, Congo and others. **India is not a party** — an important and often-tested point: Indian students must say so, and then explain that India's obligations arise only insofar as they are mirrored in the IT Act and in Indian domestic law.
Relationship to the MLEC 1996	The Convention **builds on and reuses the core provisions** of the UNCITRAL Model Law on Electronic Commerce 1996 — non-discrimination, writing, signature, original, admissibility, and the time-and-place-of-despatch-and-receipt rule — but it is **binding**, it is **general** (it applies to all international contracts, not just e-commerce), and it **amends or displaces** conflicting paper requirements in other treaties.
Scope	Applies to the use of **electronic communications** in connection with the formation or performance of a **contract between parties whose places of business are in different States** (Art. 1). Consumer contracts are excluded (Art. 2(1)(a)) — the same carve-out as the EU e-Commerce Directive.
Article 3 — interpretation	Regard is to be had to its international character, to the need to promote uniformity and to the observance of good faith in international trade.
Article 4 — non-discrimination	A communication or contract shall not be denied legal effect, validity or enforceability solely on the ground that it is in electronic form. **This is the textual parent of s.10A of the IT Act.**
Article 5 — legal recognition of electronic signatures	Signature requirements are met by electronic signature where the method used is (a) as reliable as appropriate for the purpose, and (b) the signatory has indicated an intention to sign. Mirrors s.3A's reliability approach.
Article 6 — writing	A legal requirement that information be in writing is met by electronic information if it is **accessible so as to be usable for subsequent reference** — the same test as **s.4(a) of the IT Act**.
Article 7 — signature	Parallel to Art. 5 and to ss.5 and 3A of the IT Act.
Article 8 — original	An electronic record meets a requirement for an "original" if its integrity is assured and it is accessible — the analogue of **s.9 of the IT Act** (retention/attributability) rather than of s.8, which India did not enact.
Article 9 — admissibility and evidential weight	Electronic communications shall not be denied admissibility or evidential weight solely on the ground that they are electronic. Note that the Convention deliberately does **not** deal with evidentiary procedure, leaving it to domestic law — in India, the Bharatiya Sakshya Adhiniyam, 2023.
Article 10 — time and place of despatch and receipt	**Despatch** when the record leaves the originator's control (an information system under the originator's control); **receipt** when it becomes capable of being retrieved by the addressee at the designated address, or, absent designation, when the addressee becomes aware of it at that address. **Deemed despatch at the originator's place of business and deemed receipt at the addressee's place of business**; multiple places of business resolved by the closest relationship to the underlying transaction. This is a **near-exact parallel of s.13 of the IT Act** — and is therefore the international anchor for both *P.R. Transport Agency* and *WWE*.
Article 11 — invitations to make offers	A proposal to conclude a contract made through an **interactive application** (i.e. a website) is an **invitation to make offers**, unless the proposal clearly indicates an intention to be bound. **This is the international rule that *WWE v. Reshma Collections* applied** — it is the single most useful cross-reference in this Unit, because it shows the Indian court was not inventing a rule but following an internationally accepted one.
Article 12 — use of automated message systems	A contract formed through the interaction of an **automated message system** and a natural person is not invalid or unenforceable solely because no natural person reviewed each action. **This is the international parent of s.11(c) of the IT Act** — the provision that lets a machine accept.
Article 13 — availability of contract terms	Where information is to be made available to a party, it is not denied legal effect solely because it is not in the form in which it was originally provided, so long as its integrity and accessibility are assured. The basis for unilateral variation clauses in e-commerce terms of service.
Article 14 — error in electronic communications	Gives a person who made an **input error** in an interactive communication with an automated system the right to withdraw the erroneous portion, provided the system did not allow correction and the person notifies the other party without undue delay. The analogue of **s.14 of the ICA** (mistake) for the digital context — and a genuinely useful provision for mis-clicked orders.
Article 17 — place of business	Location of equipment and technology supporting an information system does not by itself constitute a place of business; the closest-relationship rule mirrors **s.13(5)(a)** and reinforces **s.13(4)** (server location is irrelevant).
Articles 18–21	Declarations (a State may exclude certain matters), final clauses, and the right to exclude the Convention's application to specified instruments. Note that the Convention permits States to make **reservations** — a point worth one sentence in an answer.

5.3 The comparative table — one idea, five instruments

Instrument	Year	Nature	Non-discrimination rule	Contract formation on a website	Time/place of receipt
UNCITRAL Model Law on Electronic Commerce	1996	Model law (not binding; adopted by ~80+ States as a template)	**Art. 11** — information shall not be denied legal effect, validity or enforceability solely on the ground that it is in the form of a data message.	Art. 11 covers offer and acceptance in data messages; no separate article on interactive applications.	Arts. 15(2), (4) — deemed despatch at originator's and deemed receipt at addressee's place of business.

UN Convention on the Use of Electronic Communications in International Contracts	2005 (in force 2013)	**Treaty** — binding on parties only; **India not a party**	**Art. 4**	**Art. 11** — a proposal through an interactive application is an invitation to make offers unless it clearly indicates an intention to be bound. **Art. 12** — automated message systems.	**Art. 10** — near-identical to s.13.
Information Technology Act, 2000 (India)	2000 (am. 2008)	Statute	**s.10A**	No equivalent of Art. 11 of the Convention; the rule comes from *WWE v. Reshma Collections* applying ICA s.2(a).	**s.13**
UETA (Uniform Electronic Transactions Act) — USA	1999	Model state law, adopted by ~49 States	§7 — a record or signature may not be denied legal effect solely because it is in electronic form.	§14(2) — an offer inviting acceptance by electronic means is binding on acceptance through an automated response even if no individual is aware of it.	§15(e) — deemed sent from and received at the sender's and recipient's places of business.
ESIGN Act (Electronic Signatures in Global and National Commerce Act) — USA	2000	Federal statute	§101(a) — a signature or contract may not be denied legal effect solely because it is in electronic form.	Leaves contract formation to state law (UETA) and the common law.	Silent — governed by UETA or common law.
EU e-Commerce Directive 2000/31/EC	2000	Directive (implemented in member States)	Art. 9(1) — Member States shall ensure that their legal system allows contracts to be concluded by electronic means.	**Art. 11(1)** — the service provider must **acknowledge receipt of the order without undue delay and by electronic means**; the order and acknowledgment are deemed received when the parties are able to access them (Art. 11(2)). **A stronger consumer-protection layer than India's.**	Art. 11(2) — receipt when the addressee can access it.

☑ THE EXAM POINT IN THE COMPARISON

India's **s.10A** is the **weakest** of these instruments: it says only that electronic form is not by itself a ground of unenforceability. The **EU Directive is the strongest**, because it imposes a positive duty on the service provider to acknowledge receipt of the order without undue delay — a duty India ...

● 6 Case brief 1: Trimex International FZE v. Vedanta Aluminium Ltd. (SC, 22.01.2010)

⚖ Citation and status

Trimex International FZE Ltd. v. Vedanta Aluminium Ltd., India, (2010) 3 SCC 1; AIR 2010 SC 2221; JT 2010 (1) SC 474; 2010 (1) SCALE 574. Supreme Court of India. Arbitration Petition No. 10 of 2009, decided on **22 January 2010** by a **Single Judge** (P. Sathasivam J.) on a petition under **s.11(6) of the Arbitration and Conciliation Act, 1996** — i.e. the Court was deciding only whether an arbitration agreement existed and who should appoint the arbitrator. **Source note:** *Trimex* is listed in the DU syllabus and TOC but is **not printed** in the DU case material; this brief is drawn from the reported decision.

▸ 6.1 Facts — the chronology matters, so learn it in order

Date	Event	Why it matters
Parties	**Trimex International FZE Ltd.** — a company incorporated in Dubai, engaged in the trading of minerals, with Mr. R. Swaminathan as its authorised representative. **Vedanta Aluminium Ltd., India** — an Indian company, a producer of alumina and aluminium.	An **international** e-contract — this is why the case sits in Part B alongside the UN Convention.
15.10.2007	Trimex **e-mailed a commercial offer** to Vedanta for the supply of **bauxite**. The offer contained **clause 6, an arbitration clause** providing for Indian law, arbitration, and the courts at **Mumbai**. The offer was stated to be valid till **1200 hrs IST on 16.10.2007**.	The arbitration clause lived in an **e-mail**, not in a signed contract. That is the whole case.
16.10.2007	Several **e-mail exchanges** followed between the parties on the essential terms — quantity, price, specifications, delivery, payment, shipment lots, demurrage, quality benchmark.	The e-mails were the medium of the entire negotiation.
16.10.2007, 3.05 p.m.	Vedanta e-mailed its confirmation of **"the deal for 5 shipments"**. Trimex's Mr. Swaminathan **opened it at 3.06 p.m.**	The acceptance. The one-minute gap between sending and reading is the reason s.4 and s.13 matter.
16.10.2007 (same day)	Trimex, relying on the confirmation, **concluded a deal with its Australian bauxite supplier**.	**Reliance** — the strongest evidence that Trimex believed a binding contract existed.
17.10.2007	Trimex entered into a **binding Charter Party Agreement with a ship owner in Oslo, Norway** to charter a vessel.	A legally binding commitment to a **third party**. The Court relied heavily on this.
26.10.2007	A meeting was held at **Lanjigarh, Orissa** (Vedanta's plant). **Signed minutes** were drawn up acknowledging the acceptance of the five shipments.	Contemporaneous documentary corroboration of the e-mail contract.
09.11.2007	Trimex entered a formal **Bauxite Sales Agreement with Rio Tinto** (Australia) for **225,000 metric tonnes**.	Shows Trimex had contracted upstream to fulfil the Vedanta deal.
08.11.2007	**Vedanta itself sent a formal contract document** containing a **detailed arbitration clause (clause 29)**. Trimex accepted it the **same evening** with minor changes.	Vedanta's own conduct proved it thought there was a contract to be formalised.
12.11.2007	Vedanta asked Trimex to **hold the next consignment**.	Performance had begun.
13.11.2007	Trimex warned Vedanta of the indemnity it would face and said it was **impossible to hold** the consignment.	The dispute crystallised.
01.09.2008	Trimex served a **notice of claim-cum-arbitration** on Vedanta, nominating **Justice Shiv Shankar Bhatt (retd., Karnataka High Court)** as arbitrator.	The invocation of the e-mail arbitration clause.
14.11.2008	Vedanta **rejected** the notice, denying the existence of any arbitration agreement.	The refusal that triggered s.11(6).
2009	Trimex filed **Arbitration Petition No. 10 of 2009** under s.11(6) of the Arbitration and Conciliation Act, 1996 for the appointment of an arbitrator.	The petition the Supreme Court allowed.

6.2 Issues

⚖ THE ISSUES FRAMED

1. Whether the exchange of e-mails between the parties **concluded a binding contract** for the supply of bauxite for five shipments.
2. Whether the parties were ***ad idem*** on all the essential terms, or whether material terms (specifications, price inclusions, delivery point, insurance, commencement and conclusion dates, transfer of title, quality check, demurrage) remained open for negotiation.
3. Whether the fact that a **formal contract document was never prepared or executed** prevented the contract from coming into existence.
4. Whether the **arbitration clause (clause 6) contained in the e-mailed commercial offer** constituted an arbitration agreement enforceable under the Arbitration and Conciliation Act, 1996.
5. Whether *Dresser Rand S.A. v. Sanghvi Refracs Ltd.*, (2009) 4 SCC 341 — the authority Vedanta relied on — governed the facts.

6.3 Arguments of the parties

Vedanta Aluminium Ltd. (respondent) — the case AGAINST a concluded contract

- **No concluded contract.** The e-mails were part of an **ongoing negotiation**; the parties never reached the stage of a final, executed agreement. A draft contract was in fact prepared but was **never confirmed or signed**.
- **The parties were not *ad idem* on essential features.** The offer had contained **two shipment options — 2 or 5** — and only the **number** was agreed. Everything else was still open: **product specifications, price, what was included in the price, the point of delivery, insurance, the commencement and conclusion dates, transfer of title, quality check and demurrage**.
- **The ambiguities were expressly pointed out in the e-mails themselves** — so both sides knew the terms were unsettled.
- **Clause 6 was vague and ambiguous** and could not found an arbitration agreement.
- **There was therefore no arbitration agreement** at all, and the s.11(6) petition was misconceived.
- ***Dresser Rand S.A.* was directly applicable:** there the Supreme Court held that the modification of general conditions did not conclude the contract, and that **neither the Letter of Intent nor the General Conditions contained an arbitration agreement**. On that footing Vedanta argued that an exchange of e-mails and a draft could not supply an arbitration clause.

Trimex International FZE Ltd. (petitioner — argued by Mr. K.K. Venugopal, Senior Advocate) — the case FOR a concluded contract

- **The contract was concluded by the acceptance of the five-shipment offer.** Vedanta's e-mail of 16.10.2007 confirming "the deal for 5 shipments" was an acceptance **absolute and unconditional** within **s.7 of the Indian Contract Act, 1872**.
- **All essential terms were agreed:** price, quantity, specifications, point of delivery, payment terms, discharge port, shipment lots, demurrage, the quality benchmark, and arbitration.
- **The intention to be bound was manifested by conduct.** Trimex concluded its upstream deal with the Australian supplier on the **very same day**, and entered a **binding Charter Party Agreement in Oslo on 17.10.2007**, and later a formal Bauxite Sales Agreement with Rio Tinto for 225,000 tonnes. A party does not commit itself to third parties unless it believes itself bound.
- **Vedanta's own conduct confirmed the contract:** it convened a meeting at Lanjigarh on 26.10.2007 at which **signed minutes** acknowledged the acceptance, and on **08.11.2007 Vedanta itself sent a formal contract** containing a detailed arbitration clause (clause 29), which Trimex accepted with minor changes the same evening. A party cannot formalise a contract it says never existed.
- **The absence of a formal, executed document is irrelevant.** Once a contract is concluded orally or in writing, the mere fact that a formal contract has to be prepared and initialled does not affect the **acceptance** or the **implementation** of the contract already concluded.
- ***Dresser Rand S.A.* was distinguishable** — there, unlike here, no arbitration clause existed in any of the operative documents and the essential terms were left genuinely open.

6.4 Decision and reasoning

Held — petition allowed.
The Supreme Court allowed the Arbitration Petition,
appointed Justice B.N. Srikrishna as the sole arbitrator
, fixed the
place of arbitration at Mumbai
, and directed the arbitrator to enter upon the reference within four weeks. The Court expressly stated that it expressed
no opinion on the merits of the claims
— that was for the arbitrator.

The reasoning, in the order the Court gave it.
Once a contract is concluded orally or in writing, the mere fact that a formal contract has not been prepared and initialled does not affect either the acceptance or the implementation of the contract already concluded.
(2) On the facts, the
essential terms were settled
and the parties were
ad idem
: the quantity (five shipments), the price, the specifications, the point of delivery, the payment terms, the discharge port, the shipment lots, demurrage, the quality benchmark and arbitration. (3) The subsequent e-mails did not introduce new or unsettled terms; they
recorded and clarified
a bargain already struck. (4) The
communication of acceptance was complete as against Vedanta
when it was put in a course of transmission so as to be out of the acceptor's power, and
as against Trimex when it came to Trimex's knowledge
— the two limbs of
s.4 of the Indian Contract Act, 1872
(Trimex opened the e-mail at 3.06 p.m., one minute after Vedanta sent it). (5) The
arbitration clause in the e-mailed commercial offer (clause 6) was a valid and enforceable arbitration agreement
; a separately signed document was not required. (6) The Court relied on
English Court of Appeal and Privy Council authority
that Indian law is no different on the point that the parties' intention to execute a formal agreement later does not defeat a contract already complete in substance.

☑ THE PRINCIPLE EVOLVED — WRITE THIS, VERBATIM, IN ANY ANSWER ON TRIMEX

An exchange of e-mails, containing an offer with all its essential terms and an unconditional acceptance of those terms, concludes a binding contract; the absence of a separately prepared and executed formal contract does not affect the acceptance or implementation of the contract already concluded; and an arbitration clause contained in the e-mailed offer is itself a valid arbitration agreement enforceable under the Arbitration and Conciliation Act, 1996. Section 10A of the IT Act, 2000 removes the electronic medium as a ground of invalidity; the substantive question — whether there was offer, acceptance and *ad idem* — is answered entirely by the Indian Contract Act, 1872.

☑ WHY TRIMEX IS THE MOST USEFUL OF THE THREE DU CASES

Because it is the only Indian Supreme Court authority that (i) applies **s.10A** in substance, (ii) applies **s.4 of the ICA** to an **e-mail** acceptance, and (iii) holds that an **arbitration agreement can be formed by e-mail** — which, read with the **2015/2016 amendment inserting s.7(4)(b) ...**

⬢ 7 Case brief 2: World Wrestling Entertainment v. Reshma Collections (Del HC DB, 15.10.2014)

⚖ Citation and status — and why this case is the centrepiece of the Unit

World Wrestling Entertainment, Inc. v. M/s Reshma Collection, FAO (OS) 506/2013 in CM Nos. 17627/2013 and 18606/2013, Delhi High Court (Division Bench), decided on **15 October 2014** by a **Division Bench of Badar Durrez Ahmed and Vibhu Bakhru JJ.** (the judgment was delivered by Ahmed J.). Reported in the trade-marks reports as **2014 (60) PTC 452 (Del) (DB)**. It is **printed in full in the DU case material at pp. 181–194** — the only one of the three Unit VII cases that is.

The decision is formally about **territorial jurisdiction** (Unit IX), but it reaches that result **through the law of contract formation** — which is why the DU syllabus places it in Unit VII. It is the leading Indian authority on **when and where a contract on a website is concluded**, and it contains the only judicial statement in India that a website listing is an **invitation to offer**. Note the title: the DU syllabus writes "Reshma Collections"; the printed report writes "M/s Reshma Collection".

▸ 7.1 Facts

Element	The facts as pleaded and as recorded by the Division Bench
Plaintiff	**World Wrestling Entertainment, Inc.**, a company incorporated under the laws of the **State of Delaware, USA**. It develops, produces and markets television programming, pay-per-view programming and live events, and licenses and sells branded consumer products bearing the well-known **WWE** brand. The **WWE scratch logo** and "World Wrestling Entertainment" are registered trademarks worldwide, including in India, and it owns copyright in the pictorial representations of WWE and its wrestlers. It holds registrations for talent names and slogans such as **JOHN CENA, BATISTA, UNDERTAKER, TRIPLE H and RANDY ORTON**. It offers apparel, posters, calendars, fact books, sunglasses, water bottles, key-rings and DVDs, and has **more than 200 licensees in 86 countries**, including India.
Defendants	**M/s Reshma Collection and others**, all **residing and stationed in Mumbai**, engaged in the manufacture and sale of garments and apparel — T-shirts, wrist bands, caps and other counterfeit goods — bearing reproductions of WWE's talents and prominent representations of WWE characters.
The suit	**CS (OS) 1801/2013** in the Delhi High Court, seeking **permanent injunction** for infringement of copyright, infringement of trademarks, passing off, dilution, rendition of accounts, damages and delivery up.
The impugned order	By order dated **04.10.2013** the **learned Single Judge, without issuing summons**, directed the return of the plaint to the plaintiff under **Order VII Rule 10 CPC** for presentation before a court of competent jurisdiction, holding that the Delhi High Court had **no territorial jurisdiction**.
The jurisdictional plea	Made in **paragraph 32 of the plaint** (quoted verbatim below), under **s.134(2) of the Trademarks Act, 1999** and **s.62(2) of the Copyright Act, 1957** — the provisions that allow a plaintiff to sue where it "carries on business", notwithstanding the CPC.
The admitted position	The plaintiff is a **US company**; **all the defendants reside in Mumbai** and do not carry on business within the jurisdiction of the Delhi High Court; the plaintiff does **not** reside or personally work for gain in Delhi; and the plaintiff has **no agent, manager, servant or office in Delhi** — not even a branch office.
The appeal	**FAO (OS) 506/2013** — a Letters Patent Appeal against the return of the plaint.

⎙ VERBATIM EXTRACT — PARAGRAPH 32 OF THE PLAINT (DU CASE MATERIAL, P. 181)

"32. It is submitted that this Hon'ble Court has territorial jurisdiction to entertain and try the present suit under Section 134 (2) of the Trade Marks Act, 1999 and Section 62 (2) of the Copyright Act, 1957 on account of the fact the Plaintiff carries on business within the territorial limits of this Hon'ble court as briefly summarized below: i. The Plaintiff's programmes, consisting of its various characters including John Cena, Undertaker, Triple H, Randy Orton and Batista are broadcast at Delhi, within the territorial limits of this Hon'ble Court; ii. The Plaintiff's products, such as its merchandising goods and books, are available within the territorial limits of this Hon'ble Court; iii. The Plaintiff's goods and services are sold to consumers in Delhi through its websites which can be accessed and operated from all over the country, including from Delhi."

⎙ VERBATIM EXTRACT — S.134(2) TRADEMARKS ACT, 1999 AND S.62(2) COPYRIGHT ACT, 1957 (AS SET OUT BY THE DIVISION BENCH, DU CASE MATERIAL, PP. 184–185)

Section 134(2) of the Trade Marks Act, 1999: *"For the purpose of clauses (a) and (b) of sub-section (1), a 'District Court having jurisdiction' shall, notwithstanding anything contained in the Code of Civil Procedure, 1908 (5 of 1908) or any other law for the time being in force, include a District Court within the local limits of whose jurisdiction, at the time of the institution of the suit or other proceeding, the person instituting the suit or proceeding, or where there are more than one such person any of them, actually and voluntarily resides or carries on business or personally works for gain."* Explanation: "For the purpose of sub-section (2), 'person' includes the registered proprietor and the registered user."

Section 62(2) of the Copyright Act, 1957: *"For the purpose of sub-section (1), a 'district court having jurisdiction' shall, notwithstanding anything contained in the Code of Civil Procedure, 1908 (5 of 1908), or any other law for the time being in force include a district court within the local limits of whose jurisdiction, at the time of the institution of the suit or other proceedings, the person instituting the suit or other proceeding or, where there are more than one such persons, any of them actually and voluntarily resides or carries on business or personally works for gain."*

▸ 7.2 Issues

⚖ THE ISSUES FRAMED BY THE DIVISION BENCH

1. Whether the **Delhi High Court** had territorial jurisdiction to entertain the suit, given that the plaintiff was a US company and the defendants were all in Mumbai.
2. Whether, on the **averments in the plaint** alone (a demurrer), the plaintiff "carries on business" in Delhi within the meaning of **s.134(2) of the Trademarks Act, 1999** and **s.62(2) of the Copyright Act, 1957**.
3. Whether the three conditions of *Dhodha House v. S.K. Maingi*, 2006 (9) SCC 41 were satisfied — in particular the **third** condition, that "the essential part of the business must take place" at the place where jurisdiction is claimed.
4. **The e-contract question at the heart of the case: where is a contract concluded when the transaction takes place over the internet?** — and, therefore, at which place does the essential part of the business transaction take place?
5. Whether the Single Judge was right to hold, on the authority of *Bhagwan Goverdhandas Kedia v. Girdharilal Parshottamdas & Co.*, AIR 1966 SC 543, that internet transactions are no different from transactions over the telephone or fax, so that the tests for "when and where the contract is made" remain unchanged.
6. Whether a plaint should be returned under **Order VII Rule 10 CPC** at the threshold, on a demurrer, where a case for territorial jurisdiction is made out on the plaint's averments.

▸ 7.3 Arguments of the parties

▸▸ WWE (appellant / plaintiff) — argued by Mr. Praveen Anand

- **The "carries on business" provisions are wider than the CPC.** The word **"include"** in ss.134(2) and 62(2) makes the provisions broader than **s.20 of the CPC** — reliance on *Exphar SA v. Eupharma Laboratories Ltd.*, AIR 2004 SC 1682.
- **"Carries on business" is not confined to the head office; it can include a branch office** — *Wipro Ltd. v. Oushadha Chandrika Ayurvedic India (P) Ltd.*, 2008 (37) PTC 269 (Mad) (DB), where it was observed that the plain meaning of the expression "only conveys that wherever there is a business activity — be it the principal place or branch or branches — the party concerned is said to carry on business at such places".
- **No office is needed at all.** *Dhodha House* itself says that the presence of the person at a place is not necessary and that business may be carried on through an agent, manager or servant. So the requirement of an office cannot be fatal.
- **The "new media" cases were not considered below.** *Dhodha House* and *Archie Comic Publications v. Purple Creations Pvt. Ltd.*, 172 DLT 234 (DB) did not deal with **web-based business models** — reliance on *Yahoo! Inc. v. Akash Arora*, 1999 (19) PTC 201; *Banyan Tree Holding (P) Ltd. v. A. Murali Krishna Reddy*, 2010 (42) PTC 361 (Del); and *Wipro* (Mad) (DB).
- **Virtual presence.** Goods and services are sold to consumers in Delhi through the WWE website, which is accessible and operable from Delhi; payment is made from Delhi; goods are delivered to Delhi. Therefore the essential part of the business, insofar as Delhi customers are concerned, takes place in Delhi.
- **Procedural point.** Territorial jurisdiction is a **mixed question of law and fact**; at the stage of a return of plaint under Order VII Rule 10, only the **averments in the plaint** ought to be seen, and if on a demurrer a case for jurisdiction is made out, the plaint ought not to be returned.

▸▸ Reshma Collection (respondents / defendants)

- **The defendants are all in Mumbai** and carry on no business in Delhi. The plaintiff is a US company. Neither resides nor works for gain in Delhi.
- ***Dhodha House* governs.** Under the three conditions laid down there, the plaintiff cannot be said to carry on business in Delhi: (i) there is **no special agent** who attends exclusively to the plaintiff's business and carries it on in the plaintiff's name; (ii) there is **no agent in the strict sense** — indeed there is no agent at all; and (iii) **the essential part of the business does not take place in Delhi** — the plaintiff has no office, let alone a branch office, there.
- ***Archie Comic* (a Division Bench of the same Court) applied *Dhodha House* to a similar web-based merchandising dispute** and held that the plaintiff did not carry on business in Delhi.
- **Mere availability of goods in Delhi is not enough.** *Dhodha House* itself says (para 51) that "only because, its goods are being sold at a place would thus evidently not mean that it carries a business at that place", and that the plaintiff's goods being available in the Delhi market would not by itself mean the plaintiff carried on business in Delhi.
- **Parliament did not amend the law for the new media.** While enacting the Information Technology Act, 2000, Parliament consciously did **not** amend the Trademarks Act, 1999, the Copyright Act, 1957 or the CPC to introduce concepts relating to new media. The basic concepts and legal principles therefore remain the same as those applicable to the "old media" of telephone and fax.

7.4 Decision

Held — appeal allowed; the impugned order is set aside; the suit is restored to its original number and placed before the Roster Bench for further steps on 28.10.2014.
The Delhi High Court would,
on a demurrer
, have jurisdiction to entertain the suit, inasmuch as the appellant/plaintiff would be regarded as
carrying on business in Delhi
within the meaning of s.134(2) of the Trademarks Act, 1999 and s.62(2) of the Copyright Act, 1957. The learned Single Judge
ought not to have returned the plaint under Order VII Rule 10 CPC
However
, this would not preclude the defendants from raising the plea of jurisdiction
on facts
— which, if raised, could be considered by the court on the evidence and upon the law explained in the judgment. The Court expressly left that open.

7.5 Reasoning — the chain of reasoning in the Division Bench's own words

☐ STEP 1 — THE CASE TURNS ENTIRELY ON THE MEANING OF "CARRIES ON BUSINESS"

"The provisions of Section 134 (2) of the Trademarks Act, 1999 and of Section 62(2) of the Copyright Act, 1957 are material. Both the provisions are virtually identical. They are both non-obstante provisions ... Furthermore, the word 'include' is used in b ...

☐ STEP 2 — THE DHODHA HOUSE THREE-CONDITION TEST

The Division Bench extracted the three conditions from *Dhodha House v. S.K. Maingi*, 2006 (9) SCC 41, at para 46 of that decision: *"The expression 'carries on business' and the expression 'personally works for gain' connote two different meanings. For the purpose of carrying on busi ...*

☐ STEP 3 — THE FIRST TWO CONDITIONS FAIL; THE CASE STANDS OR FALLS ON THE THIRD

"Insofar as the first two conditions are concerned, they relate to agents. Inasmuch as it is an admitted position that the appellant/plaintiff has no agent in Delhi, those two conditions are clearly not fulfilled." (para 18). And: *"The question then a ...*

☐ STEP 4 — THE E-CONTRACT HOLDING (PARAS 19, 22 AND 23 — QUOTE THESE VERBATIM)

Para 19 — the question posed: *"Considering the fact that in Dhodha House, the third condition stipulated that to constitute 'carrying on business' at a certain place, the essential part of the business must take place there, it would be necessary to examine this aspect in the backdrop of business over the internet. When a transaction takes place over the internet, where is the contract concluded? This is the question which needs to be answered. In other words, at which place does the essential part of the business transaction take place?"* The Court then described the transaction: *"if a customer in Delhi wishes to purchase an article, which is available on the website of the appellant/plaintiff, the purchaser in Delhi accesses the said website on his or her computer in Delhi. The said purchaser places the order for the said article from his computer in Delhi. The payment is made either through a credit/debit card or through a cash card from Delhi and ultimately the goods are delivered to the customer in Delhi."* And the Court noted that **the server is in all likelihood in the USA** and has not been pleaded to be in Delhi.

Para 22 — the extension of *Kedia* to the internet: *"It is interesting to note that the Supreme Court had observed that the draftsman of the Indian Contract Act could not have envisaged use of the telephone as a means of personal conversation between parties separated in space and could not have intended to make any rule in that behalf. This applies with greater vigour insofar as commerce and business over the internet is concerned. Just as in the case of telephone conversation, there is instantaneous communication, so, too, in the case of business over the internet. Therefore, the rule that applies to contracts concluded over the telephone would apply with equal vigour to contracts concluded over the internet. In other words, contracts would be completed at the place where the acceptance is communicated."*

(Brief abridged for the compilation — full text at makelaweasy.in.)

☐ STEP 5 — THE "VIRTUAL PRESENCE" / "VIRTUAL SHOP" REASONING

"...if the contracts and/or transactions entered into between the appellant/plaintiff on the one hand and its customers are being concluded in Delhi, can it not be said that the essential part of the business of the appellant/plaintiff, insofar as its transactions with ...

☐ THE PRINCIPLE EVOLVED — WRITE THIS, VERBATIM

(1) A website that displays goods and services is not an offer but an invitation to offer — "just as a menu in a restaurant". (2) The customer's order, placed from her computer and paid for from her location, is the offer. (3) The seller's confirmation of the transaction through the software and browser is the acceptance. (4) Because the internet transaction is instantaneous — like the telephone in *Bhagwan Goverdhandas Kedia* — the acceptance is communicated instantaneously to the customer at the customer's location, so the contract is completed there. (5) Consequently, part of the cause of action arises at the customer's place, and the seller has a "virtual presence" there: "the availability of transactions through the website at a particular place is virtually the same thing as a seller having shops in that place in the physical world". (6) The postal-rule exception is confined to non-instantaneous communications (post and telegram) and does not apply to the telephone or to the internet.

☐ DU SELF-LEARNING EXERCISES PRINTED IMMEDIATELY AFTER THIS CASE (DU CASE MATERIAL, P. 193)

"1. Whether mere display of articles on website, one can presume that plaintiff, a natural person, carries on business in the jurisdiction where interactive website of plaintiff is accessible or he should also prove that some genuine trans ...

⬢ 8 Case brief 3: P.R. Transport Agency v. Union of India , AIR 2006 All 23

⚖ Citation and status

P.R. Transport Agency v. Union of India & Ors., AIR 2006 Allahabad 23; 2004 (55) ALR 807. Allahabad High Court, **Division Bench** of **S. Harkauli and U. Pandey JJ.**, decided on **24 September 2005**. It was a **writ petition** (under Article 226 of the Constitution) challenging the cancellation of an e-auction bid — **not** a civil suit. **Source note:** this case is listed in the DU syllabus and TOC but is **not printed** in the DU case material; the brief below is drawn from the reported decision. Its significance for Unit VII is that it is the **first Indian decision to apply s.13(3) of the IT Act to an e-mailed acceptance**, and to hold that an e-mail is received where the addressee's place of business is.

8.1 Facts

Element	The facts

The parties	**Petitioner:** P.R. Transport Agency (PRTA), a firm based at **Chandauli** and **Varanasi**, both in Uttar Pradesh. **Respondents:** the **Union of India** and **Bharat Coking Coal Ltd. (BCC)**, a public sector undertaking held by the Court to fall within **Article 12** of the Constitution (a "State").
The transaction	BCC held an **e-auction** for the allocation of coal. PRTA submitted a bid. **BCC accepted PRTA's bid** for **4,000 metric tonnes at ₹1,625/- per metric tonne**, from the **Dobari Colliery**.
Communication of acceptance	BCC communicated the acceptance **by e-mail on 19 July**. The e-mail was addressed to PRTA at its place of business — **Chandauli and Varanasi, both within Uttar Pradesh**.
Performance by PRTA	PRTA, in accordance with the **Terms of Allocation**, deposited **₹81.12 lakhs by cheque** drawn in favour of BCC.
The cancellation	BCC thereafter **e-mailed a cancellation** of the allocation, citing "**technical issues and unavoidable reasons**". The real reason, as emerged, was that a **higher bid had been missed because of a software flaw** in the e-auction system.
The challenge	PRTA filed a **writ petition** in the **Allahabad High Court** — the bench at Allahabad, within whose territorial jurisdiction the cause of action was said to arise because the e-mail had been received at Chandauli and Varanasi.

8.2 Issues

⚖ THE ISSUES FRAMED BY THE DIVISION BENCH

1. Whether the **Allahabad High Court had territorial jurisdiction** to entertain the writ petition, in the absence of any cause of action arising within Uttar Pradesh other than the receipt of the e-mail there.
2. Whether the **ouster clause (clause 10.5)** of the tender agreement — which confined disputes to a court/forum elsewhere — **excluded the writ jurisdiction** of the High Court.
3. On the merits: whether the **cancellation of the accepted bid at a belated stage**, without notice or hearing, violated **natural justice**.

8.3 Arguments of the parties

Union of India / BCC (respondents)

- **No cause of action in Uttar Pradesh.** The e-auction was conducted, the bid accepted and the cancellation communicated from BCC's own systems; the petitioner's deposit was made by cheque; the coal was to be lifted at a colliery outside Uttar Pradesh. Nothing connected the dispute with the Allahabad High Court's territorial jurisdiction.
- **Clause 10.5 of the tender agreement is an ouster clause** and the parties had agreed to it; the petitioner was bound by it and could not invoke the High Court's writ jurisdiction in a different forum.
- **The cancellation was justified** on "technical issues and unavoidable reasons" — a matter within BCC's commercial and administrative discretion, not amenable to judicial review in the manner sought.

P.R. Transport Agency (petitioner)

- **A concluded contract existed.** The bid was the offer; BCC's e-mail of 19 July accepting it was the acceptance; the contract was therefore complete, and the subsequent deposit of ₹81.12 lakhs was performance.
- **The acceptance was received in Uttar Pradesh.** Under **s.13(3) of the Information Technology Act, 2000**, an electronic record is "deemed to be received at the place where the addressee has his place of business". PRTA's place of business was **Chandauli and Varanasi**, both in Uttar Pradesh. A part of the cause of action therefore arose within the Court's territorial jurisdiction.
- **Section 13 applies unless the parties have agreed otherwise** ("save as otherwise agreed between the originator and the addressee"), and no such contrary agreement existed as to the **place of receipt** of the acceptance e-mail.
- **Clause 10.5 cannot oust the writ jurisdiction of the High Court under Article 226.** A statute creates the jurisdiction of civil courts; that jurisdiction cannot be conferred on a court lacking territorial or pecuniary jurisdiction by consent. Under **s.28 of the Indian Contract Act, 1872** parties cannot bar the statutory jurisdiction of civil courts, though where a statute confers territorial jurisdiction on several civil courts they may agree to limit themselves to one or more. Ouster clauses can oust the territorial jurisdiction of **civil courts only**, not of the High Court under Article 226, where part of the cause of action arose within its territory.
- **Natural justice.** BCC cancelled the accepted bid at a **belated stage without any notice or hearing**, and that too because of its own software failure. That was arbitrary and unfair, and violated the principles of natural justice.

8.4 Decision and reasoning

Held — the writ petition was allowed.
The Allahabad High Court held that it
had territorial jurisdiction
, that the ouster clause did
exclude its writ jurisdiction, that
BCC fell within Article 12
of the Constitution, and that the cancellation of the bid at a belated stage
without hearing violated natural justice
. The Court directed BCC to
hand over the coal to P.R. Transport Agency in accordance with its bid

The reasoning, in four steps.
Territorial jurisdiction.
The e-mail communicating the acceptance was
intended for the address at which the company was working
— Chandauli and Varanasi, both within Uttar Pradesh. Applying
s.13(3) of the IT Act
, the record is deemed to be received at the addressee's place of business. The
place of contract
is determinative of territorial jurisdiction in a breach-of-contract action; and a part of the cause of action arose within the Court's jurisdiction. (2)
The ouster clause.
Jurisdiction is subject to the agreement of the parties and, absent agreement, to s.13 of the IT Act. But the
jurisdiction of civil courts is created by statute
and cannot be conferred on a court lacking territorial or pecuniary jurisdiction by consent. Under
s.28 of the ICA
, parties cannot bar the statutory jurisdiction of civil courts; but where a statute confers territorial jurisdiction on several civil courts, they may agree to limit themselves to one or more without violating s.28. Courts having jurisdiction under
s.20(c) of the CPC
are not ousted. (3)
Article 226.
Ouster clauses can oust the territorial jurisdiction of
civil courts only, and not of the High Court under Article 226
, where part of the cause of action arose within its territory. Article 226 and s.20 CPC are similar in permitting jurisdiction where the cause of action arises in full or in part; they differ in that the High Court can act
suo motu
. (4)
Natural justice.
BCC was a "State" within Article 12; the cancellation, at a belated stage, without hearing, was arbitrary.

☑ THE PRINCIPLE EVOLVED — WRITE THIS, VERBATIM

An e-mail communicating an acceptance is received where the addressee's place of business is; s.13(3) of the Information Technology Act, 2000 therefore fixes the place of receipt, and the place of contract determines territorial jurisdiction in an action for breach of contract, so a part of the cause of action arises within the territorial jurisdiction of the court at that place. An ouster clause in the tender agreement cannot exclude the writ jurisdiction of the High Court under Article 226 of the Constitution, although it may oust the territorial jurisdiction of an ordinary civil court. Where a public undertaking within Article 12 cancels an accepted bid at a belated stage without notice or hearing, that cancellation violates natural justice and will be set aside.

☑ WHY P.R. TRANSPORT AGENCY MATTERS FOR UNIT VII, AND ITS LIMITS

- **It is the Indian application of s.13(3)** — the only decision of its kind. Where *WWE* uses the *Kedia* instantaneous-communication route, *P.R. Transport Agency* uses the **statutory receipt rule**. Both end at the addressee's place.
- **It is an Article 226 writ petition**, not a ci ...

☑ RELATED AUTHORITIES TO CITE ALONGSIDE P.R. TRANSPORT AGENCY IN A JURISDICTION ANSWER

- **s.28, Indian Contract Act, 1872** — agreements in restraint of legal proceedings are void; the statutory source of the ouster-clause rule.
- **ss.15–20, Code of Civil Procedure, 1908** — place of suing; s.20(c) permits suit where the cause of action who ...

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 7 (questions only)

Q1 Mr. Arjun enters an online agreement via email with a US company. Both parties digitally sign via an online platform. The company later denies the validity of the electronic signature. Examine the validity of this e-contract.

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 Discuss the kinds of e-contracts and their enforceability.

Q3 When and where is an e-contract formed? Discuss with reference to s.13 of the IT Act.

Q4 Examine the formation of e-contracts under the Indian Contract Act, 1872 read with ss.10A and 11–13 of the IT Act.

Q5 Write a short note on the United Nations Convention on the Use of Electronic Communications in International Contracts, 2005.

Q6 A website displays goods with a price tag. A customer places an order which the website confirms. Has a contract been formed, and where?

Q7 Are standard form e-contracts enforceable? Discuss the protections available to the adhering party.

LB-5031 · INFORMATION TECHNOLOGY LAW · FACULTY OF LAW, UNIVERSITY OF DELHI · LL.B. V TERM

UNIT IX

Jurisdiction in Cyberspace

◆ SYLLABUS COVERAGE

Jurisdiction in cyberspace — no geographical boundaries · applicability of traditional rules of jurisdiction and of private international law on the internet · passive v. interactive websites — the sliding scale and the targeting test · personal jurisdiction over the defendant and cause of action · criminal jurisdiction (CrPC ss.177–179, 186, 188, 189) · extraterritorial jurisdiction under the IT Act (ss.1(2), 75) and s.3 IPC.

◆ STATUTES & PROVISIONS

IT Act, 2000 · ss.1(2), 75, 78, 80 · CrPC, 1973 · ss.177–179, 186, 188, 189 · s.3 IPC/BNS · CPC · s.20

◆ PRESCRIBED CASE MATERIAL

Banyan Tree Holding v. A. Murali Krishna Reddy · P.R. Transport Agency v. Union of India · Super Cassettes Industries v. Myspace Inc. · WWE Inc. v. Reshma Collection · Big Tree Entertainment v. Saturday Sunday Media · Impresario Entertainment v. S&D Hospitality

◆ No geographical boundaries · applicability of traditional rules of jurisdiction on the internet · rules of private international law · passive/interactive web sites · personal jurisdiction on the defendant and cause of action (s.20 CPC; ss.177–179, 186, 188, 189 CrPC) · criminal jurisdiction · extraterritorial jurisdiction under the IT Act (ss.1(2), 75 read with s.3 IPC)

Delhi University · Faculty of Law

LL.B. V Term · Paper LB-5031

Information Technology Law

Prepared from the prescribed DU case material (CMITLAW-2026) · Unit IX of Part B

Syllabus coverage (verbatim): "No geographical boundaries, applicability of traditional rules of jurisdiction on internet, rules of private international law; passive/interactive web sites; personal jurisdiction on defendant -Cause of action(s.20 CPC(ss. 177-179, 186,188 and 189); Criminal jurisdiction (the Code of Criminal Procedure, 1973 - ss. 177-179 , 186,188 and 189); Extraterritorial Jurisdiction under IT Act (s.1(2), s75, s.3 IPC)"

◆ 1 No geographical boundaries — the end of territory

"No geographical boundaries" is the first phrase of the syllabus and it is not rhetoric. It is a statement about the **architecture** of the internet, and every jurisdictional problem in this Unit is a consequence of it.

▸ 1.1 Why the internet has no geography

The internet was designed without a location layer. Its two addressing systems — the **Internet Protocol (IP) address** and the **Domain Name System (DNS)** — are routing and naming systems, not territorial ones. An IP address tells a router *where to send a packet next*; it does not, and cannot, tell a court *where a legal event happened*. A DNS name is a globally unique label resolved by a hierarchy of root and top-level servers; the registrant of example.in may be in Tokyo, the registrar in Toronto, the name server in Frankfurt and the web server in Virginia — while the only person reading the page sits in Karol Bagh, Delhi.

The consequence is that the four facts on which every jurisdictional rule depends become **simultaneously true in several places and false in all of them**:

THE ACT

▸▸ Where was the act done?

Uploading a page is a keystroke. Where did it happen? At the author's desk? On the server that stored the file? On the content delivery network node that cached it? On the user's own machine that rendered it?

Why it matters: s.177 CrPC asks where an offence "was committed"; s.20(c) CPC asks where the cause of action "arises". Both presuppose a single answer.

THE EFFECT

▸▸ Where was the harm felt?

A defamatory page published once is "read" a million times in a hundred countries. The harm — the lowering of reputation, the loss of goodwill — is felt wherever the reader is, and nowhere in particular.

Why it matters: this is the *Calder* "effects" test, and the point on which Indian and English law part company. See §3.4.

THE PERSON

▸▸ Who is the defendant?

Pseudonymity, shell registrations, cloud hosting, VPNs and offshore intermediaries mean the person who "did" the act may be unidentifiable, or identifiable only as a foreign corporation with no presence anywhere near the forum.

Why it matters: s.20(a)/(b) CPC and s.177 CrPC key jurisdiction to the defendant's residence or business. A defendant with no residence and no business defeats them both.

THE PROPERTY

▸▸ What is the res, and where is it?

Software, a domain name, a database, a cryptocurrency balance — none has a natural situs. A website is not "in" the country of its server any more than a telephone conversation is "in" the exchange that carried it.

Why it matters: ss.16–19 CPC (immovable property, specific performance) and in rem jurisdiction over domain names (US ACPA) both need a situs the internet does not supply.

1.2 Sovereignty and the "effects" of an online act

The classical theory of criminal jurisdiction, inherited from the *Lotus* case (France v. Turkey, PCIJ 1927), distinguishes **subjective territoriality** (jurisdiction where the act was done) from **objective territoriality** (jurisdiction where the effect was produced). Both are accepted by international law; what is contested is *how much* effect is needed.

THE TWO TERRITORIAL PRINCIPLES, AS THE BANYAN TREE DIVISION BENCH SET THEM OUT

Subjective territoriality — the State may regulate conduct that **begins** within its territory, even if it is completed abroad. *Louis Feraud* is the classic illustration: the offender acted inside the State; the effect outside is irrelevant.

Objective territoriality (the "effects" test) — the State may regulate conduct that **produces its harmful effect** within its territory, even if the act was done abroad. This is the basis on which the French court in *Yahoo! Inc. v. La Ligue Contre le Racisme et l'Antisemitisme* (LICRA) ordered Yahoo to prevent French users from accessing Nazi memorabilia auctions, and on which the Victorian Supreme Court and the Australian High Court in *Dow Jones & Co. Inc. v. Gutnick* (2002) HCA 56 allowed a defamation action in Victoria for material published on a US server. As the *Banyan Tree* Division Bench recorded, Victoria had a **long-arm statute** providing for jurisdiction based on the mere happening of damage within the jurisdiction, and it was that statute — not the common law — which did the work.

The problem with a pure "effects" test is that it is **universalising**. If any harmful effect felt in a State is enough, then every website in the world is subject to the law of every State in which it can be read. That is why the scholarly middle path — surveyed in *Banyan Tree* from Michael Geist's article in 16 *Berkeley Technology Law Journal* (2001) and Thomas Schultz's article in the *European Journal of International Law* (2008) — proposes **targeting**: "something more than effects, but less than physical presence". Targeting is exactly what the Division Bench adopted.

1.3 Public international law and private international law — the two halves of the syllabus phrase

The syllabus asks about "rules of private international law". That phrase is doing specific work, and it is worth being precise, because an examiner will reward the distinction.

Public international law — the State-to-State half

- **Question:** may *this State* regulate this conduct at all?
- **Sources:** sovereignty, comity, the territoriality and nationality principles, treaties, UN resolutions, the Tallinn Manual on the International Law Applicable to Cyber Operations.
- **Remedy for breach:** diplomatic protest, counter-measures — not a court order.
- **In this Unit:** explains **why** s.1(2) and s.75 IT Act exist at all — Parliament had to *legislate* for extraterritorial reach because it is not automatic.

Private international law — the party-to-party half

- **Question:** which *court*, which *law*, and will the resulting judgment be *recognised*?
- **Sources:** ss.9, 13, 19, 20, 44 CPC; the Arbitration and Conciliation Act 1996; the Hague Conventions; the Brussels I Regulation; contractual choice-of-forum clauses.
- **Remedy for breach:** the suit is dismissed, stayed or the plaint returned under O.VII R.10 CPC.
- **In this Unit:** explains *Banyan Tree*, *WWE*, *Big Tree*, *Impresario* — all of which are choice-of-forum disputes, not choice-of-law disputes.

THE TRAP THAT CATCHES MOST CANDIDATES

All seven DU cases in this Unit are **forum-selection** cases, not **choice-of-law** cases. No Indian court in any of them applied foreign law. So when a question says "rules of private international law", do **not** answer it by listing *lex loci delicti* and *lex fori* and stopping. Answer it by showing ...

REAL EXAMPLE TO QUOTE IN THE EXAMINATION

Take the facts of *Banyan Tree* itself: a Singapore company, a Hyderabad resident, a brochure downloadable from a website, a Delhi plaintiff. The defendant never sent anything to Delhi except, on one occasion, a brochure. The website was, at worst, "passive plus". Under the old *Casio* appro ...

2 Applicability of traditional rules of jurisdiction & the rules of private international law

The syllabus asks two things at once: whether the **traditional rules** apply to the internet, and what the **rules of private international law** are. The answer to the first is "yes, unchanged"; the answer to the second is the toolkit the courts use to make the first answer work.

2.1 The traditional rules of jurisdiction in Indian law — unchanged, and why that matters

No statute in India abolishes or modifies the ordinary jurisdictional rules because a dispute arises online. The scheme remains exactly what it was in 1908 and 1973:

S.20, CODE OF CIVIL PROCEDURE, 1908 — "OTHER SUITS TO BE INSTITUTED WHERE DEFENDANTS RESIDE OR CAUSE OF ACTION ARISES" (SOURCE: CPC 1908)

"Subject to the limitations aforesaid, every suit shall be instituted in Court within the local limits of whose jurisdiction—

(a) the defendant, or each of the defendants where there are more than one, at the time of the commencement of the suit, actually and voluntarily resides, or carries on business, or personally works for gain; or

(b) any of the defendants, where there are more than one, at the time of the commencement of the suit actually and voluntarily resides, or carries on business, or personally works for gain, provided that in such case either the leave of the Court is given, or the defendants who do not reside, or carry on business, or personally works for gain, as aforesaid, acquiesce in such institution; or

(c) the cause of action, wholly or in part, arises.

Explanation.—A corporation shall be deemed to carry on business at its sole or principal office in India or, in respect of any cause of action arising at any place where it has also a subordinate office, at such place."

Three observations that carry the whole Unit:

1. **s.20 is exhaustive for "other suits".** It follows the specific rules in ss.15–19 (immovable property, compensation for wrongs, trust property) and applies to everything else — including passing off, copyright infringement, defamation and e-commerce disputes. The words "subject to the limitations aforesaid" mean ss.15–19 must be checked first.
2. **s.20(c) is the internet provision, in practice.** When the defendant is abroad and has no office in India, (a) and (b) are unavailable and the whole argument is about (c): "the cause of action, wholly or in part, arises". Note the words **"wholly or in part"** — a *part* is enough. That is the hook on which every internet jurisdiction case hangs.
3. **The Explanation is a corporation-specific rule** and it is the reason *Big Tree Entertainment* came out the opposite way from *World Wrestling Entertainment*. See §9.

☑ THE SPECIAL FORUM PROVISIONS — S.62(2), COPYRIGHT ACT, 1957 AND S.134(2), TRADE MARKS ACT, 1999 (SOURCE: THE ACTS)

s.62(2) Copyright Act, 1957: "For the purpose of sub-section (1), a 'district court having jurisdiction' shall, notwithstanding anything contained in the Code of Civil Procedure, 1908 (5 of 1908), or any other law for the time being in force, include a district court within the local limits of whose jurisdiction, at the time of the institution of the suit or other proceeding, the person instituting the suit or other proceeding or, where there are more than one such persons, any of them actually and voluntarily resides or carries on business or personally works for gain."

s.134(2) Trade Marks Act, 1999 is in *pari materia* terms, and adds: "Explanation.—For the purposes of sub-section (2), 'person' includes the registered proprietor and the registered user." Both are **additional** forums for the plaintiff; the *non obstante* clause does not oust s.20 CPC (*Indian Performing Rights Society Ltd. v. Sanjay Dalia*, (2015) 10 SCC 161).

▸ 2.2 The rules of private international law — the eight tools

These are the concepts the syllabus names. Learn them as a toolkit, and learn which of the seven cases uses which.

Rule	What it means	Where it appears in this Unit	Indian statutory hook
Lex fori	The court applies its own procedural law; forum law governs remedies, evidence, injunctions, limitation and the burden of proof.	Every case — an Indian court applies CPC/CrPC procedure to an internet dispute, whatever the foreign element.	s.20 CPC; ss.177–179 CrPC; s.13(4) IT Act (deemed place irrespective of server location).
Lex loci delicti	Substantive liability is fixed by the law of the place where the tort was committed.	Contested. If the "wrong" is where the website is hosted, foreign law governs; if it is where the reader is harmed, Indian law governs. Indian IP courts effectively assume the wrong is committed where the harm is felt, because Indian rights are territorial.	Copyright Act s.1 ("extends to the whole of India"); TMA s.1. A right granted in India can be infringed only in India.
Comity	Mutual respect between sovereigns: courts do not adjudicate what another State is better placed to decide, and do not assume a legislature meant to reach foreign conduct without saying so.	Underpins the reluctance to give a Delhi court jurisdiction over a Hyderabad restaurant because its site is readable in Delhi (*Impresario*), and the observation in *Big Tree* about "lack of convenience as regards the place of suing, both to the plaintiff and the defendants".	Presumption against extraterritoriality — rebutted only by express provision, e.g. s.1(2) and s.75 IT Act.
Forum non conveniens	Even where jurisdiction technically exists, the court may decline or transfer if another forum is clearly more appropriate.	Raised in *India TV v. India Broadcast Live* (defendant argued Arizona was the forum conveniens) and expressly invoked in *Big Tree*.	**s.22 CPC** (power to transfer suits which may be instituted in more than one court) and **s.23 CPC** (power of the Supreme Court and High Courts to transfer to a subordinate court).
Party autonomy / choice of forum	Parties may agree where they will sue.	Central to *P.R. Transport Agency* — Clause 10.5 of the Tender Agreement confined disputes to the Jharkhand High Court.	*A.B.C. Laminart (P) Ltd. v. A.P. Agencies*, (1989) 1 SCC 234 — an ouster clause binds parties as between themselves and cannot be used to defeat a jurisdiction conferred by statute; but it cannot oust the writ jurisdiction of a High Court under Art. 226.
Foreign judgments — conclusiveness	A foreign judgment is conclusive of the matter adjudicated unless one of six exceptions applies.	Where a foreign court (e.g. the Arizona District Court in *India TV*) has already pronounced on a dispute.	**s.13 CPC** (when foreign judgments not conclusive — no competence, not on merits, contrary to natural justice, fraud, breach of Indian law, founded on an incorrect view of international law); **s.14 CPC** (presumption).
Foreign decrees — execution	A decree of a "superior court" of a reciprocating territory is directly executable in India.	Practical route for enforcing an internet judgment obtained abroad against an Indian defendant.	**s.44A CPC**; "reciprocating territory" defined in s.44A(3) — notified by the Central Government (includes the U.A.E., U.K., U.S.A., Singapore, Japan and others).
Foreign awards — recognition	New York Convention awards are enforceable in India subject to limited defences.	The default private international law regime for cross-border e-commerce disputes, including B2B website disputes.	**Arbitration and Conciliation Act, 1996**: s.44 (definition of "foreign award"), ss.46–52 (enforcement), s.48 (conditions), s.49 (evidence), s.53–60 (Geneva Convention awards). Repealed: Foreign Awards (Recognition and Enforcement) Act, 1961 and the Arbitration (Protocol and Convention) Act, 1937.

▸ 2.3 Service of summons abroad — the practical point that examiners love

A judgment against a website owner in Singapore is worthless if the summons cannot be served. The Indian Code provides a complete machinery, and the IT Act's rules on electronic records do not displace it:

☑ SERVICE OF AN INDIAN SUMMONS ABROAD (SOURCE: CPC 1908, ORDER V)

- **Order V Rule 25** — where the defendant resides outside India and has no agent empowered to accept service, the court may serve by post, fax, e-mail or other appropriate means of communication as approved by the High Court; for Pakistan and Bangladesh, summons may also be sent to the court having jurisdiction there.
- **Order V Rule 26** — where a Political Agent has been appointed, or a court has been established or continued by the Central Government with power to serve summons in the foreign territory, or the Central Government has declared by notification that service by such a court shall be valid, the summons may be sent to that Political Agent or court; the returned endorsement is **deemed evidence of service**.
- **Order V Rule 26A** — summonses to be served on defendants residing or carrying on business in a notified foreign territory may be sent to an officer of the government of that territory specified by the Central Government.
- **Order V Rule 20** — substituted service by advertisement, useful where the defendant's identity or address is unknown (a common problem with pseudonymous website operators).
- **s.29(c) CPC** — the mirror image: summonses issued by a civil or revenue court *outside India* to which the Central Government has extended the section by notification "may be sent to the Courts in the territories to which this Code extends, and served as if they were summonses issued by such Courts."
- **Hague Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters, 1965** — India is a party; service is through the designated Central Authority. India has declared its **opposition to private and direct service**, so a foreign litigant cannot simply e-mail a summons into India.

⎚ THE EXAMINATION POINT ABOUT SERVICE

Service is **not** jurisdiction. Serving a summons on a defendant abroad does not give the court jurisdiction over him; it is the machinery for proceeding *after* jurisdiction is established. Conversely, the absence of an Indian address does not defeat jurisdiction where the cause of action arises ...

▸ 2.4 India has no long-arm statute — and that single fact shapes everything

In the United States, each State has a **long-arm statute** authorising its courts to exercise personal jurisdiction over non-residents on specified grounds. The *Banyan Tree* Division Bench recorded the submission made before it that "in order to attain personal jurisdiction ... there should be a long-arm statute on the basis of which the court could exercise jurisdiction over any individual located outside the state", and noted that **"India did not have a long arm statute which dealt with the jurisdiction as regards non-resident Defendants."**

⚖ WHAT THE DIVISION BENCH DID ABOUT THAT GAP — THE MOST QUOTABLE MOVE IN THE UNIT

Instead of refusing jurisdiction, the Court imported the common law: "the essential principles developed as part of the common law can be adopted without difficulty by our courts in determining whether the forum court has jurisdiction where the alleged breach is related to an activity on the internet." That is the judicial answer to a legislative gap, and it is the technique you should name in your answers: **purposive construction of s.20(c) CPC by reference to the common law of personal jurisdiction.** Note the contrast with the criminal side: there, in *Maqbool Fida Husain*, the learned Additional Solicitor General accepted that "our Criminal Code does not deal with such jurisdictional aspect directly" and that the answer "only rested in the power conferred to the Supreme Court of India under Section 406" — i.e. a **procedural patch, not a substantive solution**. The Court itself said legislative change was needed.

⎚ INDIA'S NEAREST THING TO LONG-ARM PROVISIONS

- **s.134(2) Trade Marks Act, 1999** and **s.62(2) Copyright Act, 1957** — plaintiff-side forums, limited by *Sanjay Dalia* and by *Banyan Tree* to plaintiffs carrying on business within the jurisdiction.
- **s.92A and s.138 of the Trade Marks Act, 1999** — provisions for dealing with infringing marks on ...

⬢ 3 Passive v. interactive web sites — the sliding scale and the targeting test

"Passive/interactive web sites" is the second substantive phrase of the syllabus. It is the point at which the internet problem becomes tractable: courts stopped asking "where is the website?" and started asking "what does the website **do**, and at **whom**?"

▸ 3.1 The four-rung taxonomy

The taxonomy comes from the plaintiff's counsel's submissions in *Banyan Tree*, which the Division Bench adopted as the framing for the whole debate. It is worth reproducing because it is the vocabulary of every subsequent Indian case.

RUNG 1

▸▸ Passive website

A website that merely makes information available. It does not enable the viewer to transact with the host; it may not even enable the viewer to contact the host. "Simply created a web site and permitted anyone who could find it to access it."

Consequence: an **express absence of intention to market** to the forum State. **No jurisdiction.** *Banyan Tree*: "A passive website, with no intention to specifically target audiences outside the State where the host of the website is located, cannot vest the forum court with jurisdiction."

RUNG 2

▸▸ "Passive plus"

A website that is largely informational but adds a little interactivity — a downloadable brochure, an enquiry form, a feedback box, a telephone number, an e-mail link — without enabling a commercial transaction to be concluded.

Consequence: the plaintiff's counsel urged that because the host had not blocked forum-State viewers by "purposeful avoidance", the site must be treated as targeted. **The Division Bench rejected the euphemism**: "whether euphemistically termed as 'passive plus' or 'interactive'", the plaintiff must still show specific targeting for ...

RUNG 3

▸▸ Interactive website

A website that permits the browser to do something with the host — subscribe, register, book, order, pay, download against payment, upload content.

India TV

: the site "is not wholly of a 'passive' character. It has a specific section for subscription to its services and the options (provided on the website itself) for the countries whose residents can subscribe to the services include India."

Consequence: jurisdiction becomes **arguable**, but interactivity alone is still not enough. *Banyan Tree*: "It is not enough merely to show that the website hosted by the Defendant is an interactive one"; and "Even an interactive website, which is not shown to be specifically targeted at viewers in the forum state for commercial tran ...

RUNG 4

▸▸ Integral to the business

A website through which the defendant actually conducts its business — orders are taken, accepted, paid for and fulfilled through the site itself.

: "When, through the mode of the software and the browser, the transaction is confirmed and payment is made to the appellant/plaintiff through its website, the appellant/plaintiff accepts the offer of the customer at Delhi."

Consequence: the strongest case for jurisdiction. This is where the *Zippo* scale tops out: "the likelihood that personal jurisdiction can be constitutionally exercised is directly proportionate to the nature and quality of commercial activity that an entity conducts over the internet."

▸ 3.2 The American law of personal jurisdiction — as surveyed in Banyan Tree

The Division Bench surveyed the American authorities because India has no long-arm statute and the American cases supply the principles. This survey is the comparative-law section of the syllabus, and it is printed in the DU material (pp. 206–219 of the case material). Reproduce it as a table with a one-line ratio each.

Authority	Ratio / principle	Relevance to the internet

International Shoe Co. v. State of Washington (1945)	Two-part test: the defendant must have such **minimum contacts** with the forum that the suit does not offend "traditional notions of fair play and substantial justice", and the contacts must be such that the defendant "should reasonably anticipate being haled into court there".	The foundation. Every internet case is an application of "minimum contacts" to a website.
Burger King Corp. v. Rudzewicz (1985)	**Purposeful availment**: jurisdiction is proper where the defendant deliberately reaches out to create "continuing relationships and obligations" with citizens of the forum. A 20-year relationship reinforced deliberate affiliation.	Source of the phrase "purposefully availed", which *Banyan Tree* made the Indian test.
Asahi Metal Industry Co. v. Superior Court (1987)	Placing a product into the **stream of commerce**, without more, is not an act purposefully directed at the forum; and the exercise of jurisdiction must be **reasonable**.	The reason a "mere upload" is not enough.
Inset Systems, Inc. v. Instruction Set, Inc. (D. Conn. 1996)	The **broadest** view: advertising on the internet, coupled with a toll-free number, is "purposeful direction" at *every* state, because the internet is a national (and global) advertising medium.	The extreme pro-jurisdiction pole — the "Casio" of American law.
Bensusan Restaurant Corp. v. King (S.D.N.Y. 1996)	A defendant who has "simply created a web site and permitted anyone who could find it to access it" is like one who places a product into the stream of commerce — **not** purposeful availment.	The leading anti-jurisdiction pole; the intellectual ancestor of *Banyan Tree*.
CompuServe, Inc. v. Patterson (6th Cir. 1996)	Jurisdiction where the defendant **repeatedly contacted** the forum to sell software into the plaintiff's forum-based systems and shipped goods there.	Shows that the relevant contact is the **transaction**, not the site.
Maritz, Inc. v. CyberGold, Inc. (E.D. Mo. 1996)	Jurisdiction where the defendant's internet mailing list actively solicited forum residents and competed with the plaintiff for them.	Early recognition that **solicitation** of forum users is the touchstone.
Neogen Corp. v. Neo Gen Screening, Inc. (W.D. Mich. 2002)	The mere **availability** of a website is "an attenuated contact that falls short of purposeful availment".	Quoted verbatim in the Indian debate; the cleanest statement of the rule.
Zippo Manufacturing Co. v. Zippo Dot Com, Inc. (W.D. Pa. 1997)	The **sliding scale**: "the likelihood that personal jurisdiction can be constitutionally exercised is **directly proportionate to the nature and quality of commercial activity** that an entity conducts over the internet."	The single most cited internet-jurisdiction test in the world. See the box below.
Cybersell, Inc. v. Cybersell, Inc. (9th Cir. 1997)	A **passive homepage** plus an e-mail link is insufficient; the court examined what the site actually **did**, and found no commercial transactions with forum residents.	The case *India TV* applied, and the one *Banyan Tree* called "consistent with the law laid down in Cybersell and reiterated later in Toys R Us".
Desktop Technologies, Inc. v. Colorworks Reproduction & Design, Inc.; **People Solutions, Inc. v. People Solutions, Inc.**; **Mink v. AAAA Development LLC**; **Winfield Collection, Ltd. v. McCauley**	The doctrinal shift from **classifying the website** to **examining the activity performed** through it — the level of interactivity, whether the site enables commercial transactions, and whether forum residents actually used it.	This is the move that *Banyan Tree* ratifies: "The degree of the interactivity apart, the nature of the activity permissible and whether it results in a commercial transaction has to be examined."
Digital Equipment Corp. v. Alta Vista Technology, Inc.; **Nissan Motor Co. v. Nissan Computer Corp.**; **Toys "R" Us, Inc. v. Step Two, Inc.**	Domain-name and trademark-adjacent disputes; jurisdiction tracked the **deliberate exploitation of the forum market**.	The bridge from pure contract cases to IP cases, which is what all the Indian cases are.

☑ ZIPPO IN ITS OWN WORDS — REPRODUCE THIS IN THE EXAMINATION

"Traditionally, when an entity intentionally directs its activities toward a forum State, it purposefully avails itself of the privilege of conducting activities there... With the advent of the internet, however, the traditional concepts of jurisdiction are complicated by the fact that the internet is a medium that is used by individuals and entities worldwide. ... [T]he likelihood that personal jurisdiction can be constitutionally exercised is **directly proportionate to the nature and quality of commercial activity that an entity conducts over the internet**." The court then described the sliding scale: at one end, a defendant "has done no more than advertise on the Internet" and "passive" posting, where jurisdiction is unlikely; at the other end, a defendant "clearly does business over the Internet" through an "interactive Web site" where "a user can exchange information with the host computer", where "the likelihood that personal jurisdiction can be constitutionally exercised is most likely"; in the middle, "interactive Web sites where a user can exchange information with the host computer", where "the exercise of jurisdiction is determined by examining the level of interactivity and commercial nature of the exchange of information that occurs on the Web site."

▸ 3.3 The ”effects” test — Calder , Yahoo! (LICRA) and Dow Jones v. Gutnick

CALDER

▸▸ Calder v. Jones (1984)

The "effects" test: jurisdiction lies where the defendant (i) committed an intentional act, (ii) expressly aimed at the forum State, (iii) causing harm the defendant knows is likely to be suffered in the forum State.

Why it matters: the third limb — harm *knowingly* suffered in the forum — is the ancestor of "targeting". The *Banyan Tree* Division Bench expressly required the plaintiff to plead and show "that the specific targeting of the forum State by the Defendant resulted in an injury or harm to the Plaintiff within the forum State."

YAHOO!

▸▸ Yahoo! Inc. v. LICRA (France, 2000)

A French court ordered Yahoo to prevent access from France to auctions of Nazi memorabilia, applying the effects test: permitting visualisation in France and the participation of a France-based surfer constituted a wrong in France.

Why it matters: the classic demonstration that a pure effects test produces **worldwide** compliance obligations for a single website. It is the reductio that drives courts towards targeting.

GUTNICK

▸▸ Dow Jones & Co. Inc. v. Gutnick (2002) HCA 56

The Australian High Court allowed a defamation action in Victoria for material published on a US server, holding that the harm to reputation is suffered where the material is read and understood.

The crucial caveat, as *Banyan Tree* recorded it: "the state of Victoria in the said case did have a long arm law which was held to be valid and which permitted extension of jurisdiction." *Gutnick* is **not** authority for the proposition that internet publication is actionable everywhere; it is authority that a long-arm statute, where ...

⍰ SUBJECTIVE TERRITORIALITY V. OBJECTIVE TERRITORIALITY V. TARGETING — THE THREE-WAY SPLIT

Approach	Where jurisdiction lies	Strength	Weakness
Subjective territoriality	Where the **act** was done — where the defendant acted.	Certain, predictable, respects the actor's legitimate expectations.	Useless where the actor is offshore or unidentifia ...

▸ 3.4 The Indian reception — Casio , India TV , and the rule after Banyan Tree

▸▸ Casio India Co. Ltd. v. Ashita Tele Systems Pvt. Ltd. , 2003 (27) PTC 265 (Del) — OVERRULED

- Passing-off action; defendant carrying on business from Bombay; domain name www.casioindia.com registered by a former distributor; registrar made defendant no. 2.
- Held: "once access to the impugned domain name website could be had from anywhere else, the residence of the Defendant [is irrelevant]". Since a mere likelihood of deception suffices for passing off, "it was not at all required to be proved that any actual deception took place at Delhi".
- **Therefore:** "the fact that the website of Defendant no. 1 can be accessed from Delhi is sufficient to invoke the territorial jurisdiction of this Court..."
- **Fate:** the Division Bench in *Banyan Tree* held: "This Court is therefore unable to agree with the proposition laid down in *Casio*. The said decision cannot be held to be good law and to that extent is **overruled**."

▸▸ (India TV) Independent News Service (P) Ltd. v. India Broadcast Live LLC , 2007 (35) PTC 177 (Del) — AFFIRMED IN APPROACH

- Plaintiff ran the Hindi news channel "INDIA TV"; defendants hosted indiatvlive.com with the words "INDIA TV" displayed prominently inside a television outline; defendants simultaneously sued in the Arizona District Court for "reverse domain name hijacking".
- Defendants argued the Delhi court was not the *forum conveniens* and that India had no long-arm statute.
- The court applied the **purposeful availment test** and the three *Cybersell* factors: sufficient connection with the forum; whether the cause of action arises out of the defendant's activities within the forum; and whether the exercise of jurisdiction would be reasonable.
- Held: the site "is not wholly of a 'passive' character. It has a specific section for subscription to its services and the options ... for the countries whose residents can subscribe to the services include India." Defendant intended "to target expatriate Indians as well as Indians within the country"; on the effects test, damage to an Indian news channel's goodwill would be suffered in India.
- **Fate:** "India TV appears to be somewhat closer to the development of law in this regard since the decision in *Casio*" — its approach was approved.

⍰ REAL EXAMPLES TO KEEP IN YOUR ANSWER — ORDERABLE ONLINE V. REQUIRING PHYSICAL PRESENCE

The *Banyan Tree* Division Bench expressly noted that the fairness of a trap transaction depends on the **nature of the goods or services**. Where the goods can be **ordered online and delivered** — books, DVDs, cosmetics, downloadable software — a sin ...

⬢ 4 Personal jurisdiction on the defendant and cause of action

"Personal jurisdiction on defendant — cause of action" is the third substantive phrase of the syllabus. It has two halves: **who** can be sued where (personal jurisdiction), and **why** the court's territory is the right one (cause of action).

▸ 4.1 Three kinds of jurisdiction — get the vocabulary right

SUBJECT MATTER

▸▸ Jurisdiction over the subject matter

Does this court, at all, have power to try suits of this class and of this value? Pecuniary and statutory jurisdiction.

Cannot be conferred by consent. In IP matters it is fixed by statute: s.134(1) TMA (no court inferior to a District Court), s.62(1) Copyright Act, and the Commercial Courts Act 2015 for "commercial disputes".

TERRITORIAL

▸▸ Territorial (local) jurisdiction

Is this the right

place

among courts of the same class? Governed by ss.15–20 CPC and ss.177–189 CrPC.

This is the internet problem. It is also the only one that can be waived by acquiescence — s.20(b) proviso, and s.21 CPC (objections to jurisdiction must be taken at the earliest opportunity).

PERSONAL

▸▸ Personal (in personam) jurisdiction

Power over the

person of the defendant

— as opposed to jurisdiction over property or an interest in it.

The *India TV* formulation: "there should be a long-arm statute on the basis of which the court could exercise jurisdiction over any individual located outside the state." India has none; therefore personal jurisdiction must be built out of s.20(a), (b) and (c).

▸ 4.2 Section 20 CPC applied to a website

Work the three clauses mechanically. This is the single most useful examination technique in the Unit.

▸ 4.3 The procedural machinery — Order VII Rules 1 and 6, Order VII Rule 10, and s.151

☑ THE PLEADING AND RETURN-OF-PLAINT PROVISIONS (SOURCE: CPC 1908, ORDER VII)

- **Order VII Rule 1** — "the plaint shall contain the following particulars: … (e) the facts constituting the cause of action and when it arose; (f) the facts showing that the Court has jurisdiction…" **Consequence:** the jurisdictional plea is a **mandatory pleading**. If the plaint does not plead the facts showing cause of action in the forum, the court has nothing to examine.
- **Order VII Rule 6** — where the plaint is rejected, the plaintiff must be given time to amend; and a rejection for want of jurisdiction does not preclude a fresh suit in the proper court.
- **Order VII Rule 10** — "the plaint shall be returned to the plaintiff … to be presented to the proper court". This is the remedy the court used in *WWE* (initially), *Big Tree* and *Impresario*. Note that it is a **return**, not a dismissal: limitation is saved by s.14 of the Limitation Act, 1963 and the plaintiff may refile in the proper court.
- **Order VII Rule 11** — rejection of plaint (as distinct from return) where it does not disclose a cause of action, where the relief is barred by law, and so on.
- **s.21 CPC** — an objection as to place of suing must be taken **at the earliest possible opportunity** and in any case before settlement of issues; a defendant who appears and pleads to the merits may be held to have acquiesced (which is what the proviso to s.20(b) contemplates).
- **s.151 CPC** — the inherent power of the court "to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the Court". This is the provision under which courts mould relief where liability is not yet ascertained — as the Division Bench did in *My Space v. Super Cassettes* when it substituted a specific 36-hour take-down regime for the single judge's open-ended injunction.

☑ THE EXAMINATION TECHNIQUE — HOW TO ANSWER ANY "DOES THE DELHI COURT HAVE JURISDICTION?" QUESTION

1. **Identify the action.** Passing off, infringement, defamation, or contract? If it is passing off, s.134(2) TMA is **unavailable** (it covers only clauses (a) and (b) of s.134(1) — infringement and rights in a registered mark).
2. **Run s.20(a) a …**

▸ 4.4 Trap orders and trap transactions — the doctrine the syllabus does not name but the cases do

A "trap order" is a purchase or booking made by the plaintiff, or by an investigator instructed by the plaintiff, in order to obtain evidence of infringement. The *Banyan Tree* Division Bench set out the entire Anglo-Australian line of authority and extracted the rules. This is high-value material because it appears in answer to question (iii) and again in *Impresario*.

Authority	Citation	The rule it supplies
California Fig Syrup Co. v. Taylor's Drug Co.	(1897) 14 RPC 564	Foundational authority for the use of a trap order to prove passing off.
Carr & Sons v. Crisp	(1902) 19 RPC 497	Trap orders are legitimate evidence of a course of dealing.
Fox's Glacier Mints Ltd. v. Joblings & Co.	(1932) 49 RPC 352	The evidence must show a **practice**, not an isolated incident.
C. Stillitz & Co. v. Jones & Higgins	(1943) 60 RPC 15	Fairness in the obtaining of the trap evidence.
Cellular Clothing Co. Ltd. v. G. White	(1952) 70 RPC 9 (Harman J.)	The leading restrictive authority: Harman J. described the trap order as "exactly the way in which trap orders should **not** be given", and held that fragile evidence "sedulously concealed from the Defendants" cannot support an injunction.
C.C. Wakefield & Co. Ltd. v. Purser	(1934) 51 RPC 167 (Farwell J.)	Trap orders "are scrutinised by the Courts with some jealousy, and rightly so"; the plaintiff must act "with the utmost fairness to the defendant and given him every reasonable chance of investigating the matter for himself".
Showerings Ltd. v. Fern Vale Brewery	[1958] RPC 484	Several visits were needed to test whether there was "simply one mistake or a regular practice".
OTC v. Muir	(1914) 31 WN (NSW) 87	Australian authority to the same effect.
Bryant v. Keith Harris & Co.	(1908) 33 ALR 437	Australian authority on the limits of trap evidence.
Marie Claire Album Ltd. v. Hartstone Hosiery Ltd.	[1993] FSR 693	Modern English restatement.
Hilti AG v. Ucan	[1963] 7 RPC 160	Single trap purchase insufficient where the article was one of many legitimate sales.
Ward Group Pty Ltd. v. Brodie & Stone plc	(2005) FCA	Trap purchases would **not** confer jurisdiction: "the use of a trade mark on the Internet, uploaded on a website outside of Australia, without more, is not a use by the website proprietor of the mark in each jurisdiction where the mark is downloaded."
Walt Disney Productions v. Gurvitz	[1982] FSR	Cited for the limits of evidence obtained by stealth.

THE RULE EXTRACTED BY THE DIVISION BENCH

1. A **solitary** trap transaction is not "purposeful" availment; it must be a **real commercial transaction with someone not set up by the plaintiff**.
2. Where a **series** of trap transactions is relied on, they must be obtained by **fair means** and must be **averred unambiguously in the plaint**, with supporting material.
3. **Fairness**, the **nature of the goods or services** (orderable online versus requiring physical inspection), and the **likelihood of repetition** are all relevant considerations.
4. A trap transaction cannot manufacture a cause of action where the essential part of the transaction is completed elsewhere — *Impresario*.

⬢ 5 Case brief 1 — Banyan Tree Holdings (P) Ltd. v. A. Murali Krishna Reddy

CS (OS) No. 894/2008 · Delhi High Court, Division Bench · Decided 23 November 2009 · S. Muralidhar J. (for the Division Bench) · Reported: 2010 (42) PTC 361 (Del)

THE FIVE INTERMEDIATE CONCLUSIONS OF THE DIVISION BENCH

1. **No long-arm statute in India.** "India did not have a long arm statute which dealt with the jurisdiction as regards non-resident Defendants." Therefore it must be examined whether the defendant's activities "have a sufficient connection with the forum state (India); whether the cause of action arises out of the Defendant's activities within the forum and whether the exercise of jurisdiction would be reasonable." (*India TV*, applying *Cybersell*.)
2. **The common law can be adopted.** "The essential principles developed as part of the common law can be adopted without difficulty by our courts in determining whether the forum court has jurisdiction where the alleged breach is related to an activity on the internet."
3. **Accessibility alone is rejected.** "At the outset, this court does not subscribe to the view that the mere accessibility of the Defendants' website in Delhi would enable this Court to exercise jurisdiction. A passive website, with no intention to specifically target audiences outside the State where the host of the website is located, cannot vest the forum court with jurisdiction. This court is therefore unable to agree with the proposition laid down in *Casio*. The said decision cannot be held to be good law and to that extent is **overruled**."
4. ***India TV* is approved in approach.** "The learned single Judge in *India TV* acknowledged that a mere accessibility of website may not be sufficient to attract jurisdiction of the forum court. This, in the considered view of this Court, is the correct position in law." But *India TV* did not examine "the finer aspects of the question of jurisdiction based on the nature of the website, the intention of the host of the website to specifically target viewers outside its jurisdiction, and the effect of hosting such website on audiences outside such state."
5. **Purposeful availment, not purposeful avoidance.** "This court is not able to accept the submission of the learned counsel for the Plaintiff that the test of 'purposeful availment' must be replaced by the test of 'purposeful avoidance'." The defendant may show in his defence how he avoided the forum state; but the **initial burden is on the plaintiff**. The issue of filters "will have to be considered while deciding if the Defendant had 'purposefully avoided' the forum state. However, that question will arise only if the Plaintiff has been able to show that the website of the Defendant is interactive and permits commercial transactions to be concluded by the Defendant with a user of the website."

THE BANYAN TREE PRINCIPLE — THE SPINE OF THE WHOLE UNIT

1. **Mere accessibility is dead.** The fact that a defendant's website can be accessed from the forum State does not, without more, give the forum court jurisdiction. *Casio* is overruled.
2. **Purposeful availment, not purposeful avoidance.** The plaintiff bears the initial burden of showing that the defendant purposefully availed itself of the forum jurisdiction.
3. **Intention to conclude a commercial transaction.** The nature of the activity indulged in by the defendant through the website must have been with an intention to conclude a commercial transaction with the website user. Interactivity alone is insufficient; the degree of interactivity, the nature of the activity permissible, and whether it results in a commercial transaction must all be examined.
4. **Targeting is the tighter form of the effects test.** The plaintiff must plead and show prima facie that the specific targeting of the forum State resulted in injury or harm to the plaintiff within the forum State. The effects test operates **in conjunction with** the sliding scale test, not independently of it.
5. **Plaintiff's presence is required for the effects test.** To feel the injurious effect, the plaintiff must have a presence in the forum State — not merely the possibility of future presence.
6. **Trap orders are scrutinised with jealousy.** A solitary trap transaction cannot establish purposeful availment; it must be a real transaction with someone not set up by the plaintiff; a series must be obtained by fair means and pleaded unambiguously with supporting material.
7. **s.134(2) TMA and s.62(2) Copyright Act are limited long-arm provisions**, confined to infringement actions by plaintiffs carrying on business within the forum court's jurisdiction.

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 6 Case brief 2 — P.R. Transport Agency v. Union of India

CASE 2 OF 7 · LISTED IN THE DU SYLLABUS · NOT PRINTED IN THE DU CASE MATERIAL

⚖ P.R. Transport Agency v. Union of India & Ors.

AIR 2006 All 23 · Allahabad High Court, Division Bench · Decided 24 September 2005 · Sushil Harkauli & Umeshwar Pandey, JJ. · Also reported: 2006 (1) AWC 504

▸▸ 1 · Facts

An **e-auction** was held by **Bharat Coking Coal Limited (BCCL)** — a public sector undertaking under the Union of India — for the allocation of coal from the **Dobari Colliery** in Jharkhand. The petitioner, **P.R. Transport Agency (PRTA)**, submitted a bid for **4,000 metric tonnes of coal at Rs. 1,625 per metric tonne**. PRTA's bid was accepted, and the **acceptance of the tender was communicated to PRTA by e-mail**.

The e-mail was received at PRTA's place of business at **Chandauli** (also spelt Chamauli), with its only other place of business at **Varanasi** — both in the State of Uttar Pradesh. The registered partnership deed of the petitioner, dated 7 July 2000, recorded Chandauli as its **principal place of business**.

Subsequently the acceptance was cancelled. The case for the respondents, as recorded in the judgment, was that "there was some other person whose bid for the same coal was slightly higher than the Petitioner, but due to some flaw in the computer or its programme or feeding of data the said bid could not be considered." The petitioner filed a writ petition in the Allahabad High Court under Article 226 of the Constitution.

▸▸ 2 · The objections taken by the respondents

▸▸ 3 · Issues

HELD

1. **Jurisdiction exists.** "In view of the facts mentioned in the supplementary-affidavit, read with Information Technology Act, the acceptance having been received by the Petitioner at Chandauli/Varanasi, the contract became complete by receipt of such acceptance at Varanasi/ Chandauli, both of which places are within the territorial jurisdiction of this Court. Therefore, **a part of the cause of action having arisen in U.P., this Court has territorial jurisdiction to entertain the writ petition**."
2. **The deeming rule applies.** Section 13(3) IT Act deems the electronic record to be received at the place where the addressee has his place of business. Since the petitioner's principal place of business was Chandauli and its only other place of business Varanasi — both in U.P. — the acceptance was received in U.P.
3. **The ouster clause cannot oust Article 226.** The jurisdiction of the High Court under Article 226 can be ousted only by a constitutional or a competent legislative provision; a private contractual clause cannot. The Court held that the ouster clause could oust the territorial jurisdiction only of civil courts, and not that of the High Court, provided the High Court otherwise had jurisdiction on account of a part of the cause of action having arisen within its territorial jurisdiction.
4. **The *A.B.C. Laminart* principle.** Following *A.B.C. Laminart (P) Ltd. v. A.P. Agencies*, (1989) 1 SCC 234, an exclusion clause binds the parties as between themselves but cannot be used to defeat a jurisdiction that the law otherwise confers — in particular s.20(c) CPC.
5. **The IT angle on cancellation.** The respondents' explanation that the higher bid failed on account of "some flaw in the computer or its programme or feeding of data" was noted — an early recognition that computer failure is a fact to be proved, not a conclusion.

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 7 Case brief 3 — Super Cassettes Industries Ltd. v. Myspace Inc.

CASE 3 OF 7 · PRIMARY SOURCE: PRINTED IN THE DU CASE MATERIAL, PP. 87-125

⚖ Super Cassettes Industries Ltd. (T-Series) v. Myspace Inc.

IA Nos. 15781/2008 & 3085/2009 in CS (OS) 2682/2008 (Del, single judge) — 29.07.2011 · FAO (OS) 540/2011, C.M. APPL. 20174/2011, 13919 & 17996/2015 (Del, DB) — 23.12.2016 · S. Ravindra Bhat & Deepa Sharma, JJ. · Reserved 25.04.2016 · Pronounced 23.12.2016

▸▸ 1 · Facts

The plaintiff, Super Cassettes Industries Limited (SCIL), popularly "T-Series", began in recorded audio and videocassette production and became one of India's largest music companies. It owns and controls copyright in **more than 100,000 songs** in various languages, and claims to acquire and produce cinematograph films, music videos (audio-visual songs), sound recordings, underlying musical works (melody) and literary works (lyrics), investing substantial sums and bearing the risks. Its business is the exploitation of those works by sale of audio/video records or by licensing their use, on multiple platforms including satellite television, radio, digital, the Internet and mobile platforms. Under the **TPPL scheme** ("T-Series Public Performance Licenses") it licenses restaurants, discotheques, TV and radio stations, malls, hotels and public performers. It also enters into licensing agreements with internet music and video sharing/streaming platforms and ISPs.

The defendant, Myspace Inc., is an Internet Service Provider claiming to be an "internet intermediary". It operates the social networking and entertainment website www.myspace.com, first launched in the United States, with global outreach. Its foray into India was in **2007**. Crucially, "when a user accesses Myspace from here she/he is **automatically redirected to the website's India-centric version**. Here users can access music works, entertainment videos, images, cinematograph works etc. **without paying any fee**." It provides a free platform offering an interactive user-submitted network of friends, personal profiles, blogs, groups and photos, music, video and instant messaging services.

The registration asymmetry. "Mere browsing or accessing content on Myspace does not require registration. If a user chooses to upload content on the website, albeit for free, he/she is required to register with Myspace." User registration is governed by the Terms of Use Agreement and Privacy Policy, which oblige registrants to respect the intellectual property rights of others and prohibit uploading any material infringing copyright, patent, trademark, trade secret or other proprietary rights. If MySpace notices that uploaded content violates its user terms, the content can be removed or the membership terminated at its discretion.

THE THREE CONCLUSIONS (PARA 67)

1. "Sections 79 and 81 of the IT Act and Section 51(a)(ii) of the Copyright Act have to be read **harmoniously**. Accordingly, it is held that **proviso to Section 81 does not preclude the affirmative defence of safe harbor for an intermediary in case of copyright actions**."
2. "Section 51(a)(ii), in the case of internet intermediaries contemplates **actual knowledge and not general awareness**. Additionally, to impose liability on an intermediary, **conditions under Section 79 of the IT Act have to be fulfilled**."
3. "In case of Internet intermediaries, **interim relief has to be specific** and must point to the actual content, which is being infringed."

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 8 Case brief 4 — World Wrestling Entertainment, Inc. v. M/s Reshma Collection

CASE 4 OF 7 · PRIMARY SOURCE: PRINTED IN THE DU CASE MATERIAL, PP. 181-194

⚖ World Wrestling Entertainment, Inc. v. M/s Reshma Collection & Ors.

FAO (OS) 506/2013 in C.M. Nos. 17627/2013 & 18606/2013 · Delhi High Court, Division Bench · Decided 15 October 2014 · Badar Durrez Ahmed, J. · Also reported: 2014 SCC OnLine Del 2031

▸▸ 1 · Facts

The appellant/plaintiff, **World Wrestling Entertainment, Inc.**, is a company incorporated under the laws of the **State of Delaware, United States of America**. All the defendants reside in **Mumbai** and do not carry on business within the jurisdiction of the Delhi court. The suit claimed permanent injunction based on alleged infringement of **copyright**, infringement of **trade marks**, **passing off**, **dilution**, rendition of accounts, damages and delivery up.

The plaintiff is engaged in the development, production and marketing of television programming, pay-per-view programming, live events, and the licensing and sale of branded consumer products featuring the **World Wrestling Entertainment (WWE)** brand. The WWE scratch logo and "World Wrestling Entertainment" are registered trade marks worldwide **including India**; the plaintiff is also the owner of the copyright in the pictorial representations of World Wrestling Entertainment, the WWE wrestlers and the WWE scratch logo as they appear on publicity materials and promotional merchandise; and it holds trade mark registrations for talent names and slogans such as **JOHN CENA, BATISTA,**

UNDERTAKER, TRIPLE H and RANDY ORTON. It offers memorabilia — apparel, posters, calendars, fact books, sunglasses, water bottles, key-rings, DVDs — and has **more than 200 licensees distributing its products in 86 countries, including India**.

▸▸ 2 · The jurisdictional plea — paragraph 32 of the plaint

Note the structure: the plaintiff relies on **s.134(2) TMA and s.62(2) Copyright Act** — the special plaintiff-side forums — and, within them, on **its own** carrying on of business in Delhi, not on the defendants' activities. That choice is what ultimately limits the decision, and it is the point *Big Tree* (§9) exploits.

▸▸ 3 · The impugned order and the single Judge's reasoning

HELD

1. "In our view, although the learned Single Judge had made a correct reference to the decision of the Supreme Court in the case of *Bhagwan Goverdhandas Kedia*, the full ramifications of that decision were not perceived by him. When the two decisions of the Supreme Court in *Bhagwan Goverdhandas Kedia* and *Dhodha House* are considered in the manner indicated above, it would appear that, on the averments made by the appellant/plaintiff in the plaint, **the Delhi High Court would, on a demurrer, have jurisdiction to entertain the suit** inasmuch as the appellant/plaintiff would be regarded as carrying on business in Delhi within the meaning of the expression under Section 134(2) of the Trademarks Act, 1999 and Section 62(2) of the Copyright Act, 1957."
2. "Consequently, the learned Single Judge ought not to have returned the plaint under Order 7 Rule 10 CPC. As a result, the impugned order is set aside and the suit is restored to its original number."
3. "This, however, would not preclude the defendants from **raising the plea of jurisdiction on facts** which, if raised, could be considered by the court based on the evidence and upon the law explained above."
4. The appeal was allowed on these terms; the parties were left to bear their own costs.

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 9 Case brief 5 — Big Tree Entertainment v. Saturday Sunday Media Internet

CASE 5 OF 7 · LISTED IN THE DU SYLLABUS · NOT PRINTED IN THE DU CASE MATERIAL

⚖ Bigtree Entertainment Pvt. Ltd. v. Saturday Sunday Media Internet & Ors.

CS (COMM) Nos. 53/2015 & 54/2015 · Delhi High Court · Decided 21 December 2015 · Valmiki J. Mehta, J. (oral judgment) · Also reported: 226 (2016) DLT 497; MANU/DE/4188/2015; 2015 SCC OnLine Del 14217

▸▸ 1 · Facts

Two suits were filed by the same plaintiff:

- **CS (COMM) No. 53/2015** against **Saturday Sunday Media Internet & Ors.**, whose address in the memo of parties was at **Gurgaon, Haryana** — outside Delhi;
- **CS (COMM) No. 54/2015** against **M/s iPlatform Media Technologies Pvt. Ltd. and Anr.**, whose address was at **Bengaluru, Karnataka** — outside Delhi.

The plaintiff, **Bigtree Entertainment Pvt. Ltd.** — the operator of the online movie and entertainment ticketing platform **"BOOKMYSHOW.COM"** — is a company registered under the Companies Act, 1956, with its address as per the memo of parties at **Mumbai**. As the Court recorded, "it has **no office in Delhi** be it a principal office or a head office or a registered office or even a branch office."

Both suits sought **permanent injunction restraining the infringement of trade mark, passing off and damages**. In CS (COMM) 53/2015 the impugned mark was **"BOOKMYOFFER.COM"**; in CS (COMM) 54/2015 it was **"BOOKMERASHOW.COM"**.

▸▸ 2 · The jurisdictional plea — paragraph 34 of the plaint

HELD

1. **No jurisdiction.** A conjoint reading of *Patel Roadways* and *Sanjay Dalia* "shows that wherever a plaintiff or a defendant is a corporation, carrying on business by such a corporation or company **necessarily has to be taken alongwith existence of a branch office or a principal office or a registered office, with the place where the cause of action also is said to have arisen**." The plaintiff had no office in Delhi; therefore it did not carry on business in Delhi; s.134(2) TMA could not be invoked.
2. ***WWE* distinguished.** The Division Bench's judgment "does not deal with and pronounce upon the issue as to Delhi having jurisdiction although the plaintiff is a company and such a plaintiff/Company neither has a principal office nor a head office nor a registered office nor a branch office at Delhi."
3. **The alternative route was available but not pleaded.** "Of course, I must hasten to add that if the subject suit or any other civil suit is filed not on the ground of residence i.e. carrying on of business of the plaintiff company at a particular place such as Delhi where the present suit is filed, but on the different ground that it is the **impugned activities of the defendants** which are taking place at Delhi and therefore part of cause of action arises at Delhi, then, in such a case Delhi could have territorial jurisdiction."
4. **Forum conveniens.** "I find it very peculiar for the plaintiff/Company in the present suit which has its office at Mumbai i.e not at Delhi, that such a plaintiff/Company is suing defendants not by filing a suit in Mumbai and that it is suing defendants who are residing and/or carrying on business not at Delhi but at Bengaluru in Karnataka or Gurgaon in Haryana. Putting it in other words, there is **lack of convenience as regards the place of suing, both to the plaintiff and the defendants**." Sections 22 and 23 CPC permit transfer to a more convenient forum.
5. **Order.** The plaints were **returned** to the plaintiff under **Order VII Rule 10 CPC**, to be presented before a court of competent jurisdiction.

(Brief abridged for the compilation — full text at makelaweasy.in.)

⬢ 10 Case brief 6 — Impresario Entertainment & Hospitality Pvt. Ltd. v. S & D Hospitality

CASE 6 OF 7 · LISTED IN THE DU SYLLABUS · NOT PRINTED IN THE DU CASE MATERIAL

⚖ Impresario Entertainment & Hospitality Pvt. Ltd. v. S & D Hospitality

CS (COMM) 111/2017 · I.A. Nos. 1950/2017 & 3139/2017 · Delhi High Court · Reserved 9 November 2017 · Decided 3 January 2018 · Mukta Gupta, J. · Also reported: 2018 (73) PTC 275 (Del); 246 (2018) DLT 337; 2018 3 AD (Delhi) 102; neutral citation 2018:DHC:14

▸▸ 1 · Facts

The plaintiff, Impresario Entertainment & Hospitality Pvt. Ltd., is a company incorporated under the Companies Act, 1956, with its **registered office in Mumbai**, carrying on business in **Delhi from 12, Hauz Kaz Village, New Delhi-110016**, and operating a restaurant under the name and style of **"SOCIAL"**. It is engaged in providing restaurant services and operating/managing coffee shops. Some of its well-known restaurants and

coffee shops include **"SOCIAL"**, **"SMOKE"** (Pune) and others. It got the trade mark **"STONE WATER GRILL"** registered under Classes 30, 42 and 43 in November 2007, and claims to be the registered proprietor of the trade mark **"SOCIAL"** and its variants since May 2014. It also uses the beverage mark **"A GAME OF SLING"**.

The defendant, S & D Hospitality, was operating **two restaurants in Hyderabad** under the trade mark **"SOCIAL MONKEY"** — and, on the plaintiff's case, also **"SOCIAL MONKEY'S"** and **"STONE WATERS KITCHEN & LOUNGE"**, and a beverage called **"HYDERABAD SLING"** closely resembling the plaintiff's "A GAME OF SLING".

In **January 2017** the plaintiff came to know that the defendant was operating the two Hyderabad restaurants. Its case was that the defendant "has emphasized on the word **SOCIAL** and copied the concept of the plaintiff of prefixing/suffixing the trade mark 'SOCIAL' with another word being '**MONKEY**' in this case." A **cease and desist notice dated 10 March 2017** was issued; no response was received. The plaintiff filed a suit for permanent injunction restraining the defendant from manufacturing, selling, marketing, advertising or offering its services under the trade marks "SOCIAL", "SOCIAL MONKEY" or "STONE WATER", or any other deceptively similar mark, in its outlets.

▸▸ 2 · The jurisdictional pleas — paragraphs 61 and 64 of the plaint

▸▸ 3 · Issues

HELD

1. **No territorial jurisdiction.** "In view of the discussion aforesaid since this Court has no territorial jurisdiction to entertain the suit, the same is **returned to be filed in the Court of competent jurisdiction**."
2. **The application under Order VII Rule 10 CPC** (I.A. No. 3139/2017) was **allowed** and the plaint returned.
3. **The application under Order XXXIX Rules 1 and 2 CPC** (I.A. No. 1950/2017) was **not decided**, since the court had no jurisdiction to entertain the suit.
4. The Court recorded that the plaintiff, "prima facie having not shown the purposeful availment test", could not sustain the suit in Delhi.
5. A **review petition** (Review Pet. 129/2018) was dismissed on 31 May 2023, the Court reiterating that "Merely by reserving a table in the defendant's restaurant at Hyderabad, **the contract does not get concluded**."

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 11 Case brief 7 — Maqbool Fida Husain v. Raj Kumar Pandey

Criminal Revision Petition No. 114/2007 (also Crl. Rev. P. 280/2007) · Delhi High Court · Decided 8 May 2008 · Sanjay Kishan Kaul, J.

HELD ON THE MERITS

1. **The painting is not obscene.** "On applying the said tests governing obscenity, in my considered view, the said painting cannot be said to fall within the purview of Section 292 thereby making it obscene. The impugned painting on the face of it is neither lascivious nor appeals to the prurient interests. At the same time, the person who is likely to view the said painting would not tend to be depraved or corrupted."
2. **Nudity is not obscenity.** "Just because the artist has expressed it in nude does not make the painting obscene per se thereby satisfying the test that **nudity or sex alone cannot be said to be obscene**. If the painting is looked as a whole ... the aesthetic touch to the painting dwarfs the so called obscenity in the form of nudity and renders it so picayune and insignificant that the nudity in the painting can easily be overlooked."
3. **Offence or disgust is not the test.** "Though some might feel offended or disgusted at the very inception of seeing the alleged Mother India in nude but that by itself and nothing more in my opinion is not sufficient to qualify the test of obscenity."
4. **No *mens rea* under ss.294/298 IPC.** "Since the scope of the subject is so limited, it does not really require any evidence to be led and on the face of it, both the elements i.e. *mens rea* and *actus reus* appear to be absent." For s.298, "mere knowledge of the likelihood that the religious feelings of another person may be wounded would not be sufficient"; and "the subject matter i.e. Bharat Mata could be alleged to wound nationalist feelings of an individual and not any religious feelings."
5. **s.500 IPC not attracted.** "Section 500 IPC requires the basic ingredient of defamation to be satisfied which seems to be completely absent in the present case."
6. **Result:** "In view of the aforesaid, the summoning orders and warrants of arrest issued against the petitioner in the complaint cases are **quashed** and the revision petitions filed against them are **allowed** leaving the parties to bear their own costs."

HELD ON JURISDICTION

1. The Court recorded the ASG's submission that "as such our Criminal Code does not deal with such jurisdictional aspect directly and submitted that the answer only rested in the power conferred to the Supreme Court of India under **Section 406** of the said Code which procedure has been adopted in the present case."
2. The Court accepted that Chapter XIII CrPC governs, and set out ss.177, 178, 179 and 186 with the authorities above.
3. "In my considered view, this particular aspect of jurisdiction fettered within the parameters of scrutiny of Section 202 of the said Code as discussed above derives its importance especially with the **advent of the technological explosion** where a person sitting anywhere across the globe can get access to what ever information he has been looking for just with a click of a mouse. Therefore, it has become imperative that in this information age, **jurisdiction be more circumscribed** so that an artist like in the present case is not made to run from pillar to post facing proceedings."
4. "This however is not an aspect where a direction can be issued since it is within the domain of appropriate legislation. The learned ASG while assisting this Court fairly stated that he would advice the Government to take steps by way of **appropriate legislative amendments** as may be proper keeping in mind the balancing of interest between the person aggrieved and the accused so as to prevent harassment of artists, sculptors, authors, filmmakers etc. in different creative fields. **I say nothing more but hope that this aspect would get the attention it deserves and the legislature in its wisdom would examine the feasibility of possible changes in law.**"

(Brief abridged for the compilation — full text at makelaweasy.in.)

◆ 12 Criminal jurisdiction in cyberspace — CrPC 1973, ss.177–179, 186, 188 and 189

The syllabus devotes a whole clause to criminal jurisdiction: "Criminal jurisdiction (the Code of Criminal Procedure, 1973 - ss. 177-179, 186,188 and 189)". This is the section in which *Maqbool Fida Husain* lives, and it is the section in which Indian law is **least** developed.

▸ 12.1 The scheme of Chapter XIII CrPC, 1973

Chapter XIII of the CrPC is titled "Jurisdiction of the Criminal Courts in Inquiries and Trials". It answers one question: **where** may an offence be inquired into and tried? The seven provisions in the syllabus work as a set.

▯ SS.177–179, CRPC 1973 — THE TERRITORIAL CORE (SOURCE: CRPC 1973, CHAPTER XIII)

177. Ordinary place of inquiry and trial.—"Every offence shall ordinarily be inquired into and tried by a Court within whose local jurisdiction it was committed."

178. Place of inquiry or trial.—"(1) When it is uncertain in which of several local areas an offence was committed, or (2) where an offence is committed partly in one local area and partly in another, or (3) where an offence is a continuing one, and continues to be committed in more local areas than one, or (4) where it consists of several acts done in different local areas, it may be inquired into or tried by a Court having jurisdiction over any of such local areas."

179. Offence triable where act is done or consequence ensues.—"When an act is an offence by reason of anything which has been done and of a consequence which has ensued, the offence may be inquired into or tried by a Court within whose local jurisdiction such thing has been done or such consequence has ensued."

▯ SS.186, 188 AND 189, CRPC 1973 — COMPETING COGNIZANCE AND OFFENCES ABROAD (SOURCE: CRPC 1973, CHAPTER XIII)

186. High Court to decide, in case of doubt, district where inquiry or trial shall take place.—"Where two or more Courts have taken cognizance of the same offence and a question arises as to which of them ought to inquire into or try that offence, the question shall be decided— (a) if the Courts are subordinate to the same High Court, by that High Court; (b) if the Courts are not subordinate to the same High Court, by the High Court within the local limits of whose appellate criminal jurisdiction the proceedings were first commenced, and thereupon all other proceedings in respect of that offence shall be discontinued."

187. Power to issue summons or warrant for offence committed beyond local jurisdiction.—Where a Magistrate of the first class sees reason to believe that any person within his local jurisdiction has committed outside such jurisdiction (whether within or outside India) an offence which cannot, under ss.177 to 185 or any other law, be inquired into or tried within such jurisdiction but is under some law triable in India, he may inquire into the offence as if it had been committed within his local jurisdiction, compel the person to appear before him, and send him to the Magistrate having jurisdiction — or take a bond for his appearance.

188. Offence committed outside India.—"When an offence is committed outside India— (1) by a citizen of India, whether on the high seas or elsewhere; or (2) by a person, not being such citizen, on any ship or aircraft registered in India, he may be dealt with in respect of such offence as if it had been committed at any place within India at which he may be found: **Provided** that, notwithstanding anything in any of the preceding sections of this Chapter, no such offence shall be inquired into or tried in India except with the **previous sanction of the Central Government**."

189. Receipt of evidence relating to offences committed outside India.—"When any offence alleged to have been committed in a territory outside India is being inquired into or tried under the provisions of section 188, the Central Government may, if it thinks fit, direct that copies of depositions made or exhibits produced before a judicial officer in or for that territory or before a diplomatic or consular representative of India in or for that territory shall be received as evidence by the Court holding such inquiry or trial in any case in which such Court might issue a commission for taking evidence as to the matters to which such depositions or exhibits relate."

▯ THE BNSS EQUIVALENTS — SINCE 1 JULY 2024 THE CRPC HAS BEEN REPLACED

The **Bharatiya Nagarik Suraksha Sanhita, 2023** (BNSS) repealed and replaced the CrPC with effect from **1 July 2024**. The correspondence is: **s.177 → s.197** (Ordinary place of inquiry and trial); **s.178 → s.198** (Place of inquiry or trial); **s.179 → s.199** (Offence triabl ...

▸ 12.2 Why a single internet publication produces simultaneous jurisdiction everywhere

Apply the provisions to the facts of *Maqbool Fida Husain*: a painting uploaded once, accessible everywhere, viewed by complainants in Pandharpur, Rajkot, Indore and Bhopal.

- **s.177** asks where the offence "was committed". The publication is the act; the offence is the publication. Where is an online publication "committed"? At the server? At the uploader's desk? At the reader's screen? Each answer is defensible.
- **s.178(1)** — it is "uncertain in which of the several local areas an offence was committed". This alone would give jurisdiction to **any** court having jurisdiction over **any** such local area.
- **s.178(2)** — the offence is "committed partly in one local area and partly in another".
- **s.178(3)** — a website is arguably "a continuing one, and continues to be committed in more local areas than one": the material remains available for as long as it is hosted.
- **s.178(4)** — the offence "consists of several acts done in different local areas" — each view, each download, each transmission.
- **s.179** — the act (publication) is an offence "by reason of anything which has been done and of a consequence which has ensued" (the offence caused to the viewer). Either the place of the act or the place of the consequence will do. As the Court noted, "it is not necessary to prove that things done must necessarily be an offence, as the conjunction 'and' used in this section suggests that the act contemplated becomes an offence on account of the cumulative effect of the things done and the consequences ensued."

▸ 12.3 Section 202 CrPC — the magistrate's scrutiny as the practical control

▯ S.202, CRPC 1973 (SOURCE: CRPC 1973, CHAPTER XV)

"Postponement of issue of process.—(1) A Magistrate taking cognizance of an offence on complaint shall **examine the complainant and the witnesses present, if any**, on oath under sub-section (1) of section 200, and the substance of such examination shall be reduced to writing and shall be signed by the complainant and the witnesses, and also by the Magistrate: **Provided that, if the complainant is a public servant acting in the discharge of his official duties, the Magistrate may dispense with such examination.** (2) Where the Magistrate is satisfied that there are sufficient grounds for proceeding, he may, instead of issuing process, postpone the issue of process ... and either inquire into the case himself or direct an investigation to be made by a police officer or by such other person as he thinks fit, for the purpose of deciding whether or not there is sufficient ground for proceeding: **Provided that ... where the accused is residing at a place beyond the area in which he exercises jurisdiction, the Magistrate shall postpone the issue of process** and either inquire into the case himself or direct investigation..." The purpose is "to ascertain whether there is sufficient ground for proceeding against the accused" and to "prevent the harassment of the accused by a frivolous or vexatious complaint".

In *Maqbool Fida Husain* the Court made the s.202 duty the centre of its jurisdictional answer: a magistrate "must scrutinise each case in order to prevent vexatious and frivolous cases from being filed and make sure that it is not used a tool to harass the accused which would amount to gross abuse of the process of the court", and "only in appropriate cases should a private complaint case proceed further without a prior investigation by the police consequent upon the direction of the Magistrate Under Section 156(3)".

12.4 Section 406 CrPC — consolidation and transfer

This is the mechanism the Supreme Court used to rescue M.F. Husain from four simultaneous prosecutions. Under **s.406(1)**, "whenever it is made to appear to the Supreme Court that an order under this section is expedient for the ends of justice, it may direct that any particular case or appeal be transferred from High Court to another High Court or from a Criminal Court subordinate to one High Court to another Criminal Court of equal or superior jurisdiction subordinate to another High Court." Sub-section (2) permits the Supreme Court to act "only on the application of the Attorney General of India or of a party interested", supported by affidavit; sub-section (3) permits an order for compensation up to one thousand rupees where the application is dismissed as frivolous or vexatious.

The Court also relied on the High Court's power under **s.407 CrPC** (transfer of cases and appeals) as the analogous intra-State mechanism.

12.5 Section 182 CrPC — the provision closest to the internet

☑ S.182, CRPC 1973 — "OFFENCES COMMITTED BY LETTERS, ETC." (SOURCE: CRPC 1973, CHAPTER XIII)

"(1) Any offence which includes cheating may, **if the deception is practised by means of letters or telecommunication messages**, be inquired into or tried by any Court within whose local jurisdiction such letters or messages were **sent or were received**; and any offence of cheating and dishonestly inducing delivery of property may be inquired into or tried by any Court within whose local jurisdiction the property was delivered by the person deceived or was received by the accused person."

Two reasons this matters for cyberspace. First, it is the **only** provision in Chapter XIII that expressly contemplates a wrong committed through a communication medium rather than at a place, and it adopts a **sender-or-receiver** rule. Second, it is the criminal analogue of the **s.13(3) IT Act** deeming rule applied in *P.R. Transport Agency* (§6). Read together, they give a principled answer for internet cheating and phishing: jurisdiction lies where the message was sent or received, and the message is deemed received at the addressee's place of business.

12.6 Cyber-specific offences and the investigation machinery

Provision	What it does	Jurisdictional significance
s.66F IT Act — cyber terrorism	Punishes, inter alia, denying or causing denial of authorised access, unauthorised penetration or access, or introducing a computer contaminant, with intent to threaten the unity, integrity, security or sovereignty of India or to strike terror in the people.	Expressly framed around harm to **India**; the paradigm extraterritorial offence.
s.67 IT Act — obscene material in electronic form	Punishes publishing or transmitting, or causing to be published or transmitted, in electronic form, material which is lascivious or appeals to the prurient interest.	"Section 67 is the first statutory provisions dealing with obscenity on the Internet" (*Maqbool Fida Husain*).
s.67A, 67B, 67C IT Act	Sexually explicit material; material depicting children in sexually explicit acts; preservation and retention of information by intermediaries.	s.67C casts a positive obligation on intermediaries — the source of the "actual knowledge" debate in *My Space*.
s.78 IT Act — power to investigate offences	Investigation of offences under the Act by a police officer not below the rank of **Deputy Superintendent of Police**, or by such other officer as the Central Government may authorise.	Offences under the IT Act are investigated by a designated officer; this matters for the validity of investigation and for s.173(2) reports.
s.80 IT Act — power of police officer to enter, search, etc.	A police officer not below the rank of Deputy Superintendent of Police, or any other officer specially authorised, may enter any public place, search and arrest without warrant, where he has reason to suspect an offence under the Act.	Search and seizure of computer resources is governed by this section read with s.76 (confiscation).
s.69A IT Act — blocking	Power of the Central Government to direct blocking of information generated, transmitted, received, stored or hosted in any computer resource.	An administrative, not judicial, remedy — the Shreya Singhal procedure.
s.2(1)(na) IT Act — cyber café	"Cyber cafe means any facility from where access to the internet is offered by any person in the ordinary course of business to the members of the public."	Identifies the physical premises at which internet offences are often actually committed — the practical answer to "where".
s.43A, 45, 46, 47, 61 IT Act	Compensation for failure to protect data; residuary penalty; adjudication.	The **civil** side of the IT Act; s.61 provides that no civil court shall have jurisdiction in respect of matters within the authority of the adjudicating officer and the Appellate Tribunal.

◆ 13 Extraterritorial jurisdiction under the IT Act — s.1(2), s.75 and s.3 IPC

The final substantive clause of the syllabus: "Extraterritorial Jurisdiction under IT Act (s.1(2), s.75, s.3 IPC)". These three provisions, read together, are the complete answer to the question "can an offence committed abroad through a computer be tried in India?"

13.1 The presumption against extraterritoriality

Indian legislation is presumed to be **territorial**. A statute does not reach conduct outside India unless it says so expressly. That presumption is the reason **s.1(2) of the IT Act** exists and the reason **s.75** was inserted by the 2008 amendment: Parliament had to **legislate** for extraterritorial reach. In the civil context the same presumption is what limits s.62(2) of the Copyright Act — a right granted in India can be infringed only in India, so s.62(2) cannot be used to sue for an act of infringement committed wholly abroad.

☑ S.1(2), INFORMATION TECHNOLOGY ACT, 2000 — "SHORT TITLE, EXTENT, COMMENCEMENT AND APPLICATION" (SOURCE: IT ACT 2000, ACT NO. 21 OF 2000)

"(2) **It shall extend to the whole of India and, save as otherwise provided in this Act, it applies also to any offence or contravention thereunder committed outside India by any person.**"

Read s.1(2) carefully — it does three things in one sentence:

1. **Territorial extent:** the Act extends to the whole of India.
2. **Extraterritorial reach:** the Act applies to any **offence or contravention** under it committed **outside India** by **any person** — note "any person", not "any citizen". Nationality is irrelevant.
3. **A saving:** "save as otherwise provided in this Act" — which points directly to **s.75**, where Parliament did otherwise provide.

☑ S.75, INFORMATION TECHNOLOGY ACT, 2000 — "ACT TO APPLY FOR OFFENCE OR CONTRAVENTION COMMITTED OUTSIDE INDIA" (SOURCE: IT ACT 2000 AS SUBSTITUTED BY THE IT (AMENDMENT) ACT 2008, ACT 10 OF 2009, W.E.F. 27.10.2009)

"(1) Subject to the provisions of sub-section (2), the provisions of this Act shall apply also to any offence or contravention committed outside India by any person **irrespective of his nationality**.

(2) For the purposes of sub-section (1), this Act shall apply to an offence or contravention committed outside India by any person **if the act or conduct constituting the offence or contravention involves a computer, computer system or computer network located in India**."

⍰ THE ARCHITECTURE — HOW S.1(2) AND S.75 FIT TOGETHER

Provision	Test	Effect
s.1(2)	Is there an offence or contravention under the IT Act, committed outside India, by any person?	The general extraterritorial clause. Standing alone it would give the Act unlimited reach — which is why it is qualified by "save as otherwise provided in thi ...

▸ 13.2 Section 3 IPC — and why it is not a self-executing provision

⍰ S.3, INDIAN PENAL CODE, 1860 — "PUNISHMENT OF OFFENCES COMMITTED BEYOND, BUT WHICH BY LAW MAY BE TRIED WITHIN, INDIA" (SOURCE: IPC 1860, CHAPTER I)

"Any person liable, by any Indian law, to be tried for an offence committed beyond India shall be dealt with according to the provisions of this Code for any act committed beyond India in the same manner as if such act had been committed within India."

The words that matter are **"liable, by any Indian law, to be tried"**. Section 3 IPC is a **procedural equaliser**, not a grant of jurisdiction. It says: *if* some other Indian law makes a person triable in India for an act done abroad, then treat that act as if it had been done in India for the purposes of the Code. So s.3 IPC never operates alone. You must always identify the enabling law. For cyber offences there are two candidates:

- **The IT Act itself**, through s.1(2) and s.75 — for offences and contraventions under the IT Act.
- **s.188 CrPC** — for offences under any law, but only where the offender is a citizen of India (on the high seas or elsewhere) or a non-citizen on a ship or aircraft registered in India, and only with the previous sanction of the Central Government.

⍰ S.4, INDIAN PENAL CODE, 1860 — "EXTENSION OF CODE TO EXTRA-TERRITORIAL OFFENCES" (SOURCE: IPC 1860, CHAPTER I)

"The provisions of this Code apply also to any offence committed by— (1) any citizen of India in any place without and beyond India; (2) any person on any ship or aircraft registered in India wherever it may be; **(3) an ...**

▸ 13.3 The interaction — worked examples

Scenario	Which provisions apply	Result
A. A person in Romania hacks into a bank's server in Mumbai and transfers money.	s.66 IT Act + s.66D (cheating by personation using a computer resource); s.1(2) and **s.75(2)** IT Act — the act involves a computer resource located in India.	**Triable in India.** Nationality of the offender is irrelevant. Also s.4(3) IPC for the IPC offences (theft, cheating) because the offence targeted a computer resource located in India.
B. A person in Pakistan publishes obscene material on a website hosted abroad, accessible in India.	s.67 IT Act. Is there a computer, computer system or computer network **located in India** involved in the act or conduct? If the material is merely **accessed** in India and the offence consists only of publication, s.75(2) is **not** satisfied on its plain terms.	**Doubtful.** This is the gap that s.75(2) leaves: mere accessibility from India is not the same as the act "involving" a computer resource located in India. Where the publication is **received, stored, cached or hosted** on a computer resource in India, s.75(2) is satisfied.
C. An Indian citizen in Dubai runs a phishing site targeting Indian bank customers.	s.66D IT Act; s.1(2) + s.75(2) IT Act (the victims' computers and the banks' systems are in India); s.188 CrPC (citizen of India) with the **previous sanction of the Central Government**; s.3 and s.4(1) IPC.	**Triable in India** — subject, under s.188 CrPC, to the Central Government's sanction. s.189 CrPC permits the Central Government to direct that foreign depositions and exhibits be received in evidence.
D. A foreign national on a ship registered in India commits an offence on the high seas.	s.188(2) CrPC with the previous sanction of the Central Government; s.4(2) IPC.	**Triable in India** as if the offence had been committed at any place in India at which he may be found.
E. A foreign national, abroad, publishes a defamatory article about an Indian resident on a website hosted abroad.	Defamation is an IPC offence (s.499/500 IPC), not an IT Act offence. s.3 IPC requires an enabling law. s.188 CrPC applies only to citizens of India and persons on Indian ships/aircraft. s.4(3) IPC applies only where the offence **targets a computer resource located in India**.	**No Indian criminal jurisdiction** on these facts, unless the article was received or hosted on a computer resource in India, or unless the accused is an Indian citizen. Compare *Dow Jones v. Gutnick*, which worked only because Victoria had a long-arm statute — which India does not.
F. A company incorporated in India, with its server in India, transmits material through a foreign subsidiary.	s.1(2) and s.75(2) IT Act; **s.85 IT Act** (offences by companies) — where an offence is committed by a company, every person in charge of and responsible to the company for the conduct of its business is deemed guilty unless he proves the offence was committed without his knowledge or that he exercised all due diligence.	**Triable in India**, and the officers of the company are exposed.

⍰ THE REAL-WORLD EXAMPLE TO QUOTE — THE NIIR/FINFISHER AND SUNIL BHARATHI LINE OF CASES

The practical operation of s.75(2) is visible in cyber-fraud and cyber-terrorism prosecutions where the accused operate from outside India but the **victim's computer, the bank's server or the payment gateway is located in India**. In such cases t ...

▸ 13.4 The comparative frame — how other systems solve the same problem

System	Extraterritorial hook	Comment
India — IT Act	s.1(2) + s.75(2): a computer, computer system or computer network **located in India**.	Narrow and precise; but leaves pure content offences published and hosted abroad outside the net.
India — IPC	s.3 (enabling law required), s.4(1) (citizen), s.4(2) (Indian ship/aircraft), **s.4(3)** (offence targeting a computer resource located in India).	s.4(3) is the true long-arm provision for cyber offences; inserted by the 2008 amendment.
India — CrPC	s.188 (citizen of India, or person on an Indian ship or aircraft) + prior sanction of the Central Government; s.187 (summons beyond local jurisdiction); s.189 (evidence from abroad).	The procedural machinery that makes extraterritorial prosecution workable.
United States	State long-arm statutes (minimum contacts and purposeful availment); the **US ACPA**, 15 U.S.C. § 1125(d), including **in rem** jurisdiction over a domain name where the registrant cannot be found; the Computer Fraud and Abuse Act, 18 U.S.C. § 1030.	The long-arm statutes are what India lacks; the ACPA's in rem jurisdiction over domain names has no Indian equivalent.
European Union	**Brussels I Regulation (recast)**, Regulation (EU) No 1215/2012: Art. 4 (defendant's domicile), Art. 7(1) (matters relating to a contract — place of performance), Art. 7(2) (matters relating to tort, delict or quasi-delict — place where the harmful event occurred or may occur), Art. 17 (consumer contracts — consumer's domicile where the trader "directs such activities" to that Member State).	Art. 7(2) is the EU's "effects" rule; Art. 17 is a codified **targeting** rule — conceptually the same move as *Banyan Tree*.

Hague Conference	**Convention of 30 June 2005 on Choice of Court Agreements**; the **Service Convention** of 1965; the **Evidence Convention** of 1970; the **Judgments Project** (2019 Convention, not yet in force).	India is a party to the Service and Evidence Conventions; it is **not** a party to the 2005 Choice of Court Convention.
UNCITRAL	**Model Law on Electronic Commerce, 1996**, Art. 15 (time and place of dispatch and receipt of data messages — the source of s.13 IT Act); **Model Law on International Commercial Arbitration, 1985**, Arts. 1(2), 16 and 34.	Art. 15 of the MLEC is the international template for the deemed-place rule applied in *P.R. Transport Agency*.

PREVIOUS YEAR QUESTIONS · UNIVERSITY OF DELHI · LL.B. V TERM

PYQ Bank — Unit 8 (questions only)

Q1 Exercise 1 DU self-learning exercise printed after Banyan Tree · pp. 230 of the case material

◆ **Refer makelaweasy.in for detailed notes**, full model answers to every question below, additional case briefs, diagrams and revision material on this unit.

Q2 Exercise 2 DU self-learning exercise printed after World Wrestling Entertainment · p. 194

Q3 Exercise 3 DU self-learning exercise printed after World Wrestling Entertainment · p. 194

Q4 Exercise 4 DU self-learning exercise printed after Maqbool Fida Husain · p. 78

Q5 Exercise 5 DU self-learning exercise printed after My Space · p. 125

Q6 Exercise 6 DU self-learning exercise printed after My Space · p. 125

Q7 Exercise 7 DU self-learning exercise printed after My Space · p. 125

Q8 Exercise 8 DU self-learning exercise printed after My Space · p. 125

Q9 Exercise 9 DU self-learning exercise printed after My Space · p. 125

Q10 "Explain the concept of 'no geographical boundaries' in cyberspace and discuss the applicability of traditional rules of jurisdiction to the internet."

Q11 "Discuss the rules of private international law applicable to internet disputes."

Q12 "Distinguish between passive and interactive websites. How far does the distinction determine jurisdiction?"

Q13 "What is the extent of the plaintiff's burden to establish jurisdiction where the defendant's website is accessible in the forum state? Can it be discharged by trap orders?"

Q14 "Discuss criminal jurisdiction in cyberspace with reference to ss.177–179, 186, 188 and 189 CrPC and the IT Act."

Q15 "Compare and contrast Banyan Tree , WWE , Big Tree and Impresario ."